

Portfolio of Coverage

Especially Designed For:

DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

PO BOX 453

ILION, NY 13357-8682



Underwritten by
National Union Fire Granite Row

of Pittsburgh, PA.



National Union Fire Granite Row

of Pittsburgh, PA.

RISK CONTROL POLICYHOLDER NOTICE

Dear VFIS Client,

Safety and health is a major concern in emergency service organizations today. These issues are important because of the major impact that accidents can have on an organization. Morale can often be affected as well as an organization's finances. Insurance rarely covers all the expenses associated with accidents. There are often hidden costs that the organization must bear such as time spent reporting, documenting and investigating the accident, time spent training the replacement staff and time to replace the vehicles and equipment.

Risk Control Guidelines Provided by VFIS

As a valuable service to you, VFIS provides risk control guidelines and programs to your organization in an effort to help you prevent and/or reduce the impact of accidents. Implementing VFIS risk control measures could benefit your organization by reducing or eliminating the hidden costs of accidents while helping your organization to continue to serve your community.

VFIS provides a number of programs and services to help you in your risk control effort. While most of these services are available to our clients at no additional cost, some may require a fee based on the scope of the service requested. Some of the services and programs that we provide to our clients include:

- On-site risk control consultations
- Recommendations to control identifiable hazards
- Loss experience analysis
- Consultation on specific risk control-related problems
- Sample standard operating guidelines for vehicle operations
- Accident investigation procedures and forms
- Health and Safety Audit of NFPA 1500

Risk Control Publications

VFIS has many resources that you can access at no charge on our Web site. These include Communiqués, which are a one-page fact sheet, that presents a specific hazard and provides procedures for controlling the hazard. VFIS also provides numerous training programs that you can access through the Client Education and Training Resource Catalog. Please visit www.vfis.com to view and order these resources.

Inquire About Our Risk Control Services

If you would like information about some of the above services and publications, please call VFIS Client Risk Solutions at (712) 868-3638 .

National Union Fire Insurance Company of Pittsburgh, Pa.

(a capital stock company)

Administrative Office: 1271 Ave of the Americas, FL 37 | New York, NY 10020 | 212.458.5000

Administered by:

VFIS | 183 Leader Heights Road | York, PA 17402

800.233.1957 | vfis.com



COMMON POLICY DECLARATIONS

Named Insured and Mailing Address:

DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

PO BOX 453

ILION, NY 13357-8682

Policy Number:

VFNU-QE-7247333-05/840

Policy Period:

From 04-01-2024

To 04-01-2025

12:01 AM Standard Time at your mailing address shown above.

Type of Entity:

CORPORATION

Business Description:

EMERGENCY SERVICE ORGANIZATION

This policy consists of the following coverage parts:

Premium

Property	\$4,850.00
Crime	\$862.00
Portable Equipment	\$2,043.00
Auto	Not Covered
General Liability	\$1,148.00
Management Liability	\$1,376.00
Excess Liability	\$1,030.00

Taxes / Fees / Surcharges: Not Applicable

NY Motor Vehicle Law Enforcement Fee: N/A

NY Fire Fee: \$ 60.63

Estimated Total Premium: \$11,369.63

The policy premium is payable on the dates and in the amounts shown below:

See NADINE QUIMBY .

Named Insured:

DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number:

VFNU-QE-7247333-05/840

Policy Period: From 04-01-2024
To 04-01-2025**COMMON FORMS**

See HARBOR POINT MECHANICAL .

In return for payment of the premium, and subject to all the terms of this policy, we agree with you to provide the insurance as stated in the policy. The policy consists of the coverage parts where a premium is shown on page 1 of these Common Policy Declarations. In addition to any common forms, each coverage part consists of a Coverage Part Declarations and any coverage forms and endorsements listed on the Coverage Part Declarations or elsewhere in the policy.



Authorized representative (countersignature, where required)

04-01-2024

Date

Cedarline

has caused this policy to be signed by its President and Secretary



President



Secretary

Policy Number

VFNU-QE-7247333-05/840

HARBOR POINT MECHANICAL

Named Insured DDLGS ZZVKAFWYE WNNZGVFAT LJBZQNV, JGS**Effective Date:** 04-01-24

12:01 A.M., Standard Time

Agency Name VFIS

COMMON POLICY FORMS AND ENDORSEMENTS

89644	06-13	ECONOMIC SANCTIONS ENDORSEMENT
VCO300	01-20	COMMON POLICY CONDITIONS
125595	03-20	FEDERAL SHARE OF COMPENSATION UNDER TRIA
965560	03-20	POLICYHOLDER DISCLOSURE NOTICE OF TERROR
CG 21 70	01-15	CAP ON LOSSES FROM CERTIFIED ACTS OF TER
IL 09 52	01-15	CAP ON LOSSES FROM CERT ACTS/TERRORISM
VCONY1	01-20	NEW YORK CHANGES - CANCELLATION AND NONR
VCONY2	01-20	NEW YORK CHANGES - FRAUD

PROPERTY FORMS AND ENDORSEMENTS

VPR101	01-20	ESO PROPERTY COVERAGE FORM
VPR322	01-20	AMENDATORY ENDORSEMENT
VPRNY1	01-20	NEW YORK CHANGES
VPRNY2	01-20	CRISIS INCIDENT RESPONSE COV NY

CRIME FORMS AND ENDORSEMENTS

VCR105	01-20	EMPLOYEE DISHONESTY COVERAGE FORM (COVER
VCR300	01-20	CRIME GENERAL PROVISIONS
VCRNY2	01-20	NEW YORK CHANGES - EMPLOYEE DISHONESTY
VCR109	01-20	ADDITIONAL COVERAGES COMPUTER AND FUNDS
VCR110	01-20	IDENTITY FRAUD EXPENSE COVERAGE FORM

PORTABLE EQUIPMENT FORMS AND ENDORSEMENTS

CP 00 90	07-88	COMMERCIAL PROPERTY CONDITIONS
PE1001	01-20	EMERGENCY SERVICE ORGANIZATION PORTABLE
PE1001	01-	GANIZATION PORTABLE
PE1003	01-2216	ORCHARD DRIVE
PE1009	01-	ABLE EQUIPMEN
PE1012	01-4692	ORCHARD STREET
PENY01	01-	
PENY02	01-20	NEW YORK MUTUAL AID PORTABLE EQUIPMENT

GENERAL LIABILITY FORMS AND ENDORSEMENTS

VGL101	01-20	EMERGENCY SERVICE ORGANIZATION GENERAL L
VGL212	01-20	EXCLUSION ELECTRONIC INFORMATION SECURIT
VGL213	03-21	AMENDMENT TO POLLUTION EXCLUSION
VGL306	01-20	OWNED WATERCRAFT LIABILITY
VGL320	01-20	UNMANNED AIRCRAFT COVERAGE
VGLNY1	01-20	NEW YORK CHANGES
VGLNY10	01-20	MOBILE EQUIPMENT SUBJECT TO MOTOR VEHICL

MANAGEMENT LIABILITY FORMS AND ENDORSEMENTS

VML101	01-20	EMERGENCY SERVICE ORGANIZATION MANAGEMEN
VMLNY1	01-20	NEW YORK CHANGES
VMLNY12	01-20	AMENDATORY ENDORSEMENT MANAGEMENT LIABIL
VMLNY3	01-20	NEW YORK DISCLOSURE FORM CLAIMS MADE COV
VMLNY4	01-20	EXTENDED REPORTING PERIODS - NEW YORK
VMLNY5	01-20	NEW YORK TRANSFER OF DUTIES
VMLNY7	01-20	NEW YORK CHANGES
VMLNY8	01-20	CYBER LIABILITY AND PRIVACY CRISIS MANAG

EXCESS FORMS AND ENDORSEMENTS

Policy Number

VFNU-QE-7247333-05/840

HARBOR POINT MECHANICAL

Named Insured DDLGS ZZVKAFWYE WNNZGVFAT LJBZQNV, JGS

Effective Date: 04-01-24

12:01 A.M., Standard Time

Agency Name VFIS

CX0001	04-13	COMMERCIAL EXCESS LIABILITY COVRG FORM
CX0114	01-14	NEW YORK CHANGES
CX0115	01-11	NY CHANGES-TRNFR DUTIES WHEN LMT USED UP
CX0233	06-20	NEW YORK CHANGES - CANCELLATION AND NONR
CX2101	09-08	NUCLEAR ENERGY LIABILITY EXCLUSION ENDO
CXE0112	01-20	PER LOCATION AGGREGATE LIMIT OF INSURANC
CXE0172	01-20	FIREWORKS OR PYROTECHNICS EXCLUSION
CXE0279	01-20	SUBLIMITED COVERAGES ENDORSEMENT
	01-20	ERISA EXCLUSION
CXEG3375	01-20	EMERGENCY SERVICE ORGANIZATION AMENDATOR
CXEG4966	01-20	OTHER VALID AND COLLECTIBLE INSURANCE AM
CXEG6209	01-20	UNMANNED AIRCRAFT LIABILITY COVERAGE SUB
CXENY3504	01-20	NEW YORK UNDERLYING CLAIMS-MADE COVERAGE
CXENY0368	01-20	PRODUCTS-COMPLETED OPERATIONS AGGREGATE
	01-15	CAP ON LOSSES FROM CERTFD ACTS OF TERROR

POLICYHOLDER NOTICES

118477	03-15	POLICYHOLDER NOTICE - TAXES, ASSESSMENTS
	09-16	POLICYHOLDER NOTICE
AGLC907603	01-22	AIG PRIVACY NOTICE

Policy Number

VFNU-QE-7247333-05/840

NADINE QUIMBY

Named Insured DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Effective Date: 04-01-24
12:01 A.M., Standard Time

Agency Name VFIS

**IT IS HEREBY AGREED AND UNDERSTOOD THAT THIS POLICY IS
PAYABLE ON INSTALLMENTS AS FOLLOWS:**

	DUE	PREMIUM	SURCHARGE	REVISED INSTALLMENT TOTAL
DEPOSIT	04/01/2024	\$2,827.00		\$2,887.63
INSTALLMENT	07/01/2024	\$2,827.00	\$60.63	\$2,827.00
INSTALLMENT	10/01/2024	\$2,827.00		\$2,827.00
INSTALLMENT	01/01/2025	\$2,828.00		\$2,828.00

Failure to pay the Installment Premium by the Date Due shown shall constitute non-payment of premium for which we may cancel this policy.

Policy Number

VFNU-QE-7247333-05/840

ASHCROFT HOLDINGS

Named Insured DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Effective Date: 04-01-24
12:01 A.M., Standard Time

Agency Name VFIS

RIDGEWAY SERVICE GROUP

INLET EMS SQUAD

INLET FIRE AUXILIARY

ASHCROFT BUILDERS

JUNIOR FIRE FIGHTERS

ENDORSEMENT

This endorsement, effective 12:01 A.M. forms a part of

policy No. VFNU-QE-7247333-05/840

issued to DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

By RIDGEWAY FABRICATION, INC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ECONOMIC SANCTIONS ENDORSEMENT

This endorsement modifies insurance provided under the following:

ALL COVERAGE PARTS

The Insurer shall not be deemed to provide cover and the Insurer shall not be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose the Insurer, its parent company or its ultimate controlling entity to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union or the United States of America.

AUTHORIZED REPRESENTATIVE

Policy Number

VFNU-QE-7247333-05/840

STONEPATH WORKS

Named Insured DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Effective Date: 04-01-2024
12:01 A.M., Standard Time

Agency Name VFIS

TAXES / SURCHARGES DETAILED BREAKDOWN :

NY Fire Fee	\$	60.63

TOTAL TAXES / SURCHARGES	\$	60.63

COMMON POLICY CONDITIONS

All coverage parts included in this policy are subject to the following conditions.

A. Cancellation

1. The first Named Insured shown in the Declarations may cancel this policy by mailing or delivering
MERIDIAN BUILDERS
2. We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
 - a. 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or
 - b. 30 days before the effective date of cancellation if we cancel for any other reason.
3. We will mail or deliver our notice to the first Named Insured's last mailing address known to us.
4. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.
5. If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata. The cancellation will be effective even if we have not made or offered a refund.
6. If notice is mailed, proof of mailing will be sufficient proof of notice.
7. If this Condition conflicts with your state's requirements regarding cancellation or non-renewal, the provisions of any state-specific form attached to this policy will supersede this Condition to the extent of such conflict.

B. Changes

This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the Declarations is authorized to make changes in the terms of this policy with our consent. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

C. Examination of Your Books and Records

We may examine and audit your books and records as they relate to this policy at any time during the policy period and up to three years afterward.

D. Inspections and Surveys

1. We have the right to:
 - a. Make inspections and surveys at any time;
 - b. Give you reports on the conditions we find; and
 - c. Recommend changes.

2. We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And we do not warrant that conditions:
 - a. Are safe or healthful; or
 - b. Comply with laws, regulations, codes or standards.
3. Paragraphs 1. and 2. of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations on our behalf.
4. Paragraph 2. of this condition does not apply to any inspections, surveys, reports or recommendations we may make relative to certification, under state or municipal statutes, ordinances or regulations, of boilers, pressure vessels or elevators.

E. Liberalization

If we revise any coverage included in this policy, and if such revision does not require a premium charge, your policy will automatically provide the additional coverage as of the date the revision is effective in your state.

F. Premiums

The first Named Insured shown in the Declarations:

1. Is responsible for the payment of all premiums; and
2. Will be the payee for any return premiums we pay.

G. Titles

Throughout this policy, titles are intended for ease of reference only. They do not extend or restrict any coverage beyond what is specifically stated in the policy had no titles been used.

H. Transfer of Your Rights and Duties Under This Policy

Your rights and duties under this policy may not be transferred without our written consent.

ENDORSEMENT

This endorsement, effective 04/01/2024 12:01 A.M.,

Forms a part of Policy No.: VFNU-QE-7247333-05/840

Issued to: DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

By: HARBOR POINT MECHANICAL

OF PITTSBURGH, PA.

FEDERAL SHARE OF COMPENSATION UNDER TRIA AND CAP ON LOSSES ENDORSEMENT

This endorsement modifies insurance provided by this Policy:

DISCLOSURE

You should know that where coverage is provided by this Policy for losses resulting from "Certified Acts of Terrorism" (as defined by Section 102 (1) of United States Terrorism Risk Insurance Act), such losses may be partially reimbursed by the United States Government under a formula established by federal law. However, your Policy may contain other exclusions which might affect your coverage such as, an exclusion for nuclear events. Under the formula, the United States Government generally reimburses 80% beginning on January 1, 2020, of covered terrorism losses exceeding the statutorily established deductible paid by the Granite Row providing the coverage.

You should also know that the Terrorism Risk Insurance Act, as amended, contains a \$100 billion cap that limits United States Government reimbursement as well as insurers' liability for losses resulting from "Certified Acts of Terrorism" when the amount of such losses in any one calendar year exceeds \$100 billion. If the aggregate insured losses for all insurers exceed \$100 billion in a calendar year and if we have met our insurer deductible, we are not liable for the payment of any portion of the amount of such losses that exceeds \$100 billion; and for aggregate insured losses up to \$100 billion, we will only pay a pro rata share of such insured losses as determined by the Secretary of the Treasury.

All other terms and conditions of the Policy remain the same.

Authorized Representative

POLICYHOLDER DISCLOSURE
NOTICE OF TERRORISM INSURANCE COVERAGE
(COVERAGE INCLUDED)

Coverage for acts of terrorism is included in your policy. You are hereby notified that under the Terrorism Risk Insurance Act, as amended in 2015, the definition of act of terrorism has changed. As defined in Section 102(1) of the Act: The term “act of terrorism” means any act that is certified by the Secretary of the Treasury—in consultation with the Secretary of Homeland Security, and the Attorney General of the United States—to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion. Under your coverage, any losses resulting from certified acts of terrorism may be partially reimbursed by the United States Government under a formula established by the Terrorism Risk Insurance Act, as amended. However, your policy may contain other exclusions which might affect your coverage, such as an exclusion for nuclear events. Under the formula, the United States Government generally reimburses 80% beginning on January 1, 2020 of covered terrorism losses exceeding the statutorily established deductible paid by the Granite Row providing the coverage. The Terrorism Risk Insurance Act, as amended, contains a \$100 billion cap that limits U.S. Government reimbursement as well as insurers’ liability for losses resulting from certified acts of terrorism when the amount of such losses exceeds \$100 billion in any one calendar year. If the aggregate insured losses for all insurers exceed \$100 billion, your coverage may be reduced.

The portion of your annual premium that is attributable to coverage for acts of terrorism is \$_____0_____, and does not include any charges for the portion of losses covered by the United States government under the Act.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
GENERAL LIABILITY COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
POLLUTION LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
RAILROAD PROTECTIVE LIABILITY COVERAGE PART
UNDERGROUND STORAGE TANK POLICY
VICTOR CALLOWAY PROTECTIVE LIABILITY COVERAGE PART
HOSPICE AND HOME HEALTH CARE LIABILITY COVERAGE PART
HOSPICE AND HOME HEALTH CARE NOT FOR PROFIT ORGANIZATION DIRECTORS AND OFFICERS
LIABILITY POLICY
LIABILITY COVERAGE PART
MANAGEMENT LIABILITY COVERAGE PART
PUBLIC OFFICIALS AND MANAGEMENT LIABILITY COVERAGE PART
EDUCATORS LEGAL LIABILITY COVERAGE PART
HEALTHCARE PROFESSIONAL LIABILITY AND HEALTHCARE GENERAL LIABILITY
RELIGIOUS ORGANIZATION MANAGEMENT LIABILITY COVERAGE PART
RELIGIOUS ORGANIZATION MANAGEMENT LIABILITY COVERAGE PART (CLAIMS MADE)

- A.** If aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.
- "Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:
- 1.** The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
 - 2.** The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.
- B.** The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for injury or damage that is otherwise excluded under this Coverage Part.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

This endorsement modifies insurance provided under the following:

BOILER AND MACHINERY COVERAGE PART
 COMMERCIAL INLAND MARINE COVERAGE PART
 COMMERCIAL PROPERTY COVERAGE PART
 EQUIPMENT BREAKDOWN COVERAGE PART
 FARM COVERAGE PART
 STANDARD PROPERTY POLICY
 INLAND MARINE COVERAGE PART
 PROPERTY COVERAGE PART
 PORTABLE EQUIPMENT COVERAGE PART

A. Cap On Certified Terrorism Losses

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

1. The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

If aggregate insured VANTAGE MECHANICAL

acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured RIDGEWAY SERVICE GROUP subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

B. Application Of Exclusions

The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for any loss which would otherwise be excluded under this Coverage Part or Policy, such as losses excluded by the Nuclear Hazard Exclusion or the War And Military Action Exclusion.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES – CANCELLATION AND NONRENEWAL

This endorsement modifies insurance provided under the following:

CRIME COVERAGE PART
GENERAL LIABILITY COVERAGE PART
INLAND MARINE COVERAGE PART
MANAGEMENT LIABILITY COVERAGE PART
PORTABLE EQUIPMENT COVERAGE PART
PROPERTY COVERAGE PART

A. Paragraphs **1.**, **2.**, **3.** and **5.** of the **Cancellation** Common Policy Condition are replaced by the following:

1. The first Named Insured shown in the Declarations may cancel this entire policy by mailing or
CLEARWATER MOTORWORKS

2. Cancellation Of Policies In Effect

a. 60 Days Or Less

We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:

- (1)** 30 days before the effective date of cancellation if we cancel for any reason not included in paragraph **A.2.b.** below.
- (2)** 15 days before the effective date of cancellation if we cancel for any of the reasons included in Paragraph **A.2.b.** below.

b. For More Than 60 Days

If this policy has been in effect for more than 60 days, or if this policy is a renewal or continuation of a policy we issued, we may cancel only for any of the reasons listed below, provided we mail the first Named Insured written notice at least 15 days before the effective date of cancellation:

- (1)** Nonpayment of premium, provided however, that a notice of cancellation on this ground shall inform the first Named Insured of the amount due;
- (2)** Conviction of a crime arising out of acts increasing the hazard insured against;
- (3)** Discovery of fraud or material misrepresentation in the obtaining of the policy or in the presentation of a claim;
- (4)** After issuance of the policy or after the last renewal date, discovery of an act or omission, or a violation of any policy condition, that substantially and materially increases the hazard insured against, and which occurred subsequent to inception of the current policy
WINSLOW
- (5)** Material physical change in the property insured, occurring after issuance or last annual renewal anniversary date of the policy, which results in the property becoming uninsurable in accordance with our objective, uniformly applied underwriting standards in effect at the time the policy was issued or last renewed; or material change in the nature or extent of the risk, occurring after issuance or last annual renewal anniversary date of the policy, which causes the risk of loss to be substantially and materially increased beyond that contemplated at the time the policy was issued or last renewed;

- (6) Required pursuant to a determination by the Superintendent that continuation of our present premium volume would jeopardize our solvency or be hazardous to the interest of our policyholders; our creditors or the public;
 - (7) A determination by the Superintendent that the continuation of the policy would violate, or would place us in violation of, any provision of the Insurance Code; or
 - (8) Where we have reason to believe, in good faith and with sufficient cause, that there is a probable risk of danger that the insured will destroy, or permit to be destroyed, the insured property for the purpose of collecting the insurance proceeds. If we cancel for this reason, you may make a written request to the Department of Financial Services, within 10 days of receipt of this notice, to review our cancellation decision. Also, we will simultaneously send a copy of this cancellation notice to the Department of Financial Services.
3. We will mail or deliver our notice, including the reason for cancellation, to the first Named Insured at the address shown in the policy and to the authorized agent or broker.
5. If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata.
- However, when the premium is advanced under a premium finance agreement, the cancellation refund will be pro rata. Under such financed policies, we will be entitled to retain a minimum earned premium of 10% of the total policy premium or \$60, whichever is greater. The cancellation will be effective even if we have not made or offered a refund.

B. The following is added to the **Cancellation Common Policy Condition:**

- 8. If one of the reasons for cancellation in paragraphs **A.2.b.** or **D.2.b.(2)** exists, we may cancel this entire policy, even if the reason for cancellation pertains only to a new coverage or endorsement initially effective subsequent to the original issuance of this policy.

C. The following Conditions are added:

1. Nonrenewal

If we decide not to renew this policy we will send notice as provided in paragraph **C.3.** below.

2. Conditional Renewal

If we conditionally renew this policy subject to:

- a. A change of limits;
- b. A change in type of coverage;
- c. A reduction of coverage;
- d. An increased deductible;
- e. An addition of exclusion; or
- f. Increased premiums in excess of 10%, exclusive of any premium increase due to and commensurate with insured value added or increased exposure units; or as a result of experience rating, loss rating, retrospective rating or audit;

we will send notice as provided in paragraph **C.3.** below.

3. Notices of Nonrenewal and Conditional Renewal

- a. If we decide not to renew this policy or to conditionally renew this policy as provided in paragraphs **C.1.** and **C.2.** above, we will mail or deliver written notice to the first Named Insured shown in the Declarations at least 60 but not more than 120 days before:

CLEARWATER WORKS

- (2) The anniversary date if this is a continuous policy.

- b. Notice will be mailed or delivered to the first Named Insured at the address shown in the policy and to the authorized agent or broker. If notice is mailed, proof of mailing will be sufficient proof of notice.
- c. Notice will include the specific reason(s) for nonrenewal or conditional renewal, including the amount of any premium increase for conditional renewal and a description of any other changes.
- d. If we violate any of the provisions of paragraphs **C.3.a.**, **b.** or **c.** above by sending the first Named Insured an incomplete or late conditional renewal notice or a late nonrenewal notice:
 - (1) And if notice is provided prior to the expiration date of this policy, coverage will remain in effect at the same terms and conditions of this policy at the lower of the current rates or the prior period's rates until 60 days after such notice is mailed or delivered, unless the first Named Insured, during this 60 day period, has replaced the coverage or elects to WINSLOW
 - (2) And if the notice is provided on or after the expiration date of this policy, coverage will remain in effect at the same terms and conditions of this policy for another policy period, at the lower of the current rates or the prior period's rates, unless the first Named Insured, during this additional policy period, has replaced the coverage or elects to WINSLOW
- e. If you elect to renew on the basis of a late conditional renewal notice, the terms, conditions and rates set forth in such notice shall apply:
 - (1) Upon expiration of the 60 day period unless Subparagraph (2) below applies; or
 - (2) Notwithstanding the provisions in paragraphs **d.(1)** and **d.(2)**, as of the renewal date of the policy if the conditional renewal notice was sent at least 30 days prior to the expiration or anniversary date of the policy.
- f. We will not send you notice of nonrenewal or conditional renewal if you, your authorized agent or broker or another insurer of yours mails or delivers notice that the policy has been replaced or is no longer desired.

D. The following provisions apply when the Property coverage part is made a part of this policy:

- 1. Items **D.2.** and **D.3.** apply if this policy meets the following conditions:
 - a. The policy is issued or issued for delivery in New York State covering property located in this state; and
 - b. The policy insures:
 - (1) For loss of or damage to structures, other than hotels or motels, used predominantly for residential purposes and consisting of no more than four dwelling units; or
 - (2) For loss of or damage to personal property other than farm personal property or business property; or
 - (3) Against damages arising from liability for loss of, damage to or injury to persons or property, except liability arising from business or farming; and
 - c. The portion of the annual premium attributable to the property and contingencies described in **1.b.** exceeds the portion applicable to other property and contingencies.
- 2. Paragraph **2.** of the **Cancellation** Common Policy Condition is replaced by the following:

2.Procedure and Reasons for Cancellation

- a. We may cancel this entire policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
 - (1) 15 days before the effective date of cancellation if we cancel for nonpayment of premium, provided however, that a notice of cancellation on this ground shall inform the first Named Insured TALLGRASS CONTRACTING
 - (2) 30 days before the effective date of cancellation if we cancel for any other reason.
- b. But if this policy:
 - (1) Has been in effect for more than 60 days; or
 - (2) Is a renewal of a policy we issued;
 we may cancel this policy only for one or more of the following reasons:

- (a) Nonpayment of premium, provided however that a notice of cancellation on this ground shall inform the first Named Insured of the amount due;
- (b) Conviction of a crime arising out of acts increasing the risk of loss;
- (c) Discovery of fraud or material misrepresentation in obtaining the policy or in making a claim;
- (d) Discovery of willful or reckless acts or omissions increasing the risk of loss;
- (e) Physical changes in the covered property that make that property uninsurable in accordance with our objective and uniformly applied underwriting standards in effect when we:
 - (i) Issued the policy; or
 - (ii) Last voluntarily renewed the policy;
- (f) The Superintendent of Financial Services' determination that continuing the policy would violate Chapter 28 of the Insurance Law; or
- (g) Required pursuant to a determination by the Superintendent of Financial Services that the continuation of our present premium volume would be hazardous to the interests of our policyholders, our creditors or the public.

3. The following are added:

a. Conditional Continuation

Instead of cancelling this policy, we may continue it on the condition that:

- (1) The policy limits be changed; or
- (2) Any coverage not required by law be eliminated.

If this policy is conditionally continued, we will mail or deliver to the first Named Insured written notice at least 20 days before the effective date of the change or elimination. We will mail or deliver our notice to the first Named Insured's last mailing address known to us. If notice is mailed, proof of mailing will be sufficient proof of notice. Delivery of the notice will be the same as mailing.

b. Nonrenewal

If, as allowed by the laws of New York State, we:

- (1) Do not renew this policy; or
- (2) Condition policy renewal upon:
 - (a) Change of limits; or
 - (b) Elimination of coverage;

we will mail or deliver written notice of nonrenewal or conditional renewal:

- (a) At least 45 days; but
- (b) Not more than 60 days;

before the expiration date of the policy. We will mail or deliver our notice to the first Named Insured's last mailing address known to us. If notice is mailed, proof of mailing will be sufficient proof of notice. Delivery of the notice will be the same as mailing.

E. The following is added to the Property coverage part:

When the property is subject to the Anti-arson Application in accordance with New York Department of Financial Services' Regulation No. 96, the following provisions are added:

If you fail to return the completed, signed and affirmed anti-arson application to us:

- 1. Or our broker or agent within 45 days of the effective date of a new policy, we will cancel the entire policy by giving 20 days' written notice to you and to the mortgageholder shown in the Declarations.
- 2. Before the expiration date of any policy, we will cancel the policy by giving written notice to you and to the mortgageholder shown in the Declarations at least 15 days before the effective date of cancellation.

The cancellation provisions set forth in **E.1.** and **E.2.** above supersede any contrary provisions in this policy including this endorsement. If the notice in **E.1.** or **E.2.** above is mailed, proof of mailing will be sufficient proof of notice. Delivery of the notice will be the same as mailing.

F. The following applies to the Property coverage part:

Paragraphs **f.** and **g.** of the **Mortgage Holders** Condition are replaced by the following:

g. Cancellation

- (1) If we cancel this policy, we will give written notice to the mortgage holder at least:
 - (a) 10 days before the effective date of cancellation if we cancel for your nonpayment of premium; or
 - (b) 30 days before the effective date of cancellation if we cancel for any other reason.
- (2) If you cancel this policy, we will give written notice to the mortgage holder. With respect to the mortgage holder's interest only, cancellation will become effective on the later of:
 - (a) The effective date of cancellation of the insured's coverage; or
 - (b) 10 days after we give notice to the mortgage holder.

h. Nonrenewal

- (1) If we elect not to renew this policy, we will give written notice to the mortgage holder at least 10 days before the expiration date of this policy.
- (2) If you elect not to renew this policy, we will give written notice to the mortgage holder. With respect to the mortgage holder's interest only, nonrenewal will become effective on the later of:
 - (a) The expiration date of the policy; or
 - (b) 10 days after we give notice to the mortgage holder.

G. The following provisions apply when the following are made a part of this policy:

General Liability Coverage Part
Management Liability Coverage Part

- 1. The aggregate limits of this policy as shown in the Declarations will be increased in proportion to any policy extension provided in accordance with paragraph **C.3.d.** above.
- 2. The last sentence of the Limits of Insurance section of the General Liability coverage part, and the last sentence of paragraph 5. of the Limits of Insurance section of the Management Liability coverage part, do not apply when the policy period is extended because we sent the first Named Insured an incomplete or late conditional renewal notice or a late nonrenewal notice.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES - FRAUD

This endorsement modifies insurance provided under the following:

AUTOMOBILE COVERAGE PART
CRIME COVERAGE PART
INLAND MARINE COVERAGE PART
PORTABLE EQUIPMENT COVERAGE PART
PROPERTY COVERAGE PART

The CONCEALMENT, MISREPRESENTATION OR FRAUD Condition is replaced by the following:

FRAUD

We do not provide coverage for any insured ("insured") who has made fraudulent statements or engaged in fraudulent conduct in connection with any loss ("loss") or damage for which coverage is sought under this policy.

However, with respect to insurance provided under the AUTOMOBILE COVERAGE PART, we will provide coverage to such "insured" for damages sustained by any person who has not made fraudulent statements or engaged in fraudulent conduct, if such damages are otherwise covered under the policy.

Named Insured:
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

PROPERTY COVERAGE PART DECLARATIONS

Property Schedule Summary

Premises Number	Item Number	Address	Boonville	Warwick	Liberty
		8104 HARBOR			

Estimated Coverage Part Premium:

Taxes, Fees and Surcharges: \$ Not Applicable

NY Fire Fee:

Total Premium:

Named Insured:

DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840

Policy Period: From 04-01-2024

To 04-01-2025

PROPERTY COVERAGE PART DECLARATIONS**Schedule of Property Coverage****Premises #:****Item #:****Address:**8104 HARBOR
CANTON, NY 13617**Occupancy:**

Kingston

Limit of InsuranceInflation Guard

A. Real Property

B. Personal Property

C. Loss of Income

24 Months Actual Loss Sustained

D. Extra Expense

24 Months Actual Loss Sustained

Mine Subsidence

Coverage DetailsValuation MethodCoinsurance

Real Property

Personal Property

Deductible Details

Policy Deductible

Per Occurrence

Earthquake Deductible

Per Item

Flood Deductible

Mine Subsidence Deductible

Per Premises

Named Insured:

DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number:

VFNU-QE-7247333-05/840

Policy Period: From 04-01-2024

To 04-01-2025

PROPERTY COVERAGE PART DECLARATIONS**Blanket Summary**

The following limit applies to all coverages denoted above as "See Blanket Summary".

Coverage	Limit of Insurance
Personal Property	

Money and Securities

Coverage	Limit of Insurance
Money and Securities	

Software

Coverage	Limit of Insurance
Software	

Property Forms

See HARBOR POINT MECHANICAL .

EMERGENCY SERVICE ORGANIZATION PROPERTY COVERAGE FORM

Various provisions in this coverage part restrict coverage. Read the entire coverage part carefully to determine rights, duties, and what is and is not covered.

Throughout this coverage part the words "you" and "your" refer to the Named Insured shown in the Declarations. The words "we," "us" and "our" refer to the Company providing this insurance.

Other words and phrases that appear in quotation marks have special meaning. Refer to **SECTION VI. DEFINITIONS.**

SECTION I. COVERAGES

Coverage A. Real Property

We will pay for direct physical loss or damage to "real property" at a "premises" caused by or resulting from any "covered cause of loss". The most we will pay is described under **SECTION IV. WHAT WE WILL PAY.**

Coverage B. Personal Property

We will pay for direct physical loss or damage to "personal property" at a "premises" caused by or resulting from any "covered cause of loss". The most we will pay is described under **SECTION IV. WHAT WE WILL PAY.**

Coverage C. Loss of Income

We will pay for the actual "loss of income" you sustain during the "period of restoration", if your "operations" are interrupted as a result of direct physical loss or damage to "real property" or "personal property" at a "premises" caused by or resulting from any "covered cause of loss". The most we will pay is described under **SECTION IV. WHAT WE WILL PAY.**

Coverage D. Extra Expense

We will pay the necessary "extra expense" you incur during the "period of restoration", if your "operations" are interrupted as a result of direct physical loss or damage to "real property" or "personal property" at a "premises" caused by or resulting from any "covered cause of loss". The most we will pay is described under **SECTION IV. WHAT WE WILL PAY.**

SECTION II. COVERAGE EXTENSIONS

This section adds to or extends the coverage under **SECTION I. COVERAGES**. Each separately numbered provision is referred to as an extension. Except to the extent specifically stated otherwise in an extension:

1. Each extension is limited to direct physical loss or damage caused by or resulting from any "covered cause of loss";
2. The limits in each extension are in addition to the limits applicable to **SECTION I. COVERAGES**; and
3. All other applicable terms and conditions of this coverage form apply to each extension.

1. Ordinance Coverage

When either "replacement cost" or guaranteed "replacement cost" is indicated in the Declarations as applicable to Coverage A, we will pay:

- a. For loss to any undamaged portion of your "real property" caused by the enforcement of any law or ordinance that:
 - (1) Requires the demolition of parts of your "real property" not damaged by a "covered cause of loss";
 - (2) Regulates the construction or repair of buildings or establishes zoning or land use requirements at a "premises"; and
 - (3) Is in force at the time of loss.
- b. The cost to demolish and clear the site of the undamaged part of the property caused by enforcement of a building, zoning or land use ordinance or law; and
- c. The increased cost to repair, rebuild or construct the "real property" caused by the enforcement of a building, zoning or land use ordinance or law, in addition to the "replacement cost" of the "real property" suffering the loss or damage.

The total paid for any "item" under paragraph a. above shall be included within the Coverage A Limit of Insurance applicable to that "item" and shall not increase that limit. The most we will pay under paragraphs b. and c. above shall not exceed 100% of the amount paid under this coverage part for the initial direct physical loss or damage to that "item".

Under this extension, we will not pay any costs:

- (a) Due to an ordinance or law that was in effect before the loss or damage occurred, and with which you failed to comply even though you were required to do so;
- (b) Associated with "remediation expenses"; or
- (c) Due to "fungus", wet rot, dry rot or bacteria.

2. Debris Removal Expenses

We will pay your debris removal expenses if they are reported to us within 180 days after the date of direct physical loss or damage. Debris removal expense means expense you incur in removing debris of covered "real property" or covered "personal property" from a "premises" after direct physical loss or damage caused by or resulting from any "covered cause of loss". Debris removal

expense does not include "remediation expenses" or any expense related to the removal of "fungus", wet rot, dry rot, bacteria or asbestos.

3. Supplementary Provisions for Coverage C. Loss of Income and Coverage D. Extra Expense

- a. Coverages C and D will apply if you have direct physical loss or damage covered under Coverage A or B to new buildings, additions or alterations to existing buildings, or associated equipment and supplies at a "premises". If a direct physical loss or damage delays the start of your "operations" at the new building, addition, or alteration, Coverages C and D will be determined from the date your "operations" would have begun if the direct physical loss or damage had not occurred.
- b. Coverages C and D will apply if your fund-raising activities are interrupted as a result of direct physical loss or damage to "real property" or "personal property" not owned by you from a "covered cause of loss" at any site used for your fund-raising activities.
- c. If property not at a "premises" is damaged by a "covered cause of loss", and as a result, a government agency prohibits you from using a "premises", Coverages C and D will apply for up to two weeks from the date that the loss occurred.
- d. The following will be disregarded in determining the amount of "loss of income":
 - (1) Donations and contributions which are a direct result of the interruption of your "operations" and are received by you during the period of interruption; and
 - (2) Proceeds from fund-raising drives or solicitations which are for your sole benefit and occur as a result of the interruption of your "operations".
- e. If a regularly scheduled fund-raising drive for your sole benefit occurs during the period of interruption, the revenue produced by such drive will not be considered as income unless the results of the drive fail, because of the interruption of your "operations", to produce an amount at least equal to the same drive in prior solicitations. If the regularly scheduled fund-raising drive is canceled or postponed, such loss of revenue will not be considered as a "loss of income".
- f. If Coverage C or D applies, we will extend Coverage C or D up to 30 consecutive days after the damaged property is repaired or replaced or to the date you could restore your "operations", with reasonable speed, to the condition that would have existed if no direct physical loss or damage occurred, whichever comes first.

4. Preservation of Property

If it is necessary to move "real property" or "personal property" from a "premises" to preserve it from direct physical loss or damage by a "covered cause of loss", we will pay for any direct physical loss or damage to that property:

- a. While it is being moved or while temporarily stored at another location; and
- b. Only if loss or damage occurs within 90 days after the property is first moved.

5. Personal Property Off Your Premises

- a. If there is a direct physical loss or damage to your covered "personal property" while it is away from your "premises", we will pay that covered loss. The most we will pay in any one occurrence is the greater of:
 - (1) The highest Limit of Insurance for Coverage B shown in the Declarations; or
 - (2) \$25,000.
- b. Any amount we pay is included in and is not in addition to the Coverage B limit shown in the Declarations, except to the extent the amount under a.(2) exceeds the Coverage B limit.
- c. This extension does not apply to any portable equipment. Portable equipment means portable firefighting, ambulance, or rescue related equipment, including portable communications equipment, commonly used in fire and rescue operations away from your "premises".

6. Newly Acquired or Under Construction Real Property and Related Personal Property

- a. "Real property" you buy, lease, rent, or construct, including temporary structures such as scaffolding, construction forms, falsework, or cribbing at the job site, will be covered under Coverage A as provided in this extension. "Personal property" you acquire in connection with the "real property" described above will be covered under Coverage B as provided in this extension.
- b. Coverage A or B applies only if your newly acquired or under construction "real property" is intended for similar use as an "item" described in the Declarations and you acquired it or began construction of it after this policy period began.
- c. The most we will pay under this extension is:
 - (1) \$2,500,000 in any one occurrence under Coverage A; and
 - (2) \$500,000 in any one occurrence under Coverage B.
- d. In addition to the limit available for "real property" under construction, we will also pay up to \$10,000 for loss or damage to construction materials and equipment that will become a permanent part of the project, while such property is held temporarily away from the construction site, or while in transit or awaiting delivery to the construction site. This property may be your property or, at your option, the property of others for which you are responsible.
- e. You agree to notify us as soon as possible of the value of:
 - (1) Your newly acquired or under construction "real property" and to pay additional premium from the date you acquired or began construction of it; and
 - (2) "Personal property" at the site of newly acquired or under construction "real property" and to pay additional premium from the date you place such "personal property" at the site of newly acquired or under construction "real property".

Coverage provided under this extension will cease at the later of 90 days after you acquire the property or begin construction, or the end of the policy period. However, coverage will cease when this coverage part is cancelled or nonrenewed.

7. Trees, Shrubs, Plants and Lawns

We will pay for direct physical loss or damage to trees, shrubs, plants, and lawns at a "premises" on a replacement cost basis, only if they are damaged or destroyed by fire, lightning, explosion, riot or civil commotion, aircraft, "vehicles", or vandalism and malicious mischief. Replacement of trees, shrubs or plants shall be with trees, shrubs or plants of comparable size and kind, but shall not exceed the cost of replacing them with the largest commonly available transplantable like species of tree, shrub or plant that is usually available or listed in catalogs by nurseries or suppliers for the region in which the covered loss occurred and which can be legally transported on public roads without special permits. The costs of removing the existing tree, shrub or plant and associated cleanup is also included. Diminution of "real property" or "personal property" values resulting from the loss of trees shall not be recoverable as part of the loss settlement.

8. Personal Effects

- a. At your request, we will pay for direct physical loss or damage to "personal effects" caused by or resulting from any "covered cause of loss", provided the "personal effects" are at a "premises".
- b. The most we will pay under this extension in any one occurrence is:
 - (1) The actual "replacement cost" for the "personal effects" of any of your volunteers, "employees", directors, officers, or trustees; or
 - (2) For all other persons, \$1,500 for the "personal effects" of any one person.
- c. This coverage is primary and will apply regardless of any other insurance coverage which may be available to the owner of the "personal effects".
- d. No deductible applies to this extension.

9. Pollution Remediation Expenses

- a. We will pay "remediation expenses" you incur as a result of the actual, alleged, or threatened presence of "pollution conditions" on or from a "premises" described in the policy declarations, but only if the "pollution conditions" result from a "covered cause of loss" occurring during the policy period. However, we will not pay for any expense related to the removal of "fungus", wet rot, dry rot, bacteria or asbestos.
 - (1) You must notify us within 180 days after the date of the "covered cause of loss".
 - (2) The most we will pay under paragraph a. of this extension in any policy period is \$25,000.
- b. We will pay "remediation expenses" you incur as a result of the actual, alleged, or threatened presence of "pollution conditions" on or from a "premises" described in the policy declarations, but only if the "pollution conditions" result from a "specified cause of loss" occurring during the policy period. However, we will not pay for any expense related to the removal of "fungus", wet rot, dry rot, bacteria or asbestos.
 - (1) You must notify us within 180 days after the date of the "specified cause of loss".
 - (2) Subject to paragraph a. (2) the most we will pay under paragraph a. and paragraph b. of this extension in any policy period is \$100,000.

10. Sirens and Antennas

Your "real property", "loss of income" and "extra expense" coverages are extended to include sirens, antennas, towers and similar structures and their associated equipment and structures located away from your "premises". However, this extension applies only to sirens, antennas, towers and similar structures associated with a "premises".

11. Commandeered Property

- a. At your request, we will pay for direct physical loss or damage to commandeered property caused by or resulting from any "covered cause of loss". Commandeered property means the following property belonging to someone else:

- (1) "Real property";
- (2) "Personal property";
- (3) "Watercraft";
- (4) All-terrain vehicles;
- (5) Snowmobiles;
- (6) Golf carts;
- (7) Aircraft or its parts, accessories and equipment; and
- (8) Animals;

that you commandeer, seize, borrow or take over for official use to manage an "emergency situation".

- b. Coverage for direct physical loss or damage to commandeered property applies only for the time you officially use the commandeered property to manage an "emergency situation" plus the reasonable time necessary to return the property. This extension will not apply to direct physical loss or damage occurring after the policy period.
- c. At your request, if there is direct physical loss or damage to commandeered property during the policy period that is payable under this extension, we will also pay any resulting loss of use of commandeered property arising during:
- (1) The time subsequent to the direct physical loss or damage during which you officially use or retain the commandeered property to manage an "emergency situation" plus the reasonable time necessary to return the property; and
 - (2) The time after return of the commandeered property reasonably necessary to repair or replace the commandeered property, not to exceed 180 days.

These times may extend beyond the policy period stated in the Declarations so long as the direct physical loss or damage to the commandeered property occurred during the policy period stated in the Declarations.

- d. The most we will pay under this extension in any one occurrence is the "replacement cost" of the commandeered property, plus loss of use covered by this extension.
- e. No deductible will apply to commandeered property belonging to a volunteer, "employee", director, officer or trustee.

12. Software

- a. We will pay the following when caused by or resulting from any "covered cause of loss", or from a "computer virus", or from mechanical breakdown of "hardware":
 - (1) The cost of restoring, researching, replacing, or reproducing "software" or the media upon which "software" is magnetically or optically recorded;
 - (2) "Loss of income" if your "operations" are interrupted because of loss or damage to "software";
 - (3) "Extra expense" if your "operations" are interrupted because of loss or damage to "software";
 - (4) The following costs incurred because of loss or damage to "software":
 - (a) Expenses you actually incur in recharging an automatic fire suppression system due to an accidental discharge, whether or not the discharge was caused by a "covered cause of loss";
 - (b) Fees payable to professional accountants or auditors;
 - (c) Costs of conducting investigations by consulting engineers or programmers; and
 - (d) Modification of "hardware" or replacement of data in order to achieve compatibility with replacement "hardware" or "software".
- b. To the extent that electronic data is not replaced or restored, we will pay the cost of replacement of the media on which the data was stored or recorded, with blank media of substantially identical type.
- c. Coverage provided under this extension is not restricted to your "premises".
- d. The most we will pay under this extension is \$250,000 in any one occurrence.

13. Valuable Papers and Records

- a. We will pay the costs you incur in restoring, researching, replacing, or reproducing your "valuable papers and records" that suffer direct physical loss or damage caused by or resulting from any "covered cause of loss".
- b. We will not pay for:
 - (1) Irreplaceable "valuable papers and records" unless they are specifically described in the Declarations or in an endorsement made a part of this coverage part, and a limit for them is shown there;
 - (2) Any cost that results directly from processing or copying the records;
 - (3) Any cost that results directly from work performed on papers or records, such as filing or binding;
 - (4) Loss or damage to computer-based records arising from loss or damage to "software", or from a "computer virus", or from mechanical breakdown of "hardware"; or
 - (5) Loss or damage to "software".
- c. Coverage provided under this extension is not restricted to your "premises".

14. Accounts Receivable

- a. We will pay for "accounts receivable costs" you incur as a result of direct physical loss or damage to your accounts receivable records caused by or resulting from any "covered cause of loss", including those arising from loss or damage to "software", or from a "computer virus", or from mechanical breakdown of "hardware".
- b. We will not pay for:
 - (1) Any loss or cost that results from mistakes made in bookkeeping, accounting, or billing;
 - (2) Any loss or cost if its existence can be shown only by an inventory count or an audit. However, if the existence of a loss can be shown by other means, you may use an inventory count or audit to support your claim for that loss;
 - (3) Any loss or cost resulting from any dishonest act or omission of either you or your volunteers or "employees", or anyone authorized to act for you. But we will cover loss that results if someone falsifies, alters or destroys your accounts receivable records in order to conceal any such action;
 - (4) Any loss arising out of bad debts; or
 - (5) Any loss arising out of aged accounts receivables greater than 180 days.
- c. If you recover any amounts after we have paid you for a loss, you have to turn the recoveries over to us until we have been repaid. If you recover more than the amount we paid you, the excess over our payment is yours. Also, you must help us collect amounts customers owe you, if we request your help.
- d. Coverage provided under this extension is not restricted to your "premises".

15. Money and Securities

- a. We will pay for loss of your "money" or your "securities" or of "money" or "securities" of others that you hold in any capacity, or for which you are responsible, resulting from theft, disappearance or destruction, provided the loss occurs:
 - (1) At your "premises";
 - (2) Away from your "premises" (whether inside or outside the "policy territory") while the "money" or "securities" are in the possession of your volunteers or "employees"; or
 - (3) Away from your "premises" while the "money" or "securities" are in the custody of a depository or an armored vehicle company.
- b. We will not pay for any loss of "money" or "securities" arising from:
 - (1) "War";
 - (2) "Nuclear activity";
 - (3) "Government activity";
 - (4) Fraudulent, dishonest or criminal acts committed by a director, officer, trustee, volunteer or "employee" of your organization, whether acting alone or in collusion with others;
 - (5) A sale, exchange, or purchase transaction, including internet transactions; or
 - (6) Accounting, mathematical or record-keeping errors.

- c. The amount we will pay for any loss of "securities" is the market value of the "securities" at the end of the last business day before the loss was discovered. We will not pay for any "loss of income", including interest or dividends, that occurs as a result of a loss we do cover.
- d. The most we will pay for any loss of "money" or "securities" in the custody of a depository or an armored vehicle company is the portion of the loss that exceeds any amount you recover from:
 - (1) The depository or armored vehicle company;
 - (2) Insurance carried by the depository or armored vehicle company; or
 - (3) Insurance carried by any other person or organization for the benefit of users of the depository's or armored vehicle company's services.
- e. The most we will pay under this extension is \$30,000 in any one occurrence.

16. Equipment Breakdown

- a. We will pay for loss caused by or resulting from an accident to covered equipment.
Accident means direct physical loss as follows:
 - (1) Mechanical breakdown, including rupture or bursting caused by centrifugal force, but excluding the mechanical breakdown of "hardware"; and
 - (2) Explosion, rupture or bursting of steam boilers, steam pipes, steam turbines, steam engines or rotating parts of machinery that you own or lease, or that are operated under your control, but excluding loss or damage caused by a hydrostatic, pneumatic, or gas pressure test of any boiler or pressure vessel; and
 - (3) Loss or damage to steam boilers, steam pipes, steam engines, steam turbines, hot water boilers or other water heating equipment caused by or resulting from any condition or event inside such boilers or equipment.

If an initial accident causes other accidents, all will be considered one accident. All accidents that are the result of the same event will be considered one accident.

Covered equipment means "real property" or "personal property" built to operate under vacuum or pressure, other than weight of contents, or used for the generation, transmission or utilization of energy. However, none of the following are covered equipment:

 - (a) Insulating or refractory material;
 - (b) Sewer piping, underground vessels or piping, piping forming part of a "sprinkler system" or water piping other than boiler feedwater piping, boiler condensate return piping or water piping forming part of a refrigerating or air conditioning system;
 - (c) "Vehicles", excavation or construction equipment; or
 - (d) Any structure, foundation or cabinet supporting or housing covered equipment.
- b. The following coverages also apply to loss caused by or resulting from an accident to covered equipment:
 - (1) Expediting Expenses
With respect to damaged "real property" or "personal property", we will pay the reasonable extra costs to:
 - (a) Make temporary repairs; and
 - (b) Expedite permanent repairs or replacement.

(2) Perishable Goods

We will pay the following:

- (a) Loss of perishable goods due to spoilage.
- (b) Loss of perishable goods due to contamination from the release of a refrigerant, including but not limited to ammonia.
- (c) Any necessary expenses you incur to reduce the amount of loss under this extension. We will pay for such expenses to the extent that they do not exceed the amount of loss that otherwise would have been payable under this extension.

However, we will not pay for loss or damage caused by or resulting from your failure to use all reasonable means to protect the perishable goods from damage following an accident.

Perishable goods means "personal property", maintained under controlled conditions for its preservation, that is susceptible to loss, damage, or spoilage if the controlled conditions change.

(3) Hazardous Substances

We will pay for the additional costs to repair or replace "real property" or "personal property" because of contamination by a hazardous substance, including the additional costs to clean up or dispose of such property. Additional costs means those beyond what would have been required had no hazardous substance been involved.

The most we will pay for loss or damage under the Hazardous Substances coverage, including the actual "loss of income" you sustain, the necessary "extra expense" you incur, and the loss of or damage to perishable goods due to contamination from a hazardous substance is \$25,000 per accident.

Hazardous substance means any substance other than ammonia that has been declared to be hazardous to health by a governmental agency.

(4) Service Interruption

The insurance provided for "loss of income", "extra expense", and perishable goods is extended to apply to loss caused by or resulting from an accident to equipment that is owned by a utility, landlord or other supplier with whom you have a contract to provide you with any of the following services: electrical power, communications, waste disposal, air conditioning, refrigeration, heating, gas, air, water or steam.

(5) Off-"Premises" Accidents

Coverage is extended to apply to an accident to the following types of equipment anywhere in the "policy territory":

- (a) Mobile cascade units;
- (b) Mobile internal combustion engines used solely as part of an emergency generating unit;
- (c) Electrical generators used solely as part of an emergency generating unit;
- (d) Portable pumping units; and
- (e) Portable extrication devices, such as jaws-of-life, whether hydraulic or air powered.

c. Conditions

(1) Suspension

When any covered equipment is found to be in, or exposed to, a dangerous condition, any of our representatives may immediately suspend the insurance against loss from an accident to that covered equipment. We can do this by mailing or delivering a written notice of

suspension to your address as shown in the Declarations, or at the address where the equipment is located. Once suspended in this way, your insurance can be reinstated only by written notice from us. If we suspend your insurance, you will get a pro-rata refund of premium. But the suspension will be effective even if we have not yet made or offered a refund. We will not consider firefighting or other emergency service activities, or training related to such activities, as a dangerous condition within the context of this provision.

(2) Jurisdictional Inspections

If any property that is covered equipment under this extension requires inspection to comply with state or municipal boiler and pressure vessel regulations, we agree to perform such inspections on your behalf.

- d. Except for the Hazardous Substances limit specified above, the most we will pay for loss or damage under this extension is the applicable Limit of Insurance shown in the Declarations.

17. Fire Extinguishing Equipment Recharge Costs

- a. We will pay the necessary and reasonable cost to recharge or refill your fire extinguishing equipment, including both hand-held extinguishers and fixed automatic extinguishing systems, as a result of:
- (1) Their discharge as a result of a "covered cause of loss"; or
 - (2) Their accidental discharge in the absence of a "covered cause of loss".
- b. This extension applies regardless of whether the fire extinguishing equipment itself is damaged.
- c. The fire extinguishing equipment must be for the protection of and located at a "premises".
- d. No deductible applies to this extension.

18. Limited Coverage for Fungus, Wet Rot, Dry Rot and Bacteria

- a. The coverage described in 18.b and 18.e. of this extension applies only when the "fungus", wet rot, dry rot or bacteria is the result of one or more of the following causes that occurs during the policy period and only if all reasonable means were used to save and preserve the property from further damage at the time of and after that occurrence:
- (1) A "specified cause of loss" other than fire or lightning; or
 - (2) "Flood", except if the Flood Exclusion endorsement is attached.
- b. We will pay for loss or damage by "fungus", wet rot, dry rot or bacteria. As used in this extension, the term loss or damage means:
- (1) Direct physical loss or damage to covered "real property" or covered "personal property" caused by "fungus", wet rot, dry rot or bacteria, including the cost of removal of the "fungus", wet rot, dry rot or bacteria;
 - (2) The cost to tear out and replace any part of the building or other property as needed to gain access to the "fungus", wet rot, dry rot or bacteria; and
 - (3) The cost of testing performed after removal, repair, replacement or restoration of the damaged property is completed, provided there is reason to believe that "fungus", wet rot, dry rot or bacteria are present.

- c. The coverage described under 18.b. of this extension is limited to \$25,000. Regardless of the number of claims, this limit is the most we will pay for total of all loss or damage arising out of all occurrences of "specified causes of loss" (other than fire or lightning) and "flood" which take place in a 12 month period (starting with the beginning of the present annual policy period). With respect to a particular occurrence of loss which results in "fungus", wet rot, dry rot or bacteria, we will not pay more than a total of \$25,000 even if the "fungus", wet rot, dry rot or bacteria continues to be present or active, or recurs, in a later policy period.
- d. The coverage provided under this extension does not increase the applicable Limit of Insurance on any covered "real property" or covered "personal property". If a particular occurrence results in loss or damage by "fungus", wet rot, dry rot or bacteria, and other loss or damage, we will not pay more, for the total of all loss or damage, than the applicable Limit of Insurance on the affected covered "real property" or covered "personal property".

If there is covered loss or damage to covered "real property" or covered "personal property" not caused by "fungus", wet rot, dry rot or bacteria, loss payment will not be limited by the terms of this extension, except to the extent that "fungus", wet rot, dry rot or bacteria causes an increase in the loss. Any such increase in the loss will be subject to the terms of this extension.
- e. Under Coverage C. "Loss of Income" or Coverage D. "Extra Expense":
 - (1) If the loss which resulted in "fungus", wet rot, dry rot or bacteria does not in itself necessitate an interruption of "operations", but such interruption is necessary due to loss or damage to property caused by "fungus", wet rot, dry rot or bacteria, then our payment under Coverage C and/or Coverage D is limited to the amount of "loss of income" and/or "extra expense" sustained in a period of not more than 30 days. The days need not be consecutive.
 - (2) If a covered interruption of "operations" was caused by loss or damage other than "fungus", wet rot, dry rot or bacteria but remediation of "fungus", wet rot, dry rot or bacteria prolongs the "period of restoration", we will pay for "loss of income" and/or "extra expense" sustained during the delay (regardless of when such a delay occurs during the "period of restoration"), but such coverage is limited to 30 days. The days need not be consecutive.

19. Arson Fire Information Reward

We will reimburse you for the payment of rewards that you actually incur which provide information related to arson fire. For the purposes of this extension, covered property means property covered by this coverage part or any other coverage part issued to you by this company. This reimbursement is subject to compliance with all of the following conditions:

- a. Conditions
 - (1) Your covered property at a "premises" is damaged or destroyed by a fire that is declared to be an arson fire by the appropriate civil authority;
 - (2) You pay reward(s) for information about the causes of such arson fire to persons who would not normally make reports and who did not make such report before the potential of a reward was announced;
 - (3) Such information is presented to the investigative authorities within 90 days after the start of the arson fire;
 - (4) Such reported information for which you paid a reward contributes directly and significantly to the arrest and conviction of those causing the arson fire; and

- (5) Your intention to pay such reward or your payment of such reward is reported to us within 15 days of the date on which the appropriate arson fire investigative authority receives the information.
- b. Regardless of the number of people who provide information about the arson fire, the most we will pay for all reward payments related to any one arson fire, or series of related arson fires committed by the same arsonist(s), is \$25,000 per loss.
- c. No deductible applies to this extension.

Our reimbursement to you for the arson fire information rewards that you pay does not limit in any way your ability to offer or not offer and pay or not pay rewards for arson fire information related to covered property.

20. Fine Arts

- a. We will pay for direct physical loss or damage caused by or resulting from a "covered cause of loss" to "fine arts" owned by you and for which you have secured a certified appraisal prior to the loss.
 - (1) The value of "fine arts" will be the least of the following amounts:
 - (a) The fair market value of the object at the time of loss;
 - (b) The cost of reasonably restoring the object to its condition immediately before loss; or
 - (c) The cost of replacing the object with a substantially identical object.
 - (2) The most we will pay for loss under paragraph a.(1) is \$50,000 in any one occurrence.
- b. We will also pay for direct physical loss or damage caused by or resulting from a "covered cause of loss" to "fine arts" for which you have not secured a certified appraisal prior to the loss.
 - (1) The value of "fine arts" will be the least of the following amounts:
 - (a) The fair market value of the object at the time of loss;
 - (b) The cost of reasonably restoring the object to its condition immediately before loss;
 - (c) The cost of replacing the object with a substantially identical object; or
 - (d) \$1,500 per item.
 - (2) The most we will pay for loss under paragraph b.(1) is \$25,000 in any one occurrence. This limit of insurance is in addition to the amount provided under Paragraph a.(2) above.

As used in this extension, fair market value means the cash value that the object of "fine arts" would bring in an open and unrestricted market between a willing buyer and a willing seller who are both knowledgeable, informed and prudent, and who are acting independently of each other.

21. Lock and Key Replacement

- a. We will pay the necessary expense you incur to replace locks, lock cylinders and keys, electronic or otherwise, necessitated by:
 - (1) A covered theft of your covered property; or
 - (2) Damage to the lock as a result of a "covered cause of loss".

For the purposes of this extension, covered property means property covered by this coverage part or any other coverage part issued to you by this company. Coverage applies if there is a

loss of covered property by a covered theft even if the keys are not known to be missing or copied.

b. Additional Conditions

- (1) You must notify us and the appropriate law enforcement authority of the theft as soon as practicable;
- (2) Locks, lock cylinders and keys must be replaced within 72 hours of the discovery of the theft, or as soon as practicable; and
- (3) Coverage under this extension applies to disappearance of keys only if other covered property is stolen or missing.

- c. Coverage under this extension applies only to locks, lock cylinders and keys located at a "premises" described in the declarations.
- d. We will pay to replace the locks, lock cylinders and keys with property of the same kind and quality without deduction for deterioration or depreciation.
- e. The most we will pay in any one occurrence for coverage under this extension is \$25,000.
- f. No deductible applies to this extension.

22. Member's Property

- a. We will pay for direct physical loss or damage, resulting from a "covered cause of loss", to property while at your "premises" that is owned by your volunteer, "employee", director, officer or trustee.
- b. The most we will pay in any one occurrence for coverage under this extension is \$5,000.
- c. This coverage is primary and will apply regardless of any other insurance coverage which may be available to the owner of the property.
- d. No deductible applies to this extension.

As used in this extension, member's property includes, but is not limited to computers, game consoles and associated software, all-terrain vehicles, snowmobiles, golf carts, "watercraft", personal watercraft, tools and firearms. Member's property does not include:

1. "Personal effects";
2. "Money" and "securities";
3. "Fine arts";
4. Animals;
5. Aircraft or its parts, accessories and equipment; or
6. "Vehicles".

23. Member's Real Property Deductible Reimbursement

- a. We will reimburse your volunteer, "employee", director, officer or trustee for the amount of the deductible applied under their personal insurance for direct physical loss or damage to owned "real property" at their residence premises due to a "covered cause of loss". The loss must occur while the volunteer, "employee", director, officer or trustee is enroute to, engaged in, or returning

from an "emergency situation" at the direction and knowledge of an officer of the insured organization.

- b. The most we will pay per member in any one occurrence for coverage under this extension is \$1,000.
- c. No deductible applies to this extension.

24. Permanently Installed Outdoor Property

- a. We will pay up to the "replacement cost" for direct physical loss or damage to your outdoor property caused by or resulting from a "covered cause of loss".
- b. The most we will pay in any one occurrence for coverage under this extension is \$125,000.

As used in this extension, outdoor property means property that is permanently installed away from your "premises" and includes, but is not limited to the following: traffic control devices, signs, statues, monuments and fire hydrants. Outdoor property does not include "real property" or "personal property".

25. Unintentional Omission of Real Property

- a. If you unintentionally omit "real property" from an application for insurance or unintentionally fail to report all "real property" prior to the beginning of the policy period, we will pay for direct physical loss or damage by a "covered cause of loss" to such "real property" that qualifies as "real property" but is not shown in the Declarations due to such unintentional omission or failure to report.
- b. You agree to pay the additional premium for the "real property" as of the effective date of the policy.
- c. The most we will pay in any one occurrence for coverage under this extension is \$500,000.

26. Vehicle Stock

- a. We will pay for direct physical loss or damage caused by or resulting from a "covered cause of loss" to "vehicle stock" owned by you and stored inside a building or at a "premises".
- b. The most we will pay for coverage under this extension in any one occurrence is \$25,000.

27. Utility Service Interruption Coverage

- a. Coverage

Your coverage for "loss of income" and "extra expense" is extended to apply to a suspension of "operations" at your "premises" caused by an interruption in utility service to that "premises" during the "period of restoration". The interruption in utility service must result from direct physical loss or damage by a "covered cause of loss" to the property described in Paragraph c.

b. Exception

Coverage under this endorsement does not apply to "loss of income" or "extra expense" related to interruption in utility service which causes loss or damage to "software", including destruction or corruption of "software".

c. Utility Service

(1) Water Supply Service, meaning the following types of property supplying water to your "premises":

- (a) Pumping stations; and
- (b) Water mains.

(2) Communication Supply Service, meaning property supplying communication services, including telephone, radio, microwave or television services, to your "premises", such as:

- (a) Communication transmission lines, including optic fiber transmission lines;
- (b) Coaxial cables; and
- (c) Microwave radio relays except satellites.

(3) Wastewater Removal Property, meaning a utility system for removing wastewater and sewage from the described premises, other than a system designed primarily for draining storm water. The utility property includes sewer mains, pumping stations and similar equipment for moving the effluent to a holding, treatment or disposal facility, and includes such facilities.

Coverage under this extension does not apply to interruption in service caused by or resulting from a discharge of water or sewage due to heavy rainfall or flooding.

(4) Power Supply Service, meaning the following types of property supplying electricity, steam or gas to your "premises":

- (a) Utility generating plants;
- (b) Switching stations;
- (c) Substations;
- (d) Transformers; and
- (e) Transmission lines.

d. For the purposes of this extension only, the definition of "period of restoration" is replaced by the following:

"Period of restoration" means the period of time after direct physical loss or damage to the property described in Paragraph c. that:

(1) Begins:

- (a) 72 hours after the initial interruption in Utility Services for "loss of income"; or
- (b) Immediately after the initial interruption in Utility Services for "extra expense";

and

(2) Ends when the Utility Service is restored.

"Period of restoration" does not include any increased period required due to the enforcement of any ordinance or law that:

- (a) Requires any insured or others to incur "remediation expenses"; or
- (b) Pertains to "fungus", wet rot, dry rot, bacteria, or asbestos.

The expiration date of this policy will not cut short the "period of restoration".

- f. No deductible applies to this extension.

SECTION III. COVERED CAUSES OF LOSS

"Covered cause of loss" means any cause of direct physical loss or damage except as excluded below.

Exclusions

We will not pay for loss or damage caused by or resulting directly or indirectly from the following causes, or occurring in the following situations. Such loss or damage is excluded regardless of any other cause or event that contributes concurrently with or before, during, or after the loss or damage. But we will cover resulting fire or explosion, meaning a fire or explosion that results from any cause of loss other than "war", whether or not that cause of loss itself is covered under this coverage part.

1. **"War"**
2. **"Nuclear Activity"**
3. **"Government Activity"**
4. **Nesting or Infestation**

Nesting or infestation, or the discharge or release of waste products or secretions, caused by any insects, birds, rodents or other animals.

5. **Neglect**

Neglect meaning your failure to take all reasonable steps to protect your property when it is threatened with loss or damage and to take all reasonable steps to protect your property from further loss after loss or damage occurs.

6. **Earth Movement**

Earth movement meaning any sinking, rising, shifting, freezing, thawing, erosion, compaction or expansion of the earth, including mine subsidence. But we will cover "earthquake", "volcanic action", landslide or "sinkhole collapse".

7. **Building Settlement**

Settling, shrinking, cracking, bulging or expansion of any pavement, building or structure.

8. **Dishonesty**

Dishonest acts or omissions of you or your volunteers or "employees", or anyone authorized to act for you, or anyone to whom you entrust property, whether an individual is acting alone or in collusion with others.

9. **Vacancy**

Freezing, leakage or overflow from plumbing, heating, air conditioning or any other equipment or appliance in a "vacant" or unoccupied building unless:

- a. You have taken reasonable steps to maintain heat in the building; or
- b. Water was drained from the system or appliance involved, and the water supply was shut off while the building was "vacant" or unoccupied.

Also, we will not cover damage to plumbing systems located outside the perimeter of building walls or off the "premises" that results from freezing.

10. Delay, Loss of Use

Delay and loss of use or because you can no longer sell or use property, except as specifically provided in Coverage C.

11. Mysterious Disappearance

Mysterious disappearance of property or an inventory shortage.

12. Wear and Tear

Wear and tear, deterioration, rust, corrosion, marring or scratching, erosion, decomposition, and decay. However, we will cover resulting loss or damage not otherwise excluded caused by "vehicles" or aircraft, "sprinkler leakage", water damage, freezing, collapse of a building or falling objects.

13. Fungus, Wet Rot, Dry Rot and Bacteria

The presence, growth, proliferation, spread or any activity of "fungus", wet or dry rot or bacteria, including loss, damage or "remediation expenses" resulting from any of these. But if "fungus", wet rot, dry rot or bacteria results in a "specified cause of loss", we will pay for the loss or damage caused by that "specified cause of loss". This exclusion does not apply:

- a. When "fungus", wet rot, dry rot or bacteria results from fire or lightning; or
- b. To the extent coverage is provided in the **Limited Coverage for Fungus, Wet Rot, Dry Rot or Bacteria** coverage extension.

14. "Pollution Conditions", except to the extent coverage is provided in the **Pollution Remediation Expenses** coverage extension.

15. Remediation Expenses

"Remediation expenses" except to the extent coverage is provided in the **Pollution Remediation Expenses** coverage extension.

16. Asbestos

Asbestos, including loss, damage or "remediation expenses" resulting from asbestos or asbestos-containing materials.

17. Mechanical Breakdown

Mechanical breakdown, but this exclusion does not apply to "hardware" or to any coverage provided in the **Equipment Breakdown** coverage extension.

18. Steam Vessels

Rupture, bursting or explosion of steam boilers, steam pipes, steam turbines or steam engines except to the extent coverage is provided in the **Equipment Breakdown** coverage extension.

19. Inherent Vice

Inherent vice meaning a natural condition of property that causes it to deteriorate or become damaged. Examples of inherent vice are the yellowing and cracking of old paper, patina that forms on old bronze and the swelling of wood under moist conditions.

20. Latent Defects

Latent defects meaning faults or weaknesses in property itself.

21. Faulty Design and Workmanship

Faulty design, workmanship and material including the cost of correcting any faulty design, workmanship, material, manufacture or installation, alteration, repair or work on covered "real property" or "personal property". But we will cover loss or damage that results from any of these, if the loss or damage occurs in connection with any cause of loss not otherwise excluded by this coverage part. This exclusion does not apply to "hardware".

22. Vandalism and Malicious Mischief

Vandalism and malicious mischief if the building involved has been "vacant" for more than 60 consecutive days immediately before the loss.

23. Loss of Contract or Strike

"Loss of income" or "extra expense" resulting from:

- a. Loss of contract, meaning a loss that results from the expiration, suspension or cancellation of any contract, lease or order, or
- b. Strike, meaning interference by strikers or other persons with your "operations", or with the repair, rebuilding or replacement of property at the location of the repair, rebuilding or replacement, or with the resumption of your "operations".

24. Seepage or Leakage of Water

Continuous or repeated seepage or leakage of water, or the presence or condensation of humidity, moisture or vapor, that occurs over a period of 14 days or more.

SECTION IV. WHAT WE WILL PAY

A. Limits of Insurance

1. The most we will pay for loss or damage in any one occurrence is the applicable Limit of Insurance shown in the Declarations, except as provided in the guaranteed "replacement cost" provision.
2. If we pay the limit for any one occurrence, that will not reduce the applicable limit for any future covered loss resulting from an unrelated occurrence.
3. All "earthquakes" or "volcanic actions" that occur within a continuous 168 hour period will constitute a single occurrence under this coverage part.
4. All "floods" that occur within a continuous 168 hour period will constitute a single occurrence under this coverage part.

B. Valuation – Coverage A. Real Property

1. If "replacement cost" valuation for Coverage A is indicated in the Declarations or in an endorsement attached to this coverage part, we will not pay more than the Coverage A limit applicable to the lost or damaged "real property". Subject to that limit, we will pay the "replacement cost" of any loss or damage to "real property", less any deductible that applies, so long as:
 - a. The loss or damage to "real property" is actually repaired or replaced;
 - b. The repairs to or replacement of the "real property" are made within one year of the loss or damage;
 - c. The repairs or replacements restore the "real property" to the same use; and

- d. The repairs to or replacement of the "real property" are of the same kind and quality and at the same "premises" as the "real property" suffering the loss or damage, however:
 - (1) You may substitute property of a different kind or quality, but we won't pay more than what it would cost to repair or replace the loss or damage to the "real property" with property of comparable kind and quality; and
 - (2) You may replace the "real property" suffering the loss or damage at a different location, but we won't pay more than what it would cost to replace the loss or damage to the "real property" at the original "premises".
- 2. a. Subject to the provisions of subparagraphs a. - d. of paragraph 1. above, if guaranteed "replacement cost" valuation for Coverage A is indicated in the Declarations or in an endorsement attached to this coverage part, and the cost to replace loss or damage to "real property" is more than the Coverage A limit accepted by us, we will nevertheless pay the entire "replacement cost" less any deductible that applies.
- b. This guaranteed "replacement cost" provision for Coverage A is contingent on:
 - (1) Your purchasing an amount of insurance accepted and kept on file by us;
 - (2) Your promptly advising us of any changes made to your "real property" which would change the cost to replace it, and adjusting the amount of insurance accordingly; and
 - (3) Your purchasing an amount of insurance on each policy anniversary equal to an adjusted cost figure. This adjusted cost figure will be calculated from the original amount plus any changes made to your "real property" and will be modified by an automatic inflation adjustment factor applicable to your "real property".

C. Valuation – Coverage B. Personal Property

- 1. If "replacement cost" valuation for Coverage B is indicated in the Declarations or in an endorsement attached to this coverage part, we will not pay more than the Coverage B limit applicable to the lost or damaged "personal property". Subject to that limit, we will pay the "replacement cost" of any loss or damage to "personal property", less any deductible that applies, so long as:
 - a. The loss or damage to "personal property" is actually repaired or replaced;
 - b. The repairs to or replacement of the "personal property" are made within one year after the loss or damage;
 - c. The repairs or replacements restore the "personal property" to the same use; and
 - d. The repairs to or replacement of the "personal property" are of the same kind and quality as the "personal property" suffering the loss or damage.
- 2. a. Subject to the provisions of subparagraphs a. - d. of paragraph 1. above, if guaranteed "replacement cost" valuation for Coverage B is indicated in the Declarations or in an endorsement attached to this coverage part, and the cost to replace loss or damage to "personal property" is more than the Coverage B limit accepted by us, we will nevertheless pay the entire "replacement cost" less any deductible that applies.
- b. This guaranteed "replacement cost" provision for Coverage B is contingent on:
 - (1) Your purchasing an amount of insurance accepted and kept on file by us;
 - (2) Your promptly advising us of any changes made to your "personal property" which would change the cost to replace it, and adjusting the amount of insurance accordingly; and

- (3) Your purchasing an amount of insurance on each policy anniversary equal to an adjusted cost figure. This adjusted cost figure will be calculated from the original amount plus any changes to the "personal property", and will be modified by an automatic inflation adjustment factor applicable to your "personal property".
3. When guaranteed "replacement cost" applies to Coverage B, "personal property" does not include portable equipment. Portable equipment means portable firefighting, ambulance, or rescue related equipment, including portable communications equipment, commonly used in fire and rescue operations away from your "premises".

D. Valuation – Coverage C. Loss of Income and Coverage D. Extra Expense

1. The amount of the "loss of income" you sustain due to necessary suspension of your "operations" during the "period of restoration" will be based on:
 - a. Your net income before the direct physical loss or damage occurred;
 - b. Your likely net income if no loss or damage occurred;
 - c. The operating expenses, including payroll expenses, necessary to resume your "operations" with the same quality of service that existed just before the direct physical loss or damage; and
 - d. Other relevant sources of information, including:
 - (1) Your financial records and accounting procedures;
 - (2) Bills, invoices and other vouchers; and
 - (3) Deeds, liens or contracts.
 - e. We will reduce the amount of your "loss of income" to the extent you can resume your "operations" in whole or in part by using damaged or undamaged property (including merchandise or "stock") at the "premises" or elsewhere.
2. The amount of "extra expense" will be determined based on:
 - a. All expenses that exceed the normal operating expenses that would have been incurred by your "operations" during the "period of restoration" if no direct physical loss or damage had occurred. We will deduct from the total of such expenses:
 - (1) The salvage value that remains of any property bought for temporary use during the "period of restoration", once your "operations" are resumed; and
 - (2) Any "extra expense" that is paid for by other insurance, except for insurance that is written subject to the same plan, terms, conditions and provisions as this insurance; and
 - b. All necessary expenses that reduce the "loss of income" that otherwise would have been incurred.
 - c. We will reduce the amount of your "extra expense" loss to the extent you can return your "operations" to normal and discontinue such "extra expense".
3. If you do not resume your "operations", or do not resume your "operations" as quickly as possible, we will pay based on the length of time it would have taken to resume your "operations" as soon as possible.
4. If this policy expires before we have paid you all the "loss of income" or "extra expense" to which you are entitled for direct physical loss or damage that occurred during the policy period, we will continue to make payments after the expiration date.

E. Valuation – COVERAGE EXTENSIONS

1. "Replacement cost" applies to all **SECTION II. COVERAGE EXTENSIONS** unless stated otherwise in the extension, so long as:
 - a. The requirements in **SECTION IV. B. 1.** are met if "real property" is lost or damaged; or
 - b. The requirements in **SECTION IV. C. 1.** are met if "personal property" is lost or damaged.

F. Deductible

1. We will not pay for loss or damage in any one occurrence until the amount of loss or damage exceeds the applicable deductible. We will then pay the amount of loss or damage in excess of the deductible, up to the applicable Limit of Insurance, after any applicable deduction required by a coinsurance provision.
2. The deductible shown in the Declarations applies to losses under the following coverages except as otherwise specifically indicated:
 - a. "Real property";
 - b. "Personal property";
 - c. "Loss of income";
 - d. "Extra expense"; and
 - e. All coverages provided under **SECTION II. COVERAGE EXTENSIONS.**
3. If more than one coverage (other than coverage for "earthquake" or "flood") applies to any one occurrence, we will subtract the deductible amount only once. If more than one deductible applies, we will subtract the largest applicable deductible unless indicated otherwise in this coverage part.
4. **Earthquake Deductible.** A special deductible applies to losses caused by or resulting from "earthquake". Refer to the Declarations. When a percentage deductible is shown as applicable to "earthquake", that percentage will be applied to the sum of the "real property" and "personal property" limits shown in the Declarations for each affected "item". If blanket coverage applies, we will determine this sum based on the most recent amounts on file with us for each affected "item". The deductibles determined in accordance with this paragraph shall apply separately to each affected "item".
5. **Flood Deductible.** A special deductible applies to each occurrence caused by or resulting from "flood". Refer to the Declarations. The deductible shown will apply separately to each affected "premises".
6. **Deductible Waiver.** If a loss covered under this coverage part also involves a loss under an Emergency Service Organization Auto, Portable Equipment or other Inland Marine coverage issued to you by us, only one deductible, the largest, will be applied. The deductible under the other policies or coverage parts will be waived.
7. **Glass Deductible Waiver.** If a loss covered under this coverage part is limited to damage to glass that is part of a building and no other property is included in the loss, the policy deductible will be waived.

G. Automatic Inflation Adjustment

1. We will automatically increase your Coverage A and Coverage B limits to keep pace with inflation. We will increase the limits by the annual percentage shown in the Declarations for each "item".
2. The amount of increase will be:
 - a. The limit that applied on the most recent of the policy inception date, the policy anniversary date, or any change amending the Limit of Insurance, multiplied by
 - b. The percentage of annual increase shown in the Declarations, multiplied by
 - c. The number of days since the beginning of the current policy year or the effective date of the most recent policy change amending the Limit of Insurance, divided by 365.
3. Where there is a blanket limit for Coverages A and B, the most recent values we used to calculate your premium will be used to separate "real property" and "personal property" values, the separate values will be increased as if they were separate limits, and the results will be added to determine the increase in the blanket limit.

H. Other Conditions Affecting Property Losses

This sub-section explains special rules that apply to valuing some of the property covered by this coverage part. It also gives you important information about payment for losses.

1. **Improvements by a Tenant.** If you are a tenant at a "premises" and property improvements for which you paid are lost or damaged by a "covered cause of loss" at the "premises", we will reimburse you for repairing or replacing them. We will pay their "replacement cost" if you repair or replace them within a reasonable time after the loss at the "premises". But we will not cover repairs or replacements which were made for your use at someone else's expense.
 - a. If you do not repair or replace the covered improvements within a reasonable time at the "premises", we will pay a portion of their original cost. This will be the ratio between:
 - (1) The length of time remaining on your lease at the time of the loss; and
 - (2) The length of time between the making of the improvements and the expiration of the lease.
 - b. If your lease contains a renewal option, the expiration of the renewal option period will replace the expiration of the lease.
 - c. If you purchased the interest in the use of improvements made by a previous tenant, we will cover them as if you had paid for them.
2. **Property in Sets.** The loss of an article which is part of a set will not be considered a loss of the entire set. Therefore, if there is loss or damage to property which is part of a set, we will pay a fair portion of the total value of the set.
3. **Parts.** If the loss or damage is to a part of property that consists of several parts, we will pay for only the lost or damaged part.
4. **Exhibitions and Displays.** The most we will pay for exhibitions and displays is the amount that they cost you.

5. **Stock.** "Stock" you have sold but not delivered will be valued at no more than the selling price less discounts and expenses you otherwise would have had.
6. **Glass.** Glass will be valued at the cost of replacement with safety glazing material if required by law.

SECTION V. CONDITIONS

The following apply in addition to the Common Policy Conditions.

1. **Abandonment**

There can be no abandonment of any property to us.

2. **Appraisal**

If we cannot agree with you on the amount of the loss, either of us can demand that the following procedure be used to settle the amount.

- a. You or we will request in writing that the dispute be submitted to appraisal within 60 days from the time we receive your proof of loss. Each will then select an appraiser and notify the other of that choice within 20 days of the initial request.
- b. The appraisers will select an impartial umpire. If they cannot agree on an umpire within 15 days, either you or we can ask that an umpire be appointed by a judge of the court of record in the county where the property is located.
- c. The appraisers will appraise each item for its value at the time of loss and the amount of loss. If they can't agree, they will submit any differences to the umpire. An agreement in writing by any two of these three will determine the amount of the loss.
- d. You will pay your appraiser and we will pay ours. Each will share equally any other costs of the appraisal and the umpire.
- e. We will not surrender our rights by any act we take relating to an appraisal.

3. **Concealment, Misrepresentation or Fraud**

This coverage part is void in any case of fraud by you as it relates to this coverage part at any time. It is also void if you or any other insured, at any time, intentionally conceal or misrepresent a material fact concerning:

- a. This coverage part;
- b. The covered property;
- c. Your interest in the covered property; or
- d. A claim under this coverage part.

4. **Control of Property**

Any act or neglect of any person other than you, beyond your direction or control, will not affect this insurance.

The breach of any condition of this coverage part at any one or more locations will not affect coverage at any location where, at the time of loss or damage, the breach of condition does not exist.

5. Duties in the Event of Loss or Damage

- a. You must see that the following are done in the event of loss or damage to property insured under this coverage part:
 - (1) Notify the police if a law may have been broken.
 - (2) Give us prompt notice of the loss or damage. Include a description of the property involved.
 - (3) As soon as possible, give us a description of how, when and where the loss or damage occurred.
 - (4) Take all reasonable steps to protect the property from further damage by a "covered cause of loss". If feasible, set the damaged property aside and in the best possible order for examination. Also keep a record of your expenses for emergency and temporary repairs, for consideration in the settlement of the claim. This will not increase the Limit of Insurance.
 - (5) At our request, give us complete inventories of the damaged and undamaged property. Include quantities, costs, values, and amount of loss claimed. However, if the total claim for any loss is less than \$10,000, you are not required to provide an inventory of the undamaged property.
 - (6) As often as may be reasonably required, permit us to inspect the property proving the loss or damage and examine your books and records. Also permit us to take samples of damaged and undamaged property for inspection, testing and analysis, and permit us to make copies from your books and records.
 - (7) Send us a signed, sworn proof of loss containing the information we request to investigate the claim. You must do this within 60 days after our request. We will supply you with the necessary forms.
 - (8) Cooperate with us in the investigation or settlement of the claim.
 - (9) If you intend to continue your "operations", you must resume all or part of them as quickly as possible. If you do not resume your "operations", or do not resume your "operations" as quickly as possible, we will pay based on the length of time it would have taken to resume your "operations" as soon as possible.
- b. We may examine any insured under oath, while not in the presence of any other insured and at such times as may be reasonably required, about any matter relating to this insurance or the claim, including an insured's books and records. In the event of an examination, an insured's answers must be signed.

6. Insurance Under Two or More Coverages

If two or more coverages of this coverage part apply to the same loss or damage, we will not pay more than the actual amount of the loss or damage.

7. Legal Action Against Us

No one may bring a legal action against us under this coverage part unless:

- a. There has been full compliance with all of the terms of this coverage part; and
- b. The action is brought within 2 years after the date on which the direct physical loss or damage occurred.

8. Loss Payment

- a. In the event of loss or damage covered by this coverage part, at our option, we will either:
 - (1) Pay the value of lost or damaged property;
 - (2) Pay the cost of repairing or replacing the lost or damaged property;
 - (3) Take all or any part of the property at an agreed or appraised value; or
 - (4) Repair, rebuild or replace the property with other property of like kind and quality.
- b. We will give notice of our intentions within 30 days after we receive the sworn proof of loss.
- c. We will not pay you more than your financial interest in the property.
- d. We may adjust losses with the owners of lost or damaged property if other than you. If we pay the owners, such payments will satisfy your claims against us for the owners' property. We will not pay the owners more than their financial interest in the property.
- e. We may elect to defend you against suits arising from claims of owners of property. We will do this at our expense.
- f. We will pay for covered loss or damage within 30 days after we receive the sworn proof of loss if:
 - (1) You have complied with all of the terms of this coverage part; and
 - (2) We have reached agreement with you on the amount of loss, or an appraisal award has been made.

9. Mortgage Holders

- a. The term mortgage holder includes trustee.
- b. We will pay for covered loss of or damage to buildings or structures to each mortgage holder shown in the Declarations in their order of precedence, as interests may appear.
- c. The mortgage holder has the right to receive loss payment even if the mortgage holder has started foreclosure or similar action on the building or structure.
- d. If we deny your claim because of your acts or because you have failed to comply with the terms of this coverage part, the mortgage holder will still have the right to receive loss payment if the mortgage holder:
 - (1) Pays any premium due under this coverage part at our request if you have failed to do so;
 - (2) Submits a signed, sworn statement of loss within 60 days after receiving notice from us of your failure to do so; and
 - (3) Has notified us of any change in ownership, occupancy or substantial change in risk known to the mortgage holder.

All of the terms of this coverage part will then apply directly to the mortgage holder.

- e. If we pay the mortgage holder for any loss or damage and deny payment to you because of your acts or because you have failed to comply with the terms of this coverage part:
 - (1) The mortgage holder's rights under the mortgage will be transferred to us to the extent of the amount we pay; and
 - (2) The mortgage holder's right to recover the full amount of the mortgage holder's claim will not be impaired.

At our option we may pay to the mortgage holder the whole principal on the mortgage plus any accrued interest. In this event, your mortgage and note will be transferred to us and you will pay your remaining mortgage debt to us.

- f. If we cancel this coverage part, we will give written notice to the mortgage holder at least:
 - (1) 10 days before the effective date of cancellation if we cancel for your nonpayment of premium; or
 - (2) 30 days before the effective date of cancellation if we cancel for any other reason.
- g. If we elect not to renew this coverage part, we will give written notice to the mortgage holder at least 10 days before the expiration date of this policy.

10. No Benefit to Bailee

No person or organization, other than you, having custody of covered property will benefit from this insurance.

11. Other Insurance

- a. You may have other insurance subject to the same plan, terms, conditions and provisions as the insurance under this coverage part. If you do, we will pay our share of the covered loss or damage. Our share is the proportion that the applicable Limit of Insurance under this coverage part bears to the Limits of Insurance of all insurance covering on the same basis.
- b. If there is other insurance covering the same loss or damage, other than that described in a. above, we will pay only for the amount of covered loss or damage in excess of the amount due from that other insurance, whether you can collect it or not. But we will not pay more than the applicable Limit of Insurance.

12. Policy Period, Policy Territory

We will cover loss or damage commencing:

- a. During the policy period shown in the Declarations; and
- b. Within the "policy territory".

13. Recovered Property

If either you or we recover any property after loss settlement, that party must give the other prompt notice. At your option, the property will be returned to you. You must then return to us the amount we paid to you for the property. We will pay recovery expenses and the expenses to repair the recovered property, subject to the Limit of Insurance.

14. Transfer of Rights of Recovery Against Others To Us

If any person or organization to or for whom we make payment under this coverage part has rights to recover damages from another, those rights are transferred to us to the extent of our payment. That person or organization must do everything necessary to secure our rights and must do nothing after loss to impair them. But you may waive your rights against another party in writing:

- a. Prior to a loss to your covered property or covered income;
- b. After a loss to your covered property or covered income only if, at time of loss, that party is one of the following:
 - (1) Someone insured by this insurance;
 - (2) An organization owned by or controlled by you;

- (3) An organization that owns you or controls you; or
- (4) Your tenant.

This will not restrict your insurance.

15. Coinsurance

If a coinsurance percentage is shown in the Declarations, or in an endorsement attached to this coverage part, for any of your "real property" or "personal property", the following condition applies.

- a. We will not pay the full amount of any loss if the value of the property at the time of loss, multiplied by the coinsurance percentage shown for it, is greater than the Limit of Insurance for the property.

Instead, we will determine the most we will pay using the following steps:

1. Multiply the value of the property at the time of loss by the coinsurance percentage;
2. Divide the Limit of Insurance of the property by the figure determined in step 1.;
3. Multiply the total amount of loss, before the application of any deductible, by the figure determined in step 2.; and
4. Subtract the deductible from the figure determined in step 3.

We will pay the amount determined in step 4. or the Limit of Insurance, whichever is less. For the remainder, you will either have to rely on other insurance or absorb the loss yourself.

- b. Example (Underinsurance): The value of the property is \$250,000. The coinsurance percentage for it is 90%. The Limit of Insurance for it is \$100,000. The deductible is \$500. The amount of loss is \$40,000.

1. Step (1): $\$250,000 \times 90\% = \$225,000$ (this is the minimum amount of insurance needed to meet your coinsurance requirement)
2. Step (2): $\$100,000 \div \$225,000 = .44$
3. Step (3): $\$40,000 \times .44 = \$17,600$
4. Step (4): $\$17,600 - \$500 = \$17,100$

We will pay no more than \$17,100. The remaining \$22,900 is not covered.

- c. You agree to keep the property insured for a portion of its value. That portion is the coinsurance percentage shown in the Declarations or in an endorsement attached to this coverage part. In computing this amount, we use the property's "replacement cost" or its "actual cash value", whichever is indicated.
- d. We compute the minimum amount of insurance you are required to carry based on the property's value at the time a loss occurs. In determining the property's value for this coinsurance agreement, we do not include the following:
 1. The value of property covered under **SECTION II. COVERAGE EXTENSIONS**;
 2. The value of excavations; or
 3. The value of brick, stone or concrete foundations, including foundations of machinery or boilers, which are below the surface of the building's basement floor. If the building has no basement, we don't include the value of brick, stone, or concrete below the surface of the ground and inside the foundation walls when we compute the value of the building. Nor do we include the value of underground flues, pipes or drains.
- e. If your property is insured for the minimum amount required, this coinsurance agreement won't have any effect on what we will pay for a covered loss. We will pay up to the applicable coverage

limit. But if your property is insured for less than the minimum amount required, we will only pay part of your loss and you must pay the rest.

- f. When coinsurance applies, it will apply separately to each coverage limit for "real property" or "personal property" covered under this policy, unless specifically amended. However, coinsurance will not apply to losses which are less than \$10,000.
- g. When "actual cash value" is indicated as the valuation basis for "real property" or "personal property" in the Declarations or in an endorsement attached to this coverage part, the most we will pay for loss or damage is the smallest of the following:
 - 1. the coverage limit which applies to that property;
 - 2. the "actual cash value" of the lost or damaged property; or
 - 3. the amount which you actually spend to repair or replace the lost or damaged property with property of comparable kind or quality. You may substitute property of a different kind or quality, but we won't pay more than what it would cost to replace the lost or damaged property with property of comparable kind and quality.
- h. When "real property" is insured on a "replacement cost" basis, coinsurance shall apply to paragraph a., but not to paragraphs b. or c., of **Extension 1. Ordinance Coverage**.

SECTION VI. DEFINITIONS

- 1. "Accounts receivable costs" mean:
 - a. Accounts receivable due to you but which you can't collect;
 - b. Extra collection costs you incur to collect accounts receivable due to you;
 - c. Interest charges on loans you have been required to obtain to compensate for accounts receivable you can't collect when due; and
 - d. Reasonable costs of replacing your accounts receivable records.

"Accounts receivable costs" also include losses or costs you incur if you have to remove accounts receivable records from a "premises" to a place of safety in order to protect them from the threat of a "covered cause of loss". Accounts receivable are amounts owed to you by those with whom you deal.
- 2. "Actual cash value" is calculated as the amount it would cost to repair or replace the damaged or destroyed property, at the time of loss or damage, with material of like kind and quality, subject to a deduction for deterioration, depreciation and obsolescence. "Actual cash value" applies to the valuation of property regardless of whether that property has sustained partial or total loss or damage. The "actual cash value" of such property may be significantly less than its "replacement cost".
- 3. "Computer virus" means a computer program or computer code which is entered into your computer system without your knowledge, and which causes a disruption of normal program or computer system operation, but it does not mean an error in design or a programming error.
- 4. "Covered cause of loss" is defined in **SECTION III. COVERED CAUSES OF LOSS**.
- 5. "Earthquake" means all earthquake shocks that commence after the inception of this insurance, but "earthquake" does not include the cost of restoring or remediating land.
- 6. "Emergency situation" means an unexpected situation demanding an immediate official action during an emergency response.

7. "Employees" are people who work for you in the conduct of your ordinary activities, in return for a salary, wages or commissions. In order to be considered an "employee", a person must be subject to your exclusive direction in the performance of his or her activities. Contractors and agents are not considered to be "employees".
8. "Extra expense" means expense you incur during the "period of restoration" over and above your ordinary expenses, which are necessary to avoid or minimize the suspension of your "operations" and return to your normal "operations" after direct physical loss or damage to "real property" or "personal property" at a "premises". "Extra expenses" include expenses you incur to continue your normal "operations" at a temporary location or with substitute equipment. The most we will pay is described under **SECTION IV. WHAT WE WILL PAY**.
9. "Fine arts" means property that is rare or that has historic or artistic value, including antiques, rare articles, etchings, pictures, statuary, marbles, bronzes, porcelains and similar property.
10. "Flood" means a general and temporary condition of partial or complete inundation of normally dry land areas due to:
 - a. The overflow of inland or tidal waters; or
 - b. The unusual or rapid accumulation or runoff of surface waters from any source.Flooding must commence after the inception of this insurance. If the "flood" is due to the overflow of inland or tidal waters, the "flood" is considered to begin when the water first overflows its banks. With respect to "flood", we will not pay for loss or damage caused by or resulting from the destabilization of land arising from the accumulation of water in subsurface land areas.
11. "Fungus" means any type or form of fungus, including mold or mildew, and any mycotoxins, spores, scents or by-products produced or released by fungi.
12. "Government activity" means:
 - a. The seizure or destruction of property by any government body, including any customs or quarantine action; or
 - b. Confiscation or destruction of property by order of any government or public authority, except an order to destroy property to prevent the spread of fire or explosion.
13. "Hardware" means computers and their electronic data processing parts and equipment which accept, utilize and process raw information for conversion to machine readable form.
14. "Item" means a building or structure at a "premises".
15. "Loss of income" including rental value means the net income (net profit or loss before income taxes) that would have been earned in your "operations" during the "period of restoration". "Loss of income" includes continuing normal operating expenses incurred, including payroll.
16. "Money" means currency, coins, bank notes, bullion, travelers checks, registered checks and money orders held for sale.
17. "Nuclear activity" means loss from nuclear reaction, nuclear radiation or radioactive contamination, whether deliberate or accidental, controlled or uncontrolled, and whether or not the loss is direct or indirect, proximate or remote, or is contributed to or aggravated by a "covered cause of loss". But it does not include explosion, fire or smoke.
18. "Operations" means:
 - a. Your official activities as an emergency service organization; and
 - b. The tenantability of a "premises", if coverage for "loss of income" applies to rental value.
19. "Period of restoration" means the period of time that:

- a. Begins with the date of direct physical loss or damage caused by or resulting from any "covered cause of loss" at a "premises"; and
- b. Ends at the earliest of:
 - (1) The date when the property is actually repaired or replaced using reasonable speed and similar quality, design, functionality and materials; or
 - (2) The date when the property could have been repaired and your "operations" could have been resumed, if the damaged property had been repaired using similar quality, design, functionality and materials; or
 - (3) Twenty-four consecutive months after the direct physical loss or damage.

"Period of restoration" does not include any increased period required due to the enforcement of any ordinance or law that:

- (1) Requires any insured or others to incur "remediation expenses"; or
- (2) Pertains to "fungus", wet rot, dry rot or bacteria.

The expiration of this policy will not cut short the period of restoration.

- 20. "Personal effects" means property that belongs to an individual and is devoted primarily to that individual's personal use; for example, clothing, eyeglasses, or individually owned portable firefighting, ambulance, or rescue related equipment. "Personal effects" does not include:
 - a. "Money" and "securities";
 - b. "Fine arts";
 - c. Animals;
 - d. Aircraft or its parts, accessories and equipment;
 - e. "Watercraft"; or
 - f. "Vehicles".
- 21. "Personal property" means all property used in your "operations", other than "real property", including but not limited to furnishings and equipment, building contents, "hardware", communication systems, base stations and dispatching systems, provided the property is on your "premises" and also provided:
 - a. You own the property; or
 - b. The property is in your custody or control, and you are responsible for it, even though it belongs to someone else.

"Personal property" also includes the value of your right to use improvements made as a tenant, if you have paid for alterations or additions to any building or structure you don't own. However, these improvements must be at a "premises".

"Personal property" does not include:

- (1) "Personal effects" belonging to you or your volunteers or "employees";
- (2) Animals;
- (3) "Money" and "securities";
- (4) "Valuable papers and records";
- (5) "Accounts receivable costs";
- (6) "Software";
- (7) "Fine arts" or jewelry;

- (8) Aircraft or its parts, accessories and equipment;
 - (9) "Watercraft"; or
 - (10) "Vehicles".
22. "Policy territory" means the United States, its territories and possessions, Puerto Rico and Canada.
23. "Pollution conditions" means the discharge, dispersal, release, seepage, migration, or escape of smoke, vapors, soot, fumes, acids, alkalis, toxic chemicals, liquids or gases, hazardous materials, waste materials (including medical, infectious and pathological wastes) or electromagnetic fields into or upon land or any structures thereon, the atmosphere, or any watercourse or body of water including groundwater.
24. "Premises" means a location described in the Declarations that is owned or legally occupied by you and used to conduct your "operations".
25. "Real property" means buildings or structures described in the Declarations as "items", including:
- a. All appurtenant buildings or structures;
 - b. Completed additions;
 - c. Additions under construction;
 - d. Alterations and repairs to the buildings or structures;
 - e. Permanently installed fixtures, machinery, and equipment;
 - f. Outdoor fixtures;
 - g. "Personal property" used for the maintenance and service of buildings or structures, including tools, lawn care equipment, and free standing appliances for refrigerating, ventilating, cooking, dishwashing and laundering;
 - h. Materials, equipment, supplies and temporary structures you own or for which you are responsible, on the "premises" or in the open (including property inside "vehicles") within 1,000 feet of the "premises", used for making additions, alterations or repairs to buildings or structures at the "premises";
 - i. Paved surfaces such as sidewalks, patios or parking lots;
 - j. Air cascade units that are not designed to be used off "premises"; and
 - k. Exterior signs, meaning neon, automatic, mechanical, electric or other signs either attached to the outside of a building or structure, or standing free in the open.
- "Real property" does not include:
- (1) Land;
 - (2) Water;
 - (3) Excavations, grading, or filling; or
 - (4) Trees, shrubs, plants and lawns except as described in **SECTION II. COVERAGE EXTENSIONS**.
26. "Remediation expenses" are expenses incurred for or in connection with the investigation, monitoring, removal, disposal, treatment, or neutralization of "pollution conditions" to the extent required by:
- a. Federal, state or local laws, regulations or statutes, or any subsequent amendments thereof, enacted to address "zffgqbqed xgumylnwnd"; zn
 - b. A legally executed state voluntary program governing the cleanup of "pollution conditions".

27. "Replacement cost" is the amount it would take, following direct physical loss or damage, to replace property with property of the same kind and quality, determined at the time of loss, without deduction for deterioration, depreciation or obsolescence. But:
- "Replacement cost" does not include costs arising out of the enforcement of any ordinance or law regulating the construction, use or repair of any property, or requiring the tearing down of any property, or the cost of removing its debris; and
 - "Replacement cost" does not apply to "stock".
28. "Securities" means negotiable and non-negotiable instruments or contracts that represent property or obligations to pay "money". Stamps, including revenue stamps, are "securities"; so are tokens and tickets. However, stamps are covered only for their face value. "Money" is not considered to be "securities".
29. "Sinkhole collapse" means sudden sinking or collapse of land into underground empty space created by the action of water on limestone or similar rock formations. "Sinkhole collapse" does not include the cost of filling sinkholes.
30. "Software" includes all forms of computer programs, computer code, and computer readable data employed in your "operations". It also includes the media on which computer programs, computer code, or computer readable data are electronically or optically recorded such as magnetic tapes, hard disks, floppy disks, compact disks or digital video disks.
31. "Specified cause of loss" means fire, lightning, windstorm or hail, explosion, riot or civil commotion, "vehicles" or aircraft, smoke, sonic boom, vandalism and malicious mischief, "sprinkler leakage", "sinkhole collapse", "volcanic action", falling objects, weight of ice, snow or sleet, or water damage. Water damage means only accidental discharge or leakage of water or steam as the direct result of the breaking or cracking of any part of a system or appliance containing water or steam. "Specified cause of loss" does not include "remediation expenses" resulting from the spilling or dripping of gasoline, diesel fuel or other pollutants while being delivered by "vehicles" into storage tanks or other repositories, and/or when "vehicles" are being fueled.
32. "Sprinkler leakage" means leakage or discharge of any substance from an automatic "sprinkler system". It includes the collapse or fall of a tank that is part of a plumbing or an automatic "sprinkler system". It also includes damage caused by breakage or freezing to parts of an automatic "sprinkler system" installed in a building, if "sprinkler leakage" results from such damage.
33. "Sprinkler system" means an automatic fire protection system. Sprinkler heads, discharge nozzles and ducts, pipes, valves, fittings, tanks, tank parts and supports, pumps, and private fire protection systems which are connected to the "sprinkler system" are considered to be part of the system. So are non-automatic fire protection systems, hydrants, standpipes, and hose outlets supplied from the automatic fire protection "sprinkler system".
34. "Stock" means merchandise held in storage or for sale, raw materials, and in-process or finished goods, including supplies used in their packing or shipping.
35. "Vacant" when referring to a building means that the building doesn't contain the "personal property" used in the operations ordinarily conducted there.
36. "Valuable papers and records" are documents that are written, printed, or otherwise inscribed. These include:
- Books, manuscripts, abstracts, maps and drawings;
 - Film and other photographically produced records, such as slides and microfilm; and
 - Legal and financial agreements such as deeds and mortgages.
- But "valuable papers and records" do not include "money" or "securities".

37. "Vehicle" means vehicles or their parts, accessories, and equipment if the vehicles are required by law to be licensed for highway use.
38. "Vehicle stock" means parts and accessories used for your "vehicles". "Vehicle stock" includes but is not limited to tires, batteries, light bars, mobile radios, and auto parts used for "vehicle" maintenance. "Vehicle stock" does not include portable firefighting, ambulance, or rescue related equipment, including portable communications equipment, commonly used in fire and rescue operations away from your "premises".
39. "Volcanic action" means direct loss or damage resulting from the eruption of a volcano when the loss or damage is caused by:
- a. Airborne volcanic blast or airborne shock waves;
 - b. Ash, dust or particulate matter; or
 - c. Lava flow.
- But "volcanic action" does not include the cost to remove ash, dust or particulate matter that does not cause direct physical loss or damage to covered property.
40. "War" means any of the following:
- a. War, including undeclared or civil war;
 - b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
 - c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.
41. "Watercraft" means any watercraft, including its motor, parts, accessories and equipment, except for rowboats and canoes that are out of the water and on your "premises".

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMENDATORY ENDORSEMENT

This endorsement modifies insurance provided under the following:

PROPERTY COVERAGE FORM

Section II. Coverage Extensions, 16.b.(5) Off-"Premises" Accidents, is deleted and replaced by the following:

(5) Off-"Premises" Accidents

Coverage is extended to apply to an accident to the following types of equipment, whether mobile/portable or permanently mounted on a "vehicle", anywhere in the "policy territory":

- (a) Mobile cascade units;
- (b) Mobile electrical generators;
- (c) Portable pumping units; and
- (d) Portable extrication devices, such as jaws-of-life, whether hydraulic or air powered.

This additional coverage is not subject to the definition of "covered equipment" (**Section II. Coverage Extensions, 16.a.(c)**) to the extent that the definition conflicts with the coverage provided for Off-"Premises" Accidents. However, in no event will we pay for an accident to a "vehicle's" drivetrain, driveline, or fire pump.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES

This endorsement modifies insurance provided under the following:

PROPERTY COVERAGE PART

A. The last sentence of **Extension 1. Ordinance Coverage** is deleted.

B. The following replaces **Extension 2. Debris Removal Expenses**:

We will pay your debris removal expenses if they are reported to us within 180 days after the date of direct physical loss or damage. Debris removal expense means expense you incur in removing debris of covered "real property" or covered "personal property" from a "premises" after direct physical loss or damage caused by or resulting from any "covered cause of loss". Debris removal expense does not include "remediation expense" or any expense related to the removal of asbestos.

C. **Extension 9. Pollution Remediation Expenses** is deleted and replaced with the following:

- a. We will pay "remediation expenses" you incur as a result of the actual, alleged, or threatened presence of "pollution conditions" on or from a "premises", but only if the "pollution conditions" result from a "covered cause of loss" occurring during the policy period. However, we will not pay for any expense related to the removal of bacteria or asbestos.
 - (1) You must notify us within 180 days after the date of the "covered cause of loss".
 - (2) The most we will pay under extension in any policy period is \$25,000.
- b. We will pay "remediation expenses" you incur as a result of the actual, alleged, or threatened presence of "pollution conditions" on or from a "premises" described in the policy declarations, but only if the "pollution conditions" result from a "specified cause of loss" occurring during the policy period. However, we will not pay for any expense related to the removal of bacteria or asbestos.
 - (1) You must notify us within 180 days after the date of the "specified cause of loss".
 - (2) Subject to paragraph a. (2) the most we will pay under paragraph a. and paragraph b. of this extension in any policy period is \$100,000.

D. **Extension 18. Limited Coverage for Fungus, Wet Rot, Dry Rot and Bacteria** is deleted.

E. **Exclusion 12. Wear and Tear** is deleted and replaced with the following:

12. Wear and tear, deterioration, rust, corrosion, marring or scratching, erosion, mold, decomposition and decay. However, we will cover resulting loss or damage not otherwise excluded caused by "vehicles" or aircraft, "sprinkler leakage", water damage, freezing, collapse of a building or falling objects.

F. **Exclusion 13. Fungus, Wet Rot, Dry Rot and Bacteria** is deleted.

G. The following replaces 4. **Earthquake Deductible** of paragraph F. **Deductible** under **SECTION IV. WHAT WE WILL PAY:**

4. **"Earthquake" Deductible.** A special deductible applies to losses caused by or resulting from "earthquake". Refer to the Declarations.

H. The following is added to H. **Other Conditions Affecting Property Losses** of **SECTION IV. WHAT WE WILL PAY:**

7. If this policy covers the interest of the owner of any of the following types of buildings or structures:

- a. Residential except owner-occupied single-family or owner-occupied two-family buildings or structures;
- b. Commercial; or
- c. Industrial;

the following provision is added:

Before payment to you for loss or damage to the above buildings or structures caused by or resulting from fire, we will:

- (1) Deduct from your payment the claim of any tax district that issues a certificate of lien in accordance with the Insurance Law; and
- (2) Pay directly to the tax district the amount of the claim.

When we pay that claim, we will have no obligation to pay the amount of that claim to you. Our payment of that claim within 30 days of our receipt of the certificate of lien will be a conclusive presumption that the claim was valid and properly paid.

I. The following replaces 2. **Appraisal** of **SECTION V. CONDITIONS** with respect to loss or damage to property:

If we and you disagree on the value of the property, the extent of the loss or damage or the amount of the loss or damage, either may make written demand for an appraisal of the loss. In this event, each party will select a competent and impartial appraiser and notify the other of the appraiser selected within 20 days of such demand. The two appraisers will select an umpire. If they cannot agree within 15 days upon such umpire, either may request that selection be made by a judge of a court having jurisdiction. The appraisers will state separately the value of the property, the extent of the loss or damage and the amount of the loss or damage. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

- a. Pay its chosen appraiser; and
- b. Bear the other expenses of the appraisal and umpire equally.

If there is an appraisal, we will still retain our right to deny the claim.

J. The following replaces 2. **Appraisal** of **SECTION V. CONDITIONS** with respect to "loss of income" you sustain or "extra expense" you incur:

If we and you disagree on the amount of net income and operating expense, the extent of the loss or damage or the amount of the loss or damage, either may make written demand for an appraisal of the loss. In this event, each party will select a competent and impartial appraiser and notify the other of the appraiser selected within 20 days of such demand. The two appraisers will select an umpire. If they cannot agree within 15 days upon such umpire, either may request that selection be made by a judge of a court having jurisdiction. The appraisers will state separately the amount of net income and operating expense, the extent of the loss or damage and the amount of the loss or damage. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

- a. Pay its chosen appraiser; and
 - b. Bear the other expenses of the appraisal and umpire equally.
- If there is an appraisal, we will still retain our right to deny the claim.

K. The following is added to 5. Duties in the Event of Loss or Damage of SECTION V. CONDITIONS:

Notice given by you or on your behalf, or written notice by or on behalf of any claimant, to any of our agents in New York State, which adequately identifies you, will be the same as notice to us.

L. The following is added to SECTION V. CONDITIONS:

15. Estimation of Claims

Upon request, we will furnish you or your representative with a written estimate of damages to real property specifying all deductions, provided such an estimate has been prepared by us or has been prepared on our behalf for our own purposes. This estimate will be provided within thirty days after your request or its preparation, whichever is later.

M. The following defined term is deleted from SECTION VI. DEFINITIONS:

9. "Fungus"

N. The definition of "period of restoration" under SECTION VI. DEFINITIONS is amended as follows:

The reference to "fungus", wet rot, dry rot or bacteria is deleted.

O. The following replaces COMMON POLICY CONDITION C. Examination of Your Books and Records:

1. Except as provided in 2. below, we may examine and audit your books and records as they relate to this policy at any time during the policy period and up to three years afterward.
2. We will conduct an audit to determine the final premium due or to be refunded, for coverage for which an advance or deposit premium was paid based on estimated exposure. But the audit may be waived if:
 - a. The total annual premium attributable to the auditable exposure base is not reasonably expected to exceed \$1,500; or
 - b. The policy requires notification to the insurer with the specific identification of any additional exposure units (e.g., buildings) for which coverage is requested.

If the audit is not waived, it must be completed within 180 days after:

- (1) The expiration date of the policy; or
- (2) The anniversary date, if this is a continuous policy or a policy written for a term longer than one year.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CRISIS INCIDENT RESPONSE COVERAGE NEW YORK

This endorsement modifies insurance provided under the following:

PROPERTY COVERAGE PART

SCHEDULE

Crisis Incident Limit of Insurance: \$ 25,000 Any One Crisis Incident

A. Crisis Response Management Expense

We will pay "crisis response management expense" incurred by you as a result of a covered "crisis incident".

B. Loss Payment

The most we will pay in any one "crisis incident" is the lesser of:

1. The actual cost you incur for all "crisis response management expense"; or
2. The Crisis Incident Limit of Insurance shown in the Schedule above.

The "crisis response management expense" must be incurred and submitted within 12 months of the first published news media report. The expiration of this policy will not reduce the 12 month period.

C. Deductible

No deductible applies to this coverage.

D. Definitions

1. "Crisis incident" means any of the following acts that result in significant "news media coverage" of the named insured:
 - a. An actual, attempted, or threatened violent act occurring at a "premises" committed with malicious intent to cause "serious bodily injury" or death to a person or person(s); the abduction or kidnapping of a person from a "premises"; or a sexual assault at a "premises".
 - b. A criminal act which is alleged to have been committed by a "member" of your organization, including but not limited to arson, theft, or sexual assault.
 - c. The performance of your "operations" in response to an "emergency situation".All related acts committed by one or more individual(s) shall be considered one "crisis incident."
2. "Crisis response management expense" means the reasonable and necessary expense charged by an independent public relations or other crisis communications firm to restore your public image that has been damaged by a covered "crisis incident".
3. "Member" means a volunteer or "employee" of the Named Insured.

4. "News media coverage" means an oral or written publication, in any manner, by a news organization.
5. "Serious bodily injury" means any injury to a person that creates substantial risk of death, serious permanent disfigurement, or protracted loss or impairment of the function of any bodily member or organ.

E. Other Provisions

The coverage provided by this endorsement is separate from any other property coverage provided by the coverage part to which it is attached. However, **Section V. Conditions** and **Section VI. Definitions** of the Property Coverage Form will apply.

Named Insured: INC
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

CRIME COVERAGE PART DECLARATIONS

\$ 862.00

Estimated Coverage Part Premium:

Taxes, Fees and Surcharges: \$ 862.00

Total Premium:

Crime Forms

See HARBOR POINT MECHANICAL .

04-01-2024

Named Insured: INC
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

CRIME COVERAGE PART DECLARATIONS

SCHEDULE# 1

Covered Entities –

Co ASHCROFT BUILDERS , INC
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS
RIDGEWAY SERVICE GROUP
INLET FIRE AUXILIARY
ASHCROFT BUILDERS JUNIOR FIRE FIGHTERS
ASHCROFT BUILDERS

04-01-2024

Named Insured: INC
SERVICES
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

CRIME COVERAGE PART DECLARATIONS

Employee Dishonesty – Blanket

SEE SCHEDULE#1

Covered Entity:

\$ 300,000
Limit of Insurance

None
Deductible

No
Faithful Performance

SPECIFIC EXCESS LIMIT OF INSURANCE – NAME SCHEDULE

Names of Covered "Employees"

Excess Limit of
Insurance Each
"Employee"

Faithful
Performance

SPECIFIC EXCESS LIMIT OF INSURANCE – POSITION SCHEDULE

Titles of Positions /
Name of Covered Entities

Number of
"Employees" in
Each Position

Excess Limit of
Insurance Each
"Employee"

Faithful
Performance

04-01-2024

Named Insured: INC
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

CRIME COVERAGE PART DECLARATIONS

Computer Fraud

SEE SCHEDULE#1

Covered Entity:

\$ Limit of Insurance
10,000

Deductible
None

04-01-2024

Named Insured:
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

CRIME COVERAGE PART DECLARATIONS

Fraudulent Impersonation Coverage

Covered Entity:

SCHEDULE #1

Limit of Insurance

Deductible

\$10,000

None

Named Insured: INC
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

CRIME COVERAGE PART DECLARATIONS

Identity Fraud Expense

SEE SCHEDULE#1

Covered Entity:

Limit of Insurance
\$ 10,000

Deductible
None

Persons Not Covered

04-01-2024

EMPLOYEE DISHONESTY COVERAGE FORM

(Coverage Form A - Blanket)

A. COVERAGE

We will pay for loss of, and loss from damage to, covered property resulting directly from the covered cause of loss.

1. **Covered Property:** "Money", "securities" and "property other than money and securities".
2. **Covered Cause of Loss:** "Employee dishonesty".
3. **Coverage Extension**

Employees Temporarily Outside Coverage Territory: We will pay for loss caused by any "employee" while temporarily outside the territory specified in General Condition B.16. for a period not more than 120 days.

B. LIMIT OF INSURANCE

The most we will pay for loss in any one "occurrence" is the applicable Limit of Insurance shown in the Declarations.

C. DEDUCTIBLE

1. We will not pay for loss in any one "occurrence" unless the amount of loss exceeds the deductible amount shown in the Declarations. We will then pay the amount of loss in excess of the deductible amount, up to the Limit of Insurance.
2. You must:
 - a. Give us notice as soon as possible of any loss of the type insured under this coverage form even though it falls entirely within the deductible amount; and
 - b. Upon our request, give us a statement describing the loss.

D. ADDITIONAL EXCLUSIONS, CONDITION AND DEFINITIONS

In addition to the Crime General Provisions, this coverage form is subject to the following:

1. **Additional Exclusions:** We will not pay for loss as specified below:
 - a. **Employee Cancelled Under Prior Insurance:** Loss caused by any "employee" of yours, or predecessor in interest of yours, for whom similar prior insurance has been cancelled and not reinstated since the last such cancellation.
 - b. **Inventory Shortages:** Loss, or that part of any loss, the proof of which as to its existence or amount is dependent upon:
 - (1) An inventory computation; or
 - (2) A profit and loss computation.

But if you can prove in the absence of such computations that you have sustained a covered loss, you may offer your inventory records and actual physical count of inventory in support of other evidence as to the amount of loss claimed.

2. **Additional Condition**

Cancellation As To Any Employee: This insurance is cancelled as to any "employee":

- a. Immediately upon discovery by you of any dishonest act committed by that "employee" whether before or after becoming employed by you; or
- b. On the date specified in a notice mailed to you. That date will be at least 30 days after the date of mailing. The mailing of notice to you at the last mailing address known to us will be sufficient proof of notice. Delivery of notice is the same as mailing.

3. **Additional Definitions**

- a. "Employee dishonesty" in paragraph A.2. means only dishonest acts committed by an "employee," whether identified or not, acting alone or in collusion with other persons, with the manifest intent to:
 - (1) Cause you, or the rightful owners of any covered property included in paragraph B.12. **Ownership of Property; Interests Covered** of the Crime General Provisions, to sustain loss; and also
 - (2) Obtain financial benefit (other than employee benefits known to you, approved by you, and earned in the normal course of employment, including salaries, commissions, fees, bonuses, promotions, awards, profit sharing or pensions) for:
 - (a) The "employee"; or
 - (b) Any person or organization intended by the "employee" to receive that benefit.
- b. "Occurrence" means all loss caused by, or involving, one or more "employees", whether the result of a single act or a series of acts.

CRIME GENERAL PROVISIONS

Various provisions in this coverage part restrict coverage. Read the entire coverage part carefully to determine rights, duties and what is or is not covered.

Throughout this coverage part the words “you” and “your” refer to the Named Insured shown in the Declarations. The words “we,” “us” and “our” refer to the Company providing this insurance.

Various provisions of this coverage part refer to knowledge held or obtained by you, or discovery made by you. Under these provisions, knowledge or discovery by you means knowledge held or obtained, or discovery made, by any natural person who is:

1. An officer of any corporation which is a Named Insured under this policy;
2. An elected or appointed official of any governmental entity, including an official or employee of any unnamed governmental entity authorized to manage, govern or control your “employees”; or
3. An officer, official, director, trustee, commissioner, board member or administrator of any plan, trust, union, association, club, auxiliary or other organization which is a Named Insured under this policy.

Words and phrases in quotation marks are defined in this coverage part.

Unless stated otherwise in any Crime coverage form, declarations or endorsement, the following General Exclusions, General Conditions and General Definitions apply to all Crime coverage forms making up this coverage part.

A. GENERAL EXCLUSIONS

We will not pay for loss as specified below:

1. **Acts Committed by You:** Loss resulting from any dishonest or criminal act committed by you whether acting alone or in collusion with other persons.
2. **Governmental Action:** Loss resulting from seizure or destruction of property by order of governmental authority.
3. **Indirect Loss:** Loss that is an indirect result of any act or “occurrence” covered by this insurance including, but not limited to, loss resulting from:
 - a. Your inability to realize income that you would have realized had there been no loss of, or loss from damage to, covered property.
 - b. Payment of damages of any type for which you are legally liable. But we will pay compensatory damages arising directly from a loss covered under this insurance.
 - c. Payment of costs, fees or other expenses you incur in establishing either the existence or the amount of loss under this insurance.
4. **Legal Expenses:** Expenses related to any legal action.
5. **Nuclear:** Loss resulting from nuclear reaction, nuclear radiation or radioactive contamination, or any related act or incident.
6. **War and Similar Actions:** Loss resulting from war, whether or not declared, warlike action, insurrection, rebellion or revolution, or any related act or incident.

B. GENERAL CONDITIONS

1. **Concealment, Misrepresentation or Fraud:** This insurance is void in any case of fraud by you as it relates to this insurance at any time. It is also void if you or any other insured, at any time, intentionally conceal or misrepresent a material fact concerning:
 - a. This insurance;
 - b. The covered property;
 - c. Your interest in the covered property; or
 - d. A claim under this insurance.
2. **Consolidation - Merger:** If through consolidation or merger with, or purchase or acquisition of assets or liabilities of, some other entity:
 - a. Any additional persons become "employees"; or
 - b. You acquire the use and control of any additional premises;any insurance afforded for "employees" or premises also applies to those additional "employees" and premises for a period of 60 days after the effective date of such consolidation, merger, or purchase or acquisition of assets or liabilities.

You must give us written notice within this 60 day period and obtain our written consent to extend this insurance to such additional "employees" or premises. Upon obtaining our written consent, you must pay us an additional premium.

If you fail to notify us in writing within this 60 day period, then this insurance shall automatically terminate as to such additional "employees" or premises. Such automatic termination shall be retroactive to the effective date of such consolidation, merger, or purchase or acquisition of assets or liabilities.
3. **Coverage Extensions:** Unless stated otherwise in the coverage form, our liability under any Coverage Extension is part of, not in addition to, the Limit of Insurance applying to the coverage or coverage section.
4. **Duties in the Event of Loss:** After you discover a loss or a situation that may result in loss of, or loss from damage to, covered property you must:
 - a. Notify us as soon as possible.
 - b. Submit to examination under oath at our request and give us a signed statement of your answers.
 - c. Give us a detailed, sworn proof of loss within 120 days.
 - d. Cooperate with us in the investigation and settlement of any claim.
5. **Extended Period to Discover Loss:** We will pay for covered loss discovered no later than one year from the end of the policy period. However, if:
 - a. You obtain replacement insurance not issued by us or any affiliate; and
 - b. Such loss is covered by your replacement insurance; and
 - c. Your replacement insurance provides an extended period to discover loss of less than one year or does not provide an extended period to discover loss;we will pay only for covered loss discovered no later than the number of days equal to any extended period to discover loss provided by such replacement insurance. If such replacement insurance does not provide an extended period to discover loss, we will not provide this Extended Period to Discover Loss.
6. **Joint Insured**
 - a. If more than one insured is named in the Declarations, the first Named Insured will act for itself and for every other insured for all purposes of this insurance. If the first Named Insured ceases to be covered, then the next Named Insured will become the first Named Insured.

- b. If any insured or officer of that insured has knowledge of any information relevant to this insurance, that knowledge is considered knowledge of every insured.
 - c. An "employee" of any insured is considered to be an "employee" of every insured.
 - d. If this insurance or any of its coverages is cancelled or terminated as to any insured, loss sustained by that insured is covered only if discovered no later than one year from the date of that cancellation or termination.
 - e. We will not pay more for loss sustained by more than one insured than the amount we would pay if all the loss had been sustained by one insured.
7. **Legal Action Against Us:** You may not bring any legal action against us involving loss:
- a. Unless you have complied with all the terms of this insurance; and
 - b. Until 90 days after you have filed proof of loss with us; and
 - c. Unless brought within 2 years from the date you discover the loss.
8. **Loss Covered Under More Than One Coverage of This Insurance:** If two or more coverages of this insurance apply to the same loss, we will pay the lesser of:
- a. The actual amount of loss; or
 - b. The sum of the limits of insurance applicable to those coverages.
9. **Loss Covered Under This Insurance and/or Prior Insurance**
- a. If any loss is covered:
 - (1) Partly by this insurance; and
 - (2) Partly by any prior cancelled or terminated insurance that we or any affiliate had issued to you or any predecessor in interest;
 the most we will pay is the larger of the amount recoverable under this insurance or the prior insurance.
 - b. If any loss is covered:
 - (1) Partly by this insurance; and
 - (2) Partly by any prior cancelled or terminated insurance issued to you or any predecessor in interest by any carrier other than us or any affiliate:
 - (a) Any deductible amount applicable to such loss will be reduced by any deductible amount applicable or sustained by you under the prior insurance; and
 - (b) The Limit of Insurance applicable to such loss will be reduced by any amount paid or payable to you under the prior insurance.
 - c. If you or any predecessor in interest sustained loss during the period of any prior insurance, and you or the predecessor in interest could have recovered under that insurance except that the time within which to discover loss had expired, we will pay for it under this insurance, provided:
 - (1) This insurance became effective at the time of cancellation or termination of the prior insurance; and
 - (2) The loss would have been covered by this insurance had it been in effect when the acts or events causing the loss were committed or occurred.
 The insurance under this paragraph c. is part of, not in addition to, the Limits of Insurance applying to this insurance and is limited to the lesser of the amount recoverable under this insurance as of its effective date, or the prior insurance had it remained in effect.
10. **Non-Cumulation of Limit of Insurance:** Regardless of the number of years this insurance remains in force, the number of premiums paid or the duration of any loss, no Limit of Insurance or deductible amount applicable to any coverage of this insurance cumulates from year to year or period to period.

11. **Other Insurance:** This insurance does not apply to loss recoverable or recovered under other insurance or indemnity. However, if the limit of the other insurance or indemnity is insufficient to cover the entire amount of the loss, this insurance will apply to that part of the loss, other than that falling within any deductible amount, not recoverable or recovered under the other insurance or indemnity. But this insurance will not apply to the amount of loss that is more than the applicable Limit of Insurance shown in the Declarations.
12. **Ownership of Property; Interests Covered:** The property covered under this insurance is limited to property:
- a. That you own or hold; or
 - b. For which you are legally liable.
- However, this insurance is for your benefit only. It provides no rights or benefits to any other person or organization.
13. **Policy Period**
- a. The policy period is shown in the Declarations.
 - b. Except as provided by the **Loss Covered Under This Insurance and/or Prior Insurance** General Condition, we will pay only for loss that you sustain through acts committed or events occurring during the policy period.
14. **Records:** You must keep records of all covered property so we can verify the amount of any loss.
15. **Recoveries**
- a. Any recoveries, less the cost of obtaining them, made after settlement of loss covered by this insurance will be distributed as follows:
 - (1) To you, until you are reimbursed for any loss that you sustain that would be covered under this insurance, but that exceeds the Limit of Insurance and the deductible amount, if any;
 - (2) Then to us, until we are reimbursed for the settlement made;
 - (3) Then to you, until you are reimbursed for that part of the loss equal to the deductible amount, if any.
 - b. Recoveries do not include any recovery:
 - (1) From insurance, suretyship, reinsurance, security or indemnity taken for our benefit; or
 - (2) Of original "securities" after duplicates of them have been issued.
16. **Territory:** This insurance covers only acts committed or events occurring within the United States of America, its territories and possessions, Puerto Rico or Canada.
17. **Transfer of Your Rights of Recovery Against Others to Us:** You must transfer to us all your rights of recovery against any person or organization for any loss you sustained and for which we have paid or settled. You must also do everything necessary to secure those rights and do nothing after loss to impair them.
18. **Valuation - Settlement**
- a. Subject to the applicable Limit of Insurance provision we will pay for:
 - (1) Loss of "money" but only up to and including its face value. We may, at our option, pay for loss of "money" issued by any country other than the United States of America:
 - (a) At face value in the "money" issued by that country; or
 - (b) In the United States of America dollar equivalent determined by the rate of exchange on the day the loss was discovered.

- (2) Loss of "securities" but only up to and including their value at the close of business on the day the loss was discovered. We may, at our option:
 - (a) Pay the value of such "securities" or replace them in kind, in which event you must assign to us all your rights, title and interest in and to those "securities"; or
 - (b) Pay the cost of any Lost Securities Bond required in connection with issuing duplicates of the "securities". However, we will be liable only for the payment of so much of the cost of the bond as would be charged for a bond having a penalty not exceeding the lesser of:
 - i. The value of the "securities" at the close of business on the day the loss was discovered; or
 - ii. The Limit of Insurance.
- (3) Loss of, or loss from damage to, "property other than money and securities" or loss from damage to the premises for not more than the:
 - (a) Actual cash value of the property on the day the loss was discovered;
 - (b) Cost of repairing the property or premises; or
 - (c) Cost of replacing the property with property of like kind and quality.

We may, at our option, pay the actual cash value of the property or repair or replace it. If we cannot agree with you upon the actual cash value or the cost of repair or replacement, the value or cost will be determined by arbitration.
- b. We may, at our option, pay for loss of, or loss from damage to, property other than "money":
 - (1) In the "money" of the country in which the loss occurred; or
 - (2) In the United States of America dollar equivalent of the "money" of the country in which the loss occurred determined by the rate of exchange on the day the loss was discovered.
- c. Any property that we pay for or replace becomes our property.

C. GENERAL DEFINITIONS

1. "Employee" means:
 - a. Any natural person:
 - (1) While in your service (and for 30 days after termination of service); and
 - (2) Whom you compensate directly by salary, wages or commissions; and
 - (3) Whom you have the right to direct and control while performing services for you; or
 - b. Any natural person employed by an employment contractor while that person is subject to your direction and STONEPATH AUTOMOTIVE SERVICES
 - c. Any natural person who is a non-compensated officer or any other volunteer of any volunteer fire, ambulance, or other emergency service or auxiliary organization which is a Named Insured under this policy, while such officer or volunteer is subject to your direction and STONEPATH AUTOMOTIVE SERVICES
 - d. Any natural person who is an elected or appointed supervisory official of any governmentally operated fire, ambulance or other emergency service organization which is a Named Insured under this policy, while such official is performing services for you; or
 - e. Any natural person who is a director, trustee, commissioner or board member of any organization which is a Named Insured under this policy, while such director, trustee, commissioner or board member is performing services for you.

But "employee" does not mean any:

- (1) Agent, broker, factor, commission merchant, consignee, independent contractor or representative of the same general character; or
 - (2) Director, trustee, commissioner or board member:
 - (a) With respect to his or her official duties as your director, trustee, commissioner or board member; or
 - (b) While executing specific acts mandated or authorized by a resolution of your board of directors, board of trustees or board of commissioners.
2. "Money" means:
- a. Currency, coins and bank notes in current use and having a face value; and
 - b. Travelers checks, register checks and money orders held for sale to the public.
3. "Property other than money and securities" means any tangible property other than "money" and "securities" that has intrinsic value but does not include any property listed in any Crime coverage form as Property Not Covered.
4. "Securities" means negotiable and non-negotiable instruments or contracts representing either "money" or other property and includes:
- a. Tokens, tickets, revenue and other stamps (whether represented by actual stamps or unused value in a meter) in current use; and
 - b. Evidences of debt issued in connection with credit or charge cards, which cards are not issued by you;
- but "securities" does not include "money".

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES – EMPLOYEE DISHONESTY

This endorsement modifies insurance provided under the following:

CRIME COVERAGE PART

- A. The following applies to the all Employee Dishonesty Coverage Forms and Public Employee Dishonesty Forms Coverage Forms, except Employee Dishonesty Coverage Form VCR 105:

Paragraph **a.(1)** of **Cancellation As To Any Employee – Additional Conditions** is replaced by the following:

(1) As soon as:

(a) You; or

(b) Any of your partners, "members", "managers", officers, directors or trustees not in collusion with the "employee";

learn of "theft" or any other dishonest act committed by the "employee" whether before or after becoming employed by you.

However, this Paragraph (1) does not apply to an "employee" whose "theft" or other dishonest act was committed prior to becoming employed by you and which resulted in the "employee" being convicted of one or more criminal offenses in this state or any other jurisdiction, if, after learning about the "employee's" past criminal conviction or convictions, you made a determination to hire or retain the "employee" utilizing the factors set out in New York Correction Law Article 23-A; or

- B. The following applies to Employee Dishonesty Coverage Form VCR 105:

Paragraph 2.a. of Cancellation As To Any Employee – Additional Condition is replaced by the following:

a. As soon as:

(1) You; or

(2) Any of your partners, "members", "managers", officers, directors or trustees not in collusion with the "employee";

learn of "theft" or any other dishonest act committed by the "employee" whether before or after becoming employed by you.

However, this Paragraph a. does not apply to an "employee" whose "theft" or other dishonest act was committed prior to becoming employed by you and which resulted in the "employee" being convicted of one or more criminal offenses in this state or any other jurisdiction, if, after learning about the "employee's" past criminal conviction or convictions, you made a determination to hire or retain the "employee" utilizing the factors set out in New York Correction Law Article 23-A; or

ADDITIONAL COVERAGES **COMPUTER AND FUNDS TRANSFER FRAUD AND** **FRAUDULENT IMPERSONATION**

SCHEDULE

Coverage	Limit of Insurance	Deductible Amount
Computer and Funds Transfer Fraud	\$ per Occurrence	\$ per Occurrence
Fraudulent Impersonation	\$ per Occurrence	\$ per Occurrence

Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

A. COMPUTER AND FUNDS TRANSFER FRAUD COVERAGE

1. We will pay for loss you sustain arising directly out of the loss of or damage to "money", "securities" and "property other than money and securities" resulting directly from:
 - a. A fraudulent:
 - (1) Entry of "electronic data" or "computer program" into; or
 - (2) Change of "electronic data" or "computer program" within;
 any "computer system" owned, leased or operated by you, provided the fraudulent entry or fraudulent change causes, with regard to Paragraphs **A.1.a.(1)** and **A.1.a.(2)** above:
 - (a) "Money", "securities" or "property other than money and securities" to be transferred, paid or delivered; or
 - (b) Your account at a "financial institution" to be debited or deleted.
 - b. A "fraudulent instruction" directing a "financial institution" to debit your "transfer account" and transfer, pay or deliver "money" or "securities" from that account.
2. As used in Paragraph **A.1.a.**, fraudulent entry or fraudulent change of "electronic data" or "computer program" shall include such entry or change made by an "employee" acting, in good faith, upon a "fraudulent instruction" received from a computer software contractor who has a written agreement with you to design, implement or service "computer programs" for a "computer system" covered under this Coverage.

B. FRAUDULENT IMPERSONATION COVERAGE

1. We will pay for loss you sustain arising directly from your having, in good faith, transferred "money", "securities" or "other property" in reliance upon a "transfer instruction" purportedly issued by an "employee", "customer" or "vendor" but which "transfer instruction" proves to have been fraudulently issued by an imposter without the knowledge or consent of the "employee", "customer" or "vendor".
2. Verification

If the Limit of Insurance for Fraudulent Impersonation shown in the Schedule on this endorsement is \$100,000 or greater, the following is a precondition to coverage under this endorsement:

You shall verify all "transfer instructions" for amounts greater than or equal to \$25,000. This verification will be in accordance with a pre-arranged callback or other established verification procedure before acting upon any such "transfer instruction".

C. LIMIT OF INSURANCE

1. The most we will pay for loss in any one "occurrence" for Computer and Funds Transfer Fraud Coverage is the applicable Limit of Insurance shown in the Schedule.
2. The most we will pay for loss in any one "occurrence" for Fraudulent Impersonation Coverage is the applicable Limit of Insurance shown in the Schedule.

If any loss is covered under more than one Coverage, the most we will pay for such loss shall not exceed the largest Limit of Insurance available under any one of those Coverages.

D. DEDUCTIBLE

We will not pay for loss in any one "occurrence" unless the amount of loss exceeds the deductible amount shown in the Schedule on this endorsement. We will then pay the amount of loss in excess of the deductible amount, up to the Limit of Insurance.

E. EXCLUSIONS, CONDITIONS AND DEFINITIONS

In addition to the Crime General Provisions, this coverage form is subject to the following:

1. **Additional Exclusions** applicable to **A. Computer and Funds Transfer Fraud Coverage and B. Fraudulent Impersonation Coverage:**

We will not pay for loss as specified below:

- a. **Acts of Employees, Directors, or Trustees:** We will not pay for loss resulting from any dishonest or criminal act committed by any of your "employees", directors, trustees, or authorized representatives:
 - (1) Whether acting alone or in collusion with other persons; or
 - (2) Whether while performing services for you or otherwise.
- b. **Authorized Access**
Loss resulting from a fraudulent:
 - (1) Entry of "electronic data" or "computer program" into; or
 - (2) Change of "electronic data" or "computer program" within;
any "computer system" owned, leased or operated by you by a person or organization with authorized access to that "computer system", except when covered under Paragraph **A.2.**
- c. **Confidential Or Personal Information**
Loss resulting from:
 - (1) The disclosure of your or another person's or organization's confidential or personal information including, but not limited to, patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any other type of nonpublic information; or
 - (2) The use of another person's or organization's confidential or personal information including, but not limited to, patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any other type of nonpublic information.
- d. **Data Security Breach**
Fees, costs, fines, penalties and other expenses incurred by you which are related to the access to or disclosure of another person's or organization's confidential or personal information including, but not limited to, patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any other type of nonpublic information.

2. **Additional Exclusions** applicable to **A. Computer and Funds Transfer Fraud Coverage:**

We will not pay for loss as specified below:

a. **Authorized Access**

Loss resulting from a fraudulent:

- (1) Entry of "electronic data" or "computer program" into; or
- (2) Change of "electronic data" or "computer program" within;

any "computer system" owned, leased or operated by you by a person or organization with authorized access to that "computer system", except when covered under Paragraph **A.2.**

b. **Credit Card Transactions**

Loss resulting from the use or purported use of credit, debit, charge, access, convenience, identification, stored-value or other cards or the information contained on such cards.

c. **Exchanges Or Purchases**

Loss resulting from the giving or surrendering of property in any exchange or purchase.

d. **Fraudulent Instructions**

Loss resulting from an "employee" or "financial institution" acting upon any instruction to:

- (1) Transfer, pay or deliver "money", "securities" or "property other than money and securities"; or
- (2) Debit or delete your account;

which instruction proves to be fraudulent, except when covered under **Paragraph A.1.b.** or **A.2.**

e. **Inventory Shortages**

Loss, or that part of any loss, the proof of which as to its existence or amount is dependent upon:

- (1) An inventory computation; or
- (2) A profit and loss computation.

3. The Territory Condition, under Section **E. Conditions**, is replaced by the following as respects **B. Fraudulent Instruction Coverage:**

Territory

We will cover loss that you sustain resulting directly from an "occurrence" taking place anywhere in the world.

4. **Additional Definitions**

a. "Computer program" means a set of related electronic instructions, which direct the operation and function of a computer or devices connected to it, which enable the computer or devices to receive, process, store or send "electronic data".

b. "Computer system" means:

- (1) Computers, including Personal Digital Assistants (PDAs) and other transportable or handheld devices, electronic storage devices and related peripheral components;
- (2) Systems and applications software; and
- (3) Related communications networks;

by which "electronic data" is collected, transmitted, processed, stored or retrieved.

c. "Customer" means an entity or individual to whom you sell goods or provide services under a written contract.

- d. "Electronic data" means information, facts, images or sounds stored as or on, created or used on, or transmitted to or from computer software (including systems and applications software) on data storage devices, including hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.
- e. "Financial institution" means:
 - (1) A bank, savings bank, savings and loan association, trust company, credit union or similar depository institution;
 - (2) An ^{Granite Row} ; or
 - (3) A stock brokerage firm or investment company.
- f. "Fraudulent instruction" means:
 - (1) With regard to Paragraph **A.1.(b)**:
 - (a) A computer, telefacsimile, telephone or other electronic instruction directing a "financial institution" to debit your "transfer account" and to transfer, pay or deliver "money" or "securities" from that "transfer account", which instruction purports to have been issued by you, but which in fact was fraudulently issued by someone else without your knowledge or consent;
 - (b) A written instruction (other than those covered under Paragraph **A.2.** issued to a "financial institution" directing the "financial institution" to debit your "transfer account" and to transfer, pay or deliver "money" or "securities" from that "transfer account", through an electronic funds transfer system at specified times or under specified conditions, which instruction purports to have been issued by you, but which in fact was issued, forged or altered by someone else without your knowledge or consent.
 - (2) With regard to Paragraph **A.2.:**

A computer, telefacsimile, telephone or other electronic, written or voice instruction directing an "employee" to enter or change "electronic data" or "computer programs" within a "computer system" covered under A. Computer and Funds Transfer Fraud Coverage, which instruction in fact was fraudulently issued by your computer software contractor.
- g. "Occurrence" means:
 - (1) An individual act or event;
 - (2) The combined total of all separate acts or events whether or not related; or
 - (3) A series of acts or events whether or not related;

committed by a person acting alone or in collusion with others, or not committed by any person, during the Policy Period shown in the Declarations, except as provided under the Crime General Provisions, General Condition 9.
- h. "Transfer account" means an account maintained by you at a financial institution from which you can initiate the transfer, payment or delivery of "money" and securities:
 - (1) By means of computer, telefacsimile, telephone or other electronic instructions; or
 - (2) By means of written instructions (other than a check, draft, promissory note, or similar written promise, order or direction to pay a sum certain in "money") establishing the conditions under which such transfers are to be initiated by such "financial institution" through an electronic funds transfer system.
- i. "Transfer instruction" means an instruction directing you to transfer "money", "securities" or "other property".
- j. "Vendor" means an entity or individual from whom you purchase goods or receive services under a written contract.

5. **Revised Definitions:**

- a. With regard to A. Computer and Funds Transfer Fraud Coverage, the following is added to the definition of "money" in the General Crime Provisions:
 - 3. Deposits in your account at a "financial institution" as defined in Paragraph **E.4.e.**
- b. As respects the coverage provided by this endorsement, the following is added to the definition of "property other than money and securities" in the General Crime Provisions:

"Property other than money and securities" does not include "computer programs", "electronic data" or any property specifically excluded under this insurance.

IDENTITY FRAUD EXPENSE COVERAGE FORM

SCHEDULE

Limit of Insurance:

Deductible:

Persons Not Covered:

Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

A. COVERAGE

We will pay for "expenses" you sustain incurred by:

1. You; or
 2. Any "employee";
- resulting directly from "identity fraud".

B. LIMIT OF INSURANCE

The most we will pay for your "expenses" resulting directly from "identity fraud" is the applicable Limit of Insurance shown in the Schedule.

C. DEDUCTIBLE

We will not pay for "expenses" unless the amount of "expenses" exceeds the deductible amount shown in the Schedule. We will then pay the amount of "expenses" in excess of the deductible amount, up to the Limit of Insurance.

D. EXCLUSIONS, CONDITIONS AND DEFINITIONS

In addition to the Crime General Provisions, this coverage form is subject to the following:

1. Additional Exclusion:

"Expenses" due to "theft", "identity fraud" or any other dishonest act committed by:

1. You;
 2. Any "employee"; or
 3. Any person shown in the Schedule;
- whether acting alone or in collusion with other persons.

2. Revised Exclusion:

The **Legal Expenses** Exclusion is replaced by the following:

Expenses incurred by you which are related to any legal action, except when covered under this Coverage Form.

3. **Revised Condition:**

The following is added to the **Duties In The Event Of Loss** Condition:

You must send to us, within 60 days after our request, receipts, bills or other records that support any claim for "expenses" covered under this Coverage Form.

4. **Additional Definitions:**

a. "Expenses" means:

- (1) Advertising and public relations expenses incurred by you to restore your business reputation as a result of an "identity fraud";
- (2) Costs incurred by you or any "employee" for notarizing affidavits or similar documents attesting to fraud required by financial institutions or similar credit grantors or credit agencies;
- (3) Costs incurred by you or any "employee" for certified mail to law enforcement agencies, credit agencies, financial institutions or similar credit grantors;
- (4) Costs incurred by you or any "employee" for obtaining credit reports;
- (5) Lost income incurred by you or any "employee" resulting from time taken off work to complete fraud affidavits, meet with or talk to law enforcement agencies, credit agencies and/or legal counsel, up to a maximum payment of \$250 per day. Total payment for lost income is not to exceed \$10,000 or the Limit of Insurance shown in the Schedule, whichever is less;
- (6) Loan application fees, incurred by you or any "employee" for reapplying for a loan when the original application is rejected solely because the lender received incorrect credit information;
- (7) Reasonable attorney fees to:
 - (a) Defend lawsuits brought against you by merchants, vendors, suppliers, financial institutions or their collection agencies;
 - (b) Remove any criminal or civil judgments wrongly entered against you; and
 - (c) Challenge the accuracy or completeness of any information in a consumer credit report for you;
- (8) Charges incurred by you or any "employee" for long distance telephone calls to merchants, vendors, suppliers, customers, law enforcement agencies, financial institutions or similar credit grantors, or credit agencies to report or discuss an actual "identity fraud"; and
- (9) Any other reasonable expenses incurred by you or any "employee" with our written consent.

b. "Identity fraud" means the act of knowingly transferring or using, without lawful authority, a means of identification of:

- (1) Your business as shown in the Declarations; or
- (2) Any "employee";

with the intent to commit, or to aid or abet another to commit, any unlawful activity that constitutes a violation of federal law or a felony under any applicable state or local law.

c. "Theft" means the unlawful taking of property to the deprivation of the Insured.

Named Insured:
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

PORTABLE EQUIPMENT COVERAGE PART DECLARATIONS

Schedule of Portable Equipment Coverage

Coverage	Limit of Insurance	Deductible
Coverage A Blanket		
Coverage B Scheduled		

Estimated Coverage Part Premium:

Taxes, Fees and Surcharges: \$ Not Applicable

Total Premium:

Portable Equipment Forms

See HARBOR POINT MECHANICAL

Named Insured:

DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number:

VFNU-QE-7247333-05/840

Policy Period: From 04/01/2024

To 04/01/2025

PORTABLE EQUIPMENT COVERAGE PART DECLARATIONS**Coverage B – Schedule of Portable Equipment Items**

Description	Serial Number	Unit Value
2002 18' RIVERCRAFT 120 HP	ACBW5436G102	\$32,000

COMMERCIAL PROPERTY CONDITIONS

This Coverage Part is subject to the following conditions, the Common Policy Conditions and applicable Loss Conditions and Additional Conditions in Commercial Property Coverage Forms.

A. CONCEALMENT, MISREPRESENTATION OR FRAUD

This Coverage Part is void in any case of fraud by you as it relates to this Coverage Part at any time. It is also void if you or any other insured, at any time, intentionally conceal or misrepresent a material fact concerning:

1. This Coverage Part;
2. The Covered Property;
3. Your interest in the Covered Property; or
4. A claim under this Coverage Part.

B. CONTROL OF PROPERTY

Any act or neglect of any person other than you beyond your direction or control will not affect this insurance.

The breach of any condition of this Coverage Part at any one or more locations will not affect coverage at any location where, at the time of loss or damage, the breach of condition does not exist.

C. INSURANCE UNDER TWO OR MORE COVERAGES

If two or more of this policy's coverages apply to the same loss or damage, we will not pay more than the actual amount of the loss or damage.

D. LEGAL ACTION AGAINST US

No one may bring a legal action against us under this Coverage Part unless:

1. There has been full compliance with all of the terms of this Coverage Part; and
2. The action is brought within 2 years after the date on which the direct physical loss or damage occurred.

E. LIBERALIZATION

If we adopt any revision that would broaden the coverage under this Coverage Part without additional premium within 45 days prior to or during the policy period, the broadened coverage will immediately apply to this Coverage Part.

F. NO BENEFIT TO BAILEE

No person or organization, other than you, having custody of Covered Property will benefit from this insurance.

G. OTHER INSURANCE

1. You may have other insurance subject to the same plan, terms, conditions and provisions as the insurance under this Coverage Part. If you do, we will pay our share of the covered loss or damage. Our share is the proportion that the applicable Limit of Insurance under this Coverage Part bears to the Limits of Insurance of all insurance covering on the same basis.
2. If there is other insurance covering the same loss or damage, other than that described in 1. above, we will pay only for the amount of covered loss or damage in excess of the amount due from that other insurance, whether you can collect on it or not. But we will not pay more than the applicable Limit of Insurance.

H. POLICY PERIOD, COVERAGE TERRITORY

Under this Coverage Part:

1. We cover loss or damage commencing:
 - a. During the policy period shown in the Declarations; and
 - b. Within the coverage territory.
2. The coverage territory is:
 - a. The United States of America (including its territories and possessions);
 - b. Puerto Rico; and
 - c. Canada.

I. TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US

If any person or organization to or for whom we make payment under this Coverage Part has rights to recover damages from another, those rights are transferred to us to the extent of our payment. That person or organization must do everything necessary to secure our rights and must do nothing after loss to impair them. But you may waive your rights against another party in writing:

1. Prior to a loss to your Covered Property or Covered Income.
2. After a loss to your Covered Property or Covered Income only if, at time of loss, that party is one of the following:
 - a. Someone insured by this insurance;
 - b. A business firm:
 - (1) Owned or controlled by you; or
 - (2) That owns or controls you; or
 - c. Your tenant.

This will not restrict your insurance.

EMERGENCY SERVICE ORGANIZATION PORTABLE EQUIPMENT COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties, and what is and is not covered.

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations. The words "we," "us" and "our" refer to the Company providing this insurance.

Other words and phrases that appear in quotation marks have special meaning.

SECTION I. YOUR PORTABLE EQUIPMENT COVERAGE

Coverage A. Blanket "Portable Equipment."

We will pay for direct physical loss or damage caused by or resulting from any "covered cause of loss" to "portable equipment" owned by you or furnished to you for your regular use. The most we will pay is described under WHAT WE WILL PAY.

Coverage B. Scheduled "Portable Equipment."

We will pay for direct physical loss or damage caused by or resulting from any "covered cause of loss" to "portable equipment" owned by you or furnished to you for your regular use, that is specifically listed in the Declarations or in a schedule attached to this coverage form. The most we will pay is described under WHAT WE WILL PAY.

SECTION II. EXTENSIONS OF PORTABLE EQUIPMENT COVERAGE

This section adds to or extends the coverage under YOUR PORTABLE EQUIPMENT COVERAGE. Each separately numbered provision is referred to as an extension. Except to the extent specifically stated otherwise in an extension:

- (1) each extension is limited to direct physical loss or damage caused by or resulting from any "covered cause of loss;"
- (2) the limits in each extension are in addition to the limits applicable to YOUR PORTABLE EQUIPMENT COVERAGE;
- (3) the limits in each extension apply separately for each occurrence; and
- (4) all other applicable terms and conditions of this coverage form apply to each extension.

Extension 1. "Debris Removal Expenses."

We will pay your "debris removal expenses" if they are reported to us within 180 days after the date of the direct physical loss or damage. The most we will pay in any one occurrence is the greater of:

- (1) 25% of the amount we pay for direct physical loss or damage under Coverage A or Coverage B, before the application of any deductible; or
- (2) \$5,000.

Extension 2. “Personal Effects.”

- a. We will pay for direct physical loss or damage to "personal effects" belonging to your volunteers, "employees," directors, officers or trustees while enroute to, during, and returning from any official duty authorized by you.
- b. We will pay up to the “replacement cost” for lost or damaged “personal effects” belonging to any one volunteer, “employee,” director, officer or trustee under this extension, but not more than the smaller of the following:
 - (1) the amount which is actually spent to repair or replace the lost or damaged “personal effects” of comparable kind and quality; or
 - (2) the “replacement cost” of the lost or damaged “personal effects.”

The volunteer, “employee,” director, officer or trustee may substitute “personal effects” of a different kind or quality and still comply with the “replacement cost” provision, but we won’t pay more than the cost to repair or replace the lost or damaged “personal effects” with “personal effects” of comparable kind and quality.
- c. This coverage is primary and will apply regardless of any other insurance coverage which may be available to the owner of the "personal effects."
- d. No deductible will apply.

Extension 3. Non-Owned “Portable Equipment.”

- a. We will pay for direct physical loss or damage to "portable equipment" not owned by you and not furnished to you for your regular use, but that is temporarily in your possession, caused by or resulting from any "covered cause of loss."
- b. The most we will pay under this extension in any one occurrence is \$50,000.

Extension 4. “Valuable Papers and Records.”

- a. We will pay the costs you incur in restoring, researching, replacing, or reproducing the "valuable papers and records" associated with your firefighting, ambulance or rescue related activities, when the “valuable papers and records” suffer direct physical loss or damage from a “covered cause of loss,” away from your premises.
- b. We will not pay for:
 - (1) irreplaceable “valuable papers and records,” unless they are specifically described in an endorsement and a limit is shown there;
 - (2) any cost that results directly from processing or copying records;
 - (3) any cost that results from work performed on papers or records, such as filing or binding;
 - (4) loss or damage to computer-based records arising from loss or damage to “software,” or from a “computer virus” or from mechanical breakdown of “hardware”; or
 - (5) loss or damage to “software.”

Extension 5. "Watercraft."

- a. If Coverage A is indicated in the Declarations, we will pay for direct physical loss or damage to "watercraft" or "personal watercraft" owned by you or furnished to you for your regular use, resulting from a "covered cause of loss."
- b. This extension applies to all such "personal watercraft".
- c. This extension applies only to "watercraft" that are either:
 - (1) not powered by a motor or engine; or
 - (2) powered by a motor or combination of motors of 100 horsepower or less, regardless of whether the motor is inboard, outboard, or inboard/outboard.

Extension 6. Newly Acquired "Portable Equipment."

- a. Under Coverage B, Scheduled "Portable Equipment," we will pay for the direct physical loss or damage caused by or resulting from any "covered cause of loss" to newly acquired "portable equipment" similar to that listed in the Declarations or schedule attached to this coverage form.
- b. This automatic extension of coverage will apply for a period of 30 days from the date of acquisition, on a "replacement cost" basis, not to exceed the purchase price of the newly acquired "portable equipment."

SECTION III. COVERED CAUSES OF LOSS

"Covered cause of loss" means any cause of direct physical loss or damage except as excluded below.

Exclusions

This policy does not apply to loss or damage caused by or resulting directly or indirectly from the following causes, or occurring in the following situations. Such loss or damage is excluded regardless of any other cause or event that contributes concurrently with or before, during, or after the loss or damage. But we will cover "resulting fire or explosion" arising out of any of these excluded causes except "war."

- 1. "War."
- 2. "Nuclear activity."
- 3. "Neglect" except when your "portable equipment" is in use in an "emergency situation."
- 4. Dishonest acts or omissions of you or your "employees" or volunteers, or anyone authorized to act for you.
- 5. Mysterious disappearance of property or an inventory shortage.
- 6. "Wear and tear," deterioration, rust, corrosion, marring or scratching, erosion, wet or dry rot, and mold.
- 7. Mechanical breakdown.
- 8. "Inherent vice." Examples of "inherent vice" are the yellowing and cracking of old paper, patina that forms on old bronze and the swelling of wood under moist conditions.

9. "Latent defects."
10. Faulty design, workmanship and material including the cost of correcting any faulty design, workmanship, material, manufacture or installation, alteration, repair or work on covered "portable equipment." But we will cover loss or damage that results from any of these, if the loss or damage occurs in connection with any cause of loss not otherwise excluded by this policy.
11. Asbestos, including loss, damage or "clean-up" resulting from asbestos or asbestos-containing materials unless the damage from asbestos is caused by or results from your "emergency operations" conducted away from premises owned or occupied by you.
12. Pollution or contamination including the actual, alleged or threatened presence, discharge, seepage, migration, release, escape or "clean-up" of "pollutants" unless caused by a "specified cause of loss" or by your "training operations," or by your "emergency operations" conducted away from premises owned or occupied by you.

SECTION IV. WHAT WE WILL PAY

A. Limits of Insurance

1. The most we will pay for loss or damage in any one occurrence is the guaranteed replacement cost for Coverage A, or for Coverage B the applicable Limit of Insurance shown in the Declarations or in an attached schedule.
2. If we pay the limit for any one occurrence, that will not reduce the applicable limit for any future covered loss resulting from an unrelated occurrence.
3. Except to the extent specifically stated otherwise in an extension, the limits in each extension are in addition to the limits applicable to YOUR PORTABLE EQUIPMENT COVERAGE.

B. Deductible

1. We will not pay for loss or damage in any one occurrence until the amount of loss or damage exceeds the applicable deductible. We will then pay the amount of loss or damage in excess of the deductible, up to the applicable Limit of Insurance.
2. Deductible Waiver. If a loss covered under this policy also involves a loss under an Emergency Service Organization Commercial Property or Business Auto Policy issued to you by us, only one deductible, the largest, will be applied. The deductible under the other policy or policies will be waived.

C. Coverage A Valuation - Guaranteed Replacement Cost

In the event of loss or damage, we will determine the value of property on a guaranteed replacement cost basis, as follows:

1. We will pay the entire "replacement cost" of the lost or damaged "portable equipment," or the cost to repair or replace the damaged "portable equipment," whichever is smaller, in excess of the deductible, provided you accurately report to us at policy inception and within 30 days after acquisition, the number and "types of vehicles" which carry "portable equipment" owned by you or furnished to you for your regular use.

2. You may substitute "portable equipment" of a different kind or quality, but we won't pay more than the cost to repair or replace the lost or damaged "portable equipment" with "portable equipment" of comparable kind and quality.
3. Our estimated value of the total "replacement cost" of all "portable equipment" is based on the number and "types of vehicles" reported by you which carry "portable equipment" owned by you or furnished to you for your regular use.
4. If you do not accurately report the number and "types of vehicles" set forth in paragraph 1. above, we will determine the most we will pay using the following steps:
 - (a) Calculate the estimated value of your "portable equipment" based on the number and "types of vehicles" you reported to us.
 - (b) Calculate the estimated value of your "portable equipment" had the number and "types of vehicles" been accurately reported to us.
 - (c) Divide the amount calculated in step (a) by the amount calculated in step (b).
 - (d) Multiply the resulting proportion by the total amount of loss.
 - (e) Subtract the applicable deductible.

We will pay the amount determined in step (e). For the remainder of any loss, you will have to rely on other insurance or absorb the loss.

D. Coverage B Valuation - Replacement Cost

In the event of loss or damage, we will determine the value of property under Coverage B as follows:

1. We will pay the "replacement cost" of the lost or damaged "portable equipment" in excess of the deductible, but not more than the smallest of the following:
 - (a) the amount which you actually spend to repair or replace the lost or damaged "portable equipment" with "portable equipment" of comparable kind and quality;
 - (b) the "replacement cost" of the lost or damaged "portable equipment;" or
 - (c) the limit shown in the schedule for each item.
2. You may substitute "portable equipment" of a different kind or quality and still comply with the "replacement cost" provision, but we won't pay more than the cost to repair or replace the lost or damaged "portable equipment" with "portable equipment" of comparable kind and quality.

SECTION V. LOSS CONDITIONS

The following conditions apply in addition to the Common Policy Conditions and the Commercial Property Conditions.

1. Abandonment

There can be no abandonment of any property to us.

2. Appraisal

If we cannot agree with you on the amount of the loss, either of us can demand that the following procedure be used to settle the amount.

- a. You or we will request in writing that the dispute be submitted to appraisal within 60 days from the time we receive your proof of loss. Each will then select an appraiser and notify the other of that choice within 20 days of the initial request.
- b. The appraisers will select an impartial umpire. If they cannot agree on an umpire within 15 days, either you or we can ask that an umpire be appointed by a judge of the court of record in the county where the property is located.
- c. The appraisers will appraise each item for its value at the time of loss and the amount of loss. If they can't agree, they will submit any differences to the umpire. An agreement in writing by any two of these three will determine the amount of the loss.
- d. You will pay your appraiser and we will pay ours. Each will share equally any other costs of the appraisal and the umpire.
- e. We will not surrender our rights by any act we take relating to an appraisal.

3. Duties In The Event Of Loss Or Damage

- a. You must see that the following are done in the event of loss or damage to property insured under this policy:
 - (1) Notify the police if a law may have been broken.
 - (2) Give us prompt notice of the loss or damage. Include a description of the property involved.
 - (3) As soon as possible, give us a description of how, when and where the loss or damage occurred.
 - (4) Take all reasonable steps to protect the property from further damage by a "covered cause of loss." If feasible, set the damaged property aside and in the best possible order for examination.

Also keep a record of your expenses for emergency and temporary repairs, for consideration in the settlement of the claim. This will not increase the Limit of Insurance.

- (5) As often as may be reasonably required, permit us to inspect the property proving the loss or damage and examine your books and records.

Also permit us to take samples of damaged and undamaged property for inspection, testing and analysis, and permit us to make copies from your books and records.

- (6) Send us a signed, sworn proof of loss containing the information we request to investigate the claim. You must do this within 60 days after our request. We will supply you with the necessary forms.
- (7) Cooperate with us in the investigation or settlement of the claim.

- b. We may examine any insured under oath, while not in the presence of any other insured and at such times as may be reasonably required, about any matter relating to this insurance or the claim, including an insured's books and records. In the event of an examination, an insured's answers must be signed.

4. Loss Payment

- a. In the event of loss or damage covered by this policy, at our option, we will either:
 - (1) Pay the value of lost or damaged property;
 - (2) Pay the cost of repairing or replacing the lost or damaged property;
 - (3) Take all or any part of the property at an agreed or appraised value; or
 - (4) Repair, rebuild or replace the property with other property of like kind and quality.
- b. We will give notice of our intentions within 30 days after we receive the sworn proof of loss.
- c. We will not pay you more than your financial interest in the property.
- d. We may adjust losses with the owners of lost or damaged property if other than you. If we pay the owners, such payments will satisfy your claims against us for the owners' property. We will not pay the owners more than their financial interest in the property.
- e. We may elect to defend you against suits arising from claims of owners of property. We will do this at our expense.
- f. We will pay for covered loss or damage within 30 days after we receive the sworn proof of loss if:
 - (1) You have complied with all of the terms of this Coverage Part; and
 - (2)
 - (a) We have reached agreement with you on the amount of loss; or
 - (b) An appraisal award has been made.

5. Recovered Property

If either you or we recover any property after loss settlement, that party must give the other prompt notice. At your option, the property will be returned to you. You must then return to us the amount we paid to you for the property. We will pay recovery expenses and the expenses to repair the recovered property, subject to the Limit of Insurance.

SECTION VI. PORTABLE EQUIPMENT COVERAGE DEFINITIONS

"Aircraft" means aircraft except those that are:

- (1) on the ground for display or instructional purposes;
- (2) not self-propelled; and
- (3) not certified for flight.

However, this does not include detached aircraft engines, parts, accessories and equipment.

"Clean-up" includes testing, monitoring, removal, containment, treatment, detoxification or neutralization, or assessing the effects of "pollutants."

"Computer virus" means a computer program or computer code which is entered into your computer system without your knowledge, and which causes a disruption of normal program or computer system operation, but it does not mean an error in design or programming error.

"Covered cause of loss" is defined in the section titled COVERED CAUSES OF LOSS.

"Debris removal expense" means expenses you incur in removing debris of "portable equipment" covered by this policy after direct physical loss or damage caused by or resulting from any "covered cause of loss."

"Emergency operations" means actions:

- 1) Which are urgent responses for protection of property, human life, health or safety; and,
- 2) Which result from the performing or attempting to perform fire fighting services, hazardous materials unit services, first aid, ambulance or rescue squad services, or related services, including the stabilizing or securing of an emergency scene; and,
- 3) Which are sanctioned by (i) a fire department, hazardous materials unit, or first aid, ambulance or rescue squad qualifying as an insured under this policy, or (ii) an officer, "employee" or volunteer member of such organization.

"Emergency situation" means an unexpected situation demanding immediate official action, but does not include response to situations which are your normal or routine activities.

"Employees" means people who work for you in the conduct of your ordinary activities, in return for a salary, wages or commissions. In order to be considered an employee, a person must be subject to your exclusive direction in the performance of his or her activities. Contractors and agents are not considered to be employees.

"Fine arts" means property that is rare or that has historic or artistic value, including antiques, rare articles, etchings, pictures, statuary, marbles, bronzes, porcelains and bric-a-brac.

"Hardware" means computers and their electronic data processing parts and equipment which accept, utilize and process raw information for conversion to machine readable form.

"Inherent vice" means a natural condition of property that causes it to deteriorate or become damaged.

"Latent defects" are faults or weaknesses in property itself.

"Named insured" means the person(s) or organization(s) named in the Declarations.

"Neglect" means your failure to take all reasonable steps to protect your property when it is threatened with loss or damage and to take all reasonable steps to protect your property from further loss after loss or damage occurs.

"Nuclear activity" means loss from nuclear reaction, nuclear radiation or radioactive contamination, whether deliberate or accidental, controlled or uncontrolled, and whether or not the loss is direct or

indirect, proximate or remote, or is contributed to or aggravated by a "covered cause of loss." But it does not include explosion, fire or smoke.

"Permanently attached equipment" means equipment that is welded, bolted or permanently screwed to the dashboard, firewall or body of the "vehicle." Equipment inserted on permanently installed slide brackets with or without the use of setscrews or tension, or portable firefighting and rescue related equipment, shall not be construed as permanently attached equipment

"Personal effects" means property that belongs to an individual and is devoted primarily to that individual's personal use; for example, clothing, eyeglasses, or individually owned portable firefighting, ambulance, or rescue related equipment. Personal effects does not include:

- (1) money and securities;
- (2) "fine arts"
- (3) "aircraft"
- (4) "watercraft," except as provided for in Extension 5. for Coverage A, or in an attached schedule for Coverage B; or
- (5) "vehicles."

"Personal watercraft" means a vessel which uses an inboard motor powering a water jet pump as its primary source of motive power, and which is designed to be operated by a person sitting, standing, or kneeling on the vessel, rather than the conventional manner of sitting or standing inside the vessel.

"Portable equipment" means portable firefighting, ambulance, or rescue related equipment and portable communications equipment commonly used in fire and rescue operations away from your premises. Portable equipment also includes equipment specific to firefighting and rescue related activities, such as training videos, manuals and mannequins, and any trailer whose primary purpose is to transport covered portable equipment. But portable equipment does not include:

- (1) "personal effects" belonging to you or your volunteers or "employees," other than individually owned portable firefighting, ambulance, or rescue related equipment;
- (2) personal property including contents, building fixtures, or building maintenance equipment such as lawn mowers or tractors;
- (3) money and securities;
- (4) "valuable papers and records;"
- (5) televisions, video cassette recorders, and other audio-visual equipment except when such equipment is intended for use off your premises in actual "emergency situations" or in training for "emergency situations;"
- (6) computer hardware or software or other electronic data processing equipment except when such equipment is intended for use off your premises in actual "emergency situations" or in training for "emergency situations;"
- (7) "fine arts;"
- (8) jewelry (except watches);

- (9) "aircraft;"
- (10) "watercraft," except as provided for in Extension 5. for Coverage A or in an attached schedule for Coverage B; or
- (11) "vehicles."

"Pollutants" means any solid, liquid, gaseous or thermal irritant or contaminant, including vapor, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

"Replacement cost" is the amount it would take to replace property with property of the same kind and quality, determined at the time of loss, without deduction for depreciation.

"Resulting fire or explosion" means a fire or explosion that results from any cause of loss other than "war," whether or not that cause of loss itself is covered under this policy.

"Software" includes all forms of computer programs, computer code, and computer readable data employed in your operations. It includes the media on which computer programs, computer code, or computer readable data are electronically or optically recorded, such as magnetic tapes, hard disks, floppy disks, or compact disks.

"Specified cause of loss" means fire, lightning, windstorm or hail, explosion, riot or civil commotion, "vehicles" or "aircraft," smoke, sonic boom, vandalism and malicious mischief, sprinkler leakage, sinkhole collapse or volcanic action.

"Training operations" means activities used to prepare, train, or instruct members of a fire department, hazardous materials unit, or first aid, ambulance or rescue squad in accepted and recognized emergency procedures, including municipal, state and federal standards.

"Types of vehicles" means various categories of vehicles commonly used in firefighting, ambulance or rescue operations, such as pumpers, brush trucks, aerial devices, rescue trucks, or advanced life support ambulances.

"Valuable papers and records" are documents that are written, printed, or otherwise inscribed. These include:

- (1) books, manuscripts, abstracts, maps and drawings;
- (2) film and other photographically produced records, such as slides and microfilm; and
- (3) schematics, pre-plans, and haz mat manuals.

"Vehicle" means a land motor vehicle, trailer or semi-trailer, including "permanently attached equipment," designed for travel on public roads, but does not include mobile equipment or trailers whose primary purpose is to transport covered "portable equipment."

"War" means any of the following:

- (1) Hostile or belligerent action, including action in hindering, combating or defending against an actual, impending or expected attack by:
 - (a) any government or sovereign power (de jure or de facto);

- (b) any military, naval, air or nuclear forces; or
 - (c) any agent of such government, power, authority or forces.
- (2) Insurrection, invasion, rebellion, revolution, civil war, usurped power or action taken by governmental authority in hindering, combating or defending against such an event.

"Watercraft" means any watercraft used in your firefighting, ambulance or rescue related activities, including its motor, parts, accessories and equipment, but does not include "personal watercraft".

"Wear and tear" includes wear, deterioration, rust, corrosion, marring or scratching, erosion, wet or dry rot, and mold.

EMERGENCY SERVICE ORGANIZATION PORTABLE EQUIPMENT COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties, and what is and is not covered.

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations. The words "we," "us" and "our" refer to the Company providing this insurance.

Other words and phrases that appear in quotation marks have special meaning.

SECTION I. YOUR PORTABLE EQUIPMENT COVERAGE

Coverage A. Blanket "Portable Equipment."

We will pay for direct physical loss or damage caused by or resulting from any "covered cause of loss" to "portable equipment" owned by you or furnished to you for your regular use. The most we will pay is described under WHAT WE WILL PAY.

Coverage B. Scheduled "Portable Equipment."

We will pay for direct physical loss or damage caused by or resulting from any "covered cause of loss" to "portable equipment" owned by you or furnished to you for your regular use, that is specifically listed in the Declarations or in a schedule attached to this coverage form. The most we will pay is described under WHAT WE WILL PAY.

SECTION II. EXTENSIONS OF PORTABLE EQUIPMENT COVERAGE

This section adds to or extends the coverage under YOUR PORTABLE EQUIPMENT COVERAGE. Each separately numbered provision is referred to as an extension. Except to the extent specifically stated otherwise in an extension:

- (1) each extension is limited to direct physical loss or damage caused by or resulting from any "covered cause of loss;"
- (2) the limits in each extension are in addition to the limits applicable to YOUR PORTABLE EQUIPMENT COVERAGE;
- (3) the limits in each extension apply separately for each occurrence; and
- (4) all other applicable terms and conditions of this coverage form apply to each extension.

Extension 1. "Debris Removal Expenses."

We will pay your "debris removal expenses" if they are reported to us within 180 days after the date of the direct physical loss or damage. The most we will pay in any one occurrence is the greater of:

- (1) 25% of the amount we pay for direct physical loss or damage under Coverage A or Coverage B, before the application of any deductible; or
- (2) \$5,000.

Extension 2. "Personal Effects."

- a. We will pay for direct physical loss or damage to "personal effects" belonging to your volunteers, "employees," directors, officers or trustees while enroute to, during, and returning from any official duty authorized by you.
- b. We will pay up to the "replacement cost" for lost or damaged "personal effects" belonging to any one volunteer, "employee," director, officer or trustee under this extension, but not more than the smaller of the following:

- (1) the amount which is actually spent to repair or replace the lost or damaged "personal effects" of comparable kind and quality; or
- (2) the "replacement cost" of the lost or damaged "personal effects."

The volunteer, "employee," director, officer or trustee may substitute "personal effects" of a different kind or quality and still comply with the "replacement cost" provision, but we won't pay more than the cost to repair or replace the lost or damaged "personal effects" with "personal effects" of comparable kind and quality.

- c. This coverage is primary and will apply regardless of any other insurance coverage which may be available to the owner of the "personal effects."
- d. No deductible will apply.

Extension 3. Non-Owned "Portable Equipment."

- a. We will pay for direct physical loss or damage to "portable equipment" not owned by you and not furnished to you for your regular use, but that is temporarily in your possession, caused by or resulting from any "covered cause of loss."
- b. The most we will pay under this extension in any one occurrence is \$50,000.

Extension 4. "Valuable Papers and Records."

- a. We will pay the costs you incur in restoring, researching, replacing, or reproducing the "valuable papers and records" associated with your firefighting, ambulance or rescue related activities, when the "valuable papers and records" suffer direct physical loss or damage from a "covered cause of loss," away from your premises.
- b. We will not pay for:
 - (1) irreplaceable "valuable papers and records," unless they are specifically described in an endorsement and a limit is shown there;
 - (2) any cost that results directly from processing or copying records;
 - (3) any cost that results from work performed on papers or records, such as filing or binding;
 - (4) loss or damage to computer-based records arising from loss or damage to "software," or from a "computer virus" or from mechanical breakdown of "hardware"; or
 - (5) loss or damage to "software."

Extension 5. "Watercraft."

- a. If Coverage A is indicated in the Declarations, we will pay for direct physical loss or damage to "watercraft" or "personal watercraft" owned by you or furnished to you for your regular use, resulting from a "covered cause of loss."
- b. This extension applies to all such "personal watercraft".
- c. This extension applies only to "watercraft" that are either:
 - (1) not powered by a motor or engine; or
 - (2) powered by a motor or combination of motors of 100 horsepower or less, regardless of whether the motor is inboard, outboard, or inboard/outboard.

Extension 6. Newly Acquired "Portable Equipment."

- a. Under Coverage B, Scheduled "Portable Equipment," we will pay for the direct physical loss or damage caused by or resulting from any "covered cause of loss" to newly acquired "portable equipment" similar to that listed in the Declarations or schedule attached to this coverage form.
- b. This automatic extension of coverage will apply for a period of 30 days from the date of acquisition, on a "replacement cost" basis, not to exceed the purchase price of the newly acquired "portable equipment."

SECTION III. COVERED CAUSES OF LOSS

"Covered cause of loss" means any cause of direct physical loss or damage except as excluded below.

Exclusions

This policy does not apply to loss or damage caused by or resulting directly or indirectly from the following causes, or occurring in the following situations. Such loss or damage is excluded regardless of any other cause or event that contributes concurrently with or before, during, or after the loss or damage. But we will cover "resulting fire or explosion" arising out of any of these excluded causes except "war."

- 1. "War."
- 2. "Nuclear activity."
- 3. "Neglect" except when your "portable equipment" is in use in an "emergency situation."
- 4. Dishonest acts or omissions of you or your "employees" or volunteers, or anyone authorized to act for you.
- 5. Mysterious disappearance of property or an inventory shortage.
- 6. "Wear and tear," deterioration, rust, corrosion, marring or scratching, erosion, wet or dry rot, and mold.
- 7. Mechanical breakdown.
- 8. "Inherent vice." Examples of "inherent vice" are the yellowing and cracking of old paper, patina that forms on old bronze and the swelling of wood under moist conditions.

9. "Latent defects."
10. Faulty design, workmanship and material including the cost of correcting any faulty design, workmanship, material, manufacture or installation, alteration, repair or work on covered "portable equipment." But we will cover loss or damage that results from any of these, if the loss or damage occurs in connection with any cause of loss not otherwise excluded by this policy.
11. Asbestos, including loss, damage or "clean-up" resulting from asbestos or asbestos-containing materials unless the damage from asbestos is caused by or results from your "emergency operations" conducted away from premises owned or occupied by you.
12. Pollution or contamination including the actual, alleged or threatened presence, discharge, seepage, migration, release, escape or "clean-up" of "pollutants" unless caused by a "specified cause of loss" or by your "training operations," or by your "emergency operations" conducted away from premises owned or occupied by you.

SECTION IV. WHAT WE WILL PAY

A. Limits of Insurance

1. The most we will pay for loss or damage in any one occurrence is the guaranteed replacement cost for Coverage A, or for Coverage B the applicable Limit of Insurance shown in the Declarations or in an attached schedule.
2. If we pay the limit for any one occurrence, that will not reduce the applicable limit for any future covered loss resulting from an unrelated occurrence.
3. Except to the extent specifically stated otherwise in an extension, the limits in each extension are in addition to the limits applicable to YOUR PORTABLE EQUIPMENT COVERAGE.

B. Deductible

1. We will not pay for loss or damage in any one occurrence until the amount of loss or damage exceeds the applicable deductible. We will then pay the amount of loss or damage in excess of the deductible, up to the applicable Limit of Insurance.
2. Deductible Waiver. If a loss covered under this policy also involves a loss under an Emergency Service Organization Commercial Property or Business Auto Policy issued to you by us, only one deductible, the largest, will be applied. The deductible under the other policy or policies will be waived.

C. Coverage A Valuation - Guaranteed Replacement Cost

In the event of loss or damage, we will determine the value of property on a guaranteed replacement cost basis, as follows:

1. We will pay the entire "replacement cost" of the lost or damaged "portable equipment," or the cost to repair or replace the damaged "portable equipment," whichever is smaller, in excess of the deductible, provided you accurately report to us at policy inception and within 30 days after acquisition, the number and "types of vehicles" which carry "portable equipment" owned by you or furnished to you for your regular use.

2. You may substitute "portable equipment" of a different kind or quality, but we won't pay more than the cost to repair or replace the lost or damaged "portable equipment" with "portable equipment" of comparable kind and quality.
3. Our estimated value of the total "replacement cost" of all "portable equipment" is based on the number and "types of vehicles" reported by you which carry "portable equipment" owned by you or furnished to you for your regular use.
4. If you do not accurately report the number and "types of vehicles" set forth in paragraph 1. above, we will determine the most we will pay using the following steps:
 - (a) Calculate the estimated value of your "portable equipment" based on the number and "types of vehicles" you reported to us.
 - (b) Calculate the estimated value of your "portable equipment" had the number and "types of vehicles" been accurately reported to us.
 - (c) Divide the amount calculated in step (a) by the amount calculated in step (b).
 - (d) Multiply the resulting proportion by the total amount of loss.
 - (e) Subtract the applicable deductible.

We will pay the amount determined in step (e). For the remainder of any loss, you will have to rely on other insurance or absorb the loss.

D. Coverage B Valuation - Replacement Cost

In the event of loss or damage, we will determine the value of property under Coverage B as follows:

1. We will pay the "replacement cost" of the lost or damaged "portable equipment" in excess of the deductible, but not more than the smallest of the following:
 - (a) the amount which you actually spend to repair or replace the lost or damaged "portable equipment" with "portable equipment" of comparable kind and quality;
 - (b) the "replacement cost" of the lost or damaged "portable equipment;" or
 - (c) the limit shown in the schedule for each item.
2. You may substitute "portable equipment" of a different kind or quality and still comply with the "replacement cost" provision, but we won't pay more than the cost to repair or replace the lost or damaged "portable equipment" with "portable equipment" of comparable kind and quality.

SECTION V. LOSS CONDITIONS

The following conditions apply in addition to the Common Policy Conditions and the Commercial Property Conditions.

1. Abandonment

There can be no abandonment of any property to us.

2. Appraisal

If we cannot agree with you on the amount of the loss, either of us can demand that the following procedure be used to settle the amount.

- a. You or we will request in writing that the dispute be submitted to appraisal within 60 days from the time we receive your proof of loss. Each will then select an appraiser and notify the other of that choice within 20 days of the initial request.
- b. The appraisers will select an impartial umpire. If they cannot agree on an umpire within 15 days, either you or we can ask that an umpire be appointed by a judge of the court of record in the county where the property is located.
- c. The appraisers will appraise each item for its value at the time of loss and the amount of loss. If they can't agree, they will submit any differences to the umpire. An agreement in writing by any two of these three will determine the amount of the loss.
- d. You will pay your appraiser and we will pay ours. Each will share equally any other costs of the appraisal and the umpire.
- e. We will not surrender our rights by any act we take relating to an appraisal.

3. Duties In The Event Of Loss Or Damage

- a. You must see that the following are done in the event of loss or damage to property insured under this policy:
 - (1) Notify the police if a law may have been broken.
 - (2) Give us prompt notice of the loss or damage. Include a description of the property involved.
 - (3) As soon as possible, give us a description of how, when and where the loss or damage occurred.
 - (4) Take all reasonable steps to protect the property from further damage by a "covered cause of loss." If feasible, set the damaged property aside and in the best possible order for examination.

Also keep a record of your expenses for emergency and temporary repairs, for consideration in the settlement of the claim. This will not increase the Limit of Insurance.

- (5) As often as may be reasonably required, permit us to inspect the property proving the loss or damage and examine your books and records.

Also permit us to take samples of damaged and undamaged property for inspection, testing and analysis, and permit us to make copies from your books and records.

- (6) Send us a signed, sworn proof of loss containing the information we request to investigate the claim. You must do this within 60 days after our request. We will supply you with the necessary forms.
- (7) Cooperate with us in the investigation or settlement of the claim.

- b. We may examine any insured under oath, while not in the presence of any other insured and at such times as may be reasonably required, about any matter relating to this insurance or the claim, including an insured's books and records. In the event of an examination, an insured's answers must be signed.

4. Loss Payment

- a. In the event of loss or damage covered by this policy, at our option, we will either:
 - (1) Pay the value of lost or damaged property;
 - (2) Pay the cost of repairing or replacing the lost or damaged property;
 - (3) Take all or any part of the property at an agreed or appraised value; or
 - (4) Repair, rebuild or replace the property with other property of like kind and quality.
- b. We will give notice of our intentions within 30 days after we receive the sworn proof of loss.
- c. We will not pay you more than your financial interest in the property.
- d. We may adjust losses with the owners of lost or damaged property if other than you. If we pay the owners, such payments will satisfy your claims against us for the owners' property. We will not pay the owners more than their financial interest in the property.
- e. We may elect to defend you against suits arising from claims of owners of property. We will do this at our expense.
- f. We will pay for covered loss or damage within 30 days after we receive the sworn proof of loss if:
 - (1) You have complied with all of the terms of this Coverage Part; and
 - (2)
 - (a) We have reached agreement with you on the amount of loss; or
 - (b) An appraisal award has been made.

5. Recovered Property

If either you or we recover any property after loss settlement, that party must give the other prompt notice. At your option, the property will be returned to you. You must then return to us the amount we paid to you for the property. We will pay recovery expenses and the expenses to repair the recovered property, subject to the Limit of Insurance.

SECTION VI. PORTABLE EQUIPMENT COVERAGE DEFINITIONS

"Aircraft" means aircraft except those that are:

- (1) on the ground for display or instructional purposes;
- (2) not self-propelled; and
- (3) not certified for flight.

However, this does not include detached aircraft engines, parts, accessories and equipment.

"Clean-up" includes testing, monitoring, removal, containment, treatment, detoxification or neutralization, or assessing the effects of "pollutants."

"Computer virus" means a computer program or computer code which is entered into your computer system without your knowledge, and which causes a disruption of normal program or computer system operation, but it does not mean an error in design or programming error.

"Covered cause of loss" is defined in the section titled COVERED CAUSES OF LOSS.

"Debris removal expense" means expenses you incur in removing debris of "portable equipment" covered by this policy after direct physical loss or damage caused by or resulting from any "covered cause of loss."

"Emergency operations" means actions:

- 1) Which are urgent responses for protection of property, human life, health or safety; and,
- 2) Which result from the performing or attempting to perform fire fighting services, hazardous materials unit services, first aid, ambulance or rescue squad services, or related services, including the stabilizing or securing of an emergency scene; and,
- 3) Which are sanctioned by (i) a fire department, hazardous materials unit, or first aid, ambulance or rescue squad qualifying as an insured under this policy, or (ii) an officer, "employee" or volunteer member of such organization.

"Emergency situation" means an unexpected situation demanding immediate official action, but does not include response to situations which are your normal or routine activities.

"Employees" means people who work for you in the conduct of your ordinary activities, in return for a salary, wages or commissions. In order to be considered an employee, a person must be subject to your exclusive direction in the performance of his or her activities. Contractors and agents are not considered to be employees.

"Fine arts" means property that is rare or that has historic or artistic value, including antiques, rare articles, etchings, pictures, statuary, marbles, bronzes, porcelains and bric-a-brac.

"Hardware" means computers and their electronic data processing parts and equipment which accept, utilize and process raw information for conversion to machine readable form.

"Inherent vice" means a natural condition of property that causes it to deteriorate or become damaged.

"Latent defects" are faults or weaknesses in property itself.

"Named insured" means the person(s) or organization(s) named in the Declarations.

"Neglect" means your failure to take all reasonable steps to protect your property when it is threatened with loss or damage and to take all reasonable steps to protect your property from further loss after loss or damage occurs.

"Nuclear activity" means loss from nuclear reaction, nuclear radiation or radioactive contamination, whether deliberate or accidental, controlled or uncontrolled, and whether or not the loss is direct or

indirect, proximate or remote, or is contributed to or aggravated by a "covered cause of loss." But it does not include explosion, fire or smoke.

"Permanently attached equipment" means equipment that is welded, bolted or permanently screwed to the dashboard, firewall or body of the "vehicle." Equipment inserted on permanently installed slide brackets with or without the use of setscrews or tension, or portable firefighting and rescue related equipment, shall not be construed as permanently attached equipment

"Personal effects" means property that belongs to an individual and is devoted primarily to that individual's personal use; for example, clothing, eyeglasses, or individually owned portable firefighting, ambulance, or rescue related equipment. Personal effects does not include:

- (1) money and securities;
- (2) "fine arts"
- (3) "aircraft"
- (4) "watercraft," except as provided for in Extension 5. for Coverage A, or in an attached schedule for Coverage B; or
- (5) "vehicles."

"Personal watercraft" means a vessel which uses an inboard motor powering a water jet pump as its primary source of motive power, and which is designed to be operated by a person sitting, standing, or kneeling on the vessel, rather than the conventional manner of sitting or standing inside the vessel.

"Portable equipment" means portable firefighting, ambulance, or rescue related equipment and portable communications equipment commonly used in fire and rescue operations away from your premises. Portable equipment also includes equipment specific to firefighting and rescue related activities, such as training videos, manuals and mannequins, and any trailer whose primary purpose is to transport covered portable equipment. But portable equipment does not include:

- (1) "personal effects" belonging to you or your volunteers or "employees," other than individually owned portable firefighting, ambulance, or rescue related equipment;
- (2) personal property including contents, building fixtures, or building maintenance equipment such as lawn mowers or tractors;
- (3) money and securities;
- (4) "valuable papers and records;"
- (5) televisions, video cassette recorders, and other audio-visual equipment except when such equipment is intended for use off your premises in actual "emergency situations" or in training for "emergency situations;"
- (6) computer hardware or software or other electronic data processing equipment except when such equipment is intended for use off your premises in actual "emergency situations" or in training for "emergency situations;"
- (7) "fine arts;"
- (8) jewelry (except watches);

- (9) "aircraft;"
- (10) "watercraft," except as provided for in Extension 5. for Coverage A or in an attached schedule for Coverage B; or
- (11) "vehicles."

"Pollutants" means any solid, liquid, gaseous or thermal irritant or contaminant, including vapor, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

"Replacement cost" is the amount it would take to replace property with property of the same kind and quality, determined at the time of loss, without deduction for depreciation.

"Resulting fire or explosion" means a fire or explosion that results from any cause of loss other than "war," whether or not that cause of loss itself is covered under this policy.

"Software" includes all forms of computer programs, computer code, and computer readable data employed in your operations. It includes the media on which computer programs, computer code, or computer readable data are electronically or optically recorded, such as magnetic tapes, hard disks, floppy disks, or compact disks.

"Specified cause of loss" means fire, lightning, windstorm or hail, explosion, riot or civil commotion, "vehicles" or "aircraft," smoke, sonic boom, vandalism and malicious mischief, sprinkler leakage, sinkhole collapse or volcanic action.

"Training operations" means activities used to prepare, train, or instruct members of a fire department, hazardous materials unit, or first aid, ambulance or rescue squad in accepted and recognized emergency procedures, including municipal, state and federal standards.

"Types of vehicles" means various categories of vehicles commonly used in firefighting, ambulance or rescue operations, such as pumpers, brush trucks, aerial devices, rescue trucks, or advanced life support ambulances.

"Valuable papers and records" are documents that are written, printed, or otherwise inscribed. These include:

- (1) books, manuscripts, abstracts, maps and drawings;
- (2) film and other photographically produced records, such as slides and microfilm; and
- (3) schematics, pre-plans, and haz mat manuals.

"Vehicle" means a land motor vehicle, trailer or semi-trailer, including "permanently attached equipment," designed for travel on public roads, but does not include mobile equipment or trailers whose primary purpose is to transport covered "portable equipment."

"War" means any of the following:

- (1) Hostile or belligerent action, including action in hindering, combating or defending against an actual, impending or expected attack by:
 - (a) any government or sovereign power (de jure or de facto);

- (b) any military, naval, air or nuclear forces; or
 - (c) any agent of such government, power, authority or forces.
- (2) Insurrection, invasion, rebellion, revolution, civil war, usurped power or action taken by governmental authority in hindering, combating or defending against such an event.

"Watercraft" means any watercraft used in your firefighting, ambulance or rescue related activities, including its motor, parts, accessories and equipment, but does not include "personal watercraft".

"Wear and tear" includes wear, deterioration, rust, corrosion, marring or scratching, erosion, wet or dry rot, and mold.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WATERCRAFT EXTENSION

This endorsement modifies insurance provided under the following:

PORTABLE EQUIPMENT COVERAGE PART

With respect to "watercraft" (including its motor, parts, accessories and equipment) insured under this coverage form, all exclusions in Section III. COVERED CAUSES OF LOSS apply except as amended below:

4. Dishonest acts or omissions done by you, your "employees", volunteers or anyone authorized to act for you, but this exclusion does not apply to a dishonest act or omission done by the captain or crew of your "watercraft" for a fraudulent or dishonest purpose contrary to their duty to you.
7. This exclusion is deleted in its entirety.
9. "Latent defects". We will not pay the cost of replacing or repairing an item having a "latent defect" that causes damage to your insured property; however, resulting damage would be covered.
12. Pollution and contamination, which means the presence, release, discharge or dispersal of "pollutants" unless the damage is itself caused by or results from (1) the use of the "watercraft" in an emergency or (2) the activities of governmental authorities acting for the public welfare to prevent or mitigate a pollution incident, or the threat of a pollution incident.

All other exclusions remain unchanged.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMENDATORY ENDORSEMENT PORTABLE EQUIPMENT

This endorsement modifies insurance provided under the following:

PORTABLE EQUIPMENT COVERAGE PART

The following revisions are made to the Portable Equipment Coverage Form:

1. Coverage for Replacement Chargers for Portable Equipment

The following paragraph is added to **Section IV What We Will Pay**, Paragraph **C. Coverage A Valuation - Guaranteed Replacement Cost** and Paragraph **D. Coverage B Valuation - Replacement Cost**:

When "portable equipment" is replaced and the undamaged associated mobile or stationary chargers for such "portable equipment" are incompatible with the replacement "portable equipment", we will pay to replace the mobile or stationary chargers with chargers that are compatible with the replacement "portable equipment".

2. Member Theft of Portable Equipment

The following extension is added:

Member Theft of "Portable Equipment"

- a. At your request, we will pay up to \$5,000 in the event that:
 - (1) Your "portable equipment" that was assigned to a volunteer or "employee" who is no longer affiliated with or employed by you, has been taken by the volunteer or "employee";
 - (2) You are unable to repossess such "portable equipment"; and
 - (3) You now consider such "portable equipment" to be stolen.
- b. This payment is subject to the following conditions in addition to the policy provisions:
 - (1) You must provide the identity and last known contact information of the volunteer or "employee" suspected of the theft of the "portable equipment".
 - (2) You must provide us with reasonable documentation of your effort to re-claim the "portable equipment".
 - (3) You have notified the police that a law may have been broken.
 - (4) The volunteer or "employee" must have been affiliated with you or employed by you during the policy period.
- c. The most we will pay in any one policy period, regardless of the number of volunteers or "employees" who do not return the "portable equipment" assigned to them is \$10,000.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

UNMANNED AIRCRAFT EXTENSION

This endorsement modifies insurance provided under the following:

PORTABLE EQUIPMENT COVERAGE FORM

A. The following extension is added to Section II. Extensions of Portable Equipment Coverage:

“Unmanned Aircraft”

- a. We will pay for direct physical loss or damage to “unmanned aircraft” owned by you or furnished to you for your regular use, resulting from a “covered cause of loss”.
- b. Coverage is not provided:
 - (1) While “unmanned aircraft” is rented, leased, or loaned to others without an operator who is your “employee” or volunteer; or
 - (2) While being used in any professional or organized racing or demolition contest or stunting activity, or while practicing or preparing for such contest or activity; or
 - (3) While not used in the insured’s “operations”.
- c. Subject to the limit shown in **d.**, below, we will pay the “replacement cost” of the lost or damaged “unmanned aircraft” in excess of the deductible, but not more than the lesser of:
 - (1) The amount which you actually spend to repair or replace the lost or damaged “unmanned aircraft” with “unmanned aircraft” of comparable kind and quality; or
 - (2) The “replacement cost” of the lost or damaged “unmanned aircraft”.
- d. The most we will pay under this extension in any one occurrence is \$25,000.
- e. A \$7033 FRANKLIN STREET

B. The following changes are made to Section VI. Portable Equipment Coverage Definitions:

1. The definition of “aircraft” is replaced with the following:

“Aircraft” means aircraft, other than “unmanned aircraft”, except those that are:

- (1) on the ground for display or instructional purposes;
- (2) not self-propelled; and
- (3) not certified for flight.

However, this does not include detached aircraft engines, parts, accessories and equipment.

2. The following definition is added:

“Unmanned aircraft” means an aircraft weighing 15 pounds or less, that is not:

- a. Designed;
- b. Manufactured; or
- c. Modified after manufacture;

to be controlled directly by a person from within or on the aircraft.

“Unmanned aircraft” includes equipment used with such “unmanned aircraft”, provided such equipment is attached to or essential for its operation. Payload (camera) is included only when in connection to, stored with, or in use with the drone.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

3. Item (3) under the definition of "personal effects" is replaced by the following:
(3) "aircraft" or "unmanned aircraft".
4. Item (9) under the definition of "portable equipment" is replaced by the following:
(9) "aircraft" or "unmanned aircraft", except as provided for in the "Unmanned Aircraft" extension.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES

This endorsement modifies insurance provided under the following:

PORTABLE EQUIPMENT COVERAGE PART

C. Under **SECTION V. LOSS CONDITIONS, 2. Appraisal** is replaced by the following:

If we and you disagree on the extent of the loss or damage or the amount of the loss or damage, either of us can demand that the following procedure be used to settle the amount.

- a. You or we will request in writing that the dispute be submitted to appraisal within 60 days from the time we receive your proof of loss. Each will then select an appraiser and notify the other of that choice within 20 days of the initial request.
- b. The appraisers will select an impartial umpire. If they cannot agree on an umpire within 15 days, either you or we can ask that an umpire be appointed by a judge of the court of record in the county where the property is located.
- c. The appraisers will appraise each item for its value at the time of loss, the extent of the loss or damage, and the amount of loss or damage. If they can't agree, they will submit any differences to the umpire. An agreement in writing by any two of these three will determine the amount of the loss.
- d. You will pay your appraiser and we will pay ours. Each will share equally any other costs of the appraisal and the umpire.
- e. We will not surrender our rights by any act we take relating to an appraisal.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**New York Mutual Aid
PORTABLE EQUIPMENT AND WATERCRAFT
ENDORSEMENT**

**WARNING. THIS POLICY DOES NOT FULLY PROVIDE COVERAGE FOR ALL POTENTIAL
LIABILITY THAT A MUNICIPALITY MAY BE SUBJECT TO UNDER SECTION 209 OF
THE GENERAL MUNICIPAL LAW.**

This endorsement modifies insurance provided under the following:

PORTABLE EQUIPMENT COVERAGE PART

The following Extension is added to **Section II. Extensions of Portable Equipment Coverage**:

Mutual Aid – “Portable Equipment” and Watercraft

- a. We will pay all sums you legally must pay for “loss” to “portable equipment” and watercraft, owned by any municipality, fire district, ambulance district, fire department or fire company which provides you police, ambulance services or fire assistance as authorized under Section 209 of the General Municipal Law of the State of New York.
- b. In addition to the Exclusions listed under **Section III. Covered Causes of Loss**, this insurance does not apply to any expense incurred or material used in connection with the operation of the “portable equipment” or watercraft.
- c. The most we will pay for “loss” in any one occurrence is \$1,000,000. Subject to that limit we will pay the lesser of:
 - 1. The actual cash value of the property sustaining the “loss”; or
 - 2. The cost of repairing or replacing the damaged property with other property of like kind and quality. However, if repair or replacement results in better than like kind or quality, we will not pay for the amount of betterment.For each “loss” the amount that would otherwise be payable will be reduced by \$50. If a “loss” covered under this endorsement also involves a “loss” under Section 209 of the General Municipal Law of the State of New York covered under your Business Auto Coverage issued by us, this reduction is waived.
- d. **Paragraph B. Deductible**, under **Section IV. What We Will Pay** does not apply to this extension.
- e. The following definition applies to this extension:
“Loss” means direct and accidental loss or damage.
- f. All of the Conditions apply to the insurance provided by this endorsement except Other Insurance. The insurance provided by this endorsement is primary insurance.

Named Insured:
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

GENERAL LIABILITY COVERAGE PART DECLARATIONS

Limits of Insurance

Each Occurrence or Medical Incident	\$	
Medical Expense	\$	Any One Person
Personal & Advertising Injury	\$	
General Aggregate	\$	
Products - Completed Operations Aggregate	\$	
Products - Completed Operations are subject to the General Aggregate limit unless indicated otherwise		
Employers' Liability	Not Applicable	
Bodily Injury by Accident	\$	Each Accident
Bodily Injury by Disease	\$	Policy Limit
Bodily Injury by Disease	\$	Each Employee or Volunteer

Estimated Coverage Part Premium:

Taxes, Fees and Surcharges: \$ Not Applicable
in New York

Total Premium:

General Liability Forms

See HARBOR POINT MECHANICAL

EMERGENCY SERVICE ORGANIZATION GENERAL LIABILITY COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this coverage part the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under this coverage part. The words "we", "us" and "our" refer to the company providing this insurance. The word "insured" means any person or organization qualifying as such under **SECTION II. WHO IS AN INSURED.**

Other words and phrases that appear in quotation marks have special meaning. Refer to **SECTION V. DEFINITIONS.**

SECTION I. COVERAGES

Coverage A. Bodily Injury and Property Damage Liability

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "bodily injury" or "property damage" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "bodily injury" or "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "suit" that may result. But:
 - (1) The amount we will pay for damages is limited as described in **SECTION III. LIMITS OF INSURANCE**; and
 - (2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under **COVERAGES A, B or C** or medical expenses under **COVERAGE D.**No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under **SUPPLEMENTARY PAYMENTS – COVERAGES A, B AND C.**
- b. This insurance applies to "bodily injury" and "property damage" only if:
 - (1) The "bodily injury" or "property damage" is caused by an "occurrence" that takes place in the "coverage territory";
 - (2) The "bodily injury" or "property damage" occurs during the policy period; and
 - (3) Prior to the policy period, no officer, director, commissioner or trustee, and no volunteer or "employee" authorized by you to give or receive notice of an "occurrence" or claim, knew or had reason to know that the "bodily injury" or "property damage" had occurred, in whole or in part. If any such persons knew or had reason to know, prior to the policy period, that the "bodily injury" or "property damage" occurred in whole or in part, then any continuation, change or resumption of such "bodily injury" or "property damage" during or after the policy period will be deemed to have been known to have occurred prior to the policy period.
- c. "Bodily injury" or "property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed in paragraph b.(3) above, includes any continuation, change or resumption of that "bodily injury" or "property damage" after the end of the policy period.

- d. "Bodily injury" or "property damage" will be deemed to have been known to have occurred at the earliest time when any insured listed in paragraph b.(3) above:
 - (1) Reports all, or any part, of the "bodily injury" or "property damage" to us or any other insurer;
 - (2) Receives a written or verbal demand or claim for damages because of the "bodily injury" or "property damage"; or
 - (3) Becomes aware by any other means that "bodily injury" or "property damage" has occurred or has begun to occur.
- e. Damages because of "bodily injury" include damages claimed by any person or organization for care, loss of services or death resulting at any time from the "bodily injury".

2. Exclusions Applicable to Coverage A

This insurance does not apply to:

a. **Expected or Intended Injury**

"Bodily injury" or "property damage" expected or intended from the standpoint of the insured. This exclusion does not apply to expected or intended "bodily injury" or "property damage" resulting from reasonable actions taken to protect persons or property.

b. **Contractual Liability**

"Bodily injury" or "property damage" for which the insured is obligated to pay damages by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages:

- (1) That the insured would have in the absence of the contract or agreement; or
- (2) Assumed in a contract or agreement that is an "insured contract", provided the "bodily injury" or "property damage" occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an "insured contract", reasonable attorney fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be damages because of "bodily injury" or "property damage", provided:
 - (a) Liability to such party for, or for the cost of, that party's defense has also been assumed in the same "insured contract"; and
 - (b) Such attorney fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which damages to which this insurance applies are alleged.

c. **Workers' Compensation and Similar Laws**

Any obligation of the insured under a workers' compensation, disability benefits or unemployment compensation law, or any similar law.

d. **Employer's Liability**

"Bodily injury" to:

- (1) An "employee" of the insured arising out of and in the course of employment by the insured, or performing duties related to the conduct of the insured's business; or
- (2) Any volunteer, if you provide or are required to provide any benefits for such volunteer under any workers' compensation law, disability benefits law, or any similar law; or
- (3) The spouse, child, parent, brother or sister of that employee or "volunteer" as a consequence of paragraph (1) or (2) above.

This exclusion applies:

- (a) Whether the insured may be liable as an employer or in any other capacity; and
- (b) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an "insured contract".

e. **Pollution**

Any injury, damage, expense, cost, loss, liability or legal obligation arising out of or in any way related to pollution, however caused. Pollution includes the actual, alleged, or potential presence in or introduction into the environment of any substance if such substance has, or is alleged to have, the effect of making the environment impure, harmful or dangerous. Environment includes any air, land, structure (or the air therein), watercourse or other body of water, including underground water. This exclusion does not apply to:

- (1) "Emergency operations" conducted away from premises owned by or rented to you or any fire department, hazardous materials unit, first aid squad, ambulance squad or rescue squad qualifying as an insured under this coverage part; or
- (2) "Training operations"; or
- (3) Water runoff from the cleaning of equipment used in "emergency operations"; or
- (4) "Bodily injury" if sustained within a building and caused by smoke, fumes, vapor or soot from equipment used to heat that building; or
- (5) "Bodily injury" or "property damage" caused by heat, smoke or fumes from a "hostile fire":
 - (a) At or from premises you own, rent or occupy; or
 - (b) At or from any site or "location" in connection with operations described in (1), (2) or (3) above.

f. **Asbestos**

Any injury, damage, expense, cost, loss, liability or legal obligation arising out of or in any way related to asbestos or asbestos-containing materials, or exposure thereto, or for the costs of abatement, mitigation, removal, elimination or disposal of any of them. This exclusion does not apply to:

- (1) "Bodily injury" or "property damage" arising from; or
- (2) The costs of abatement, removal or disposal of:
asbestos released as a result of "emergency operations" or "training operations" away from premises which are either owned by, rented to, or occupied by any insured.

g. **Lead, Electromagnetic Radiation, Nuclear**

- (1) Any injury, damage, expense, cost, loss, liability or legal obligation arising out of or in any way related to:
 - (a) The toxic properties of lead, or any material or substance containing lead; or
 - (b) Electromagnetic radiation;
or exposure thereto, or for the costs of abatement, mitigation, removal, elimination or disposal of any of them.
- (2) Any loss, cost or expense arising out of any actual, alleged or threatened injury or damage to any person or property from any radioactive matter or nuclear material.

h. **Aircraft, Auto or Watercraft**

"Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others of any aircraft, "auto" or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and "loading or unloading". This exclusion does not apply to:

- (1) A watercraft while ashore on premises you own or rent;
- (2) A watercraft you do not own that is not being used to carry persons or property for a charge;
- (3) Liability assumed under any "insured contract" for the ownership, maintenance or use of aircraft or watercraft;
- (4) "Bodily injury" or "property damage" arising out of the operation of any of the equipment listed in paragraph f.(2) or f.(3) of the definition of "mobile equipment"; or
- (5) A watercraft you own that is:
 - (a) Powered by a motor or combination of motors of 100 horsepower or less; or
 - (b) Not powered by a motor; or
 - (c) A "personal watercraft".

i. **Mobile Equipment**

"Bodily injury" or "property damage" arising out of:

- (1) The transportation of "mobile equipment" by an "auto" owned or operated by or rented or loaned to any insured; or
- (2) The use of "mobile equipment" in, or while in practice for, or while being prepared for, any prearranged racing, speed, demolition, or stunting activity.

j. **War**

"Bodily injury" or "property damage", however caused, arising directly or indirectly out of:

- (1) War, including undeclared or civil war; or
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

k. **Damage To Property**

"Property damage" to:

- (1) Property you or any insured owns, rents, or occupies;
- (2) Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;
- (3) Property loaned to you or any insured;
- (4) Personal property in the care, custody or control of the insured;
- (5) That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the "property damage" arises out of those operations; or
- (6) That particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraphs (1), (3) and (4) of this exclusion do not apply to "property damage" (other than damage by fire) to premises, including the contents of such premises, rented or loaned to you for a period of 30 or fewer consecutive days. The Each Occurrence or Medical Incident Limit shown in the Declarations will apply to this coverage.

Paragraphs (3), (4), (5) and (6) of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraph (4) of this exclusion does not apply to "property damage" to personal property belonging to anyone receiving service from any insured because of loss by theft, physical damage or disappearance of such property during the period when volunteers or "employees" of the insured arrive on the scene or while they are rendering service to others and ending when they either leave the scene, complete their service, or transfer care of a transported patient to others. This insurance does not apply to that portion of any loss for which the Named Insured has other valid and collectible insurance. The limit of the company's liability is the Each Occurrence or Medical Incident Limit stated in the Declarations, subject to a \$100 deductible each "occurrence".

Paragraphs (5) and (6) of this exclusion do not apply to "property damage" resulting from actions taken to protect persons or property.

Paragraph (6) of this exclusion does not apply to "property damage" included in the "products-completed operations hazard".

l. **Personal and Advertising Injury**

"Bodily injury" arising out of "personal and advertising injury".

m. **Sexual Abuse**

"Bodily injury" arising out of the "sexual abuse" of any person. However, this exclusion shall not apply to the Named Insured if no officer, director, commissioner or trustee of the Named Insured knew or had reason to know of the "sexual abuse". Also, we will defend an insured for covered civil action subject to the other terms of this coverage part until either a judgment or final adjudication establishes such an act, or the insured confirms such act.

n. **Professional Health Care Services**

Damages arising or allegedly arising out of providing or failing to provide "professional health care services".

o. **Employment Practices**

"Bodily injury" or "property damage" arising out of your "employment practices".

p. **Product Recall**

Damages claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

(1) "Your product";

(2) "Your work"; or

(3) "Impaired property";

if such product, work, or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

Exclusions c. through p. do not apply to damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner. The Each Occurrence or Medical Incident Limit shown in the Declarations will apply to this coverage.

Coverage B. Personal and Advertising Injury Liability

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "personal and advertising injury" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "personal and advertising injury" to which this insurance does not apply. We may, at our discretion, investigate any offense and settle any claim or "suit" that may result. But:

(1) The amount we will pay for damages is limited as described in **SECTION III – LIMITS OF INSURANCE**; and

(2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under **COVERAGES A, B or C** or medical expenses under **COVERAGE D**.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under **SUPPLEMENTARY PAYMENTS – COVERAGES A, B AND C**.

- b. This insurance applies to "personal and advertising injury" caused by an offense arising out of your business but only if the offense was committed in the "coverage territory" during the policy period.

2. Exclusions Applicable to Coverage B

This insurance does not apply to:

a. **Knowing Violation of the Rights of Another**

"Personal and advertising injury" caused by or at the direction of the insured with the knowledge that the act would violate the rights of another and would inflict "personal and advertising injury".

b. **Material Published with Knowledge of Its Falsity**

"Personal and advertising injury" arising out of oral or written publication of material, if done by or at the direction of the insured with knowledge of its falsity.

c. **Material Published Prior to the Policy Period**

"Personal and advertising injury" arising out of oral or written publication of material whose first publication took place before the beginning of the policy period.

d. **Criminal Acts**

"Personal and advertising injury" arising out of a criminal act committed by or at the direction of any insured.

WINSLOW LOGISTICS

"Personal and advertising injury" for which the insured has assumed liability in a contract or agreement. This exclusion does not apply to liability for damages that the insured would have in the absence of the contract or agreement.

f. **Breach of Contract**

"Personal and advertising injury" arising out of a breach of contract, except an implied contract to use another's advertising idea in your "advertisement".

g. **Quality or Performance of Goods**

"Personal and advertising injury" arising out of the failure of goods, products or services to conform with any statement of quality or performance made in your "advertisement".

h. **Wrong Description of Prices**

"Personal and advertising injury" arising out of the wrong description of the price of goods, products or services stated in your "advertisement".

i. **Infringement of Copyright, Patent, Trademark or Trade Secret**

"Personal and advertising injury" arising out of the infringement of copyright, patent, trademark, trade secret or other intellectual property rights. However, this exclusion does not apply to infringement, in your "advertisement", of copyright, trade dress or slogan.

j. **Pollution**

"Personal and advertising injury" arising out of or in any way related to pollution, however caused. Pollution includes the actual, alleged, or potential presence in or introduction into the environment of any substance if such substance has, or is alleged to have, the effect of making the environment impure, harmful or dangerous. Environment includes any air, land, structure (or the air therein), watercourse or other body of water, including underground water.

k. **Professional Health Care Services**

"Personal and advertising injury" arising or allegedly arising out of providing or failing to provide "professional health care services".

l. **Employment Practices**

"Personal and advertising injury" arising out of your "employment practices".

m. **Asbestos**

Any injury, expense, cost, loss, liability or legal obligation arising out of or in any way related to asbestos or asbestos-containing materials.

n. **Lead, Electromagnetic Radiation, Nuclear**

- (1) Any injury, expense, cost, loss, liability or legal obligation arising out of or in any way related to:
 - (a) The toxic properties of lead, or any material or substance containing lead; or
 - (b) Electromagnetic radiation;or exposure thereto, or for the costs of abatement, mitigation, removal, elimination or disposal of any of them.
- (2) Any loss, cost or expense arising out of any actual, alleged or threatened injury to any person or property from any radioactive matter or nuclear material.

o. **War**

"Personal and advertising injury", however caused, arising directly or indirectly out of:

- (1) War, including undeclared or civil war; or
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

p. **Sexual Abuse**

"Personal and advertising injury" arising out of the "sexual abuse" of any person.

Coverage C. Professional Health Care Liability

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of injury arising out of a "medical incident". We will have the right and duty to defend any claim or "suit" seeking those damages. We may at our discretion investigate any "medical incident" and settle any claim or "suit" that may result. But:
 - (1) The amount we will pay for damages is limited as described in **SECTION III. LIMITS OF INSURANCE**; and
 - (2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements.No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided under **SUPPLEMENTARY PAYMENTS – COVERAGES A, B AND C** or medical expenses under **COVERAGE D**.
- b. This insurance applies only if the damages are caused by a "medical incident" that takes place:
 - (1) During the policy period; and
 - (2) In the "coverage territory".

2. Exclusions Applicable to Coverage C

All exclusions under **COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY** apply to this **COVERAGE C**, except that exclusion n. **Professional Health Care Services** under **COVERAGE A** shall not apply.

All exclusions under **COVERAGE B. PERSONAL AND ADVERTISING INJURY LIABILITY** apply to this **COVERAGE C**, except that exclusion k. **Professional Health Care Services** under **COVERAGE B** shall not apply.

In addition, this insurance does not apply to:

a. **Medical Command via Telecommunications Device**

Any physician providing or failing to provide on-line medical direction or medical command via telecommunication to emergency medical personnel.

b. **Criminal Acts**

Injury arising out of a criminal act (except for "sexual abuse") committed by the insured or anyone for whom the insured is legally responsible. However, we will defend the insured for covered civil action subject to the other terms of this coverage part until either a judgment or final adjudication establishes such act, or the insured confirms such act.

Coverage D. Medical Expense

1. Insuring Agreement

a. We will pay medical expenses as described below for "bodily injury" caused by an accident:

- (1) On premises you own or rent;
- (2) On ways next to premises you own or rent; or
- (3) Because of your operations;

provided that:

- (a) The accident takes place in the "coverage territory" and during the policy period;
- (b) The expenses are incurred and reported to us within one year of the date of the accident; and
- (c) The injured person submits to examination, at our expense, by physicians of our choice as often as we reasonably require.

b. We will make these payments regardless of fault. These payments will not exceed the applicable limit of insurance. We will pay reasonable expenses for:

- (1) First aid administered at the time of an accident;
- (2) Necessary medical, surgical, x-ray and dental services, including prosthetic devices; and
- (3) Necessary ambulance, hospital, professional nursing and funeral services.

2. Exclusions Applicable to Coverage D

We will not pay expenses for "bodily injury":

a. **Any Insured**

FAIRMOUNT

b. **Hired Person**

To a person hired to do work for or on behalf of any insured or a tenant of any insured.

c. **Injury on Normally Occupied Premises**

To a person injured on that part of premises you own or rent that the person normally occupies.

d. **Workers' Compensation and Similar Laws**

To a person, whether or not an "employee" of any insured, if benefits for the "bodily injury" are payable or must be provided under a workers' compensation or disability benefits law or a similar law.

e. **Athletic Activities**

To a person injured while taking part in athletics.

f. **Products – Completed Operations Hazard**

Included within the "products-completed operations hazard".

g. Professional Health Care Services

To any person for "professional health care services" provided by you.

h. Coverage A

Excluded under **COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY.**

Supplementary Payments – Coverages A, B and C

1. We will pay, with respect to any claim we investigate or settle, or any "suit" against an insured we defend:
 - a. All expenses we incur.
 - b. Up to \$250 for cost of bail bonds required because of accidents or traffic law violations arising out of the use of any vehicle to which the Bodily Injury Liability coverage applies. We do not have to furnish these bonds.
 - c. The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.
 - d. All reasonable expenses incurred by the insured at our request to assist us in the investigation or defense of the claim or "suit", including actual loss of earnings up to \$300 a day because of time off from work.
 - e. All costs taxed against the insured in the "suit".
 - f. Prejudgment interest awarded against the insured on that part of the judgment we pay. If we make an offer to pay the applicable limit of insurance, we will not pay any prejudgment interest based on that period of time after the offer.
 - g. All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

These payments will not reduce the limits of insurance.

2. If we defend an insured against a "suit" and an indemnitee of the insured is also named as a party to the "suit", we will defend that indemnitee if all of the following conditions are met:
 - a. The "suit" against the indemnitee seeks damages for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an "insured contract";
 - b. This insurance applies to such liability assumed by the insured;
 - c. The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured TALLGRASS LOGISTICS
 - d. The allegations in the "suit" and the information we know about the "occurrence" are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitee;
 - e. The indemnitee and the insured ask us to conduct and control the defense of that indemnitee against such "suit" and agree that we can assign the same counsel to defend the insured and the indemnitee; and
 - f. The indemnitee:
 - (1) Agrees in writing to:
 - (a) Cooperate with us in the investigation, settlement or defense of the "suit";
 - (b) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "suit";
 - (c) Notify any other insurer whose coverage is available to the indemnitee; and
 - (d) Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and
 - (2) Provides us with written authorization to:
 - (a) Obtain records and other information related to the "suit"; and
 - (b) Conduct and control the defense of the indemnitee in such "suit".

So long as the above conditions are met, attorneys' fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as **SUPPLEMENTARY PAYMENTS**. Notwithstanding the provisions of paragraph 2.b.(2) of **COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY**, such payments will not be deemed to be damages for "bodily injury" and "property damage" and will not reduce the limits of insurance.

Our obligation to defend an insured's indemnitee and to pay for attorneys' fees and necessary litigation expenses as **SUPPLEMENTARY PAYMENTS** ends when:

- a. We have used up the applicable limit of insurance in the payment of judgments or settlements; or
- b. The conditions set forth above, or the terms of the agreement described in paragraph f. above, are no longer met.

SECTION II. WHO IS AN INSURED

1. If you are:
 - a. An organization other than a partnership, joint venture or limited liability company, you are an insured.
 - b. A partnership or joint venture, you are an insured. Your members and your partners are also insureds, but only within the course and scope of your operations.
 - c. A limited liability company, you are an insured. Your members are also insureds, but only within the course and scope of your operations. Your managers are insureds, but only within the course and scope of your operations.
2. In addition to you, each of the following is an insured:
 - a. **Volunteers and Employees.** Your volunteers, "employees", elected or appointed officers, directors, commissioners or trustees, but only for acts within the course and scope of their employment by you, membership with you or authorized duties on your behalf.
 - b. **Medical Directors.** Physicians who are your medical directors, but only for acts within the course and scope of their medical director duties on your behalf.
 - c. **Good Samaritans.** Your volunteers, "employees", elected or appointed officers, directors, commissioners or trustees while acting as a Good Samaritan independently of his or her activities on your behalf, but only when he or she encounters the scene of an emergency requiring sudden action. In no event will such person who responds to the scene of an emergency with or for any other emergency service organization be an insured.
 - d. **Owners of Commandeered Equipment.** The owner of commandeered equipment other than an "auto" is an insured while the equipment is in your temporary care, custody or control and is being used as part of an "emergency operation".
 - e. **Real Estate Managers.** Any person or any organization while acting as your real estate manager.
 - f. **Blanket Additional Insureds.** Any person or organization required to be an additional insured under an "insured contract", if agreed to by you prior to the "bodily injury", "property damage", "personal and advertising injury", or "medical incident", but only with respect to liability arising out of your premises or operations.
3. **Mobile Equipment.** With respect to "mobile equipment" registered in your name under any motor vehicle registration law, any person is an insured while driving such equipment along a public highway with your permission. Any other person or organization responsible for the conduct of such person is also an insured, but only with respect to liability arising out of the operation of the equipment, and only if no other insurance of any kind is available to that person or organization for this liability. However, no person or organization is an insured with respect to "property damage" to property owned by, rented to, in the charge of or occupied by you or the employer of any person who is an insured NORTHVALE WORKS

4. **New Organizations.** Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:
- Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier;
 - COVERAGE A** does not apply to "bodily injury" or "property damage" that occurred before you acquired or formed the organization;
 - COVERAGE B** does not apply to "personal and advertising injury" arising out of an offense committed before you acquired or formed the organization; and
 - COVERAGE C** does not apply to a "medical incident" that took place before you acquired or formed the organization.

No person or organization is an insured with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

SECTION III. LIMITS OF INSURANCE

- The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:
 - Insureds;
 - Claims made or "suits" brought; or
 - Persons or organizations making claims or bringing "suits".
- The General Aggregate Limit is the most we will pay for the sum of:
 - Medical expenses under **COVERAGE D**;
 - Damages under **COVERAGE A**, except damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard";
 - Damages under **COVERAGE B**; and
 - BLUE FORK MOTORWORKSfor each Named Insured shown in the Declarations and each "location" owned by or rented to you.
- The Products - Completed Operations Aggregate Limit is the most we will pay under **COVERAGE A** for damages because of "bodily injury" and "property damage" included in the "products-completed operations hazard", for each Named Insured shown in the Declarations.
- Subject to 2. above, the Personal and Advertising Injury Limit is the most we will pay under **COVERAGE B** for the sum of all damages because of all "personal and advertising injury" sustained by any one person or organization.
- Subject to 2. or 3. above, whichever applies, the Each Occurrence or Medical Incident Limit is the most we will pay for the sum of:
 - Damages under **COVERAGES A and C**; and
 - Medical expenses under **COVERAGE D**;because of all "bodily injury" and "property damage" arising out of any one "occurrence" and all damages arising out of any one "medical incident".
- Subject to 5. above, the Each Occurrence or Medical Incident Limit is the most we will pay under **COVERAGE A** for damages because of "property damage" to any one premises, while rented to you, or in the case of damage by fire, while rented to you or temporarily occupied by you with permission of the owner.
- Subject to 5. above, the Medical Expense Limit is the most we will pay under **COVERAGE D** for all medical expenses because of "bodily injury" sustained by any one person.

The Limits of Insurance of this coverage part apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

SECTION IV. CONDITIONS

The following conditions apply in addition to the Common Policy Conditions.

1. Bankruptcy

Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this coverage part.

2. Duties in the Event of an Occurrence, Offense, Medical Incident, Claim or Suit

- a. You must see to it that we are notified as soon as practicable of an "occurrence", offense or "medical incident" which may result in a claim or "suit". To the extent possible, notice should include:
 - (1) How, when and where the "occurrence", offense or "medical incident" took place;
 - (2) The names and addresses of any injured persons and witnesses; and
 - (3) The nature and location of any injury or damage arising out of the "occurrence", offense or "medical incident".
- b. If a claim is made or "suit" is brought against any insured, you must:
 - (1) Immediately record the specifics of the claim or "suit" and the date received; and
 - (2) Notify us as soon as practicable.You must see to it that we receive written notice of the claim or "suit" as soon as practicable.
- c. You and any other involved insured must:
 - (1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "suit";
 - (2) Authorize us to obtain records and other information;
 - (3) Cooperate with us in the investigation or settlement of the claim or defense against the "suit"; and
 - (4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of injury or damage to which this insurance may also apply.
- d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.
- e. If you report an "occurrence", offense or "medical incident" to an insurer providing other than General Liability insurance, which later develops into a General Liability claim covered under this coverage part, failure to report such "occurrence", offense or "medical incident" to us at the time of the "occurrence", offense or "medical incident" shall not be deemed in violation of these conditions. However, you shall give notification to us, as soon as is reasonably possible, that the "occurrence", offense or "medical incident" is a General Liability claim.
- f. Knowledge of an "occurrence", offense or "medical incident" by any of your agents, volunteers or "employees" shall not constitute knowledge by you unless one of your officers or anyone responsible for administering your insurance program has received a notification from the agent, volunteer or "employee".

3. Legal Action Against Us

No person or organization has a right under this coverage part:

- a. To join us as a party or otherwise bring us into a "suit" asking for damages from an insured; or
- b. To sue us on this coverage part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this coverage part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

4. Other Insurance

If other valid and collectible insurance is available to the insured volunteer, "employee", elected or appointed officer, director, commissioner, trustee, medical director or owner of commandeered equipment for a loss we cover under **COVERAGES A, B or C** of this form, our insurance is primary, with no consideration or contribution with other insurance, except with respect to any medical malpractice liability insurance available to a physician who is acting on your behalf by providing on-site medical treatment of a person. With respect to said medical malpractice liability insurance, our insurance is excess over that coverage.

If other valid and collectible insurance is available to the insured, other than volunteers, "employees", elected or appointed officers, directors, commissioners, trustees, medical directors or owners of commandeered equipment, for a loss we cover under **COVERAGES A, B or C** of this form, our obligations are limited as follows:

a. Primary Insurance

This insurance is primary except when b. below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in c. below.

b. Excess Insurance

This insurance is excess over:

- (1) Any of the other insurance, whether primary, excess, contingent or on any other basis:
 - (a) That is fire, extended coverage, builder's risk, installation risk or similar coverage for "your work";
 - (b) That is fire insurance for premises rented to you or temporarily occupied by you with permission of the owner;
 - (c) That is insurance purchased by you to cover your liability as a tenant for "property damage" to premises rented to you or temporarily occupied by you with permission of the owner;
 - (d) That is insurance covering your liability for "bodily injury" or "property damage" arising out of the providing, serving or selling of alcoholic beverages to others;
 - (e) That is insurance covering your liability for "bodily injury" or "property damage" arising out of the igniting or discharging of fireworks, including but not limited to firecrackers, aerial or ground displays, in conjunction with any demonstration or show conducted or sponsored by you. However, this coverage shall not be excess should the "bodily injury" or "property damage" result from an emergency response you provide in response to an emergency arising out of fireworks; or
 - (f) If the loss arises out of the maintenance or use of aircraft or watercraft to the extent not subject to exclusion h. of **COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY**.

- (2) Any other primary insurance, including pools or self-insurance, covering your liability for damages arising out of the premises or operations for which you have been added as an additional insured.

When this insurance is excess, we will have no duty under **COVERAGES A, B or C** to defend the insured against any "suit" if any other insurer has a duty to defend the insured against that "suit". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

- (a) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and
- (b) The total of all deductible and self-insured amounts under all that other insurance.

We will share the remaining loss, if any, with any other insurance that is not described in this excess insurance provision and was not bought specifically to apply in excess of the limits of insurance shown in the Declarations of this coverage part.

c. Method Of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

5. Representations

By accepting this policy, you agree:

- a. The information in the Declarations is accurate and complete;
- b. The information is based upon representations you made to us; and
- c. We have issued this policy in reliance upon your representations.

Your failure to disclose all hazards existing as of the inception date of the policy shall not prejudice you with respect to the coverage afforded, provided such failure or omission is not intentional. This coverage part is void if any material fact or circumstance relating to this insurance is intentionally omitted or misrepresented.

6. Separation Of Insureds

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this coverage part to the first Named Insured, this insurance applies:

- a. As if each Named Insured were the only Named Insured; and
- b. Separately to each insured against whom claim is made or "suit" is brought.

7. RIDGEWAY MOTORWORKS

If the insured has rights to recover all or part of any payment we have made under this coverage part, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "suit" or transfer those rights to us and help us enforce them.

8. When We Do Not Renew

If we decide not to renew this coverage part, we will mail or deliver to the first Named Insured shown in the Declarations written notice of the nonrenewal not less than 30 days before the expiration date. If notice is mailed, proof of mailing will be sufficient proof of notice.

SECTION V. DEFINITIONS

1. "Advertisement" means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters.
2. "Auto" means a land motor vehicle, trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment. But "auto" does not include "mobile equipment".
3. "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time.
4. "Coverage territory" means:
 - a. The United States of America (including its territories and possessions), Puerto Rico and Canada;
 - b. International waters or airspace, provided the injury or damage does not occur in the course of travel or transportation to or from any place not included in a. above; or
 - c. All other parts of the world if:
 - (1) The injury or damage arises out of:
 - (a) Goods or products made or sold by you in the territory described in a. above; or
 - (b) The activities of a person whose home is in the territory described in a. above, but is away for a short time on your business; and
 - (2) The insured's responsibility to pay damages is determined in a "suit" on the merits, in the territory described in a. above or in a settlement we agree to.
5. "Emergency operations" means actions:
 - a. Which are urgent responses for protection of property, human life, health or safety; and
 - b. Which result from the performing or attempting to perform firefighting services, hazardous materials unit services, first aid, ambulance or rescue squad services, or related services, including the stabilizing or securing of an emergency scene; and
 - c. Which are sanctioned by:
 - (1) A fire department, hazardous materials unit, or first aid, ambulance or rescue squad qualifying as an insured under this coverage part; or
 - (2) An officer, volunteer member or "employee" of such organization.
6. "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".
7. "Employment practices" means an actual or alleged improper employment related practice, policy, act or omission involving an actual, prospective, or former volunteer or "employee", including:
 - a. Failing to hire or refusing to hire;
 - b. Wrongful dismissal, discharge, or termination of employment or membership, whether actual or constructive;
 - c. Wrongful deprivation of a career opportunity, or failure to promote;
 - d. Wrongful discipline of volunteers or "employees";
 - e. Negligent evaluation of volunteers or "employees";
 - f. Retaliation against volunteers or "employees" for the exercise of any legally protected right or for engaging in any legally protected activity;
 - g. Failure to adopt adequate workplace or employment-related policies and procedures;
 - h. Harassment, including "sexual harassment"; or

- i. Violation of any federal, state or local laws (whether common law or statutory) concerning employment or discrimination in employment.
8. "Hostile fire" means one which becomes uncontrollable or breaks out from where it was intended to be.
9. "Impaired property" means tangible property, other than "your product" or "your work", that cannot be used or is less useful because:
- a. It incorporates "your product" or "your work" that is known or thought to be defective, deficient, inadequate or dangerous; or
 - b. You have failed to fulfill the terms of a contract or agreement;
- if such property can be restored to use by:
- (1) The repair, replacement, adjustment or removal of "your product" or "your work"; or
 - (2) Your fulfilling the terms of the contract or agreement.
10. "Insured contract" means:
- a. A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract";
 - b. A sidetrack agreement;
 - c. Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
 - d. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
 - e. An elevator maintenance agreement;
 - f. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for "bodily injury" or "property damage" to a third person or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.
- Paragraph f. does not include that part of any contract or agreement:
- (1) That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, road-beds, tunnel, underpass or crossing;
 - (2) That indemnifies an architect, engineer or surveyor for injury or damage arising out of:
 - (a) Preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
 - (b) Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or
 - (3) Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render professional services, including those listed in (2) above and supervisory, inspection, architectural or engineering activities.
11. "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".
12. "Loading or unloading" means the handling of property:
- a. After it is moved from the place where it is accepted for movement into or onto an aircraft, watercraft or "auto";
 - b. While it is in or on an aircraft, watercraft or "auto"; or
 - c. While it is being moved from an aircraft, watercraft or "auto" to the place where it is finally delivered;

but "loading or unloading" does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or "auto".

13. "Location" means premises involving the same or connecting lots, or premises whose connection is interrupted only by a street, roadway, waterway or right-of-way of a railroad.
14. "Medical incident" means any act, error or omission in the rendering of or failure to render "professional health care services" by you or by anyone for whose "professional health care services" you are legally responsible. Any such act, error or omission, together with all related acts, errors or omissions in the furnishing of such services to any one person, shall be considered one "medical incident".
15. "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:
 - a. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
 - b. Vehicles maintained for use solely on or next to premises you own or rent;
 - c. Vehicles that travel on crawler treads;
 - d. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:
 - (1) Power cranes, shovels, loaders, diggers or drills; or
 - (2) Road construction or resurfacing equipment such as graders, scrapers or rollers;
 - e. Vehicles not described in a., b., c. or d. above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:
 - (1) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment; or
 - (2) Cherry pickers and similar devices used to raise or lower workers;
 - f. Vehicles not described in a., b., c. or d. above maintained primarily for purposes other than the transportation of persons or cargo.

However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":

- (1) Equipment designed primarily for:
 - (a) Snow removal;
 - (b) Road maintenance, but not construction or resurfacing; or
 - (c) Street cleaning;
 - (2) Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and
 - (3) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment.
16. "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.
17. "Personal and advertising injury" means injury, including consequential "bodily injury", arising out of one or more of the following offenses:
 - a. False arrest, detention or imprisonment;
 - b. Malicious prosecution;
 - c. The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, or any other interference with real property rights;
 - d. Oral or written publication in any manner of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services;
 - e. Oral or written publication in any manner of material that violates a person's right of privacy;
 - f. The use of another's advertising idea in your "advertisement"; or
 - g. Infringing upon another's copyright, trade dress or slogan in your "advertisement".

18. "Personal watercraft" means a vessel which uses an inboard motor powering a water jet pump as its primary source of motive power, and which is designed to be operated by a person sitting, standing, or kneeling on the vessel, rather than the conventional manner of sitting or standing inside the vessel.
19. "Products-completed operations hazard":
- a. Includes all "bodily injury" and "property damage" occurring away from premises you own or rent and arising out of "your product" or "your work" except:
 - (1) Products that are still in your physical possession; or
 - (2) Work that has not yet been completed or abandoned. However, "your work" will be deemed completed at the earliest of the following times:
 - (a) When all of the work called for in your contract has been completed.
 - (b) When all of the work to be done at the job site has been completed if your contract calls for work at more than one job site.
 - (c) When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.
 - b. Does not include "bodily injury" or "property damage" arising out of:
 - (1) The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by you, and that condition was created by the "loading or unloading" of that vehicle by any insured;
 - (2) The existence of tools, uninstalled equipment or abandoned or unused materials; or
 - (3) Products or operations for which the classification, listed in the Declarations or in a policy schedule, states that products-completed operations are subject to the General Aggregate Limit.
20. "Professional health care services" means:
- a. Providing medical or nursing services;
 - b. Providing professional services of any other health care professional, including emergency medical technicians and paramedics;
 - c. Furnishing or dispensing drugs or medical, surgical or dental supplies or appliances;
 - d. Handling of patients:
 - (1) From the place where they are accepted for movement into or onto the means of transport,
 - (2) During transport, and
 - (3) From the means of transport to the place where they are finally delivered;
 - e. Dispatching of, including the failure or refusal to dispatch, personnel to provide any of the above services;
 - f. Serving on, or carrying out the orders of, a health care accreditation board or similar professional board or committee; and
 - g. Establishing medical protocol, creating medical training curricula, providing medical training, conducting medical quality assurance programs, and carrying out similar duties.
21. "Property damage" means:
- a. Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or
 - b. Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the "occurrence" that caused it.
22. "Sexual abuse" means any actual, attempted or alleged sexual conduct by a person, or by persons acting in concert, which causes injury. "Sexual abuse" includes sexual molestation, sexual assault, sexual exploitation, or sexual injury, but does not include "sexual harassment".

23. "Sexual harassment" means any actual, attempted or alleged unwelcome sexual advances, requests for sexual favors, or other conduct of a sexual nature by a person, or by persons acting in concert, which causes injury. "Sexual harassment" includes:
- The above conduct when submission to or rejection of such conduct is made either explicitly or implicitly a condition of a person's employment, or a basis for employment decisions affecting a person; or
 - The above conduct when such conduct has the purpose or effect of unreasonably interfering with a person's work performance or creating an intimidating, hostile or offensive work environment.
24. "Suit" means a civil proceeding in which damages because of "bodily injury", "property damage", "personal and advertising injury", or injury arising out of a "medical incident" to which this insurance applies are alleged. "Suit" includes:
- An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or
 - Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured CLEARWATER FABRICATION
- But "suit" does not mean any ethical conduct review or enforcement action, or disciplinary review or enforcement action.
25. "Temporary worker" means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.
26. "Training operations" means activities used to prepare, train, or instruct members of a fire department, hazardous materials unit, or a first aid, ambulance or rescue squad in accepted and recognized emergency procedures, including municipal, state and federal standards.
27. "Your product" means:
- Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:
 - You;
 - Others trading under your name; or
 - A person or organization whose business or assets you have acquired; and
 - Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.
- "Your product" includes:
- Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product"; and
 - The providing of or failure to provide warnings or instructions.
- "Your product" does not include vending machines or other property rented to or located for the use of others but not sold.
28. "Your work" means:
- Work or operations performed by you or on your behalf; and
 - Materials, parts or equipment furnished in connection with such work or operations.
- "Your work" includes:
- Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your work"; and
 - The providing of or failure to provide warnings or instructions.

EXCLUSION ELECTRONIC INFORMATION SECURITY EVENT

This endorsement modifies insurance provided under the following:

GENERAL LIABILITY COVERAGE PART

1. The following exclusion applies to **Coverage A. Bodily Injury And Property Damage Liability, Coverage B. Personal and Advertising Injury Liability, Coverage C. Professional Health Care Liability**, and any additional coverage that is provided under this General Liability Coverage Part:

This insurance does not apply to:

Any injury, damage, expense, cost, loss, liability, or legal obligation arising out of or in any way related to an "electronic information security event".

2. The following definitions are added:

"Electronic information security event" means:

- (1) Transmission of malware from your "computer system" to a third party.
- (2) The inability of an authorized user to access your web site or your "computer system" because of a denial of service attack.
- (3) A "personal identity event", but this is limited to information that is obtained or released directly from:
 - (a) Your "computer system"; or
 - (b) The "computer system" of an entity that has such information under a formal agreement with you.
- (4) A "corporate privacy event", but this is limited to information that is obtained or released directly from:
 - (a) Your "computer system"; or
 - (b) The "computer system" of an entity that has such Information under a formal agreement with you.

As used in this definition, a denial of service attack means an intentional attack on a web site or a computer network that prevents or slows down access to the web site or computer network.

"Computer system" means the following:

- (1) Computers, including Personal Digital Assistants (PDAs) and other transportable or hand held devices, electronic storage devices and related peripheral components;
 - (2) Systems and applications software;
 - (3) Communications networks (including the internet, intranets, extranets or virtual private networks) to the extent used by the items in (1) and (2) above;
- by which "electronic data" is collected, transmitted, processed, stored or retrieved; and
- (4) "Computer system" includes "electronic data" that is:
 - (1) Stored on any of the items described in item (1) above; or
 - (2) Temporarily outside of the "computer system" for use by an insured or an employee of an entity that has such information under a formal agreement with you.

“Electronic data” means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment. This includes such information, facts or programs only while they are in an electronic format.

“Personal identity event” means:

- (1)** Unauthorized disclosure by you of “personally identifiable information” or your failure to protect “personally identifiable information” from misappropriation.
- (2)** Failure by you to disclose or warn of an actual or potential disclosure or misappropriation of “personally identifiable information”, but only if this policy applies to such disclosure or misappropriation and it resulted directly from **(1)** above; or
- (3)** Violation of any federal or state privacy statute addressing disclosure or misappropriation of “personally identifiable information”, but only if:
 - (a)** This policy applies to such disclosure or misappropriation and it resulted directly from **(1)** or **(2)** above; and
 - (b)** The violation is not willful.

“Personally identifiable information” means any of the following in your care, custody or control:

- (1)** Information from which an individual may be uniquely and reliably identified or contacted, including an individual's name, telephone number, social security number, drivers license number, state identification number, account relationships, account numbers, account balances, account histories, access codes, and passwords;
- (2)** Information concerning an individual that would be considered nonpublic personal information within the meaning of Title V of the Gramm-Leach Bliley Act of 1999 as implemented and amended; and
- (3)** Information concerning an individual that would be considered protected health information within the Health Insurance Portability and Accountability Act of 1996 as implemented and amended.

“Corporate privacy event” means:

- (1)** Unauthorized disclosure by you of “confidential corporate information” or your failure to protect “confidential corporate information” from misappropriation;
- (2)** Failure by you to disclose or warn of an actual or potential disclosure or misappropriation of “confidential corporate information”, but only if this policy applies to such disclosure or misappropriation and it resulted directly from **(1)** above; or
- (3)** Violation of any federal or state privacy statute addressing disclosure or misappropriation of “confidential corporate information”, but only if:
 - (a)** This policy applies to such disclosure or misappropriation and it resulted directly from **(1)** or **(2)** above; and
 - (b)** The violation is not willful.

“Confidential corporate information” means any commercial trade secret, data, design, interpretation, forecast, formula, method, practice, process record, report or other item of information of a non-insured third party, and which is:

- (1)** In your care, custody or control;
- (2)** Not available to the general public; and
- (3)**
 - (a)** Provided to you under a mutually agreed to written confidentiality/non-disclosure agreement; or
 - (b)** Marked confidential or otherwise specifically designated in writing as confidential by such third party.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**AMENDMENT TO POLLUTION EXCLUSION -
CLASS B FIREFIGHTING FOAM**

This endorsement modifies insurance provided under the following:

GENERAL LIABILITY COVERAGE PART

The following changes are made to **SECTION V – DEFINITIONS**:

1. The following is added to the definition of “emergency operations”:

“Emergency operations” does not include the use of a Class B firefighting foam containing any “PFAS” unless such use meets all standards of any statute, ordinance, regulation or license requirement of any federal, state or local government having application to those operations.

2. The following is added to the definition of “training operations”:

“Training operations” does not include the use of a Class B firefighting foam containing any “PFAS”.

3. For the purposes of this endorsement, “PFAS” means:

Any product containing per- and polyfluoroalkyl substances (PFAS) or other perfluorinated compounds (PFC) including but not limited to, perfluorooctanoic acid (PFOA), perfluorooctane sulfonic acid (PFOS), perfluorononanoic acid (PFNA), perfluorobutyric acid (PFBA), perfluorobutane sulfonic acid (PFBS), perfluoropentanoic acid (PFPeA), perfluorohexane sulfonic acid (PFHxS), perfluorohexanoic acid (PFHxA), perfluoroheptanoic acid (PFHpA), perfluorooctane sulfonamide (PFSOA), perfluorodecanoic acid (PFDA), perfluorodecane sulfonate (PFDS), perfluoroundecanoic acid (PFUnA), perfluorododecanoic acid (PFDoA), perfluorotridecanoic acid (PFTTrDA), perfluorotetradecanoic acid (PFTeDA), or 6:2 Fluorotelomer sulfonate (6:2 FTS).

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

OWNED WATERCRAFT LIABILITY

This endorsement modifies insurance provided under the following:

GENERAL LIABILITY COVERAGE PART

Description of watercraft:

2002 18' RIVERCRAFT AIRBOAT - 120 HP

[If no entry appears above, the information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.]

- A.** Exclusion h. of **SECTION I. Coverage A. Bodily Injury and Property Damage Liability** does not apply to any watercraft shown in the schedule.
- B.** The following is added to paragraph 2. of **SECTION II. WHO IS AN INSURED:**

Any person or organization legally responsible for the use of a watercraft shown in the schedule, provided the watercraft is used with your permission.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

UNMANNED AIRCRAFT COVERAGE

This endorsement modifies insurance provided under the following:

GENERAL LIABILITY COVERAGE PART

- A.** The first paragraph of Exclusion **2.h. Aircraft, Auto Or Watercraft** under **Section I. Coverages, Coverage A. Bodily Injury and Property Damage Liability** is replaced by the following:

"Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others of any aircraft (other than "unmanned aircraft"), "auto" or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and "loading or unloading". This exclusion does not apply to:

- B.** The following exclusion is added to **Section I. Coverages, Coverage A. Bodily Injury and Property Damage Liability**, Exclusions Applicable to Coverage A:

Unmanned Aircraft

"Bodily injury" or "property damage" arising out of the ownership, maintenance or use of an "unmanned aircraft" while:

- (1) Rented, leased or loaned to others without an operator who is your "employee" or "volunteer worker";
- (2) Used in any professional or organized racing or demolition contest or stunting activity, or while practicing or preparing for such contest or activity; or
- (3) Not used in the insured's operations.

- C.** The following definition is added to **Section V. Definitions**:

"Unmanned aircraft" means an aircraft weighing 15 pounds or less that is not:

- a. Designed;
- b. Manufactured; or
- c. Modified after manufacture;

to be controlled directly by a person from within or on the aircraft.

"Unmanned aircraft" includes equipment used with such "unmanned aircraft", provided such equipment is attached to or essential for its operation.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES

This endorsement modifies insurance provided under the following:

GENERAL LIABILITY COVERAGE PART

A. Paragraph 1. Insuring Agreement of SECTION I. COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY is replaced by the following:

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "bodily injury" or "property damage" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages even if the allegations of the "suit" are groundless, false or fraudulent. However, we will have no duty to defend the insured against any "suit" seeking damages for "bodily injury" or "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "suit" that may result. But:
 - (1) The amount we will pay for damages is limited as described in **SECTION III – LIMITS OF INSURANCE**; and
 - (2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under **COVERAGES A, B or C** or medical expenses under **COVERAGE D**.No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under **SUPPLEMENTARY PAYMENTS – COVERAGES A, B AND C**.
- b. This insurance applies to "bodily injury" and "property damage" only if:
 - (1) The "bodily injury" or "property damage" is caused by an "occurrence" that takes place in the "coverage territory";
 - (2) The "bodily injury" or "property damage" occurs during the policy period; and
 - (3) Prior to the policy period, no officer, director, commissioner or trustee, and no volunteer or "employee" authorized by you to give or receive notice of an "occurrence" or claim, knew that the "bodily injury" or "property damage" had occurred, in whole or in part. If any such persons knew, prior to the policy period, that the "bodily injury" or "property damage" occurred, then any continuation, change or resumption of such "bodily injury" or "property damage" during or after the policy period will be deemed to have been known prior to the policy period.
- c. "Bodily injury" or "property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed in paragraph b.(3) above, includes any continuation, change or resumption of that "bodily injury" or "property damage" after the end of the policy period.
- d. "Bodily injury" or "property damage" will be deemed to have been known to have occurred at the earliest time when any insured listed under in paragraph b.(3) above:
 - (1) Reports all, or any part, of the "bodily injury" or "property damage" to us or any other insurer;
 - (2) Receives a written or verbal demand or claim for damages because of the "bodily injury" or "property damage"; or
 - (3) Becomes aware by any other means that "bodily injury" or "property damage" has occurred or has begun to occur.
- e. Damages because of "bodily injury" include damages claimed by any person or organization for care, loss of services or death resulting at any time from the "bodily injury".

- B. Exclusion g. **Lead, Electromagnetic Radiation, Nuclear** of paragraph 2. **Exclusions** of **SECTION I. COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY** is replaced by the following:

g. **Nuclear**

Any loss, cost or expense arising out of any actual, alleged or threatened injury or damage to any person or property from any radioactive matter or nuclear material.

- C. Exclusion j. **War** of paragraph 2. **Exclusions** of **SECTION I. COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY** is replaced by the following:

j. **War**

"Bodily injury" or "property damage" due to war, whether or not declared, or any act or condition incident to war. War includes civil war, insurrection, rebellion or revolution. This exclusion applies only to liability assumed under a contract or agreement.

- D. Exclusion k. **Damage to Property** of paragraph 2. **Exclusions** of **SECTION I. COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY** is replaced by the following:

k. **Damage To Property**

"Property damage" to:

- (1) Property you or any insured owns, rents, or occupies;
- (2) Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;
- (3) Property loaned to you or any insured;
- (4) Personal property in the care, custody or control of the insured;
- (5) That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the "property damage" arises out of those operations; or
- (6) That particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraphs (1), (3) and (4) of this exclusion do not apply to "property damage" (other than damage by fire) to premises, including the contents of such premises, rented or loaned to you for a period of 30 or fewer consecutive days. The Each Occurrence or Medical Incident Limit shown in the Declarations will apply to this coverage.

Paragraphs (3), (4), (5) and (6) of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraph (4) of this exclusion does not apply to "property damage" to personal property belonging to anyone receiving service from any insured because of loss by theft, physical damage or disappearance of such property during the period when volunteers or "employees" of the insured arrive on the scene or while they are rendering service to others and ending when they either leave the scene, complete their service, or transfer care of a transported patient to others.

This insurance is excess over any other valid and collectible insurance and its deductible or self-insured retention provisions. However, if any of the other insurance is also excess then we will share with all the other insurance by the method described below:

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first. If any of the

other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

The limit of the company's liability under this amendment is the Each Occurrence or Medical Incident Limit stated in the Declarations, subject to a \$100 deductible, each "occurrence".

Paragraphs (5) and (6) of this exclusion do not apply to "property damage" resulting from actions taken to protect persons or property.

Paragraph (6) of this exclusion does not apply to "property damage" included in the "products-completed operations hazard".

E. Exclusion m. Sexual Abuse of paragraph 2. Exclusions of SECTION I. COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY is replaced by the following:

m. Sexual Abuse

"Bodily injury" arising out of the "sexual abuse" of any person. However, this exclusion shall not apply to the Named Insured if no officer, director, commissioner or trustee of the Named Insured knew or had reason to know of the "sexual abuse". So long as there are outstanding claims covered under **Coverage A**, this exclusion does not affect our duty to defend, in accordance with paragraph **1.a.** above, an insured prior to determining, through the appropriate legal processes, that the insured is responsible for an act of "sexual abuse" or has instructed, directed or provided approval for another concerning such act of "sexual abuse".

F. Paragraph 1.a. Insuring Agreement of SECTION I. COVERAGE B. PERSONAL AND ADVERTISING INJURY LIABILITY is replaced by the following:

1. Insuring Agreement

a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "personal and advertising injury" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages even if the allegations of the "suit" are groundless, false or fraudulent. However, we will have no duty to defend the insured against any "suit" seeking damages for "personal and advertising injury" to which this insurance does not apply. We may, at our discretion, investigate any offense and settle any claim or "suit" that may result. But:

(1) The amount we will pay for damages is limited as described in **SECTION III – LIMITS OF INSURANCE**; and

(2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under **COVERAGES A, B or C** or medical expenses under **COVERAGE D**.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under **SUPPLEMENTARY PAYMENTS – COVERAGES A, B AND C**.

G. Exclusion n. Lead, Electromagnetic Radiation, Nuclear of paragraph 2. Exclusions of SECTION I. COVERAGE B. PERSONAL AND ADVERTISING INJURY LIABILITY is replaced by the following:

n. Nuclear

Any loss, cost or expense arising out of any actual, alleged or threatened injury or damage to any person or property from any radioactive matter or nuclear material.

H. Exclusion o. War of paragraph 2. Exclusions of SECTION I. COVERAGE B. PERSONAL AND ADVERTISING INJURY LIABILITY is replaced by the following:

o. **War**

"Personal and advertising injury" due to war, whether or not declared, or any act or condition incident to war. War includes civil war, insurrection, rebellion or revolution.

I. Paragraph **1.a. Insuring Agreement** of **SECTION I. COVERAGE C. PROFESSIONAL HEALTH CARE LIABILITY** is replaced by the following:

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of injury arising out of a "medical incident". We will have the right and duty to defend any claim or "suit" seeking those damages even if the allegations of the "suit" are groundless, false or fraudulent. However, we will have no duty to defend the insured against any "suit" seeking damages for injury arising out of a "medical incident" to which this insurance does not apply. We may at our discretion investigate any "medical incident" and settle any claim or "suit" that may result. But:

(1) The amount we will pay for damages is limited as described in **SECTION III. LIMITS OF INSURANCE**; and

(2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided under **SUPPLEMENTARY PAYMENTS – COVERAGES A, B AND C** or medical expenses under **COVERAGE D**.

J. Exclusion b. **Criminal Acts** of paragraph **2. Exclusions** of **SECTION I. COVERAGE C. PROFESSIONAL HEALTH CARE LIABILITY** is replaced by the following:

b. **Criminal Acts**

Injury arising out of a criminal act (except for "sexual abuse") committed by the insured or anyone for whom the insured is legally responsible. So long as there are outstanding claims covered under **Coverage C**, this exclusion does not affect our duty to defend, in accordance with paragraph **1.a.** above, an insured prior to determining, through the appropriate legal processes, that the insured is responsible for a criminal act (except for "sexual abuse") or has instructed, directed or provided approval for another concerning such criminal act (except for "sexual abuse").

K. Paragraph **2. Duties in the Event of an Occurrence, Medical Incident, Claim or Suit** of **SECTION IV. CONDITIONS** is amended by the addition of the following:

- g. Notice given by or on behalf of the insured, or written notice by or on behalf of the injured person or any other claimant, to any agent of ours in New York State, with particulars sufficient to identify the insured, shall be considered to be notice to us.

L. The following paragraph is added to **SECTION IV. CONDITIONS**:

9. Transfer of Duties When a Limit of Insurance Is Used Up

- a. If we conclude that, based on "occurrences," offenses, claims or "suits" which have been reported to us and to which this insurance may apply, the:
- (1) General Aggregate Limit (other than the Products / Completed Operations Aggregate Limit);
 - (2) Products / Completed Operations Aggregate Limit;
 - (3) Personal and Advertising Injury Limit;
 - (4) Each Occurrence or Medical Incident Limit; or

- (5) Fire Damage Limit
is likely to be used up in the payment of judgments or settlements, we will notify the first Named Insured^{ASHCROFT LOGISTICS}
- b. When a limit of insurance described in paragraph **a.** above has actually been used up in the payment of judgments or settlements:
- (1) We will notify the first Named Insured, in writing, as soon as practicable, that:
 - (a) Such a limit has actually been used up; and
 - (b) Our duty to defend "suits" seeking damages subject to that limit has also ended.
 - (2) We will initiate, and cooperate in, the transfer of control, to any appropriate insured, of all claims and "suits" seeking damages which are subject to that limit and which are reported to us before that limit is used up. That insured must cooperate in the transfer of control of said claims and "suits".
We agree to take such steps, as we deem appropriate, to avoid a default in, or continue the defense of, such "suits" until such transfer is completed, provided the appropriate insured^{ASHCROFT SERVICE GROUP}
We will take no action whatsoever with respect to any claim or "suit" seeking damages that would have been subject to that limit, had it not been used up, if the claim or "suit" is reported to us after that limit of insurance has been used up.
 - (3) The first Named Insured, and any other insured involved in a "suit" seeking damages subject to that limit, must arrange for the defense of such "suit" within such time period as agreed to between the appropriate insured and us. Absent any such agreement, arrangements for the defense of such "suit" must be made as soon as practicable.
- c. The first Named Insured will reimburse us for expenses we incur in taking those steps we deem appropriate in accordance with paragraph **b.(2)** above. The duty of the first Named Insured to reimburse us will begin on:
- (1) The date on which the applicable limit of insurance is used up, if we sent notice in accordance with paragraph **a.** above; or
 - (2) The date on which we sent notice in accordance with paragraph **b.(1)** above, if we did not send notice in accordance with paragraph **a.** above.
- d. The exhaustion of any limit of insurance by the payments of judgments or settlements, and the resulting end of our duty to defend, will not be affected by our failure to comply with any of the provisions of this Condition.

M. The definition of "loading and unloading" in **SECTION V. DEFINITIONS** does not apply.

N. Condition 3. of **SECTION IV.** is replaced by the following:

3. Legal Action Against Us

- a.** Except as provided in Paragraph **b.**, no person or organization has a right under this Coverage Part:

- (1) To join us as a party or otherwise bring us into a "suit" asking for damages from an insured; or
- (2) To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

- Page 6 of 6

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

MOBILE EQUIPMENT SUBJECT TO MOTOR VEHICLE INSURANCE LAWS NEW YORK

This endorsement modifies insurance provided under the following:

GENERAL LIABILITY COVERAGE PART

The **DEFINITIONS** Section is amended as follows:

1. The definition of "auto" is replaced by the following:

"Auto" means:

- a. Any land motor vehicle, trailer or semitrailer designed for travel on public roads; or
- b. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

However, "auto" does not include "mobile equipment".

2. The following is added to the definition of "mobile equipment":

However, "mobile equipment" does not include land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

Named Insured:
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

MANAGEMENT LIABILITY COVERAGE PART DECLARATIONS

THIS IS CLAIMS MADE COVERAGE. PLEASE READ THE POLICY CAREFULLY.

Limits of Insurance

Aggregate Limit	\$	Coverage A and B Combined
Coverage A	\$	Each Wrongful Act or Offense
Coverage B	\$	Each Action for Injunctive Relief
Deductible (Coverage A only)	\$	Each Wrongful Act or Offense

Estimated Coverage Part Premium:

Taxes, Fees and Surcharges: \$ Not Applicable

Total Premium:

Management Liability Forms

See HARBOR POINT MECHANICAL

EMERGENCY SERVICE ORGANIZATION MANAGEMENT LIABILITY COVERAGE FORM CLAIMS MADE

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered. We have no duty to provide coverage unless there has been full compliance with all the **SECTION V. CONDITIONS** contained in this coverage part.

Throughout this coverage part the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under this coverage part. The words "we," "us" and "our" refer to the company providing this insurance. The word "insured" means any person or organization qualifying as such under **SECTION III. WHO IS AN INSURED**.

Other words and phrases that appear in quotation marks have special meaning. Refer to **SECTION VII. DEFINITIONS**.

SECTION I. COVERAGES

Coverage A. Insuring Agreement - Liability for Monetary Damages

1. We will pay those sums that the insured becomes legally obligated to pay as monetary damages arising out of an "employment practices" offense, an offense in the "administration" of your "employee benefit plans", or other "wrongful act" to which this insurance applies. We will have the right and duty to defend any "suit" seeking those damages. We may, at our discretion, investigate any such offense or "wrongful act" and settle any "claim" or "suit" that may result. However:
 - a. The amount we will pay for damages is limited as described in **SECTION IV. LIMITS OF INSURANCE**; and
 - b. Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A and B.No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for below under **Supplementary Payments**. However, we may, prior to any "claim" or "suit" and at our sole discretion and expense, help you with an Equal Employment Opportunity Commission investigation, or an equivalent state or local agency investigation. If we choose to help you with an investigation, our help will be strictly voluntary, and we may discontinue it at any time. You agree that our help does not admit, confirm, waive, estop, or in any way represent a determination of coverage of any alleged employment related violation.
2. This insurance applies to offenses or "wrongful acts" only if:
 - a. The offense or "wrongful act" takes place in the "coverage territory" and before the end of the policy period; and
 - b. A "claim" is first made against any insured in accordance with paragraph 3. below, during the policy period or any Extended Reporting Period we provide according to **SECTION VI**.
3. A "claim" will be deemed to have been made at the earliest of the following times:

- a. When notice of such "claim" is received and recorded by any insured or by us, whichever comes first;
- b. When we make settlement in accordance with paragraph 1. above; or
- c. When you become aware of an offense or "wrongful act" which may subsequently give rise to a "claim" being made against any insured, and you give written notice to us, as described in **SECTION V. CONDITIONS**, of such circumstances as soon as practicable but no later than:
 - (1) The end of the policy period; or
 - (2) The end of any applicable Extended Reporting Period.

All "claims" based on or arising out of the same or related offenses or "wrongful acts" by one or more insureds shall be considered first made when the first of such "claims" is made. Related offenses or "wrongful acts" shall include offenses or "wrongful acts" which are the same, related or continuous, or which arise from a common nucleus of facts.

Coverage A. Supplementary Payments

We will pay, with respect to any "claim" we investigate or settle, or any "suit" against an insured we defend:

1. All expenses we incur.
2. The cost of bonds to release attachments, but only for bond amounts within the applicable Limit of Insurance. We do not have to furnish these bonds.
3. All reasonable expenses incurred by the insured at our request to assist us in the investigation or defense of the "claim" or "suit", including actual loss of earnings up to \$300 a day because of time off from work.
4. All costs taxed against the insured in the "suit".
5. Prejudgment interest awarded against the insured on that part of the judgment we pay. If we make an offer to pay the applicable limit of insurance, we will not pay any prejudgment interest based on that period of time after the offer.
6. All interest earned on that part of any judgment within our limit of insurance after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable Limit of Insurance.

These payments will not reduce the limits of insurance.

Coverage B. Insuring Agreement - Defense Expense for Injunctive Relief

1. We will pay those reasonable sums the insured incurs as "defense expense" to defend against an action for "injunctive relief" because of an "employment practices" offense, an offense in the "administration" of your "employee benefit plans", or other "wrongful act" to which this insurance applies. However:
 - a. The amount we will pay for "defense expense" is limited as described in **SECTION IV. LIMITS OF INSURANCE**; and
 - b. We have no obligation to arrange or provide the defense for any action for "injunctive relief".
 No other obligation or liability to pay sums or perform acts or services is covered.

2. This insurance applies only if:
 - a. The action seeking "injunctive relief" is brought in a legally authorized court or agency of the United States, any of its states or commonwealths, or any governmental subdivision of any of them;
 - b. Such action is filed during the policy period; and
 - c. The insured:
 - (1) First notifies us as soon as practicable after retaining counsel to respond to such action but in no case later than 60 days after the end of the policy period; and
 - (2) Is reasonably expedient in requesting us to pay the "defense expense".
3. All actions based on or arising out of the same or related offenses or "wrongful acts" shall be considered one action for "injunctive relief" regardless of the number of:
 - a. Insureds;
 - b. Plaintiffs;
 - c. Demands asserted; or
 - d. Injunctions, temporary restraining orders or prohibitive writs.

Related offenses or "wrongful acts" shall include offenses or "wrongful acts" which are the same, related or continuous, or which arise from a common nucleus of facts.

SECTION II. EXCLUSIONS

This insurance does not apply under either Coverage A or Coverage B to:

a. **Other Applicable Coverage**

Any offense or "wrongful act" which is insured by any other policy or policies except:

- (1) A policy purchased to apply in excess of this coverage part; or
- (2) That portion of monetary damages otherwise covered by this coverage part which exceeds the limits of liability of such other policy or policies, subject to the **Other Insurance** condition in **SECTION V. CONDITIONS**.

b. **Known Prior Acts**

Any offense or "wrongful act" which takes place prior to the inception date of this coverage part if the insured knew or reasonably should have foreseen that such offense or "wrongful act" would

MERIDIAN BUILDERS

c. **Prior Litigation**

Damages, loss or expense based upon, attributed to, arising out of, in consequence of, or in any way related to litigation or administrative or regulatory proceedings otherwise covered by this coverage part if such litigation or administrative or regulatory proceedings were initiated prior to or were pending on the inception date of this coverage part.

d. **Bodily Injury, Property Damage, Personal and Advertising Injury**

"Bodily injury", "property damage", or "personal and advertising injury" except when resulting from a covered "employment practices" offense.

e. **Workers' Compensation and Similar Laws**

Any obligation of the insured under a workers' compensation, disability benefits or unemployment compensation law, or any similar law.

f. **Professional Health Care**

Providing or failing to provide "professional health care services".

g. **Fines**

Fines, penalties and taxes, including those imposed by the Internal Revenue Service code or any similar state or local code.

h. **Bonds**

Any obligation related to a fidelity bond or a surety bond.

i. **Contracts**

Any amount actually or allegedly due under the terms of any contract for the purchase of goods or services or any payment or performance contract, other than an employment contract.

j. **Employment Contracts**

Any amount actually or allegedly due under the terms of any contract of employment for a definite term, or as severance pay under any contract of employment.

k. **Wage and Hour Laws**

Back wages, overtime or similar damages if specified by the Fair Labor Standards Act of 1938, as amended, or any other wage or hour law.

l. **Failure to Maintain Insurance**

The failure to effect or maintain:

- (1) Insurance of any kind, including adequate limits of insurance; or
- (2) Suretyship or bonds.

This exclusion does not apply to the extent coverage is provided for the "administration" of "employee benefit plans".

m. **Performance of Employee Benefit Plans**

Any "employment practices" offense or any offense in the "administration" of "employee benefit plans" arising out of:

- (1) Failure of any investment program, individual securities or savings program to perform as held forth by or represented by an insured;
- (2) Advice given by an insured in connection with participation or non-participation in stock subscription plans, savings programs or any other "employee benefit plan";
- (3) Errors in providing information or failing to provide information on past performance of investment vehicles;
- (4) Failure of the insured or any insurer, fiduciary, trustee or fiscal agent to perform any of their duties or obligations or to fulfill any of their guarantees with respect to the payment of benefits under "employee benefit plans" or the providing, handling or investment of funds;
- (5) The liability of others which is assumed by the insured under a contract or agreement, except to the extent the insured would have been liable in the absence of the contract or agreement;
- (6) Any claim for the return of compensation paid by the insured if a court determines that the payment was illegal; or
- (7) Any claim for benefits that are lawfully paid or payable to a beneficiary from the funds of an "employee benefit plan".

n. **Claims Against Other Insureds**

Any actions for "injunctive relief" or "claims":

- (1) By a Named Insured against any other insured; or
- (2) By one Named Insured against another Named Insured.

o. **Criminal Acts**

Damages, loss or expense arising out of or contributed to by any fraudulent, dishonest, criminal or malicious act of the insured (except for "sexual abuse"), or the willful violation of any statute, ordinance or regulation committed by or with the knowledge of the insured. However, we will defend the insured for covered civil action subject to the other terms of this coverage part until either a judgment or final adjudication establishes such an act, or the insured confirms such act.

p. **Sexual Abuse**

(1) "Sexual abuse" of any person; or

(2) The negligent:

(a) Employment;

(b) Investigation;

(c) Supervision;

(d) Reporting to the proper authorities, or failing to so report; or

(e) Retention;

of a person for whom any insured is or ever was legally responsible and whose conduct would be excluded by paragraph (1) above.

q. **Profit, Advantage or Remuneration**

Any loss, cost or expense based upon or attributable to the insured gaining any profit, advantage or remuneration to which the insured is not legally entitled.

r. **ERISA, COBRA and WARN Act Liability**

Damages, loss or expense arising out of or contributed to by any insured's obligations under:

(1) the Employee Retirement Income Security Act of 1974 (ERISA);

(2) the Comprehensive Omnibus Budget Reconciliation Act (COBRA);

(3) the Worker Adjustment and Retraining Notification Act (WARN); or

(4) any similar federal, state, or local laws or regulations;

including subsequent amendments or any regulations promulgated thereunder.

s. **Compliance with ADA Requirements**

Costs or expenses incurred as a result of physical modifications made to accommodate persons with disabilities as required by:

(1) the Americans with Disabilities Act of 1990; or

(2) any federal, state, or local disability discrimination or accommodation laws or regulations;

including subsequent amendments or any regulations promulgated thereunder.

t. **Strikes**

Damages, loss or expense arising out of or contributed to by any lockout, strike, picket line, replacement or other similar actions resulting from labor disputes or labor negotiations.

u. **Tax Assessments**

Damages, loss or expense arising out of or contributed to by any tax assessments or adjustments, or the collection, refund, disbursement or application of any taxes. This exclusion does not apply to the use or prioritization of your operating funds.

v. **Debt Financing**

Damages, loss or expense arising out of or contributed to by any debt financing, including but not limited to bonds, notes, debentures and guarantees of debt.

w. **Pollution**

Any injury, damage, expense, cost, loss, liability or legal obligation arising out of or in any way related to pollution, however caused. Pollution includes the actual, alleged, or potential presence in or introduction into the environment of any substance if such substance has, or is alleged to have, the effect of making the environment impure, harmful or dangerous. Environment includes any air, land, structure (or the air therein), watercourse or other body of water, including underground water. This exclusion does not apply if:

- (1) There is no allegation that you are liable for, the cause of, or responsible in whole or in part for any pollution; and
- (2) You are alleged to be liable solely as a result of ordering an evacuation, a business or building closure, or other similar action to protect persons or property, provided you are authorized by law to take such actions.

x. **Asbestos, Lead, Electromagnetic Radiation, Nuclear**

- (1) Any injury, damage, expense, cost, loss, liability or legal obligation arising out of or in any way related to asbestos or asbestos-containing materials.
- (2) Any injury, damage, expense, cost, loss, liability or legal obligation arising out of or in any way related to:
 - (a) The toxic properties of lead, or any material or substance containing lead; or
 - (b) Electromagnetic radiation;or exposure thereto, or for the costs of abatement, mitigation, removal, elimination or disposal of any of them.
- (3) Any loss, cost or expense arising out of any actual, alleged or threatened injury or damage to any person or property from any radioactive matter or nuclear material.

y. **Fungi or Bacteria**

- (1) Any liability, loss, injury or damage which would not have occurred or taken place, in whole or in part, but for the actual, alleged or threatened inhalation of, ingestion of, contact with, exposure to, existence of, or presence of, any "fungi" or bacteria on or within a building or structure, including its contents, regardless of whether any other cause, event, material or product contributed concurrently or in any sequence to such injury or damage.
- (2) Any loss, cost or expenses arising out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to, or assessing the effects of, "fungi" or bacteria, by any insured or by any other person or entity.

z. **Attorney Fees and Court Costs**

Any award of costs or fees which arises out of an action for "injunctive relief".

SECTION III. WHO IS AN INSURED

1. If you are:

- a. An organization other than a partnership, joint venture or limited liability company, you are an insured.
- b. A partnership or joint venture, you are an insured. Your members and your partners are also insureds, but only within the course and scope of your operations.
- c. A limited liability company, you are an insured. Your members are also insureds, but only within the course and scope of your operations. Your managers are insureds, but only within the course and scope of your operations.

2. In addition to you, each of the following is an insured:
 - a. **Volunteers and Employees.** Volunteers and employees, including any elected or appointed officers, directors, commissioners or trustees, but only for acts within the course and scope of their employment by you, membership with you or authorized duties on your behalf.
 - b. **Medical Directors.** Physicians who are your medical directors, but only for acts within the course and scope of their medical director duties on your behalf.
 - c. **Mutual Aid Agreements.** Any persons or organizations providing service to you under any mutual aid or similar agreement.
 - d. **Blanket Additional Insureds.** Any person or organization liable for your "employment practices" offenses, offenses arising out of the "administration" of your "employee benefit plans", or other "wrongful acts" committed or alleged to have been committed by you is an insured under this coverage part, but only to the extent of that liability.
3. **Outside Directorship Extension.** Your volunteers, employees, officers, directors, commissioners, or trustees, while acting independently and not on behalf of your organization, are insureds while they serve on the board of directors of an outside organization as specified herein:
 - a. The outside organization was established and is currently chartered as not-for-profit; and
 - b. The organization is a separate and distinct entity not subject to your direction and control; and
 - c. The organization exists for the purpose of supporting and furthering the efforts and welfare of the organizations or individuals who provide fire service, emergency medical response or rescue services.

This coverage shall be excess of and not contribute with:

 - (1) Any insurance available, whether primary or excess; and
 - (2) Any corporate indemnification agreements afforded by the outside organization.

In no event will this insurance inure to the benefit of the outside organization or to any of its officers, directors, commissioners, trustees, volunteers or employees, except to the extent that coverage is provided to an insured as set forth above.
4. Any organization you newly acquire or form, other than a partnership or joint venture, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to the organization. However:
 - a. Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier; and
 - b. Coverage does not apply to any "employment practices" offense, offense in the "administration" of your "employee benefit plans", or other "wrongful act" that occurred before you acquired or formed the organization or of which you had notice or knowledge.

No organization is an insured with respect to the conduct of any current or past partnership or joint venture that is not shown as a Named Insured in the Declarations.

SECTION IV. LIMITS OF INSURANCE

1. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:
 - a. Insureds;
 - b. "Claims" made or "suits" brought; or
 - c. Persons or organizations making "claims" or bringing "suits".
2. The Aggregate Limit is the most we will pay for the sum of:
 - a. Monetary damages under Coverage A; and
 - b. "Defense expense" under Coverage B;

for each Named Insured WINSLOW MOTORWORKS

3. Subject to 2. above, the Each "Wrongful Act" or Offense limit is the most we will pay under Coverage A for the sum of all monetary damages arising out of the same or related offenses or "wrongful acts".
4. Subject to 2. above, the Each Action for "Injunctive Relief" limit is the most we will pay under Coverage B for all "defense expense" arising out of all actions or proceedings for "injunctive relief" arising out of the same or related offenses or "wrongful acts".
5. The Aggregate Limits of this coverage part apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.
6. Our obligations under this coverage part end when the applicable Limit of Insurance available is exhausted. If we pay amounts for monetary damages or "defense expense" in excess of that Limit of Insurance, you agree to reimburse us for such amounts.

SECTION V. CONDITIONS

The following conditions apply in addition to the Common Policy Conditions.

1. Bankruptcy

Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this coverage part.

2. Duties in the Event of an Offense, "Wrongful Act", "Claim" or "Suit"

- a. You must see to it that we are notified as soon as practicable of an offense or "wrongful act" which may result in a "claim" or "suit". To the extent possible, notice should include:
 - (1) How, when and where the offense or "wrongful act" took place; and
 - (2) The names and addresses of any persons seeking damages or of any witnesses.
- b. If a "claim" is made or "suit" is brought against any insured, you must:
 - (1) Immediately record the specifics of the "claim" or "suit" and the date received; and
 - (2) Notify us as soon as practicable.You must see to it that we receive written notice of the "claim" or "suit" as soon as practicable.
- c. You and any other involved insured must:
 - (1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "claim" or "suit";
 - (2) Authorize us to obtain records and other information;
 - (3) Cooperate with us in the investigation, settlement or defense of the "claim" or "suit"; and
 - (4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of damages to which this insurance may also apply.
- d. No insureds will, except at their own cost, voluntarily make a payment, assume any obligation, or incur any expense without our written consent.
- e. Notice shall be deemed given as soon as practicable if it is given by the person to whom you have delegated such responsibility as soon as practicable after they become aware of an offense or "wrongful act".

3. Duties in the Event of a Request to Pay "Defense Expense" for "Injunctive Relief"

- a. You must see to it that we are notified as soon as practicable of an action or proceeding which may give rise to a request for us to respond for "defense expense". To the extent possible, notice should include:
 - (1) The plaintiff in the action;
 - (2) The court or agency involved;
 - (3) The relief being sought; and
 - (4) The date of the action and any underlying demand.
- b. You and any other involved insured must:
 - (1) Immediately send us copies of any legal papers received in connection with the action and any underlying demand;
 - (2) Cooperate with us in the determination of any "defense expense" which may be covered by this insurance; and
 - (3) Submit a request for us to pay any covered "defense expense".

4. Legal Action Against Us

No person or organization has a right under this coverage part:

- a. To join us as a party or otherwise bring us into a "suit" asking for damages or "defense expense" from an insured^{BLUE}
- b. To sue us on this coverage part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages or "defense expenses" that are not payable under the terms of this coverage part or that are in excess of the applicable Limit of Insurance. Under Coverage A, an agreed settlement means a settlement and release of liability signed by us, the insured STONEPATH SERVICE GROUP

5. Other Insurance

If other valid and collectible insurance is available to the insured volunteer, employee, elected or appointed officer, director, commissioner, trustee or medical director for a loss or "defense expense" we cover under this coverage part, our insurance is primary, with no consideration or contribution with such other insurance. However, this does not apply to such insureds when serving on outside directorships as described in the **Outside Directorship Extension** of **SECTION III. WHO IS AN INSURED**.

If other valid and collectible insurance is available to insureds other than volunteers, employees, elected or appointed officers, directors, commissioners, trustees or medical directors for a loss or "defense expense" we cover under this coverage part, this insurance is excess over any of the other insurance and its deductible or self-insured retention provisions, whether primary, excess, contingent or on any other basis.

6. Representations

By accepting this policy, you agree:

- a. The information in the Declarations is accurate and complete.
- b. That information is based upon representations you made to us in the application for this insurance. This application forms the basis of our obligations under this coverage part.
- c. This coverage part is void if any material fact or circumstance relating to this insurance is intentionally omitted or misrepresented in the application for this insurance.

7. Separation of Insureds

Except with respect to the Limit of Insurance as described in **SECTION IV**, and any rights or duties specifically assigned to the first Named Insured, this insurance applies:

- a. As if each Named Insured were the only Named Insured; and
- b. Separately to each insured against whom "claim" is made or "suit" is brought.

8. RIDGEWAY MOTORWORKS

If the insured has rights to recover all or part of any payment we have made under this coverage part, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "suit" or transfer those rights to us and help us enforce them.

9. **When We Do Not Renew**

If we decide not to renew this coverage part, we will mail or deliver to the first Named Insured shown in the Declarations written notice of such non-renewal not less than 30 days before the expiration date. We will mail or deliver our notice to the first Named Insured's last mailing address known to us. If notice is mailed, proof of mailing will be sufficient proof of notice.

10. **Your Right to Claim Information**

Upon request, we will provide the first Named Insured shown in the Declarations the following information relating to this and any preceding coverage part we have issued to you during the previous three years:

- a. A list or other record of each "wrongful act" or other offense not previously reported to any other insurer, of which we were notified in accordance with paragraph 2.a. or paragraph 3.a. of this section. We will include the date and a brief description of such "wrongful act" or offense if that information was in the notice we received.
- b. A summary, by policy year, of payments made and amounts reserved.

Amounts reserved are based on our judgment. They are subject to change and should not be regarded as ultimate settlement values. You must not disclose this information to any claimant or any claimant's representative without our consent.

We compile claim and related information for our own business purposes and exercise reasonable care in doing so. In providing this information to the first Named Insured, we make no representations or warranties to insureds, insurers, or others to whom this information is furnished by or on behalf of any insured. Cancellation or non-renewal will be effective even if we inadvertently provide inaccurate information.

SECTION VI. EXTENDED REPORTING PERIODS (COVERAGE A ONLY)

With respect to Coverage A only:

1. We will provide one or more Extended Reporting Periods, as described in items 3. and 4. below, if:
 - a. This coverage part is cancelled or not renewed; or
 - b. We renew or replace this coverage part with insurance that does not apply to offenses or "wrongful acts" on a claims made basis.
2. Extended Reporting Periods do not extend the policy period or change the scope of coverage provided. They apply only to "claims" arising out of offenses or "wrongful acts" that take place before the end of the policy period. Once in effect, Extended Reporting Periods may not be cancelled.

3. A Basic Extended Reporting Period is automatically provided without additional charge. This period starts with the end of the policy period and lasts for sixty days.

The Basic Extended Reporting Period does not apply to "claims" that are covered under any subsequent insurance you purchase, or that would be covered but for exhaustion of the amount of insurance applicable to such "claims".

4. A Supplemental Extended Reporting Period of unlimited duration is available, but only by an endorsement and for an extra charge. This supplemental period starts when the Basic Extended Reporting Period ends.

You must give us a written request for the endorsement within 60 days after the end of the policy period. The Supplemental Extended Reporting Period will not go into effect unless you pay the additional premium promptly when due.

We will determine the additional premium in accordance with our rules and rates. In doing so, we will take into account the following:

- a. The exposures insured;
- b. Previous types and amounts of insurance;
- c. Limit of Insurance available under this coverage part; and
- d. Other related factors.

The additional premium will not exceed 200% of the annual premium for this coverage part.

This endorsement shall set forth the terms, not inconsistent with this section, applicable to the Supplemental Extended Reporting Period, including a provision to the effect that the insurance afforded for "claims" received during such period is excess over any other valid and collectible insurance available under policies in force after the Supplemental Extended Reporting Period starts.

5. The Basic Extended Reporting Period does not reinstate or increase the Limit of Insurance.
6. If the Supplemental Extended Reporting Period is in effect, we will provide the separate KINGSTON KINGSTON KINGSTON described below, but only for "claims" first received and recorded during the Supplemental Extended Reporting Period.

The separate KINGSTON KINGSTON KINGSTON will be equal to the dollar amount shown in the Declarations in effect at the end of the policy period for the Aggregate Limit. The applicable Each "Wrongful Act" or Offense limit will continue to apply.

SECTION VII. DEFINITIONS

1. "Administration" means any of the following acts that you do or authorize a person to do:
 - a. Counseling volunteers or employees, other than giving legal advice, on "employee benefit plans";
 - b. Interpreting your "employee benefit plans";
 - c. Handling records for your "employee benefit plans"; and
 - d. Effecting enrollment, termination or cancellation of volunteers or employees under your "employee benefit plans".
2. "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time.

3. "Claim" means a written or oral notice, including "suit", from any party that it is their intention to hold the insured responsible for damages arising out of an offense or "wrongful act" by the insured.
4. "Coverage territory" means the United States of America (including its territories and possessions), Puerto Rico and Canada.
5. "Defense expense" means under Coverage B, fees or expenses incurred by the insured for:
 - a. Legal fees charged by the insured's attorney;
 - b. Court costs;
 - c. Expert witnesses; and
 - d. The cost of court bonds, but we do not have to furnish these bonds."Defense expense" does not include:
 - (1) Any salaries, charges or fees for any insured, insured's volunteers or employees, or former volunteers or employees; or
 - (2) Any expenses other than a., b., c. and d. above.
6. "Employee benefit plans" mean group life insurance, group accident or health insurance, profit sharing plans, pension plans, employee stock subscription plans, employee travel, vacation, or savings plans, workers compensation, unemployment insurance, social security and disability benefits insurance, and any other similar benefit program applying to volunteers or employees.
7. "Employment practices" means an actual or alleged improper employment related practice, policy, act or omission involving an actual, prospective, or former volunteer or employee, including:
 - a. Failing to hire or refusing to hire;
 - b. Wrongful dismissal, discharge, or termination of employment or membership, whether actual or constructive;
 - c. Wrongful deprivation of a career opportunity, or failure to promote;
 - d. Wrongful discipline of volunteers or employees;
 - e. Negligent evaluation of volunteers or employees;
 - f. Retaliation against volunteers or employees for the exercise of any legally protected right or for engaging in any legally protected activity;
 - g. Failure to adopt adequate workplace or employment-related policies and procedures;
 - h. Harassment, including "sexual harassment"; or
 - i. Violation of any federal, state or local laws (whether common law or statutory) concerning employment or discrimination in employment.
8. "Fungi" means any type or form of fungus, including mold or mildew and any mycotoxins, spores, scents or by-products produced or released by "fungi".
9. "Injunctive relief" means equitable relief sought through the demand for the issuance of a permanent, preliminary or temporary injunction, restraining order, or similar prohibitive writ against, or order for specific performance by, an insured provided such action is filed during the policy period.
10. "Personal and advertising injury" means injury, including consequential "bodily injury", arising out of one or more of the following offenses:
 - a. False arrest, detention or imprisonment;
 - b. Malicious prosecution;
 - c. The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, or any other interference with real property rights;
 - d. Oral or written publication in any manner of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services;
 - e. Oral or written publication in any manner of material that violates a person's right of privacy;

- f. The use of another's advertising idea in your advertisement; or
 - g. Infringing upon another's copyright, trade dress or slogan in your advertisement.
11. "Professional health care services" means:
- a. Providing medical or nursing services;
 - b. Providing professional services of any other health care professional, including emergency medical technicians and paramedics;
 - c. Furnishing or dispensing drugs or medical, surgical or dental supplies or appliances;
 - d. Handling of patients:
 - (1) From the place where they are accepted for movement into or onto the means of transport,
 - (2) During transport, and
 - (3) From the means of transport to the place where they are finally delivered;
 - e. Dispatching of, including the failure or refusal to dispatch, personnel to provide any of the above services;
 - f. Serving on, or carrying out the orders of, a health care accreditation board or similar professional board or committee; and
 - g. Establishing medical protocol, creating medical training curricula, providing medical training, conducting medical quality assurance programs, and carrying out similar duties.
12. "Property damage" means:
- a. Physical injury to tangible property, including all resulting loss of use of that property; and
 - b. Loss of use of tangible property that is not physically injured but results from a. above.
13. "Sexual abuse" means any actual, attempted or alleged sexual conduct by a person, or by persons acting in concert, which causes injury. "Sexual abuse" includes sexual molestation, sexual assault, sexual exploitation or sexual injury, but does not include "sexual harassment".
14. "Sexual harassment" means any actual, attempted or alleged unwelcome sexual advances, requests for sexual favors, or other conduct of a sexual nature by a person, or by persons acting in concert, which causes injury. "Sexual harassment" includes:
- a. The above conduct when submission to or rejection of such conduct is made either explicitly or implicitly a condition of a person's employment, or a basis for employment decisions affecting a person; or
 - b. The above conduct when such conduct has the purpose or effect of unreasonably interfering with a person's work performance or creating an intimidating, hostile or offensive work environment.
15. "Suit" means a civil proceeding in which damages arising out of an offense or "wrongful act" to which this insurance applies are alleged. "Suit" includes:
- a. An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or
 - b. Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured CLEARWATER FABRICATION
- But "suit" does not mean any ethical conduct review or enforcement action, or disciplinary review or enforcement action.
16. "Wrongful act" means any actual or alleged error, act, omission, misstatement, misleading statement, neglect or breaches of duty committed by you or on behalf of you in the performance of your operations, including misfeasance, malfeasance, or nonfeasance in the discharge of duties, individually or collectively that results directly but unexpectedly and unintentionally in damages to others.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES

This endorsement modifies insurance provided under the following:

MANAGEMENT LIABILITY COVERAGE PART (CLAIMS MADE)

- A.** The second sentence of the opening paragraph of **SECTION I. Coverage A. Insuring Agreement – Liability for Monetary Damages** is replaced by the following:

We will have the right and duty to defend any "suit" seeking those damages even if the allegations of the "suit" are groundless, false or fraudulent.

- B.** Paragraph 2.a. of **SECTION I. Coverage A. Insuring Agreement – Liability for Monetary Damages** is replaced by the following:

- a.** The offense or "wrongful act" takes place in the "coverage territory" and before the termination of coverage; and

- C.** The first sentence of Paragraph 1. of **Coverage B. Insuring Agreement – Defense Expense For Injunctive Relief** under **SECTION I. Coverages** is replaced by the following:

We will pay on your behalf those reasonable sums incurred by the insured as "defense expense" to defend against an action for "injunctive relief" because of a "wrongful act", or an "employment practices" offense, or an offense in the "administration" of your "employee benefit plans", to which this insurance applies.

- D.** Exclusion n. of **SECTION II. Exclusions** is replaced by the following:

n. Claims Against Other Insureds

Any actions for "injunctive relief" or "claims":

- (1) By a Named Insured against any other insured under the same policy; or
(2) By one Named Insured against another Named Insured under the same policy.

- E.** Exclusion o. of **SECTION II. Exclusions** is replaced by the following:

o. Criminal Acts

Damages, loss or expense arising out of or contributed to by any fraudulent, dishonest, criminal or malicious act of the insured (except for "sexual abuse"), or the willful violation of any statute, ordinance or regulation committed by or with the knowledge of the insured. So long as there are outstanding claims covered under this coverage part, this exclusion does not affect our duty to defend, in accordance with paragraph **I.A.1.** above, an insured prior to determining, through the appropriate legal processes, that the insured is responsible for a fraudulent, dishonest, criminal or malicious act (except for "sexual abuse") or the willful violation of any statute, ordinance or regulation, or has instructed, directed or provided approval for another concerning such fraudulent, dishonest, criminal or malicious act (except for "sexual abuse") or the willful violation of any statute, ordinance or regulation.

F. Exclusion x. of SECTION II. Exclusions is replaced by the following:

x. Asbestos, Electromagnetic Radiation, Nuclear

- (1)** Any injury, damage, expense, cost, loss, liability or legal obligation arising out of or in any way related to asbestos or asbestos-containing materials
- (2)** Damages, loss or expense arising out of, resulting from, contributed to or caused by electromagnetic radiation or exposure thereto, or for the costs of its abatement, mitigation, removal, elimination or disposal.
- (3)** Any loss, cost or expense arising out of any actual, alleged or threatened injury or damage to any person or property from any radioactive matter or nuclear material.

G. Exclusion y. Fungi or Bacteria of SECTION II. Exclusions is deleted.

H. The following exclusion is added to SECTION II. Exclusions:

Sexual Harassment

Any person who:

- a.** Participates in,
- b.** Directs, or
- c.** Knowingly allows
any "sexual harassment".

I. The last sentence of paragraph 5. of SECTION IV. Limits Of Insurance is replaced by the following:

In that case, the aggregate limit of this coverage part as shown in the Declarations will be increased in proportion to any policy extension under these circumstances.

J. The following paragraph is added to SECTION IV. Limits Of Insurance:

1. Each director and officer of the Named Insured organization is a co-insurer as follows:
 - a.** An individual retention of \$100.00 will apply to each director or officer. The maximum aggregate retention is \$1,000. In the event that the aggregate retention exceeds \$1,000, the amount allocated to each individual director or officer will be calculated by dividing \$1,000 by the total individual retention amount. In no event shall the amount allocated to each individual director or officer be less than \$75.00; and
 - b.** Each director or officer will contribute 1% of the first \$1,000,000 of any damages. We are only liable for 99% of the first \$1,000,000 of the damages.
2. However, no such co-insurance shall be required where:
 - a.** Directors or officers may be indemnified by the Named Insured organization pursuant to New Stonepath Automotive Services Law Article 7 (other than section 726(a)(3));
 - b.** An indemnification policy is issued to and for the organization itself; or
 - c.** An indemnification policy is issued directly to a director or officer of an organization.

K. The following paragraph is added to 2. **Duties in the Event of an Offense, "Wrongful Act", "Claim" or "Suit"** of **SECTION V. Conditions**:

- f. Notice given by or on behalf of the insured, or written notice by or on behalf of the injured person or any other claimant, to any licensed agent of the insurer in this state, with particulars sufficient to identify the insured, shall be deemed notice to the insurer.

L. The following paragraph is added to 3. **Duties in the Event of a Request to Pay "Defense Expense" for "Injunctive Relief"** of **SECTION V. Conditions**:

- c. Notice given by or on behalf of the insured, or written notice by or on behalf of the injured person or any other claimant, to any licensed agent of the insurer in this state, with particulars sufficient to identify the insured, shall be deemed notice to the insurer.

M. Condition 4. **Legal Action Against Us** of **SECTION V. Conditions** is replaced by the following:

- 1. Except as provided in Paragraph 2., no person or organization has a right under this policy:
 - a. To join us as a party or otherwise bring us into a "suit" asking for damages from an insured; or
 - b. To sue us on this policy unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this policy or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

- 2. With respect to "claims" arising from "wrongful acts", if we deny coverage or do not admit liability because an insured or a person against whom a "wrongful act" has been committed, someone acting for the person against whom a "wrongful act" has been committed or other claimant fails to give us written notice as soon as practicable, then the person against whom a "wrongful act" has been committed, someone acting for the person against whom a "wrongful act" has been committed or other claimant may bring an action against us, provided the sole question is whether the denial of coverage or nonadmission of liability is based on the failure to provide timely notice.

However, the person against whom a "wrongful act" has been committed, someone acting for the person against whom a "wrongful act" has been committed or other claimant may not bring an action if within 60 days after we deny coverage or do not admit liability, we or an insured:

- a. Brings an action to declare the rights of the parties under the policy; and
- b. Names the person against whom a "wrongful act" has been committed, someone acting for the person against whom a "wrongful act" has been committed or other claimant as a party to the action.

- 1. Except as provided in Paragraph 2., no person or organization has a right under this policy:
 - a. To join us as a party or otherwise bring us into a "suit" asking for damages from an insured; or
 - b. To sue us on this policy unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this policy or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

2. With respect to "claims" arising from "wrongful acts", if we deny coverage or do not admit liability because an insured or a person against whom a "wrongful act" has been committed, someone acting for the person against whom a "wrongful act" has been committed or other claimant fails to give us written notice as soon as practicable, then the person against whom a "wrongful act" has been committed, someone acting for the person against whom a "wrongful act" has been committed or other claimant may bring an action against us, provided the sole question is whether the denial of coverage or nonadmission of liability is based on the failure to provide timely notice.

However, the person against whom a "wrongful act" has been committed, someone acting for the person against whom a "wrongful act" has been committed or other claimant may not bring an action if within 60 days after we deny coverage or do not admit liability, we or an insured:

- a. Brings an action to declare the rights of the parties under the policy; and
- b. Names the person against whom a "wrongful act" has been committed, someone acting for the person against whom a "wrongful act" has been committed or other claimant as a party to the action.

M. Condition 9. When We Do Not Renew of SECTION V. Conditions is deleted.

N. Condition 10. of SECTION V. Conditions is replaced by the following:

10. Your Right to Claim Information

We will provide the first Named Insured shown in the Declarations, within ten (10) days of written request by the first Named Insured or by such insured's authorized agent or broker, the following information relating to this and any preceding management liability claims-made Coverage Part we have issued to you:

- a. Information concerning closed claims, including the date and description of the injury, damage or offense and amounts of any payments;
- b. Information concerning open claims, including the date and description of the injury, damage or offense and amounts of any payments; and
- c. Information concerning notices of the injury, damage or offense not included in subparagraphs a. and b. above, including the date and description of the injury, damage or offense.

Amounts reserved are based on our judgment. They are subject to change and should not be regarded as ultimate settlement values.

You must not disclose this information to any claimant or any claimant's representative without our consent.

If we cancel or elect not to renew this policy, our notice to the first Named Insured and to the insured's authorized agent or broker will include a notice of the availability of such information.

We compile claim information for our own business purposes and exercise reasonable care in doing so. In providing this information to the first Named Insured we make no representations or warranties to insureds, insurers or others to whom this information is furnished by or on behalf of any insured. Cancellation or nonrenewal will be effective even if we inadvertently provide

GRANITE ROW CONTRACTING

O. The following changes are made to Definition 7, "Employment practices" in SECTION VII. Definitions:

1. Paragraph f. relating to retaliation is deleted.
2. Paragraph h. is replaced by the following:
 - h. Harassment, except "sexual harassment" as excluded under **SECTION II. Exclusions**; or

3. The following is added to definition 7. "Employment Practices" in **SECTION VII. Definitions:**

However, the coverage provided for discrimination pertains only to "disparate impact discrimination". By "disparate impact discrimination" we mean the result of disparities between or among groups or individuals, based upon statistical or other numerical profiles, sufficient to support a finding of discrimination. Such disparities must result in a violation of a person's civil rights with respect to that person's race, color, national origin, religion, gender, marital status, age, sexual orientation or preference, physical or mental condition, or any other protected class or characteristic established by any federal, state, or local statutes, rules or regulations. "Disparate impact discrimination" also includes the Named Insured's vicarious liability for the discriminatory act of an employee or volunteer, even though the Named Insured:

- (1) Played no active role in the commission of the act;
- (2) Did nothing to aid or encourage the commission of such act; and
- (3) May have done all it possibly could to have prevented such act.

AMENDATORY ENDORSEMENT MANAGEMENT LIABILITY NEW YORK

This endorsement modifies insurance provided under the following:

MANAGEMENT LIABILITY COVERAGE PART

The following revisions are made to the Management Liability Coverage Form:

1. FLSA Suit Defense Only Coverage

FLSA Defense Costs Schedule

Limit of Insurance

\$100,000	Each FLSA Claim
\$100,000	Aggregate

- a. The exclusion for **Wage and Hour Laws** in **Section II. Exclusions** is replaced by the following:

Wage and Hour Laws

Back wages, overtime or similar damages if specified by the Fair Labor Standards Act (FLSA) of 1938, as amended, or any other wage or hour laws.

However, this exclusion does not apply to "defense costs" as a result of a "suit" for such back wages, overtime or similar damages,

Our duty to defend ends upon payment of the Each FLSA Claim Limit of Insurance shown in the above FLSA Defense Costs Schedule for "defense costs" for such "suit". The KINGSTON KINGSTON is the most we will pay for FLSA Suit Defense Only Coverage arising out of all "suits" in any one policy period.

- b. The following definitions only apply to this FLSA Suit Defense Only Coverage:

"Defense costs" means fees or expenses for:

- (1) Legal fees;
- (2) Court costs;
- (3) Expert witnesses; and
- (4) The cost of court bonds, but we do not have to furnish these bonds.

"Suit" means a civil proceeding in which damages arising out of an offense or "wrongful act" are alleged. "Suit" includes:

- (1) An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or
- (2) Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with our consent.

But "suit" does not mean any ethical conduct review or enforcement action, or disciplinary review or enforcement action.

2. Spouses, Estates, Heirs, and Legal Representatives added as Insureds

The following additions are made to Paragraph 2. Of **Section III. Who Is An Insured**:

- e. **Spouses.** The spouse of an insured but only for claims arising solely out of his or her status as such.
- f. **Estates, Heirs and Legal Representatives.** If an insured is deceased, the estates, heirs, legal representatives, and assigns, but only for claims arising solely out of their status as such. In the event of the incompetency, insolvency or bankruptcy of an insured, the legal representative of such insured, but only for claims arising solely out of their status as legal representative.

NEW YORK DISCLOSURE FORM CLAIMS MADE COVERAGE

This endorsement modifies insurance provided under the following:

MANAGEMENT LIABILITY COVERAGE PART (CLAIMS MADE)

IMPORTANT NOTICE TO NEW YORK POLICY HOLDERS CLAIMS MADE COVERAGE

THIS DISCLOSURE FORM IS NOT YOUR POLICY. IT MERELY DESCRIBES SOME OF THE MAJOR FEATURES OF OUR EMERGENCY SERVICE ORGANIZATION MANAGEMENT LIABILITY CLAIMS MADE POLICY FORM. READ YOUR POLICY CAREFULLY TO DETERMINE RIGHTS, DUTIES, AND WHAT IS AND IS NOT COVERED. ONLY THE PROVISIONS OF YOUR POLICY DETERMINE THE SCOPE OF YOUR INSURANCE PROTECTION.

This policy provides coverage on a **CLAIMS MADE** basis. This **CLAIMS MADE** policy covers only claims (1) actually made against the insured while the policy remains in effect or (2) arising from incidents reported to the insurer while the policy remains in effect. All coverage provided by the policy ceases upon the termination of the policy, except for the automatic (Basic) Extended Reporting Period coverage, unless the insured purchases additional (Supplemental) Extended Reporting Period coverage.

The automatic (Basic) Extended Reporting Period is 90 days. The additional (Supplemental) Extended Reporting Period is available for an unlimited time period, at the insured's option.

You should be aware that if the unlimited Supplemental Extended Reporting Period is not purchased, there are potential coverage gaps that may arise upon expiration of the Basic Extended Reporting Period. For example, there would be no coverage for a claim made after the Basic Extended Reporting Period terminated unless the incident giving rise to such claim was reported to the Granite Row prior to the termination of the Basic Extended Reporting Period.

There is no separate premium charge for the Basic Extended Reporting Period. The premium for the Supplemental Extended Reporting Period is 50% of the annual premium for the last policy.

There is no retroactive date applicable to this policy.

During the first several years of many claims made policies, claims made rates can be comparatively lower than occurrence rates, and the insured can expect substantial annual premium increases, independent of overall rate level increases, until the claims made policy reaches maturity. This is not the case, however, with your Emergency Service Organization Management Liability insurance. Since this coverage part does not limit coverage by a retroactive date, no annual premium increases are necessary based on policy maturity.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXTENDED REPORTING PERIODS — NEW YORK

This endorsement modifies insurance provided under the following:

MANAGEMENT LIABILITY COVERAGE PART (CLAIMS MADE)

SECTION VI. EXTENDED REPORTING PERIODS (COVERAGE A ONLY) is replaced by the following:

With respect to **Coverage A** only:

1. We will provide one or more Extended Reporting Periods, as described in items 3. and 4. below, following "termination of coverage" meaning:
 - a. This coverage part is cancelled or not renewed;
 - b. This policy or any of its coverages is renewed or replaced with insurance that:
 - (1) Has decreased limits, reduced coverage, increased deductible, added a new exclusion, or any other change in coverage less favorable to the insured; or
 - (2) Does not apply to "wrongful acts" or offenses on a claims made basis.
2. Extended Reporting Periods do not extend the policy period or change the scope of coverage provided. They apply only to "claims" arising out of offenses or "wrongful acts" that take place before the termination of coverage. Once in effect, Extended Reporting Periods may not be cancelled.
3. A Basic Extended Reporting Period is automatically provided without additional charge. This period starts with the termination of coverage and lasts for 90 days.

The Basic Extended Reporting Period does not reinstate or increase the Limit of Insurance. The KINGSTON KINGSTON for the Basic Extended Reporting Period will be equal to the dollar amount remaining in the policy's annual KINGSTON KINGSTON KINGSTON in effect at "termination of coverage".
4.
 - a. A Supplemental Extended Reporting Period of unlimited duration is available, but only by an endorsement and for an extra charge. This Supplemental Extended Reporting Period starts when the Basic Extended Reporting Period ends.
 - b.
 - (1) We will advise you in writing of the 60 day automatic Basic Extended Reporting Period coverage and the availability of, premium for and importance of purchasing the Supplemental Extended Reporting Period endorsement no later than 30 days after the "termination of coverage", but:
 - (a) If we cancel due to nonpayment of premium or fraud on the part of the insured, we will not provide a premium quotation unless requested by you; and
 - (b) If we cancel because of nonpayment of premium or fraud during the first year of continuous claims-made coverage, we are not required to offer a Supplemental Extended Reporting Period or to provide the advice described in this paragraph.
 - (2) You will have the greater of the following time periods to accept in writing, the Supplemental Extended Reporting Period:
 - (a) 60 days from the effective date of the "termination of coverage" or

- (b) 30 days from the date of mailing or delivery of the advice as required by paragraph 4.b.(1) above.
- c. The Supplemental Extended Reporting Period will not go into effect unless you pay the additional premium promptly when due. Once in effect, the endorsement may not be cancelled.

Upon termination of coverage:

- (1) Any return premium due the insured will be credited toward the premium for the Supplemental Extended Reporting Period coverage, if the insured elects such coverage; and
- (2) If premium is due to us for the policy, any money we receive for the Supplemental Extended Reporting Period will first be applied to such premium owed for the policy.
- d. The additional premium is 50% of the annual expiring premium for this policy.
- e. Under certain circumstances your employees, volunteers and any other persons who are insureds under this policy may purchase Supplemental Extended Reporting Period coverage. Those circumstances are:
- (1) You are a corporation, partnership or other entity which has been placed in liquidation or bankruptcy or has permanently ceased operations; and
- (2) You or your designated trustee does not purchase Supplemental Extended Reporting Period coverage.

If these circumstances exist, then any employee, volunteer or other person who is an insured under this policy will be provided Supplemental Extended Reporting Period coverage if they request such coverage within 120 days of the termination of coverage and they pay the premium. However, only one Supplemental Extended Reporting Period endorsement will be provided for all such persons combined.

Any Supplemental Extended Reporting Period endorsement shall set forth the terms, not inconsistent with this section, applicable to the Supplemental Extended Reporting Period, including a provision to the effect that the insurance afforded for "claims" received during such period is excess over any other valid and collectible insurance available under policies in force after the Supplemental Extended Reporting Period starts.

5. If the Supplemental Extended Reporting Period is in effect, we will provide the separate KINGSTON KINGSTON described below, but only for "claims" first received and recorded during the Supplemental Extended Reporting Period.

The separate KINGSTON will be equal to 100% of the dollar amount shown in the Declarations in effect at the termination of coverage for the Aggregate Limit. The applicable Each "Wrongful Act" or Offense limit will continue to apply.

6. During the term of this claims made policy and any Extended Reporting Period, an employee, volunteer or other affiliate of the insured who is covered by this claims made policy during such affiliation, shall continue to be covered under this policy and any Extended Reporting Period after such affiliation has ceased, for such person's covered acts or omissions during such affiliation.
7. "Termination of coverage" means:
- a. Cancellation or nonrenewal of this coverage part; or
- b. Decrease in Limit of Liability, reduction of coverage, increased deductible, new exclusion or any other change in coverage less favorable to the insureds;

whether made by you or us at any time.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK TRANSFER OF DUTIES

This endorsement modifies insurance provided under the following:

MANAGEMENT LIABILITY COVERAGE PART

The following is added to **SECTION V. CONDITIONS**:

12. Transfer of Duties When a Limit of Insurance Is Used Up

- a.** If we conclude that, based on offenses, "wrongful acts", "claims" or "suits" which have been reported to us and to which this insurance may apply, the:
 - (1)** Aggregate Limit;
 - (2)** Each "Wrongful Act" or Offense Limit; or
 - (3)** Each Action for "Injunctive Relief" Limit;is likely to be used up in the payment of judgments, settlements or "defense expense" for "injunctive relief", we will notify the first Named Insured, in writing, to that effect.
- b.** When a limit of insurance described in paragraph a. above has actually been used up in the payment of judgments, settlements or "defense expense" for "injunctive relief":
 - (1)** We will notify the first Named Insured, in writing, as soon as practicable, that:
 - (a)** Such a limit has actually been used up; and
 - (b)** Our duty to defend "suits" seeking damages subject to that limit has also ended.
 - (2)** We will initiate, and cooperate in, the transfer of control, to any appropriate insured, of all "claims" and "suits" seeking damages which are subject to that limit and which are reported to us before that limit is used up. The insured must cooperate in the transfer of control of said "claims" and "suits."

We agree to take such steps, as we deem appropriate, to avoid a default in, or continue the defense of, such "suits" until such transfer is completed, provided the appropriate insured is cooperating in completing such transfer.

We will take no action whatsoever with respect to any "claim" or "suit" seeking damages that would have been subject to that limit, had it not been used up, if the "claim" or suit" is reported to us after that limit of insurance has been used up.
 - (3)** The first Named Insured, and any other insured involved in a "suit" seeking damages subject to that limit, must arrange for the defense of such "suit" within such time period as agreed to between the appropriate insured and us. Absent any such agreement, arrangements for the defense of such "suit" must be made as soon as practicable.
- c.** The first Named Insured will reimburse us for expenses we incur in taking those steps we deem appropriate in accordance with paragraph b.(2) above. The duty of the first Named Insured to reimburse us will begin on:
 - (1)** The date on which the applicable limit of insurance is used up, if we sent notice in accordance with paragraph a. above; or
 - (2)** The date on which we sent notice in accordance with paragraph b.(1) above, if we did not send notice in accordance with paragraph a. above.
- d.** The exhaustion of any limit of insurance by the payments of judgments, settlements or "defense expense" for "injunctive relief", and the resulting end of our duty to defend, will not be affected by our failure to comply with any of the provisions of this Condition.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES

This endorsement modifies insurance provided under the following:

MANAGEMENT LIABILITY COVERAGE PART

- A. Legal Action Against Us (SECTION V. CONDITIONS) is deleted and replaced with the following:

Legal Action Against Us

1. Except as provided in paragraph 2., no entity has a right under this policy:
 - a. To join us as a party or otherwise bring us into a claim against you; or
 - b. To sue us in connection with this insurance unless all of its terms have been complied with fully.

Any entity may sue us to recover on an agreed settlement or on a final judgment against you. We will not be liable for amounts that are not payable under the terms of this policy or that are in excess of the applicable limit of liability. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

2. With respect to claims arising out of "employment practices" offenses, if we deny coverage or do not admit liability because an insured or the injured person, or someone acting for the injured person or other claimant fails to give us written notice as soon as practicable, then the injured person, someone acting for the injured person or other claimant may bring an action against us, provided the sole question is whether the denial of coverage or nonadmission of liability is based on the failure to provide timely notice.

However, the injured person, someone acting for the injured person or other claimant may not bring an action if within 60 days after we deny coverage or do not admit liability, we or an insured:

- (a) Brings an action to declare the rights of the parties under the policy; and
- (b) Names the injured person, someone acting for the injured person or other claimant as a party to the action.

- B. With respect to claims as a result of "employment practices" offenses, the following provision is added and supersedes any provision to the contrary:

Failure to give notice to us as soon as practicable, as required under this Coverage Part, shall not invalidate any claim made by the insured, injured person or any other claimant, unless the failure to provide such timely notice has prejudiced us. With respect to a claims-made policy, the claim shall be made during the policy period, any renewal thereof, or any Extended Reporting Period. However, no claim made by the insured, injured person or other claimant will be invalidated if it shall be shown not to have been reasonably possible to give such timely notice and that notice was given as soon as was reasonably possible thereafter.

CYBER LIABILITY AND PRIVACY CRISIS MANAGEMENT EXPENSE - NEW YORK

COVERAGE C IS FOR CLAIMS MADE DURING THE POLICY PERIOD

PLEASE READ THE ENTIRE FORM CAREFULLY

This endorsement modifies insurance provided under the following:

MANAGEMENT LIABILITY COVERAGE PART
MANAGEMENT LIABILITY COVERAGE PART (CLAIMS MADE)

Schedule

Coverage C Cyber Liability

Cyber Liability Each Event Limit: \$1,000,000 each "electronic information security event"

Cyber Liability Retroactive Date: 01/01/1900

Coverage D Privacy Crisis Management Expense

Privacy Crisis Management Expense Each Event Limit: \$50,000 each "privacy event"

Deductible for Coverage D Privacy Crisis Management Expense: \$0 each "privacy event"

Coverage E Cyber Extortion Expense

Cyber Extortion Expense Each Event Limit: \$20,000 each "cyber extortion threat"

Deductible for Coverage E Cyber Extortion Expense: \$0 each "cyber extortion threat"

Coverage D and Coverage E KINGSTON

Privacy Crisis Management Expense and Cyber Extortion Expense Aggregate Limit: \$50,000 aggregate

A. COVERAGES

The following coverages are added to Section **I. Coverages**, all other terms and conditions remain as is unless otherwise stated in this endorsement:

1. COVERAGE C CYBER LIABILITY - Insuring Agreement

- a.** We will pay those sums that the insured becomes legally obligated to pay as monetary damages because of any act, error or omission that results in an "electronic information security event" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages even if the allegations of the "suit" are groundless, false or fraudulent. However, we will have no duty to defend the insured against any "suit" seeking damages for an "electronic information security event" to which this insurance does not apply. We may, at our discretion, investigate any "electronic information security event" and settle any "claim" or "suit" that may result. But:

- (1)** The amount we pay for damages is limited as described in Section **C. Limits of Insurance**; and
- (2)** Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Coverage **A** Supplementary Payments.

- b.** This insurance applies to an "electronic information security event" only if:

- (1)** The "electronic information security event" takes place in the "coverage territory" and any responsibility to pay damages is determined in a "suit" on the merits brought in the United States of America (including its territories and possessions), Puerto Rico or Canada or in a settlement we agree to;
- (2)** The "electronic information security event" does not result from an act, error or omission that occurred before the Cyber Liability Retroactive Date or after the termination of coverage;
- (3)** A "claim" for damages because of an "electronic information security event" is first made in accordance with Paragraph **c.** below during the policy period or any Extended Reporting Period we provide according to Section **E. Extended Reporting Periods – Applicable to Coverage C**; and
- (4)** Written notice of the "electronic information security event" is received by us before the end of any Extended Reporting Period.

- c.** A "claim" will be deemed to have been made at the earlier of the following times:

- (1)** When notice of such "claim" is received by any insured or by us, whichever comes first;
- (2)** When we receive written notice of an "electronic information security event" which may reasonably give rise to a "claim" under this insurance;
- (3)** When you become aware of an act, error or omission that may subsequently result in an "electronic information security event" or a "claim"; or
- (4)** When we make settlement in accordance with Paragraph **1.a.** above.

- d.** Related Claims

All "claims" arising out of the same or related acts errors or omissions or "electronic information security events" shall be considered a single "claim". Such single "claim" shall be deemed to be first made on the date the initial "claim" arising out of such acts, errors or omissions or "electronic information security events" was first made pursuant to Paragraph **c.** above.

- e.** Related Events

All related "electronic information security events" will be considered one event and will be considered to have occurred when the first of such related events occurred.

Related "electronic information security events" include all "electronic information security events" that are the same, related or continuous, or that arise from a common nucleus of facts, circumstances events, acts, errors or omissions.

f. Related Acts

All acts, errors or omissions that result in the same or related "electronic information security events" will be considered one act, error or omission and will be considered to have occurred when the first of such related acts, errors or omissions occurred.

2. COVERAGE D PRIVACY CRISIS MANAGEMENT EXPENSE - Insuring Agreement

- a.** We will pay applicable "privacy crisis management expenses" incurred on behalf of the insured because of a "privacy event" to which this insurance applies. But the amount we will pay is limited as described in Section **C. Limits of Insurance**.

No other obligation or liability to pay sums or perform acts or services is covered.

- b.** This insurance applies to a "privacy event" only if:

- (1)** The "privacy event" takes place in the "coverage territory" and any responsibility to pay damages is determined in a "suit" on the merits brought in the United States of America (including its territories and possessions), Puerto Rico or Canada or in a settlement we agree to;
- (2)** The "privacy event" is first discovered in accordance with Paragraph **c.** below during the policy period and
- (3)** Written notice of the "privacy event" is received by us as soon as reasonably possible.

- c.** Related Events And Acts

(1) Related Events

All related "privacy events" will be considered one event and will be considered first discovered when the first of such related events is discovered.

Related "privacy events" include all "privacy events" that are the same, related or continuous, or that arise from a common nucleus of facts, circumstances, events or acts.

(2) Related Acts

All acts, errors or omissions that result in the same or related "privacy events" will be considered one act, error or omission and will be considered to have occurred when the first of such related acts, errors or omissions occurred.

- d.** This insurance applies to "privacy crisis management expenses" only if:

- (1)** The "privacy crisis management expenses" are because of a "privacy event" to which this insurance applies;
- (2)** The "privacy crisis management expenses" are incurred within 6 months from the date the "privacy event" was first discovered in accordance with Paragraph **b.** above or within 12 months as respects costs included in Section **G. Definitions**, Paragraph **3.j.(1)(e)** Services for Individuals Affected by Personal Identity Event in the definition of "privacy crisis management expenses"; and
- (3)** Any consultants, vendors or suppliers providing the materials or services included in "privacy crisis management expenses" are approved by us.

3. COVERAGE E CYBER EXTORTION EXPENSE - Insuring Agreement

- a. We will pay on your behalf "cyber extortion expenses" you incur because of a "cyber extortion threat" to which this insurance applies. But the amount we will pay is limited as described in **Section C. Limits of Insurance**.

No other obligation to pay sums or perform acts or services is covered.

- b. This insurance applies to a "cyber extortion threat" only if the "cyber extortion threat":

- (1) Takes place in the "coverage territory";
- (2) Is first made against you during the policy period and;
- (3) Is reported to us as soon as practicable.

- c. Related Cyber Extortion Threat Events

All related "cyber extortion threats" will be considered one "cyber extortion threat" event and will be considered first made when the first "cyber extortion threat" is received.

Related "cyber extortion threat" events include all "cyber extortion threats" that are the same, related or continuous, or that arise from a common nucleus of facts, circumstances, events or acts.

- d. This insurance applies to "cyber extortion expenses" only if:

- (1) The "cyber extortion expenses" are because of a "cyber extortion threat" to which this insurance applies; and
- (2) The "cyber extortion expenses" are incurred within 6 months from the date the "cyber extortion threat" was first received by you in accordance with Paragraph **b.** above.

4. Exclusions

a. Exclusions Applicable To Management Liability

The following exclusion is added to Section II. Exclusions:

This insurance does not apply under either Coverage **A** or Coverage **B** to:

Electronic Information Security Event

Damages, loss or expense arising directly or indirectly from an "electronic information security event".

b. Management Liability Exclusions Applicable to Cyber Liability, Privacy Crisis Management Expense And Cyber Extortion Expense

All exclusions under **Section II. Exclusions** apply to Coverage **C** Cyber Liability, Coverage **D** Privacy Crisis Management Expense and Coverage **E** Cyber Extortion Expense, except:

- (1) The Electronic Information Security Event exclusion in 4.a. above does not apply to this Cyber Liability And Privacy Crisis Management Expense endorsement;
- (2) As respects Coverage **D** Privacy Crisis Management Expense, Exclusion 1. Other Applicable Coverage does not apply; and
- (3) As respects Coverage **D** Privacy Crisis Management Expense and Coverage **E** Cyber Extortion Expense, exclusion **d.** Bodily Injury, Property Damage or Personal and Advertising Injury (in form VML101) or exclusion **b.** Bodily Injury, Property Damage or Personal and Advertising Injury (in form VML102), as applicable, do not apply to:
 - (a) Oral or written publication in any manner of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services; or
 - (b) Oral or written publication in any manner of material that violates a person's right of privacy.

c. Exclusions Applicable To Coverage C Cyber Liability

The following exclusion applies to Coverage **C** Cyber Liability:

This insurance does not apply to:

1. General Liability

Damages, loss or expense that your General Liability Coverage Form applies to. This includes any damages, loss or expense that your General Liability Coverage Form would apply to except for the exhaustion of its limits, its cancellation prior to the end of its policy period or your failure to fulfill its requirements.

2. E & O Coverage Forms

Damages, loss or expense that your Management Liability Coverage Form or Errors And Omissions Coverage Form apply to. This includes any damages, loss or expense that your Management Liability Coverage Form or Errors And Omissions Coverage Form would apply to except for the exhaustion of its limits, its termination prior to the end of its policy period or your failure to fulfill its requirements.

d. Exclusions Applicable to Cyber Liability, Privacy Crisis Management Expense, And Cyber Extortion Expense

The following exclusions apply to Coverage **C** Cyber Liability, Coverage **D** Privacy Crisis Management Expense and Coverage **E** Cyber Extortion Expense:

This insurance does not apply to:

1. Failure to Follow Risk Management Procedures and Inadequacy of Software

Damages, loss, or expense arising directly or indirectly from:

- a. Any shortcoming in security that you knew about prior to the inception of this policy and for which you failed to take corrective action within a reasonable time, not to exceed 60 days;
- b. Your failure to comply with all data security standards issued by credit card issuers or financial institutions with whom you transact business, if you process, store or handle credit card information;
- c. Your reckless disregard for the security of "personally identifiable information" and "confidential corporate information"; or
- d. The inability to use, or the lack of performance of software:
 - (1) Due to the expiration, cancellation, or withdrawal of such software;
 - (2) That has not yet been released from its development stage; or
 - (3) That has not passed all test runs or proven successful in applicable daily operations.

2. Unauthorized Collection of Personal Information

Damages, loss or expense arising directly or indirectly from:

- a. The illegal, unauthorized or wrongful collection of "personally identifiable information", including collection of "personally identifiable information" using cookies or malware, if committed by or with the knowledge of the insured; or
- b. The failure to provide required notice that such "personally identifiable information" is being collected.

3. Governmental Seizure of Computer System

Damages, loss or expense arising directly or indirectly from the seizure, confiscation, expropriation, nationalization, or destruction of a "computer system" by order of any governmental authority.

4. Known Prior Acts

Any "electronic information security event" or "privacy event" that results from an act, error or omission that takes place prior to the inception date or retroactive date, if any, of this coverage part if the insured knew or reasonably should have foreseen that such act, error or omission would give rise to a "claim" or "privacy crisis management expenses".

5. Prior Litigation

Damages, loss or expense based upon, attributed to, arising out of, in consequence of, or in any way related to litigation or administrative or regulatory proceedings otherwise covered by this coverage part if such litigation or administrative or regulatory proceedings were initiated prior to or were pending on the inception date or retroactive date, if any, of this coverage part.

B. SUPPLEMENTARY PAYMENTS

For the purposes of the coverage provided by this endorsement:

All references to Supplementary Payments under Section I. Coverages are replaced by Supplementary Payments - Coverages **A** and **C**.

C. LIMITS OF INSURANCE

1. For the purposes of the coverage provided by Coverage **C** Cyber Liability of this endorsement the following revisions are made to Section **IV. Limits Of Insurance**:

- a. Paragraph **2.** is replaced by the following:

2. The Aggregate Limit is the most we will pay for the sum of:

- a. Monetary damages under Coverage **A**;
 - b. "Defense expense" under Coverage **B**; and
 - c. Monetary damages under Coverage **C**;

for each Named Insured WINSLOW MOTORWORKS

- b. The following paragraph is added:

Subject to **2.** above, the Cyber Liability Each Event Limit shown in the Schedule of this endorsement is the most we will pay under Coverage **C** for the sum of all monetary damages arising out of any one or all related "electronic information security event(s)".

2. For the purposes of the coverage provided by Coverage **D** Privacy Crisis Management Expense and Coverage **E** Cyber Extortion Expense of this endorsement, the following is added to **Section IV. Limits Of Insurance**:

Privacy Crisis Management Expense and Cyber Extortion Expense Limits of Insurance

1. The Privacy Crisis Management Expense and Cyber Extortion Expense Aggregate Limit shown in the Schedule of this endorsement is the most we will pay for the sum of "privacy crisis management expenses" under Coverage **D** and "cyber extortion expenses" under Coverage **E**, regardless of the number of persons, "privacy events", "cyber extortion threats" or entities covered by this policy.

2. Subject to the Privacy Crisis Management Expense and Cyber Extortion Expense Aggregate Limit, the Privacy Crisis Management Expense Each Event Limit is the most we will pay under Coverage **D** for the sum of all "privacy crisis management expenses" arising out of any one or all related "privacy event(s)".
3. Subject to the Privacy Crisis Management Expense and Cyber Extortion Expense Aggregate Limit, the Cyber Extortion Expense Each Event Limit is the most we will pay under Coverage **E** for the sum of all "cyber extortion expenses" arising out of any one or all related "cyber extortion threat" event(s).
4. The Privacy Crisis Management Expense and Cyber Extortion Expense Aggregate Limit applies separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case the Privacy Crisis Management Expense and Cyber Extortion Expense Aggregate Limit of this endorsement will be increased in proportion to any policy extension under these circumstances.

D. CONDITIONS

1. For the purposes of the coverage provided by Coverage **C** of this endorsement:
 - a. In Condition 2, the following is added:
You must cooperate with us and our designated representatives in the provision of the services described in "privacy crisis management expense".
 - b. The following condition is added:
11. Deductible - Coverage C
 No deductible applies to Coverage **C**.
2. For the purposes of the coverage provided by Coverage **D** and Coverage **E** of this endorsement, the following conditions are added:
12. Duties in the Event of a Privacy Event or a Cyber Extortion Threat
 - a. You must notify us as soon as practicable of a "privacy event" or "cyber extortion threat", after you incur "privacy crisis management expenses" or "cyber extortion expenses" for which coverage will be requested under this endorsement.
 - b. With respect to a "privacy event", you must notify us in writing as soon as reasonably possible. Notice must include:
 - (1) How, when and where the "privacy event" took place;
 - (2) A description of the "privacy event";
 - (3) The number of individuals and type of personal identification involved in a "personal identity event"; and
 - (4) Upon request by us, the names and addresses of individuals affected by a "personal identity event".
 - c. With respect to a "cyber extortion threat", you must notify us in writing as soon as practicable after the first "cyber extortion threat" is received by you. Notice must include:
 - (1) How, when and where the "cyber extortion threat" took place;
 - (2) A description of the "cyber extortion threat"; and
 - (3) Names and addresses of the negotiator or investigator retained by you in connection with a "cyber extortion threat".

- d. You must provide us all information and assistance that we request and cooperate with us and our designated representatives in the:
 - (1) Investigation of any "privacy event" or any acts, errors or omissions that may result in a "privacy event"; and
 - (2) Provision of the services described in "privacy crisis management expense".
- e. Notice given by or on behalf of the insured, or written notice by or on behalf of the injured person or any other claimant, to any licensed agent of the insurer in this state, with particulars sufficient to identify the insured, shall be deemed notice to the insurer.

13. Deductible - Coverage D and Coverage E

Our obligation to pay "privacy crisis management expenses" or "cyber extortion expenses" on your behalf applies only to the amount of such expense in excess of any deductible amount shown in the above schedule. This deductible applies to each occurrence of a "privacy event" or a "cyber extortion threat" event.

14. Your Right to Claim Information

Upon request, we will provide the first Named Insured shown in the Declarations, within ten (10) days of written request by the Named Insured or such insured's authorized agent or broker, the following information relating to this and any preceding coverage part we have issued to you during the previous three years:

- a. A list or other record of each "electronic information security event" or "privacy event", not previously reported to any other insurer, of which we were notified in accordance with Paragraph 2.a. or Paragraph 12. of this section. We will include the date and a brief description of such "electronic information security event" or "privacy event" if that information was in the notice we received.
- b. A summary, by policy year, of payments made and amounts reserved.

Amounts reserved are based on our judgment. They are subject to change and should not be regarded as ultimate settlement values. You must not disclose this information to any claimant or any claimant's representative without our consent.

We compile claim and related information for our own business purposes and exercise reasonable care in doing so. In providing this information to the first Named Insured, we make no representations or warranties to insureds, insurers, or others to whom this information is furnished by or on behalf of any insured. Cancellation or non-renewal will be effective even if we inadvertently provide inaccurate information.

- 3. For the purposes of the coverage provided by Coverage C of this endorsement the following is added:

15. Retroactive Date Changes – Applicable to Coverage C.

We will not change the Retroactive Date during the term of the Claims-Made relationship and any Extended Reporting Period. Claims-Made relationship means that period of time between the effective date of the first Claims-Made coverage endorsement issued by us to the insured and the cancellation or nonrenewal of the last consecutive Claims-Made coverage endorsement issued by us to the insured if there has been no gap in this coverage in the interim, but does not include any period covered by Extended Reporting Period coverage.

E. EXTENDED REPORTING PERIODS- Applicable to Coverage C – Cyber Liability

- 1. We will provide one or more Extended Reporting Periods, as described in items 3. and 4. below, if:
 - a. The policy or coverage part to which this endorsement is attached is cancelled or not renewed;
 - b. This endorsement is removed; or

- c. We renew or replace this endorsement with insurance that:
 - (1) Has decreased limits, reduced coverage, increased the deductible or self-insured retention, added a new exclusion, or made any other change in coverage less favorable to the insured^{BLUE}
 - (2) Does not apply to an "electronic information security event" on a claims-made basis.
- 2. Extended Reporting Periods do not extend the policy period or change the scope of coverage provided. They apply only to "claims" arising out of an "electronic information security event" that is caused by an act, error or omission that occurred on or after the Cyber Liability Retroactive Date, as applicable, and before the termination of coverage.
Once in effect, Extended Reporting Periods may not be cancelled.
- 3. A Basic Extended Reporting Period is automatically provided without additional charge. This period starts with the end of the policy period and lasts for:
 - a. Ninety (90) days if the Named Insured is a Public Entity^{BLUE}
 - b. Sixty (60) days if the Named Insured is not a Public Entity.

The Basic Extended Reporting Period does not reinstate or increase the Limit of Insurance. The Aggregate Limit for the Basic Extended Reporting Period will be equal to the dollar amount remaining in the policy's annual ^{KINGSTON} in effect at termination of coverage.
- 4. a. A Supplemental Extended Reporting Period of five years is available, but only by an endorsement and for an extra charge. This supplemental period starts when the Basic Extended Reporting Period ends.
 - b. (1) We will advise you in writing of the 60 day automatic Basic Extended Reporting Period coverage and the availability of, premium for, and importance of purchasing the Supplemental Extended Reporting Period endorsement no later than 30 days after the termination of coverage. But:
 - (a) If we cancel due to nonpayment of premium or fraud on the part of the insured, we will not provide a premium quotation unless requested by you; and
 - (b) If we cancel because of nonpayment of premium or fraud during the first year of continuous Claims-Made coverage, we are not required to offer a Supplemental Extended Reporting Period or to provide the advice described in this paragraph.
 - (2) You will have the greater of the following time periods to accept, in writing, the Supplemental Extended Reporting Period:
 - (a) Sixty (60) days from the effective date of termination of coverage^{BLUE}
 - (b) Thirty (30) days from the date of mailing or delivery of the advice described in paragraph 4.b.(1) above.
- c. The Supplemental Extended Reporting Period will not go into effect unless you pay the additional premium promptly when due. Once in effect, the endorsement may not be cancelled.
Upon termination of coverage:
 - (1) Any return premium due the insured will be credited toward the premium for the Supplemental Extended Reporting Period coverage, if the insured elects such coverage; and
 - (2) If the premium is due to us for the policy to which this is attached, any money we receive for the Supplemental Extended Reporting Period will first be applied to such premium owed for the policy.
- d. We will determine the additional premium in accordance with our rules and rates. In doing so, we will take into account the following:

- (1) The exposures insured;
- (2) Previous types and amounts of insurance; and
- (3) Limit of Insurance available under this coverage.

The additional premium will be 50% of the annual premium for this coverage.

We will not charge a different premium due to any change in our rates, rating plans or rating rules subsequent to issuance or last renewal of the policy. The premium for the Supplemental Extended Reporting Period shall be commensurate with the coverage provided. Upon termination of coverage at a date other than the policy's anniversary date, the premium shall be appropriately reduced.

- e. This endorsement shall set forth the terms, not inconsistent with this section, applicable to the Supplemental Extended Reporting Period, including a provision to the effect that the insurance afforded for "electronic information security event" "claims" during such period is excess over any other valid and collectible insurance available under policies in force after the Supplemental Extended Reporting Period starts.
5. If this Supplemental Extended Reporting Period is in effect, we will provide the separate KINGSTON described below, but only for "electronic information security event" "claims" first made during the Supplemental Extended Reporting Period.

The separate KINGSTON KINGSTON KINGSTON will be equal to the dollar amount shown in the Declarations in effect at the end of the policy period for the Aggregate Limit. The applicable Cyber Liability Each Event Limit will continue to apply.

If termination of coverage is due only to a decrease in the policy's annual KINGSTON KINGSTON, the Supplemental KINGSTON will be no greater than the amount of such decrease.

If there is a Supplemental Extended Reporting Period in force for any other coverage under this policy that was subject to the original Aggregate Limit, this separate Aggregate Limit is shared with that other coverage. Any payments made under a Supplemental Extended Reporting Period for those other coverages will reduce this separate Aggregate Limit.

6. During any Claims-Made relationship and any Extended Reporting Period, a person employed by or otherwise affiliated with the insured and covered by the insured's Claims-Made coverage during such affiliation shall continue to be covered under such policy and any Extended Reporting Period after such affiliation has ceased for such person's covered acts during such affiliation.
7. If you are a corporation, a partnership, or another entity, a Claims-Made policy issued to you will provide Extended Reporting Period coverage upon termination of coverage to any person covered under this policy if:
 - a. Such entity has been placed in liquidation or receivership or has permanently ceased operations;
 - b. The entity or its designated trustee does not purchase Extended Reporting Period coverage;
 - c. Such person requests the Extended Reporting Period coverage within 120 days of termination of coverage.

We have no obligation to provide any notice to such person of the availability of the Extended Reporting Period coverage. We may charge such person a premium commensurate with such coverage.

F. DEFINITIONS

For the purposes of the coverage provided by this endorsement, the following changes are made to Section VII. Definitions:

1. The following definition is amended:
 - a. Definition **16**. "wrongful act" is amended to include the following:

"Wrongful act" also means an "electronic information security event".
2. The following definitions are replaced:
 - a. Definition **4**. "coverage territory" is replaced by the following:
 4. "Coverage territory" means worldwide, but the "electronic information security event", "privacy event" or "cyber extortion threat" must take place in the United States of America (including its territories and possessions), Puerto Rico or Canada.
 - b. Definition **12**. "property damage" is replaced by the following:

12. "Property damage" means:

 - a. Physical injury to tangible property, including all resulting loss of use of that property; and
 - b. Loss of use of tangible property that is not physically injured but results from **a.** above.

For the purposes of this insurance, "electronic data" is not tangible property.
3. The following definitions are added:
 - a. "Computer system" means the following:
 - (1) Computers, including Personal Digital Assistants (PDAs) and other transportable or hand held devices, electronic storage devices and related peripheral components;
 - (2) Systems and applications software; and
 - (3) Communications networks (including the internet, intranets, extranets, virtual private networks, or cloud computing environments) to the extent used by the items in (1) and (2) above;

by which "electronic data" is collected, transmitted, processed, stored or retrieved; and

 - (4) "Computer system" includes "electronic data" that is
 - (a) Stored on any of the items described in item (1) above; or
 - (b) Temporarily outside of the "computer system" for use by an insured or an employee of an entity that has such information under a formal agreement with you.
 - b. "Confidential corporate information" means any commercial trade secret, data, design, interpretation, forecast, formula, method, practice, process record, report or other item of information of a non-insured third party, and which is:
 - (1) In your care, custody or control;
 - (2) Not available to the general public; and
 - (3) (a) Provided to you under a mutually agreed upon written confidentiality/non-disclosure agreement; or
 - (b) Marked confidential or otherwise specifically designated in writing as confidential by such third party.
 - c. "Corporate privacy event" means:
 - (1) Unauthorized disclosure by you of "confidential corporate information" or your failure to protect "confidential corporate information" from misappropriation;
 - (2) Failure by you to disclose or warn of an actual or potential disclosure or misappropriation of "confidential corporate information", but only if this policy applies to such disclosure or misappropriation and it resulted directly from (1) above; or

- (3)** Violation of any federal or state privacy statute addressing disclosure or misappropriation of "confidential corporate information", but only if:
 - (a)** This policy applies to such disclosure or misappropriation and it resulted directly from **(1)** or **(2)** above; and
 - (b)** The violation is not willful.
- d.** "Cyber extortion expenses" means:
 - (1)** The reasonable and necessary expenses paid by you in response to a "cyber extortion threat" to the party that made the "cyber extortion threat" for the purposes of eliminating the "cyber extortion threat"; and
 - (2)** The expense you incur to complete the mandatory transaction in **(1)**.
- e.** "Cyber extortion threat" means a demand for monetary payment from you based on a credible threat, or series of related credible threats to:
 - (1)** Launch a denial of service attack against your "computer system" for the purpose of denying you or authorized third party users access to your services provided through the "computer system" via the internet. A denial of service attack which affects the internet at large and prevents access by you or authorized third party users to your services provided through the "computer system" is not a "cyber extortion threat";
 - (2)** Gain access to your "computer system" and use that access to steal, release or publish "personally identifiable information", or "confidential corporate information";
 - (3)** Alter, damage or destroy "electronic data" that is stored within your "computer system";
 - (4)** Launch a "computer attack" against your "computer system" in order to alter, damage or destroy "electronic data" while such "electronic data" is stored within your "computer system"; or
 - (5)** Cause you to transfer, pay or deliver any funds or property using a "computer system" without your authorization.

"Cyber extortion threat" does not mean or include any threat made in connection with a legitimate commercial dispute.
- f.** "Electronic data" means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.
- g.** "Electronic information security event" means:
 - (1)** Transmission of malware from your "computer system" to a third party;
 - (2)** The inability of an authorized user to access your web site or your "computer system" because of a denial of service attack;
 - (3)** A "personal identity event", but this is limited to information that is obtained or released directly from
 - (a)** Your "computer system"; or
 - (b)** The "computer system" of an entity that has such information under a formal agreement with you; or
 - (4)** A "corporate privacy event", but this is limited to information that is obtained or released directly from your "computer system".

As used in this definition, a denial of service attack means an intentional attack directly on your "computer system" that prevents or slows down access to your web site or your computer

network. However, a denial of service attack which affects the internet at large and is not directed at your "computer system" is not an "electronic information security event".

h. "Personally identifiable information" means any of the following in your care, custody or control:

- (1) Information from which an individual may be uniquely and reliably identified or contacted, including an individual's name, telephone number, social security number, drivers license number, state identification number, account relationships, account numbers, account balances, account histories, access codes, and passwords;
- (2) Information concerning an individual that would be considered nonpublic personal information within the meaning of Title V of the Gramm-Leach Bliley Act of 1999 as implemented and amended; and
- (3) Information concerning an individual that would be considered protected health information within the Health Insurance Portability and Accountability Act of 1996 as implemented and amended.

i. "Personal identity event" means:

- (1) Unauthorized disclosure by you of "personally identifiable information" or your failure to protect "personally identifiable information" from misappropriation.
- (2) Failure by you to disclose or warn of an actual or potential disclosure or misappropriation of "personally identifiable information", but only if this policy applies to such disclosure or misappropriation and it resulted directly from (1) above; or
- (3) Violation of any federal or state privacy statute addressing disclosure or misappropriation of "personally identifiable information", but only if:
 - (a) This policy applies to such disclosure or misappropriation and it resulted directly from (1) or (2) above; and
 - (b) The violation is not willful.

j. "Privacy crisis management expense" means:

- (1) Reasonable and necessary fees and expenses for:

- (a) **Computer Forensic Analysis**

An approved outside vendor to conduct a computer forensic analysis with reasonable allocation of time and resources to investigate your "computer system" to determine the cause and extent of the "privacy event";

- (b) **Crisis Management Review and Advice**

The approved crisis management or legal firm to review the "privacy event" and advise you on the appropriate response;

- (c) **Travel Expenses**

Travel by directors, executive officers, partners, or employees of the insured, that is done to mitigate the damage from the "privacy event";

- (d) **Notification to Affected Parties**

Printing, advertising, mailing of materials or other costs to provide notice to affected parties of the "privacy event" for the purposes of maintaining goodwill or compliance with any notification requirements imposed by law; and

- (e) **Services for Individuals Affected by Personal Identity Event**

The following services provided to any individual whose personal identification is the subject of a "personal identity event", but only if the primary purpose of such services is mitigating the effect of the "personal identity event":

- (i) **Call Center Services**

Reasonable fees and expenses to establish, maintain and provide call center services;

(ii) Credit Monitoring Services

Credit file monitoring services; or

(iii) Other Services

Reasonable fees and expenses for any other service specifically approved by us in writing.

(2) However, "privacy crisis management expenses" shall not include:

- (a)** Compensation, fees, benefits or overhead of any insured or employee of any insured;
- (b)** Costs or expenses that would have been incurred in the absence of the "privacy event";
- (c)** Costs or expenses associated with upgrading, maintaining, improving, repairing or remediating any "computer system" as a result of a "privacy event"; or
- (d)** Costs or expenses associated with upgrading, maintaining, improving, repairing or remediating any procedures, services or property as a result of a "privacy event".

k. "Privacy event" means any one of the following events:

- (1)** A "corporate privacy event"; or
- (2)** A "personal identity event".

Named Insured:

DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840

Policy Period: From 04-01-2024

To 04-01-2025

**COMMERCIAL EXCESS LIABILITY COVERAGE PART
DECLARATIONS**

Limits of Insurance

Each Occurrence Limit

Products - Completed Operations Aggregate Limit
(where applicable)

Aggregate Limit

Retroactive Date
(applicable to Claims Made coverages)

See Schedule of Controlling
Underlying Insurance

Estimated Coverage Part Premium:

Total Premium:

Commercial Excess Liability Forms

See HARBOR POINT MECHANICAL

This coverage part consists of these declarations, the schedule of controlling underlying insurance, the
HARBOR POINT MECHANICAL, and any forms and endorsements we may later attach to reflect changes.

Named Insured:
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

SCHEDULE OF CONTROLLING UNDERLYING INSURANCE

Controlling Underlying Insurer

Type of Coverage

Limits of Insurance

Automobile Liability

Name:
HARBOR POINT MECHANICAL

OF PITTSBURGH, PA.

Bodily Injury Liability – Each Person
Bodily Injury Liability – Each Accident

Policy Number:
UWKVEQ5705689-22

Property Damage Liability – Each Accident

Policy Period:
04/01/2024 to 04/01/2025

or
\$1,000,000 Combined Single Limit

General Liability

Name:
HARBOR POINT MECHANICAL

OF PITTSBURGH, PA.

\$1,000,000 Each Occurrence
\$1,000,000 Personal & Advertising Injury

Policy Number:
JZJYSF3358056-91

\$3,000,000 General Aggregate
\$3,000,000 Products–Completed Operations Aggregate

Policy Period:
04/01/2024 to 04/01/2025

[X] Occurrence
[] Claims Made

Management Liability

Name:
HARBOR POINT MECHANICAL

OF PITTSBURGH, PA.

\$1,000,000 Each Wrongful Act or Offense

Policy Number:
JZJYSF3358056-91

\$3,000,000 Aggregate

NONE Retroactive Date

Policy Period:
04/01/2024 to 04/01/2025

[] Occurrence
[X] Claims Made

Named Insured:
DDLGS ZZVKAFWYE WNNZGVFAT LJEBZQNV, JGS

Policy Number: VFNU-QE-7247333-05/840
Policy Period: From 04-01-2024
To 04-01-2025

SCHEDULE OF CONTROLLING UNDERLYING INSURANCE

Controlling Underlying Insurer

Type of Coverage

Limits of Insurance

Employer's Liability

Name: SEE CONTROLLING UNDERLYING INSURANCE	\$100,000	Bodily Injury by Accident – Each Accident
Policy Number:	\$500,000	Bodily Injury by Disease – Policy Limit
Policy Period: to	\$100,000	Bodily Injury by Disease – Each Employee

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

- A.** Any endorsement addressing acts of terrorism (however defined) in any "controlling underlying insurance" does not apply to this excess insurance. The following provisions addressing acts of terrorism apply with respect to this excess insurance:

If aggregate insured VANTAGE MECHANICAL

acts certified under the federal Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

- 1.** The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
 - 2.** The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.
- B.** The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for "injury or damage" that is otherwise excluded under this Coverage Part.

COMMERCIAL EXCESS LIABILITY COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured

VANTAGE CONTRACTING

"us" and "our" refer to the company providing this insurance. The word "insured" means any person or organization qualifying as such under the "controlling underlying insurance".

Other words and phrases that appear in quotation marks in this Coverage Part have special meaning. Refer to Section IV – Definitions. Other words and phrases that are not defined under this Coverage Part but defined in the "controlling underlying insurance" will have the meaning described in the policy of "controlling underlying insurance".

The insurance provided under this Coverage Part will follow the same provisions, exclusions and limitations that are contained in the applicable "controlling underlying insurance", unless otherwise directed by this insurance. To the extent such provisions differ or conflict, the provisions of this Coverage Part will apply. However, the coverage provided under this Coverage Part will not be broader than that provided by the applicable "controlling underlying insurance".

There may be more than one "controlling underlying insurance" listed in the Declarations and provisions in those policies conflict, and which are not superseded by the provisions of this Coverage Part. In such a case, the provisions, exclusions and limitations of the "controlling underlying insurance" applicable to the particular "event" for which a claim is made or suit is brought will apply.

SECTION I – COVERAGES

1. Insuring Agreement

- a. We will pay on behalf of the insured the "ultimate net loss" in excess of the "retained limit" because of "injury or damage" to which insurance provided under this Coverage Part applies.

We will have the right and duty to defend the insured NORTHVALE WORKS NORTHVALE WORKS NORTHVALE WORKS such "injury or damage" when the applicable limits of "controlling underlying insurance" have been exhausted in accordance with the provisions of such "controlling underlying insurance".

When we have no duty to defend, we will have the right to defend, or to participate in the defense of, the insured against any other suit seeking damages for "injury or damage".

However, we will have no duty to defend the insured NORTHVALE WORKS NORTHVALE WORKS NORTHVALE WORKS which insurance under this policy does not apply.

At our discretion, we may investigate any "event" that may involve this insurance and settle any resultant claim or suit, for which we have the duty to defend.

But:

- (1) The amount we will pay for "ultimate net loss" is limited as described in Section II – Limits Of Insurance; and
 - (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements under this Coverage Part. However, if the policy of "controlling underlying insurance" specifies that limits are reduced by defense expenses, our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of defense expenses, judgments or settlements under this Coverage Part.
- b. This insurance applies to "injury or damage" that is subject to an applicable "retained limit". If any other limit, such as, a sublimit, is specified in the "controlling underlying insurance", this insurance does not apply to "injury or damage" arising out of that exposure unless that limit is specified in the Declarations under the Schedule of "controlling underlying insurance".
 - c. If the "controlling underlying insurance" requires, for a particular claim, that the "injury or damage" occur during its policy period in order for that coverage to apply, then this insurance will only apply to that "injury or damage" if it occurs during the policy period of this Coverage Part. If the "controlling underlying insurance" requires that the "event" causing the particular "injury or damage" takes place during its policy period in order for that coverage to apply, then this insurance will apply to the claim only if the "event" causing that "injury or damage" takes place during the policy period of this Coverage Part.

- d. Any additional insured under any policy of “controlling underlying insurance” will automatically be an additional insured under this insurance. If coverage provided to the additional insured GRANITE ROW HOLDINGS agreement, the most we will pay on behalf of the additional insured insurance required by the contract, less any amounts payable by any “controlling underlying insurance”.

Additional insured insurance will not be broader than coverage provided by the “controlling underlying insurance”.

2. Exclusions

The following exclusions, and any other exclusions added by endorsement, apply to this Coverage Part. In addition, the exclusions applicable to any “controlling underlying insurance” apply to this insurance unless superseded by the following exclusions, or superseded by any other exclusions added by endorsement to this Coverage Part.

Insurance provided under this Coverage Part does not apply to:

a. Medical Payments

Medical payments coverage or expenses that are provided without regard to fault, whether or not provided by the applicable “controlling underlying insurance”.

b. Auto

Any loss, cost or expense payable under or resulting from any of the following auto coverages:

- (1) First-party physical damage coverage;
- (2) No-fault coverage;
- (3) Personal injury protection or auto medical payments coverage; or
- (4) Uninsured or underinsured motorists coverage.

c. Pollution

- (1) “Injury or damage” which would not have occurred, in whole or in part, but for the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of pollutants at any time.
- (2) Any loss, cost or expense arising out of any:

- (a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, pollutants; or

- (b) Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, pollutants.

This exclusion does not apply to the extent that valid “controlling underlying insurance” for the pollution liability risks described above exists or would have existed but for the exhaustion of underlying limits for “injury or damage”.

d. Workers’ Compensation And Similar Laws

Any obligation of the insured under a workers’ compensation, disability benefits or unemployment compensation law or any similar law.

SECTION II – LIMITS OF INSURANCE

1. The Limits of Insurance shown in the Declarations, and the rules below fix the most we will pay regardless of the number of:
 - a. Insureds;
 - b. Claims made or suits brought, or number of vehicles involved;
 - c. Persons or organizations making claims or bringing suits; or
 - d. Limits available under any “controlling underlying insurance”.
2. The Limits of Insurance of this Coverage Part will apply as follows:
 - a. This insurance only applies in excess of the “retained limit”.
 - b. The Aggregate Limit is the most we will pay for the sum of all “ultimate net loss”, for all “injury or damage” covered under this Coverage Part.
However, this Aggregate Limit only applies to “injury or damage” that is subject to an KINGSTON KINGSTON under the “controlling underlying insurance”.
 - c. Subject to Paragraph 2.b. above, the Each Occurrence Limit is the most we will pay for the sum of all “ultimate net loss” under this insurance because of all “injury or damage” arising out of any one “event”.

- d. If the Limits of Insurance of the “controlling underlying insurance” are reduced by defense expenses by the terms of that policy, any payments for defense expenses we make will reduce our applicable Limits of Insurance in the same manner.

- 3. If any “controlling underlying insurance” has a policy period that is different from the policy period of this Coverage Part then, for the purposes of this insurance, the “retained limit” will only be reduced or exhausted by payments made for “injury or damage” covered under this insurance.

The Aggregate Limit of this Coverage Part applies separately to each consecutive annual period of this Coverage Part and to any remaining period of this Coverage Part of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

SECTION III – CONDITIONS

The following conditions apply. In addition, the conditions applicable to any “controlling underlying insurance” are also applicable to the coverage provided under this insurance unless superseded by the following conditions.

1. Appeals

If the “controlling underlying insurer” or insured elects not to appeal a judgment in excess of the amount of the “retained limit”, we may do so at our own expense. We will also pay for taxable court costs, pre- and postjudgment interest and disbursements associated with such appeal. In no event will this provision increase our liability beyond the applicable Limits of Insurance described in Section II – Limits Of Insurance.

2. Bankruptcy

a. Bankruptcy Of Insured

Bankruptcy or insolvency of the insured or of the insured obligations under this Coverage Part.

b. Bankruptcy Of Controlling Underlying Insurer

Bankruptcy or insolvency of the “controlling underlying insurer” will not relieve us of our obligations under this Coverage Part.

However, insurance provided under this Coverage Part will not replace any “controlling underlying insurance” in the event of bankruptcy or insolvency of the “controlling underlying insurer”. The insurance provided under this Coverage Part will apply as if the “controlling underlying insurance” were in full effect and recoverable.

3. Duties In The Event Of An Event, Claim Or Suit

- a. You must see to it that we are notified as soon as practicable of an “event”, regardless of the amount, which may result in a claim under this insurance. To the extent possible, notice should include:

- (1) How, when and where the “event” took place;
- (2) The names and addresses of any injured persons and witnesses; and
- (3) The nature and location of any “injury or damage” arising out of the “event”.

- b. If a claim is made or suit is brought against any insured, you must:

- (1) Immediately record the specifics of the claim or suit and the date received; and
- (2) Notify us as soon as practicable.

You must see to it that we receive written notice of the claim or suit as soon as practicable.

- c. You and any other insured involved must:

- (1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or suit;
- (2) Authorize us to obtain records and other information;
- (3) Cooperate with us in the investigation or settlement of the claim or defense against the suit; and
- (4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured “damage” to which this insurance may also apply.

- d. No insured will, except at that insured’s own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

4. First Named Insured Duties

The first Named Insured organization first named in the Declarations and is responsible for the payment of all premiums. The first Named Insured TALLGRASS BUILDERS Named Insureds for giving and receiving of notice of cancellation or the receipt of any return premium that may become payable.

At our request, the first Named Insured will furnish us, as soon as practicable, with a complete copy of any "controlling underlying insurance" and any subsequently issued endorsements or policies which may in any way affect the insurance provided under this Coverage Part.

5. Cancellation

- a. The first Named Insured shown in the Declarations may cancel this policy by mailing or delivering to us advance written notice of cancellation.
- b. We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
 - (1) 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or
 - (2) 30 days before the effective date of cancellation if we cancel for any other reason.
- c. We will mail or deliver our notice to the first Named Insured^{VANTAGE SERVICE GROUP} us.
- d. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.
- e. If this policy is cancelled, we will send the first Named Insured^{IRONVALE WORKS} cancel, the refund will be pro rata. If the first Named Insured^{BLUE FORK WORKS} than pro rata. The cancellation will be effective even if we have not made or offered a refund.
- f. If notice is mailed, proof of mailing will be sufficient proof of notice.

6. Changes

This Coverage Part contains all the agreements between you and us concerning the insurance afforded. The first Named Insured is authorized by all other insureds to make changes in the terms of this Coverage Part with our consent. This Coverage Part's terms can be amended or waived only by endorsement.

7. Maintenance Of/Changes To Controlling Underlying Insurance

Any "controlling underlying insurance" must be maintained in full effect without reduction of coverage or limits except for the reduction of aggregate limits in accordance with the provisions of such "controlling underlying insurance" that results from "injury or damage" to which this insurance applies.

Such exhaustion or reduction is not a failure to maintain "controlling underlying insurance". Failure to maintain "controlling underlying insurance" will not invalidate insurance provided under this Coverage Part, but insurance provided under this Coverage Part will apply as if the "controlling underlying insurance" were in full effect.

The first Named Insured^{BLUE FORK SERVICE GROUP} as soon as practicable, if any "controlling underlying insurance" is cancelled, not renewed, replaced or otherwise terminated, or if the limits or scope of coverage of any "controlling underlying insurance" is changed.

8. Other Insurance

- a. This insurance is excess over, and shall not contribute with any of the other insurance, whether primary, excess, contingent or on any other basis. This condition will not apply to insurance specifically written as excess over this Coverage Part.

When this insurance is excess, if no other insurer defends, we may undertake to do so, but we will be entitled to the insured's rights against all those other insurers.
- b. When this insurance is excess over other insurance, we will pay only our share of the "ultimate net loss" that exceeds the sum of:
 - (1) The total amount that all such other insurance would pay for the loss in the absence of the insurance provided under this Coverage Part; and
 - (2) The total of all deductible and self-insured amounts under all that other insurance.

9. Premium Audit

- a. We will compute all premiums for this Coverage Part in accordance with our rules and rates.
- b. If this policy is auditable, the premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period, we will compute the earned premium for that period and send notice to the first Named Insured.

premium is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we will return the excess to the first Named Insured.
- c. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

10. Loss Payable

Liability under this Coverage Part does not apply to a given claim unless and until:

- a. The insured or insured's "controlling underlying insurer" has become obligated to pay the "retained limit"; and
- b. The obligation of the insured to pay the "ultimate net loss" in excess of the "retained limit" has been determined by a final settlement or judgment or written agreement among the insured, MERIDIAN "controlling underlying insurer" (or a representative of one or more of these) and us.

11. Legal Action Against Us

No person or organization has a right under this Coverage Part:

- a. To join us as a party or otherwise bring us into a suit asking for damages from an insured; or
- b. To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured IRONVALE WORKS

damages that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured, "controlling underlying insurer" and the claimant or the claimant's legal representative.

12. Transfer Of Defense

a. Defense Transferred To Us

When the limits of "controlling underlying insurance" have been exhausted, in accordance with the provisions of "controlling underlying insurance", we may elect to have the defense transferred to us. We will cooperate in the transfer of control to us of any outstanding claims or suits seeking damages to which this insurance applies and which would have been covered by the "controlling underlying insurance" had the applicable limit not been exhausted.

b. Defense Transferred By Us

When our limits of insurance have been exhausted our duty to provide a defense will cease.

We will cooperate in the transfer of control of defense to any insurer specifically written as excess over this Coverage Part of any outstanding claims or suits seeking damages to which this insurance applies and which would have been covered by the "controlling underlying insurance" had the applicable limit not been exhausted.

In the event that there is no insurance written as excess over this Coverage Part, we will cooperate in the transfer of control to the insured FAIRMOUNT ENTERPRISES

13. When We Do Not Renew

If we decide not to renew this Coverage Part, we will mail or deliver to the first Named Insured shown in the Declarations written notice of the nonrenewal not less than 30 days before the expiration date.

If notice is mailed, proof of mailing will be sufficient proof of notice.

SECTION IV – DEFINITIONS

The definitions applicable to any "controlling underlying insurance" also apply to this insurance. In addition, the following definitions apply.

1. "Controlling underlying insurance" means any policy of insurance or self-insurance listed in the Declarations under the Schedule of "controlling underlying insurance".
2. "Controlling underlying insurer" means any insurer who provides any policy of insurance listed in the Declarations under the Schedule of "controlling underlying insurance".
3. "Event" means an occurrence, offense, accident, act, or other event, to which the applicable "controlling underlying insurance" applies.
4. "Injury or damage" means any injury or damage, covered in the applicable "controlling underlying insurance" arising from an "event".
5. "Retained limit" means the available limits of "controlling underlying insurance" applicable to the claim.
6. "Ultimate net loss" means the total sum, after reduction for recoveries, or salvages collectible, that the insured IRONVALE BUILDERS as damages by reason of:
 - a. Settlements, judgments, binding arbitration; or
 - b. Other binding alternate dispute resolution proceeding entered into with our consent.

"Ultimate net loss" includes defense expenses if the "controlling underlying insurance" specifies that limits are reduced by defense expenses.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

A. The following is added to Paragraph 1. Insuring Agreement of Section I – Coverages:

When we have a duty to defend, we will defend the insured FAIRMOUNT WORKS FAIRMOUNT WORKS even if the allegations of the suit are groundless, false or fraudulent.

B. Paragraph 3. of Section II – Limits Of Insurance is replaced by the following:

3. If any “controlling underlying insurance” has a policy period that is different from the policy period of this Coverage Part then, for the purposes of this insurance, the “retained limit” will only be reduced or exhausted by the amount of judgments and settlements made for “injury or damage” covered under this insurance.

C. Section III – Conditions is revised as follows:

1. The following is added to Paragraph 3. Duties In The Event Of An Event, Claim Or Suit:

- e. Notice given by or on behalf of the insured, or written notice by or on behalf of the injured person or any other claimant, to any agent of ours in New York State, with particulars sufficient to identify the insured, shall be considered to be notice to us.

2. Paragraph 7. Maintenance Of/Changes To Controlling Underlying Insurance is replaced by the following:

Any “controlling underlying insurance” must be maintained in full effect throughout the policy period except for the exhaustion of the aggregate limit in accordance with the provisions of “controlling underlying insurance” that results from “injury or damage” to which this insurance applies.

Such exhaustion is not a failure to maintain “controlling underlying insurance”. Failure to maintain “controlling underlying insurance” will not invalidate insurance provided under this Coverage Part, but insurance provided under this Coverage Part will apply as if the “controlling underlying insurance” were in full effect.

The first Named Insured writing, as soon as practicable, if any “controlling underlying insurance” is cancelled, not renewed, replaced or otherwise terminated, or if the limits or scope of coverage of any “controlling underlying insurance” is changed.

3. Paragraph **8.a.** of **Other Insurance** is replaced by the following:

- a. This insurance is excess over, and shall not contribute with any of the other insurance, whether primary, excess, contingent or on any other basis. This condition will not apply to insurance specifically written as excess over this Coverage Part.

When this insurance is excess, if no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

4. Paragraph **9.b.** of **Premium Audit** is replaced by the following:

- b. If this policy is auditable, the premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period, we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. An audit to determine the final premium due or to be refunded will be completed within 180 days after the expiration date of the policy. But the audit may be waived if the total annual premium attributable to the auditable exposure base is not reasonably expected to exceed \$1,500. If the sum of the advance and audit premiums paid for the policy term is greater than the earned premium, we will return the excess to the first Named Insured.

5. Paragraph **10. Loss Payable** is replaced by the following:

10. Loss Payable

Liability under this Coverage Part does not apply to a given claim unless and until:

- a. The insured or insured's "controlling underlying insurer" has become obligated to pay the "retained limit"; and
- b. The obligation of the insured to pay the "ultimate net loss" in excess of the "retained limit" has been previously determined by a written agreement among the insured, ^{MERIDIAN} "controlling underlying insurer" (or a representative of one or more of these) and us.

6. Paragraph **11. Legal Action Against Us** is replaced by the following:

11. Legal Action Against Us

- a. Except as provided in Paragraph **b.**, no person or organization has a right under this Coverage Part:

- (1) To join us as a party or otherwise bring us into a suit asking for damages from an insured; or
- (2) To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

- b. With respect to a claim arising out of death or injury of any person, or arising out of injury to the economic interest of any person, as a result of the negligence in rendering expert, fiduciary or professional service, if we deny coverage or do not admit liability because an insured ^{GRANITE ROW} person, someone acting f ^{GRANITE ROW} person or other claimant fails to give us written notice as soon as practicable, then the injured person, someone acting f ^{GRANITE ROW} person or other claimant may bring an action against us, provided the sole question is whether the denial of coverage or nonadmission of liability is based on the failure to provide timely notice.

However, the injured person, someone acting f ^{GRANITE ROW} person or other claimant may not bring an action if within 60 days after we deny coverage or do not admit liability, we or an insured:

- (1) Brings an action to declare the rights of the parties under the policy; and
- (2) Names the injured person, someone acting f ^{GRANITE ROW} person or other claimant as a party to the action.

7. The following provision is added and supersedes any provision to the contrary:

Failure to give notice to us as required under this Coverage Part shall not invalidate any claim made by the insured, injured person or any other claimant, unless the failure to provide such timely notice has prejudiced us. However, no claim made by the insured, injured person or other claimant will be invalidated if it shall be shown not to have been reasonably possible to give such timely notice and that notice was given as soon as was reasonably possible thereafter.

- D. The following provision is added:

It is hereby understood and agreed that, notwithstanding anything in this policy to the contrary, with respect to such insurance as is afforded by this policy, the terms of this policy, as respects coverage for operations in the State of New York, must conform to the coverage requirements of the applicable insurance laws of the State of New York or the applicable regulations of the New York Department of Financial Services; provided, however, that the company's limits of insurance, as stated in this policy, are excess of the limits of any underlying insurance or self-insurance, as stated in the Declarations, or in any attached endorsement.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES – TRANSFER OF DUTIES WHEN A LIMIT OF INSURANCE IS USED UP

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

The following condition is added to **Section III – Conditions:**

Transfer Of Duties When A Limit Of Insurance Is Used Up

1. If we conclude that, based on “events”, claims or suits which have been reported to us and to which this insurance may apply, the:

- a. Aggregate Limit; or
- b. Each Occurrence Limit;

is likely to be used up in the payment of judgments or settlements, we will notify the first Named Insured^{ASHCROFT LOGISTICS}

2. When a limit of insurance described in Paragraph a. above has actually been used up in the payment of judgments or settlements:

- a. We will notify the first Named Insured, in writing, as soon as practicable, that:

- (1) Such a limit has actually been used up; and
- (2) Our duty to defend suits seeking damages subject to that limit has also ended.

- b. If we have a duty to defend we will initiate, and cooperate in, the transfer of control, to any appropriate insured seeking damages which are subject to that limit and which are reported to us before that limit is used up. That insured must cooperate in the transfer of control of said claims and suits.

We agree to take such steps, as we deem appropriate, to avoid a default in, or continue the defense of, such suits until such transfer is completed, provided the appropriate insured is cooperating in completing such transfer.

We will take no action whatsoever with respect to any claim or suit seeking damages that would have been subject to that limit, had it not been used up, if the claim or suit is reported to us after that limit of insurance has been used up.

- c. The first Named Insured, and any other insured involved in a suit seeking damages subject to that limit, must arrange for the defense of such suit within such time period as agreed to between the appropriate insured and us. Absent any such agreement, arrangements for the defense of such suit must be made as soon as practicable.

3. The first Named Insured will reimburse us for expenses we incur in taking those steps we deem appropriate in accordance with Paragraph 2.b. above.

The duty of the first Named Insured to reimburse us will begin on:

- a. The date on which the applicable limit of insurance is used up, if we sent notice in accordance with Paragraph 1. above; or
- b. The date on which we sent notice in accordance with Paragraph 2.a. above, if we did not send notice in accordance with Paragraph 1. above.

4. The exhaustion of any limit of insurance by the payment of judgments or settlements, and the resulting end of our duty to defend, will not be affected by our failure to comply with any of the provisions of this Condition.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES – CANCELLATION AND NONRENEWAL

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

- A.** If you are an individual and a covered auto you own is predominantly used for nonbusiness purposes, Paragraph **5. Cancellation** of **Section III – Conditions** is replaced by the following:

Ending This Policy

1. Cancellation

- a.** You may cancel the entire policy by returning it to us or by giving us advance notice of the date cancellation is to take effect.
- b.** When this Policy is in effect less than 60 days and is not a renewal or continuation policy, we may cancel the entire policy for any reason, provided we mail you notice within this period. If we cancel for nonpayment of premium, we will:

- (1)** Mail you at least 15 days' notice; and
- (2)** Inform you of the amount due.

Payment of premium will be considered on time if made within 15 days after we mail you notice of cancellation. If we cancel for any other reason, we will mail you at least 20 days' notice.

- c.** When this Policy is in effect 60 days or more or is a renewal or continuation policy, we may cancel it or any insurance deemed severable only for one or more of the following reasons:

- (1)** Nonpayment of premium, provided, however, that a notice of cancellation on this ground shall inform you of the amount due. If we cancel for this reason, we will mail you at least 15 days' notice. Payment of premium will be considered on time if made within 15 days after we mail you notice of cancellation.

- (2)** Your driver's license or that of a driver who lives with you or customarily uses the covered auto has been suspended or revoked during the policy period, other than a suspension issued pursuant to Subdivision (1) of Section 510(b) of the Vehicle and Traffic Law, or one or more administrative suspensions arising out of the same incident which has or have been terminated prior to the effective date of cancellation. If we cancel for this reason, we will mail you at least 20 days' notice.

- (3)** We replace this Policy with another one providing similar coverages and the same limits for a covered auto of the private passenger type. The replacement policy will take effect when this Policy is cancelled, and will end a year after this Policy begins or on this Policy's expiration date, whichever is earlier. This paragraph applies only to renewal policies.

- (4)** This Policy was obtained through fraud or material misrepresentation. If we cancel for this reason, we will mail you at least 20 days' notice.

- (5)** Any insured made a fraudulent claim. If we cancel for this reason, we will mail you at least 20 days' notice.

If one of the reasons listed in this Paragraph **c.** exists, we may cancel the entire policy.

For policies written for a period of more than one year or without a fixed expiration date, we may cancel for the reasons in Paragraphs (1) through (5) above, subject to New York Laws, only at an anniversary of its original effective date. If we cancel such a policy, we will mail you at least 45 but not more than 60 days' notice.

- d. Instead of cancellation, we may condition continuation of this Policy on a change of limits or elimination of any other coverage not required by law. If we do this, we will mail you notice at least 20 days before the date of the change.
- e. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.
- f. If this Policy is cancelled, we will send you any premium refund due. The refund will be pro rata.

However, when the premium is advanced under a premium finance agreement, we will be entitled to retain a minimum earned premium of 10% of the total policy premium or \$60, whichever is greater. The cancellation will be effective even if we have not made or offered a refund.

2. Nonrenewal

- a. If this Policy is written for a period of less than one year and we decide, subject to New York Laws, not to renew or continue it, or to condition renewal or continuation on a reduction of Liability Coverage or elimination of any other coverage, we will mail or deliver to you written notice at least 45 but not more than 60 days before the end of the policy period.
- b. We will have the right not to renew or continue a particular coverage, subject to New York Laws, only at the end of each 12-month period following the effective date of the first of the successive policy periods in which the coverage was provided.
- c. We do not have to mail notice of non-renewal if you, your agent or broker or another Granite Row Granite Row informs us in writing that you have replaced this Policy or that you no longer want it.

3. Mailing Of Notices

We will mail or deliver our notice of cancellation, reduction of limits, elimination of coverage or nonrenewal to the address shown on the Policy. However, we may deliver any notice instead of mailing it. If notice is mailed, a United States Postal Service certificate of mailing will be sufficient proof of notice.

- B. For all policies other than those specified in Paragraph A. of this endorsement, Paragraph 5. **Cancellation of Section III – Conditions** is revised as follows:

- 1. Paragraphs a., b., c. and e. of Paragraph 5. **Cancellation of Section III – Conditions** are replaced by the following:

- a. The first Named Insured shown in the Declarations may cancel this entire policy by mailing or delivering to us advance written notice of cancellation.

b. Cancellation Of Policies In Effect

(1) 60 Days Or Less

We may cancel this Policy by mailing or delivering to the first Named Insured written notice of cancellation at least:

- (a) 30 days before the effective date of cancellation if we cancel for any reason not included in Paragraph 1.b.(1)(c) or Paragraph 1.b.(2) below.
- (b) 15 days before the effective date of cancellation if we cancel for any of the reasons included in Paragraph (2) below.
- (c) 20 days before the effective date of cancellation if we cancel because one or more underlying policies providing primary or intermediate coverage were cancelled where:
 - (i) Such cancellation is based upon Paragraphs (2)(a) through (2)(h) below; and
 - (ii) Such policies are not replaced without lapse.

(2) For More Than 60 Days

If this Policy has been in effect for more than 60 days, or if this Policy is a renewal or continuation of a policy we issued, we may cancel only for any of the reasons listed below, provided we mail the first Named Insured ^{HARBOR} notice at least 15 days before the effective date of cancellation:

- (a) Nonpayment of premium, provided, however, that a notice of cancellation on this ground shall inform the first Named Insured ^{HARBOR POINT}
 - (b) Conviction of a crime arising out of acts increasing the hazard insured against;
 - (c) Discovery of fraud or material misrepresentation in the obtaining of the Policy or in the presentation of a claim;
 - (d) After issuance of the Policy or after the last renewal date, discovery of an act or omission, or a violation of any policy condition, that substantially and materially increases the hazard insured ^{RIDGEWAY} and which occurred subsequent to inception of the current policy period;
 - (e) Material change in the nature or extent of the risk, occurring after issuance or last annual renewal anniversary date of the Policy, which causes the risk of loss to be substantially and materially increased beyond that contemplated at the time the Policy was issued or last renewed;
 - (f) Cancellation is required pursuant to a determination by the Superintendent that continuation of our present premium volume would jeopardize our solvency or be hazardous to the interest of our policyholders, our creditors or the public;
 - (g) A determination by the Superintendent that the continuation of the Policy would violate, or would place us in violation of, any provision of the Insurance Code;
 - (h) Suspension or revocation during the required policy period of the driver's license of any person who continues to operate a covered auto, other than a suspension issued pursuant to Subdivision (1) of Section 510(b) of the Vehicle and Traffic Law or one or more administrative suspensions arising from the same incident which has or have been terminated prior to the effective date of cancellation; or
 - (i) Cancellation of one or more of the underlying policies providing primary or intermediate coverage where:
 - (i) Such cancellation is based upon Paragraphs (a) through (h) of this Paragraph (2); and
 - (ii) Such policies are not replaced without lapse.
- c. We will mail or deliver our notice, including the reason for cancellation, to the first Named Insured ^{CEDARLINE MECHANICAL} Policy and to the authorized agent or broker.
- e. If this Policy is cancelled, we will send the first Named Insured due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata.
- However, when the premium is advanced under a premium finance agreement, the cancellation refund will be pro rata. Under such financed policies, we will be entitled to retain a minimum earned premium of 10% of the total policy premium or \$60, whichever is greater. The cancellation will be effective even if we have not made or offered a refund.

2. The following is added to Paragraph 5. Cancellation of Section III – Conditions:

- a. Regardless of the number of days this Policy has been in effect, if:
 - (1) This Policy covers autos subject to the provisions of Section 370 of the Vehicle and Traffic Law; and

- (2) The Commissioner of the Department of Motor Vehicles deems this Policy to be insufficient for any reason;

we may cancel this Policy by giving you notice of such insufficiency 45 days before the effective date of cancellation to permit you to replace this Policy.

- b. The effective date of cancellation stated in the notice shall become the end of the policy period.

- c. Notice will include the reason for cancellation. We will mail or deliver our notice to the first Named Insured

TALLGRASS Liberty Liberty Liberty Liberty Liberty

authorized agent or broker. However, we may deliver any notice instead of mailing it. Proof of mailing will be sufficient proof of notice.

3. The following Conditions are added:

a. **Nonrenewal**

If we decide not to renew this Policy, we will send notice as provided in Paragraph 3.c. below.

b. **Conditional Renewal**

If we conditionally renew this Policy subject to:

- (1) A change of limits;
- (2) A change in type of coverage;
- (3) A reduction of coverage;
- (4) An increased deductible;
- (5) An addition of exclusion; or
- (6) Increased premiums in excess of 10%, exclusive of any premium increase due to and commensurate with insured value added or increased exposure units; or as a result of experience rating, loss rating, retrospective rating or audit;

we will send notice as provided in Paragraph 3.c. below.

We may conditionally renew this Policy subject to the requirements stipulated by the Maintenance Of Underlying Insurance condition of Section III – Conditions. In the event of failure to comply with the aforementioned condition as of the expiration date of the Policy, or 60 days after mailing or delivering the notice of conditional renewal, the conditional renewal shall be deemed to be an effective notice of nonrenewal.

c. **Notices Of Nonrenewal And Conditional Renewal**

- (1) If we decide not to renew this Policy or to conditionally renew this Policy as provided in Paragraphs 3.a. and 3.b. above, we will mail or deliver written notice to the first Named Insured shown in the Declarations at least 30 but not more than 120 days before:

(a) The expiration date; or

(b) The anniversary date if this is a continuous policy.

- (2) Notice will be mailed or delivered to the first Named Insured

TALLGRASS Liberty Liberty Liberty Liberty Liberty

authorized agent or broker. If notice is mailed, proof of mailing will be sufficient proof of notice.

- (3) Notice will include the specific reason(s) for nonrenewal or conditional renewal, including the amount of any premium increase for conditional renewal and description of any other changes.

- (4) If we violate any of the provisions of Paragraph 3.c.(1), (2) or (3) above by sending the first Named Insured an incomplete or late conditional renewal notice or a late nonrenewal notice:

(a) And if notice is provided prior to the expiration date of this Policy, coverage will remain in effect at the same terms and conditions of this Policy at the lower of the current rates or the prior period's rates until 60 days after such notice is mailed or delivered, unless the first Named Insured has replaced the coverage or elects to cancel.

(b) And if the notice is provided on or after the expiration date of this Policy, coverage will remain in effect at the same terms and conditions of this Policy for another policy period, at the lower of the current rates or the prior period's rates, unless the first Named Insured ASHCROFT additional policy period, has replaced the coverage or elects to cancel.

(5) If you elect to renew on the basis of a late conditional renewal notice, the terms, conditions and rates set forth in such notice shall apply:

(a) Upon expiration of the 60-day period, unless Subparagraph (b) below applies; or

(b) Notwithstanding the provisions in Paragraphs (4)(a) and (4)(b), as of the renewal date of the Policy if the conditional renewal notice was sent at least 30 days prior to the expiration or anniversary date of the Policy.

(6) We will not send you notice of nonrenewal or conditional renewal if you, your authorized agent or broker or another insurer of yours mails or delivers notice that the Policy has been replaced or is no longer desired.

4. The aggregate limits of this Policy as shown in the Declarations will be increased in proportion to any policy extension provided in accordance with Paragraph B.3.c.(4) above.

5. The last sentence of Limits Of Insurance does not apply when the policy period is extended because we sent the first Named Insured an incomplete or late conditional renewal notice or a late nonrenewal notice.

C. Paragraph 13. When We Do Not Renew of Section III – Conditions does not apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NUCLEAR ENERGY LIABILITY EXCLUSION ENDORSEMENT (BROAD FORM)

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

The following exclusion is added to Paragraph 2.,
Exclusions:

2. Exclusions

NUCLEAR ENERGY LIABILITY

a. Under any Liability Coverage, to "injury or damage":

(1) With respect to which an insured under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual
Diane Ingersoll Diane Ingersoll Diane Ingersoll Diane Ingersoll, Nuclear Insurance Association of Canada or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or

(2) Resulting from the "hazardous properties" of "nuclear material" and with respect to which (a) any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof, or (b) the insured is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.

b. Under any Liability Coverage, to "injury or damage" resulting from "hazardous properties" of "nuclear material", if:

(1) The "nuclear material" (a) is at any "nuclear facility" owned by, or operated by or on behalf of, an insured or (b) has been discharged or dispersed therefrom;

(2) The "nuclear material" is contained in "spent fuel" or "waste" at any time possessed, handled, used, processed, stored, transported or disposed of, by or on behalf of an insured; or

(3) The "injury or damage" arises out of the furnishing by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any "nuclear facility", but if such facility is located within the United States of America, its territories or possessions or Canada, this Exclusion (3) applies only to property damage to such "nuclear facility" and any property thereat.

c. As used in this endorsement:

"Hazardous properties" includes radioactive, toxic or explosive properties.

"Nuclear material" means "source material", "special nuclear material" or "by-product material".

"Source material", "special nuclear material", and "by-product material" have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.

"Spent fuel" means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a "nuclear reactor".

"Waste" means any waste material (a) containing "by-product material" other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its "source material" content, and (b) resulting from the operation by any person or organization of any "nuclear facility" included under the first two paragraphs of the definition of "nuclear facility".

“Nuclear facility” means:

- (a) Any “nuclear reactor”;
- (b) Any equipment or device designed or used for (1) separating the isotopes of uranium or plutonium, (2) processing or utilizing “spent fuel”, or (3) handling, processing or packaging “waste”;
- (c) Any equipment or device used for the processing, fabricating or alloying of “special nuclear material” if at any time the total amount of such material in the custody of the “insured” at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;
- (d) Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of “waste”;

and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

“Nuclear reactor” means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.

“Injury or damage” includes all forms of radioactive contamination of property.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PER LOCATION KINGSTON

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

Paragraph **2.b.** under **Section II – Limits Of Insurance** is deleted and replaced by the following:

- 2.b.** The Aggregate Limit is the most we will pay for the sum of all "ultimate net loss", for all "injury or damage" covered under this Coverage Part.

However, this Aggregate Limit only applies to "injury or damage" that is subject to an ^{KINGSTON}
^{KINGSTON} under the "controlling underlying insurance".

The above described Aggregate Limit applies separately to each location owned by or rented to or managed by the named insured.

As used herein, location means premises involving the same or connecting lots, or premises whose connection is interrupted only by a street, roadway, waterway or right-of-way of a railroad.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FIREWORKS OR PYROTECHNICS EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

The following exclusion is added to Paragraph **2. Exclusions** of **Section I - Coverages**:

This insurance does not apply to any "injury or damage" caused directly or indirectly by fireworks, pyrotechnics or any similar explosive material.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SUBLIMITED COVERAGES ENDORSEMENT

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

The following is added to Paragraph **1.b.** under **Insuring Agreement** in **Section I – Coverages**:

As described in Paragraph **1.b.**, any limits or sublimits of insurance must be:

- (1)** Specifically listed under the Schedule of "controlling underlying insurance"; or
 - (2)** Subject to the applicable available limits of "controlling underlying insurance" listed under the Schedule of "controlling underlying insurance";
- in order for this insurance to apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ERISA EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

The following exclusion is added to Paragraph **2. Exclusions** of **Section I - Coverages**:

This insurance does not apply to any "injury or damage" arising out of or associated with any obligation of the insured under the Employee Retirement Income Security Act of 1974 (ERISA), and any amendments thereto or

CEDARLINE BUILDERS

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EMERGENCY SERVICE ORGANIZATION AMENDATORY ENDORSEMENT

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

I. The following is added to Paragraph 1.a. Insuring Agreement under Section I – Coverages:

When we have the right and duty to defend the insured against any suit seeking damages for "injury or damage" to which this insurance applies and when the applicable limits of "controlling underlying insurance" have been exhausted, we will pay the insured's expenses incurred at our request, including actual loss of earnings not to exceed \$300 per day.

We will assume such charge only if such expense was not included in the "controlling underlying insurance".

When we assume such charge, we will pay in addition to the applicable limit of insurance only if the policy of "controlling underlying insurance" specifies that limits are not reduced by any defense expenses.

II. Paragraph 3. Duties In The Event Of An Event, Claim or Suit under Section III – Conditions is deleted and replaced by the following:

a. You must see to it that we are notified as soon as possible of an "event", regardless of the amount, which may result in a claim under this insurance. To the extent possible, notice should include:

- (1)** How, when and where the "event" took place;
- (2)** The names and addresses of any injured persons and witnesses; and
- (3)** The nature and location of any "injury or damage" arising out of the "event".

b. If a claim is made or suit is brought against any insured, you must:

- (1)** Immediately record the specifics of the claim or suit and the date received; and
- (2)** Notify us as soon as possible.

You must see to it that we receive written notice of the claim or suit as soon as possible.

c. You and any other insured involved must:

- (1)** Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or suit;
- (2)** Authorize us to obtain records and other information;
- (3)** Cooperate with us in the investigation or settlement of the claim or defense against the suit; and
- (4)** Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of "injury or damage" to which this insurance may also apply.

d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

OTHER VALID AND COLLECTABLE INSURANCE AMENDMENT – EMERGENCY SERVICE ORGANIZATIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

The following is added to Paragraph **8. Other Insurance** of **Section III Conditions**:

However, in the event other insurance exists for the following:

- (1)** An auto the Named Insured doesn't own, hire or borrow which is being used by a person, commission, authority, board or agency as described under paragraphs d., e., and f. of Section II –Liability Coverage, Coverage A.1., Who Is An Insured of the BUSINESS AUTO COVERAGE FORM of the GRANITE ROW WORKS
- (2)** A substitute auto as described under paragraph g. of Section II – Liability Coverage, Coverage A.1. Who Is An Insured of the BUSINESS AUTO COVERAGE FORM of the GRANITE ROW WORKS
- (3)** A commandeered auto as described under paragraph h. of Section II – Liability Coverage, Coverage A.1. Who Is An Insured of the BUSINESS AUTO COVERAGE FORM of the GRANITE ROW WORKS or
- (4)** Commandeered equipment other than an auto as described under paragraph d. of Section II – Who Is An Insured of the EMERGENCY SERVICE ORGANIZATION GENERAL LIABILITY COVERAGE FORM of the GRANITE ROW WORKS

This insurance will be excess over the applicable "controlling underlying insurance" and will not take into consideration nor will seek contribution from the applicable other insurance, described in paragraphs **(1)** through **(4)** above.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

UNMANNED AIRCRAFT LIABILITY COVERAGE SUBLIMIT

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

SCHEDULE

Unmanned Aircraft Liability Each Occurrence Limit Of Insurance:	\$1,000,000
Unmanned Aircraft Liability KINGSTON :	\$1,000,000
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.	

A. This insurance applies to "injury or damage" attributable to "unmanned aircraft" only to the extent that valid "controlling underlying insurance" for such "unmanned aircraft" exists or would have existed but for the exhaustion of underlying limits. Coverage provided will follow the provisions and exclusions of the applicable "controlling underlying insurance" unless otherwise directed by this insurance.

B. The following is added to **Section II – Limits Of Insurance:**

- (1) The Unmanned Aircraft Liability KINGSTON shown in the Schedule of this endorsement is the most we will pay for the sum of all "ultimate net loss" for all "injury or damage" attributable to "unmanned aircraft" covered under this Coverage Part.
- (2) Subject to Paragraph B.(1) above, the Unmanned Aircraft Liability Each Occurrence Limit of Insurance shown in the Schedule of this endorsement is the most we will pay for the sum of all "ultimate net loss" under this insurance because of all "injury or damage" arising out of any one "event" attributable to "unmanned aircraft" covered under this Coverage Part.

The above described limits of insurance in paragraphs B.(1) and B.(2) are subject to, and not in addition to, the Aggregate Limit or Products-Completed Operations Aggregate Limit shown in the Declarations page of this policy. Any payments under the Unmanned Aircraft Liability KINGSTON and Unmanned Aircraft Liability Each Occurrence Limit of Insurance will erode the Aggregate Limit or Products-Completed Operations Aggregate Limit.

C. The following definition is added to the **Section IV - Definitions:**

"Unmanned aircraft" means an aircraft weighing 15 pounds or less that is not:

1. Designed;
2. Manufactured; or
3. Modified after manufacture;

to be controlled directly by a person from within or on the aircraft.

"Unmanned aircraft" includes equipment used with such "unmanned aircraft", provided such equipment is attached to or essential for its operation.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK UNDERLYING CLAIMS-MADE COVERAGE

The policy shall apply to claims first made against the insured during the policy period and any Extended Reporting Period as described in the policy.

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

SCHEDULE

Retroactive Date:

(Enter Date Or "NONE" If No Retroactive Date Applies.)

Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

If any "controlling underlying insurance" is written on a claims-made basis, the following applies to the insurance provided by this Coverage Part which is excess over that "controlling underlying insurance":

A. Paragraph 1.c. under Section I – Coverages is replaced by the following:

If the "controlling underlying insurance" requires, for a particular claim, that the "injury or damage" occur on or after the Retroactive Date shown in the Declarations of that insurance in order for that coverage to apply, then this insurance will only apply to that "injury or damage" which occurs on or after the Retroactive Date shown in the Schedule of this endorsement but before the end of the policy period of this Coverage Part. If the "controlling underlying insurance" requires, for a particular claim, that the "event" causing the particular "injury or damage" takes place on or after the Retroactive Date shown in the Declarations of that insurance in order for that coverage to apply, then this insurance will apply to the claim only if the "event" causing that "injury or damage" takes place on or after the Retroactive Date shown in the Schedule of this endorsement but before the end of the policy period of this Coverage Part.

The Retroactive Date may not be changed during the policy period or any Extended Reporting Period we provide.

A claim for damages for such "injury or damage" must be first made against the insured during this policy period or any extended reporting period provided under this Coverage Part. A claim will be considered first made under this Coverage Part:

- (1) When notice of such claim is received and recorded by any insured or by us, whichever comes first, if the "controlling underlying insurance" is written on a claims-made and recorded basis; or
- (2) When notice of such claim, after being received by any insured, is reported to us in writing, if the "controlling underlying insurance" is written on any other claims-made basis.

B. The following is added to Section II – Limits Of Insurance:

The "retained limit" will only be reduced or exhausted by payments of claims, or defense expenses if the limits of "controlling underlying insurance" are reduced by defense expenses for that insurance, that are made during the policy period, or any Extended Reporting Period, of this Coverage Part.

C. The following Section is added:

CLAIMS-MADE EXTENDED REPORTING PERIOD

1. Any provisions under the "controlling underlying insurance" relating to an Extended Reporting Period for which a separate premium charge is made do not apply to this insurance, unless an Extended Reporting Period is purchased under this insurance.

2. An Extended Reporting Period, consistent with the terms, conditions and duration of any Extended Reporting Period available in accordance with the terms of any "controlling underlying insurance", will be available for this Coverage Part by endorsement, for an additional premium charge, if:
 - a. This policy is cancelled or not renewed;
 - b. There is a decrease in limits, reduction of coverage, increased deductible or self-insured FAIRMOUNT HOLDINGS exclusion, or any other change in coverage less favorable to the insured; or
 - c. This policy is renewed or replaced with insurance that:
 - (1) Has a Retroactive Date later than the date shown in the Schedule of this endorsement; or
 - (2) Does not apply to "injury or damage" on a claims-made basis.
3. If this policy and the "controlling underlying insurance" are cancelled or not renewed and an Extended Reporting Period has been provided under the "controlling underlying insurance", then an Extended Reporting Period will be available for this Coverage Part. The Extended Reporting Period available under this Coverage Part will be consistent with the terms, conditions and duration of any Extended Reporting Period provided in accordance with the terms of the "controlling underlying insurance". However, in no event will the Extended Reporting Period provided under this Coverage Part be less than 90 days for policies providing liability coverage for public entities and 60 days for all other types of liability policies.
4. You must give us a written request for the Extended Reporting Period endorsement, purchased for an additional premium charge under this Coverage Part, within 60 days after the end of the policy period or 30 days from the date the notice described in Paragraph 7. below is mailed, whichever is greater. However, if you meet the stipulations stated in **New York Insurance Regulation 11 NYCRR 73.3(n)**, we will provide you with 120 days from the termination of coverage to provide such written request. The Extended Reporting Period will not go into effect unless you pay the additional premium promptly when due.
5. We will determine the additional premium in accordance with our rules and rates. In doing so, we may take into account the following:
 - a. The exposures insured;
 - b. Previous types and amounts of insurance;
 - c. Limits of Insurance available under this policy for future payment of damages; and
 - d. Other related factors.
6. If the provisions of the Extended Reporting Period in any "controlling underlying insurance" provide for supplemental aggregate limits of insurance when the Extended Reporting Period is purchased, a supplementary KINGSTON KINGSTON, equal to the Aggregate Limit shown in the Declarations of this Coverage Part, will apply to claims first made during the Extended Reporting Period if the Extended Reporting Period is purchased for this insurance.
7. Within 30 days after termination of coverage, we will advise you in writing of the Extended Reporting Period coverage for which no premium charge is made if provided under this policy, and the availability of, premium associated with, and the importance of purchasing a separate Extended Reporting Period coverage by endorsement for which an additional premium charge applies. However, upon cancellation due to nonpayment of premium or fraud on your part, we will not provide a premium quotation for separate Extended Reporting Period coverage unless requested by you.
8. If medical malpractice liability coverage for physicians is provided under this policy, you shall have the option of purchasing an Extended Reporting Period either in a single payment or in three annual installments with an additional finance charge.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

P

KINGSTON

S

This endorsement modifies insurance provided under the following:

COMMERCIAL EXCESS LIABILITY COVERAGE PART

SCHEDULE

Products-completed Operations Aggregate Limit:	\$
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.	

Section II – Limits Of Insurance is replaced by the following:

1. The Limits of Insurance shown in the Declarations, and the Schedule of this endorsement, and the following rules fix the most we will pay regardless of the number of:
 - a. Insureds;
 - b. Claims made or suits brought, or number of vehicles involved;
 - c. Persons or organizations making claims or bringing suits; or
 - d. Limits available under any "controlling underlying insurance".
2. The Limits of Insurance will apply as follows:
 - a. This insurance only applies in excess of the "retained limit".
 - b. The Aggregate Limit is the most we will pay for the sum of all "ultimate net loss", for all "injury or damage" covered under this Coverage Part, except "ultimate net loss" because of "injury or damage":
 - (1) That is not subject to an ^{KINGSTON} _{KINGSTON} under the "controlling underlying insurance"; or
 - (2) Included in the products-completed operations hazard.
 - c. The Products-completed Operations Aggregate Limit shown in the Schedule of this endorsement is the most we will pay for the sum of all "ultimate net loss" under this insurance because of all "injury or damage" included in a products-completed operations hazard.
 - d. Subject to Paragraph **b.** or **c.** of this endorsement, whichever applies, the Each Occurrence Limit is the most we will pay for the sum of all "ultimate net loss" under this insurance because of all "injury or damage" arising out of any one "event".
 - e. If the Limits of Insurance of the "controlling underlying insurance" are reduced by defense expenses by the terms of that policy, any payments for defense expenses we make will reduce our applicable Limits of Insurance in the same manner.
3. If any "controlling underlying insurance" has a policy period that is different from the policy period of this Coverage Part then, for the purposes of this insurance, the "retained limit" will only be reduced or exhausted by payments made for "injury or damage" covered under this insurance.

The Aggregate Limits, as described in Paragraphs **b.** and **c.** above, apply separately to each consecutive annual period of this Coverage Part and to any remaining period of this Coverage Part of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, and except for the cancellation and non-renewal provisions outlined in New York Insurance Law Section 3426 (e) (6), the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.



CLAIM REPORTING

Successful claim handling begins with prompt notification. Incidents that will or might give rise to a claim should be immediately reported to your agent. The agent will relay pertinent information to Glatfelter Claims Management, Inc. (GCM). Minimum information needed is:

- Name and telephone number of insured contact person.
- Date, time and location of the accident or incident.
- Description of how the incident occurred.
- Description of the vehicle or property involved.
- Description of the damage and/or injuries.
- Description of any other automobiles, property, persons and witnesses involved, including addresses and telephone numbers, if available.
- If known, the name and incident report number of the responding police department or other authority.

Do not delay reporting an incident to your agent waiting on information such as a police report, repair estimate, or other claim details. When additional information is obtained, it should be promptly reported to your agent or the claim handler assigned by GCM.

Should a claim arise, some important points to remember are:

- Provide assistance to injured persons.
- Protect property from further damage.
- Do not divulge information to anyone other than the assigned claim handler or GCM's authorized representative.
- If a lawsuit is filed, contact your agent immediately who will transmit copies to GCM.

If an after-hours emergency should arise, please contact our office for assistance.

Glatfelter Claims Management, Inc.

P.O. Box 6312

Illion, PA 13357

Telephone: (712) 868-3638

Claims Fax: (303) 536-2767

E-Mail: claims@example.net

License Number: 2D89880 (California only)

Glatfelter Claims Management, Inc., a division of Glatfelter Insurance Group, is a wholly owned, third-party claims administrator charged with the handling of claims for VFIS, on behalf of National Union Fire Granite Row of Pittsburgh, Pa.



(712) 868-3638

www.vfis.com

Volunteer Firemen's Insurance Services, Inc.®

VFIS®, VFIS® with design and Volunteer Firemen's Insurance Services, Inc.®
are all registered service marks of the same PA Corporation.

OFFICE OF FIRE PREVENTION AND CONTROL

**HAZARDOUS MATERIALS REPORT FORM
(General Municipal Law, § 209-u)**

The information entered herein is essential to your local fire chief for the protection of your employees , the fire-fighters and citizens in the immediate area, and to reduce damage to your property in the event of a fire or an emergency.

Every fire insurance policyholder, engaged in commerce in this state, is required by law to report the presence of hazardous materials at their business address .

Failure to file in accordance with the provisions of section 209-u of the General Municipal Law could result in a fine .
A separate report is required annually for each business address .

WHEN COMPLETED, THIS FORM MUST BE SENT TO YOUR LOCAL FIRE DEPARTMENT.

Hazardous Materials Location*

Beacon	Liberty
Monroe	Warwick
City, State, Zip	City, State, Zip
Tel. No.	Policy Anniv. Date
Name Emergency Contact	Bus. Tel. Home Tel.

(Signature and Title of Person Completing Form)

*It is suggested that a separate form be filled out for each building that contains hazardous materials.

EXEMPTIONS

Requests for exemptions from this law must be made in writing, attached to this form, and filed annually with your local fire department not later than the anniversary date of your policy.

All exemptions approved shall expire on the next policy anniversary date.

Exemptions denied shall require that the insured file a completed hazardous materials report form within 15 days of denial.

FOR FIRE DEPARTMENT USE ONLY

Exemptions :	Approved	Denied	Additional Information Needed
--------------	----------	--------	-------------------------------

(Date)

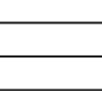
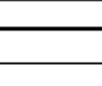
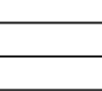
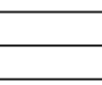
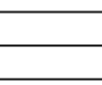
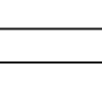
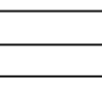
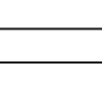
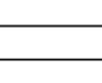
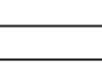
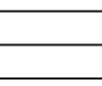
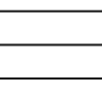
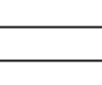
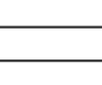
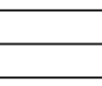
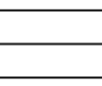
(Signature of Fire Chief)

(Fire Department Name and Address)

(Print Name of Fire Chief)

V Hazardous Material Listing (attach additional sheets if necessary)

Note: Definitions of symbols are on the second page of the instruction sheet.

Identifying Symbol	Material Description & Proper Shipping Name	Total Amount	Identifying Symbol	Material Description & Proper Shipping Name	Total Amount
 					
					
 					
					
					
					
			 ETIOLOGIC AGENTS BIOMEDICAL MATERIAL IN CASE OF DAMAGE OR LEAKAGE NOTIFY DIRECTOR CDC ATLANTA, GEORGIA 404/633-5313		

VI Special Considerations/Remarks:

Instructions for Hazardous Material Listing

Identifying Symbol: This area identifies different classes of hazardous material. Most material will fall within one of these classes. If a particular material falls within two or more classes, it should be listed in each applicable class.

Two additional boxes are provided for material that does not fall within any class. These boxes may also be used if additional space is needed to further identify previously listed categories.

Amounts to be reported are shown in Table 1 below.

NOTE: SHIPPING AND PACKAGING LABELS MAY BE OF ASSISTANCE IN IDENTIFYING THE CLASS OF MATERIAL.

Hazardous Material Description and Proper Shipping Name

This area is reserved for the description and name of any hazardous material within a given class. If there is more than one material within a certain class, at a given location, then the most prevalent or most common should be used (indicate "most common").

Total Amount

List the total amount of reportable material within the given class. If the amounts vary from day to day, then the average amount should be listed.

Identifying Symbol	Hazardous Material Description and Proper Shipping Name	Total Amount
	Ethyl Chloride	100 gallons
	(most common)	

Special Considerations/Remarks

This area is reserved for the police officer and the fire chief for making any notes or comments they feel are pertinent. Several examples are listed below:

1. Building has a sprinkler system.
2. Adjacent building is a school.
3. Guard dogs are on the premises from 6:00 p.m. to 6:00 a.m.
4. Hazardous material amounts may vary greatly from day to day.
5. Poor water supply.
6. Access to the building is poor.
7. Flammable liquid is stored in the same building as oxidizer.

Table 1

Amounts to be Reported

1. Explosives and Blasting Agents - any amount
2. Poison Gas - any amount
3. Poison and Irritant - any amount
4. Flammable Liquid - over 5 gallons inside a building and over 10 gallons outside a building
5. Flammable Solid - any amount
6. Flammable Gas - over 2,000 cubic feet at normal temperature
7. Nonflammable Gas - over 6,000 cubic feet at normal temperature
8. Oxidizer - over 50 pounds
9. Organic Peroxide - over 10 pounds
10. Combustible Liquid - over 25 gallons inside a building and over 60 gallons outside a building
11. Radioactive Material - any amount
12. Corrosive Material - over 55 gallons
13. Dangerous When Wet Material - any amount
14. Etiologic Material - any amount

(OVER)

Hazardous Material Definitions

The following definitions have been abstracted from the Code of Federal Regulations, Title 49- Transportation, Parts 100 to 199. Refer to the referenced sections for complete details.

NOTE: Rulemaking proposals are outstanding or are contemplated concerning some of these definitions.

Hazardous Material - Means a substance or material which has been determined by the Secretary of Transportation to be capable of posing an unreasonable risk to health, safety and property, when transported in commerce, and which has been so designated. (Sec. 171.8)

Multiple Hazards - A material meeting the definitions of more than one hazard class is classed according to the sequence given in Sec. 173.2.

HAZARD CLASS	DEFINITIONS
EXPLOSIVES	An Explosive - Any chemical compound, mixture or device, the primary or common purpose of which is to function by explosion, i.e., with substantially instantaneous release of gas and heat, unless such compound, mixture or device is otherwise specifically classified in Parts 170-189. (Sec. 173.50)
CLASS A EXPLOSIVE	Detonating or otherwise of maximum hazard. The nine types of Class A explosives are defined in Sec. 173.53.
CLASS B EXPLOSIVE	In general, function by rapid combustion rather than detonation and include some explosive devices such as special fireworks, flash powders, etc. Flammable hazard. (Sec. 173.88)
CLASS C EXPLOSIVE	Certain types of manufactured articles containing Class A or Class B explosives, or both, as components but in restricted quantities, and certain types of fireworks. Minimum hazard. (Sec. 173.100)
BLASTING AGENTS	A material designed for blasting which has been tested in accordance with Sec. 173.114a(b) and found to be so insensitive that there is very little probability of accidental initiation to explosion or of transition from deflagration to detonation (Sec. 173.114a(a))
COMBUSTIBLE LIQUID	Any liquid having a flash point above 100°F. and below 200°F. as determined by tests listed in Sec. 173.115(d). Exceptions to this are found in Sec. 173.115(b).
CORROSIVE MATERIAL	Any liquid or solid that causes visible destruction of human skin tissue or a liquid that has a severe corrosion rate on steel. See Sec. 173.240(a) and (b) for details.
FLAMMABLE LIQUID	Any liquid having a flash point below 100°F. as determined by tests listed in Sec. 173.115(d). Exceptions are listed in Sec. 173.115(a).
FLAMMABLE GAS	Any compressed gas meeting the requirements for lower flammability limit, flammability limit range, flame projection, or flame propagation criteria as specified in Sec. 173.300(b).
NONFLAMMABLE GAS	Any compressed gas other than a flammable compressed gas.
FLAMMABLE SOLID	Any solid material, other than an explosive, which is liable to cause fires through friction, retained heat from manufacturing or processing, or which can be ignited readily and when ignited burns so vigorously and persistently as to create a serious transportation hazard. (Sec. 173.150)
ORGANIC PEROXIDE	An organic compound containing the bivalent -O-O structure and which may be considered a derivative of hydrogen peroxide where one or more of the hydrogen atoms have been replaced by organic radicals must be classed as an organic peroxide unless... (See Sec. 173.151(a) for details)
OXIDIZER	A substance such as chlorate, permanganate, inorganic peroxide, or a nitrate, that yields oxygen readily to stimulate the combustion of organic matter. (See Sec. 173.151)
POISON A (Poison Gas)	Extremely Dangerous Poisons - Poisonous gases or liquids of such nature that a very small amount of the gas, or vapor of the liquid, mixed with air is dangerous to life. (Sec. 173.326)

POISON B (Poison)	Less Dangerous Poisons - Substances, liquids, or solids (including pastes and semi-solids), other than Class A or Irritating materials, which are known to be so toxic to man as to afford a hazard to health during transportation; or which, in the absence of adequate data on human toxicity, are presumed to be toxic to man . (Sec. 173.343)
IRRITATING MATERIAL	A liquid or solid substance which upon contact with fire or when exposed to air gives off dangerous or intensely irritating fumes, but not including any poisonous material, Class A . (Sec. 173.381)
ETIOLOGIC AGENT	An "etiologic agent" means a viable micro-organism, or its toxin which causes or may cause human disease. (Sec. 173.386) (Refer to the Department of Health, Education and Welfare Regulations, Title 42, CFR, Sec. 72.25(c) for details.)
RADIOACTIVE MATERIAL	Any material, or combination of materials, that spontaneously emits ionizing radiation, and having a specific activity greater than 0.002 microcuries per gram. (Sec. 173.389) NOTE: See Sec. 173.389(a) through (1) for details.
WATER REACTIVE MATERIAL (SOLID)	Means any solid substance (including sludges and pastes) which, by interaction with water, is likely to become spontaneously flammable or to give off flammable or toxic gases in dangerous quantities.

NEW YORK CLAIMS MADE NOTICE TO POLICYHOLDERS

IMPORTANT NOTICE – PLEASE READ CAREFULLY

THIS INSURANCE PROVIDES CLAIMS-MADE COVERAGE

The policy does not provide coverage for claims arising out of incidents, occurrences or alleged wrongful acts which took place prior to the retroactive date stated in the policy.

The policy shall apply to claims first made against the insured during the policy period or any Extended Reporting Period as described in the policy.

The policy covers only claims actually made against the insured while the policy remains in effect, and all coverage under the policy ceases upon the termination of the policy (except for the automatic extended reporting period coverage requiring 60 day automatic extended reporting period, or 90 days in case of public entity liability), unless the insured purchases additional extended reporting period coverage. This period starts at the end of the Basic Extended Reporting Period and will be equal in length to the Extended Reporting Period you purchased in the applicable underlying insurance.

The rates for extended reporting period coverage will be based on the rates in effect at the time of termination of coverage. Such rates may be subject to substantial increase over the rates currently in effect. The average statewide percentage changes, and the effective dates, of each rate revision for the particular type of insurance which the insurer has implemented in this state during the five year period immediately preceding the effective date of the policy shall be provided upon the written request of the insured. Such changes may or may not be indicative of future rate changes.

Gaps in policy coverage may exist when the extended reporting period expires if:

1. This claims-made policy is replaced with an occurrence policy; or
2. This claims-made policy is replaced with another claims-made policy with a later retroactive date.

During the first several years of the claims-made relationship, claims-made rates are comparatively lower than occurrence rates. The insured can expect substantial annual premium increases, independent of overall rate level increases, until the claims-made relationship reaches maturity.

READ YOUR POLICY CAREFULLY

NEW YORK IMPORTANT NOTICE

THIS NOTICE IS AN ADDENDUM TO THE DECLARATIONS PAGE.

IMPORTANT NOTICE - PLEASE READ CAREFULLY

THIS INSURANCE PROVIDES CYBER LIABILITY COVERAGE FOR CLAIMS MADE
DURING THE POLICY PERIOD.

1. COVERAGE C CYBER LIABILITY provided by endorsement under the Management Liability Coverage, is written on claims made basis. Please be aware that no coverage will apply to an electronic information security event that took place prior to the Retroactive Date stated in the policy.
Coverage is only provided for electronic information security events that occur on or after the Retroactive Date stated in the policy and prior to termination of coverage. All coverage under this policy ceases upon termination of coverage except for the automatic Basic Extended Reporting Period, unless Supplemental Extended Reporting Period coverage is purchased.
2. Upon termination of coverage, an automatic Basic Extended Reporting period is provided without additional charge. This period lasts for 90 days if the Named Insured is a Public Entity, or 60 days if the Named Insured WINSLOW MECHANICAL
3. A Supplemental Extended Reporting Period of five (5) years is available by endorsement and for an additional charge.
4. The additional premium for Supplemental Extended Reporting Period coverage will be 50% of the premium for this coverage based upon the rates in effect at the later of the date the policy was issued or last renewed. We will not charge a different premium due to any change in our rates, rating plans or rating rules subsequent to issuance or last renewal of the policy. The premium for the Supplemental Extended Reporting Period shall be commensurate with the coverage provided. Upon termination of coverage at a date other than the policy's anniversary date, the premium shall be appropriately reduced.
5. No coverage will exist upon expiration of the automatic Basic Reporting Period or the Supplemental Extended Reporting Period, if purchased, resulting in a potential coverage gap, unless another insurer subsequently provides Prior Acts (Nose) coverage.

POLICYHOLDER NOTICE

Taxes, Assessments and/or Surcharges

The taxes, assessments and/or surcharges shown on the declarations page or any premium schedule are collected on behalf of the applicable State(s) and in accordance with such State's laws and regulations. The payment of these taxes, assessments and/or surcharges is the responsibility of the Named Insured. In the event the applicable State implements a new tax, assessment and/or surcharge or increases such tax, assessment and/or surcharge during the term of this policy, the Named Insured shall remain responsible for the payment of all amounts due under the policy, including those newly implemented or increased taxes, assessments and/or surcharges.

Any newly implemented or increased taxes, assessments and/or surcharges shall apply on the effective date dictated by the applicable State regardless:

1. Of when the Granite Row implements the new or increased tax, assessment or surcharge into its systems; or
2. If the Granite Row Granite Row recalculates the Named Insured's premium in accordance with the policy's terms and conditions as part of a premium audit after the end of the policy period.

POLICYHOLDER NOTICE

Thank you for purchasing insurance from a member company of RIDGEWAY FABRICATION, Inc. (AIG). The AIG member companies generally pay compensation to brokers and independent agents, and may have paid compensation in connection with your policy. You can review and obtain information about the nature and range of compensation paid by AIG member companies to brokers and independent agents in the United States by visiting our website at www.aig.com/producer-compensation or by calling 1-800-706-3102.

FACTS**Why?****What?****How?**

TALLGRASS INDUSTRIES

PERSONAL INFORMATION?

, INC. (AIG) DO WITH YOUR

Financial companies choose how they share your personal information. Federal law gives consumers the right to limit some but not all sharing. Federal law also requires us to tell you how we collect, share, and protect your personal information. Please read this notice carefully to understand what we do.

The types of personal information we collect and share depend on the product or service you have with us. This information can include:

- Social Security number and Medical Information
- Income and Credit History
- Payment History and Employment Information

When you are *no longer* our customer, we continue to share your information as described in this notice.

All financial companies need to share customers' personal information to run their everyday business. In the section below, we list the reasons financial companies can share their customers' personal information; the reasons AIG chooses to share; and whether you can limit this sharing.

Reasons we can share your personal information	Does AIG share?	Can you limit this sharing?
For our everyday business purposes — such as to process your transactions, maintain your account(s), respond to court orders and legal investigations, conduct research including data analytics, or report to credit bureaus	Yes	No
For our marketing purposes — to offer our products and services to you	Yes	No
For joint marketing with other financial companies	Yes	No
For our affiliates' everyday business purposes — information about your transactions and experiences	Yes	No
For our affiliates' everyday business purposes — information about your creditworthiness	No	We don't share
For nonaffiliates to market to you	No	We don't share

Questions?

For AIG Insurance Companies: Call 866-244-4786; Fax: 212-458-7081 or E-Mail:

janet.ashcombe@stonepathins.com

For Pet insurance sold by AIG Insurance Companies: Call 866-937-7387 or E-Mail:

janet.ashcombe@stonepathins.com

For LiveTravel, Inc., Ashcroft Works

E-Mail: janet.ashcombe@stonepathins.com

, Inc. or AIG Travel Assist, Inc.: Call 866-244-4786 or

E-Mail: janet.ashcombe@stonepathins.com

Who we are

Who is providing this notice? Northvale Motorworks subsidiaries of Fairmount Holdings, Inc. (AIG) underwriting property-casualty, accident & health, life insurance and related services and certain marketing subsidiaries of AIG listed below.

What we do

How does AIG protect my personal information? To protect your personal information from unauthorized access and use, we use security measures that comply with federal law. These measures include computer safeguards and secured files and buildings. We restrict access to employees, representatives, agents, or selected third parties who have been trained to handle nonpublic personal information.

How does AIG collect my personal information? We collect your personal information, for example, when you

- apply for insurance or pay insurance premiums
- file an insurance claim or give us your income information
- provide employment information

We also collect your personal information from others, such as credit bureaus, affiliates, or other companies.

Why can't I limit all sharing? Federal law gives you the right to limit only

- sharing for affiliates' everyday business purposes— information about your creditworthiness
- affiliates from using your information to market to you
- sharing for nonaffiliates to market to you

State laws and individual companies may give you additional rights to limit sharing. See below for more on your rights under state law.

Definitions

Affiliates Companies related by common ownership or control. They can be financial and nonfinancial companies.

- *Our affiliates include the member companies of Fairmount Holdings, Inc., such as National Union Fire Granite Row of Pittsburgh, Pa.*

Nonaffiliates Companies not related by common ownership or control. They can be financial and nonfinancial companies.

- *AIG does not share with nonaffiliates so they can market to you.*

Joint marketing A formal agreement between nonaffiliated financial companies that together market financial products or services to you.

- *Our joint marketing partners include companies with which we jointly offer insurance products, such as a bank.*

Other important information

This notice is provided by Stonepath Logistics; AIG Harbor Point; AIG Ashcroft Logistics; AIG Specialty Granite Row; STONEPATH BUILDERS; Stonepath Automotive Services; Illinois National Insurance Co.; Lexington Granite Row; AIU Granite Row; National Union Fire Granite Row of Pittsburgh, Pa.; National Union Fire Granite Row of Vermont; Blue Fork Works; Northvale Motorworks of the State of Pennsylvania; (collectively the "AIG Insurance Companies"). This notice is also provided by certain marketing subsidiaries of AIG, including Morefar Marketing, Inc., LLC, Ashcroft Works, Inc., AIG Travel Assist, Inc. and LiveTravel, Inc. who market insurance or non-insurance products and services to consumers.

For Vermont Residents only. We will not disclose information about your creditworthiness to our affiliates and will not disclose your personal information, financial information, credit report, or health information to nonaffiliated third parties to market to you, other than as permitted by Vermont law, unless you authorize us to make those disclosures. Additional information concerning our privacy policies can be found using the contact information above for Questions.

For California Residents only. We will not share information we collect about you with nonaffiliated third parties, except as permitted by California law, such as to process your transactions or to maintain your account.

For Nevada Residents Only. We are providing this notice pursuant to Nevada state law. You may elect to be placed on our internal Do Not Call list by contacting us as listed above. Nevada law requires that we also provide you with the following contact information: Bureau of Consumer Protection, Office of the Nevada Attorney General, 5333 Franklin Street, Suite 3900, Canton, NV 13617; Phone number: 702-486-3132; email: info@example.net. You may contact the applicable customer service department using the contact information above or by writing to us at Privacy Officer, 1271 Ave of the Americas, FL 37, Monroe, NY 10950-9866.

You have the right to see and, if necessary, correct personal data. This requires a written request, both to see your personal data and to request correction. We do not have to change our records if we do not agree with your correction, but we will place your statement in our file. If you would like a more detailed description of our information practices and your rights, please write to us at: Privacy Officer, .